

Kathryn N. Nester (13967)
NESTER LEWIS PLLC
40 S 600 E
Salt Lake City, UT 84102
Telephone: (801) 535-4375
Email: kathy@nesterlewis.com

Richard G. Novak, *pro hac vice*
RICHARD G. NOVAK, APLC
65 North Raymond Avenue, Suite 320
Pasadena, CA 91103
Telephone: 626-578-1175
Email: Richard@RGNLaw.com

Michael N. Burt, *pro hac vice*
LAW OFFICE OF MICHAEL BURT PC
1000 Brannan Street Suite 400
San Francisco, California 94103
Telephone: 415-522-1508

Staci Visser (14358)
BROWN, BRADSHAW & MOFFAT
422 N 300 W
Salt Lake City, UT 84103
Telephone: 801-532-5297

Attorneys for Tyler James Robinson

IN THE FOURTH JUDICIAL DISTRICT COURT, PROVO DEPARTMENT

IN AND FOR THE COUNTY OF UTAH, STATE OF UTAH

STATE OF UTAH, Plaintiff, vs. TYLER JAMES ROBINSON, Defendant.	MOTION TO EXCLUDE STILL PHOTOGRAPHERS, TV CAMERAS AND MICROPHONES FROM THE COURTROOM (EVIDENTIARY HEARING REQUESTED) Case No. 251403576 Honorable Tony F. Graf, Jr.
--	--

TABLE OF CONTENTS

TABLE OF CONTENTS.....	i
TABLE OF AUTHORITIES	iii
INTRODUCTION	1
REQUESTED RELIEF.....	1
RELEVANT FACTS	2
ARGUMENT	48
I. INTRODUCTION	48
II. GIVEN THE PARTICULAR CIRCUMSTANCES OF THIS CAPITAL CASE, WHERE THE AMOUNT OF PREJUDICIAL ELECTRONIC MEDIA PRETRIAL PUBLICITY IS ALREADY EXTREMELY HIGH AND IS LIKELY TO CONTINUE, AND WHERE THE ELECTRONIC MEDIA HAS ALREADY VIOLATED THE COURT’S DECORUM ORDER AND DIRECTLY CAUSED FURTHER PREJUDICE , CONTINUING TO ALLOW LIVE STREAMING OF ALL PROCEEDINGS WOULD INFRINGE MR. ROBINSON’S FUNDAMENTAL RIGHT TO A FAIR AND RELIABLE TRIAL AND SENTENCING HEARING BY AN IMPARTIAL JURY AS GUARANTEED BY THE SIXTH, EIGHTH, AND FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION AND THEIR UTAH CONSTITUTIONAL COUNTERPARTS.....	59
A. The Court Has a Constitutional Duty to Take Strong Measures to Ensure That Mr. Robinson’s Right to a Fair Trial by an Impartial Jury Is Protected From Prejudicial Electronic Pretrial Publicity.....	59
B. The Prejudicial Pretrial Electronic Media Coverage in This Case Clearly Meets the Threshold Standard Set Forth in <i>Sheppard</i> for Invoking This Court’s Affirmative Constitutional Duty to Take Protective Measures to Protect Mr. Robinson’s Due Process Rights by Prohibiting Further Electronic Media Live Streaming.	62
1. The <i>Sheppard</i> Standard Has Clearly Been Met.	62
2. The United States Supreme Court’s Camera-In-The Courtroom Cases Strongly Support Granting This Motion and Establish Mr. Robinson’s Right to an Evidentiary Hearing to Present Empirical Data and Other Evidence in Support of This Motion.....	74
3. Lower Court Decisions Also Support the Constitutional Necessity of Protecting Mr. Robinson’s Due Process Rights by Prohibiting Further Electronic Media Live Streaming OR Photographing.....	82
C. The Fact That the State and Its Agents Released Extremely Prejudicial Information and Opinions to the Media in Violation of Applicable Law and Standards Weighs in Favor of Granting This Motion.....	91
1. Introduction.....	91

2.	The Affidavit of Probable Cause, the Statement of Probable Cause, and the Mugshots Should Never Have Been Released to the Media, and the Governor’s, the District Attorney’s, the Sheriff’s, and the Department of Justice’s Press Conferences and Other Media Appearances All Violated Controlling Statutes, Rules and Regulations.	95
a)	Utah Code § 63G-2-302(2)(d) and Utah Code § 63G-2-305(80)	95
c)	Utah Code § 63G-2-305(11)	108
d)	Utah Code § 63G-2-305(18)	109
e)	Utah Rule of Professional Conduct 3.6.....	110
f)	28 C.F.R. § 50.2	117
g)	Conclusion	118
D.	The Traditional Means of Controlling Prejudicial Pretrial Publicity Are Not Available or Have Not Been or Will Not Be Effective in This Case	118
E.	Conclusion	126
III.	THE TERMINATION OR RESTRICTION OF FURTHER ELECTRONIC MEDIA LIVE STREAMING AND PHOTOGRAPHIC COVERAGE OF ANY PROCEEDINGS IS ALSO WARRANTED UNDER RULE 4-401.01.	126
A.	Introduction.....	126
B.	The “Predominant Purpose” of the Electronic Media Coverage in This Case Is Not “Journalism or Dissemination of News to the Public.”	131
C.	Any Presumption in Favor of Electronic Media Coverage Has Been Overcome.	137
	CONCLUSION.....	181

EXHIBITS

- Exhibit 1: Court Order No Bail (Dkt. 4)
- Exhibit 2: Declaration of C. Ruva, Ph.D
- Exhibit 3: [REDACTED]
- Exhibit 4: [REDACTED]
- Exhibit 5: Order in *State of Idaho v. Kohberger* (11.17.2023)

TABLE OF AUTHORITIES

Cases

<i>ACLU v. U.S. Dep't of Justice</i> , 655 F.3d 1 (D.C. Cir. 2011)	96
<i>Andrew v. White</i> , 604 U.S. 86 (2025)	45
<i>Att'y Grievance Comm'n of Maryland v. Gansler</i> , 835 A.2d 548 (Md. App. Ct. 2003).....	113, 115
<i>Ayeni v. Mottola</i> , 35 F.3d 680 (2d Cir.1994)	159
<i>Bates v. Bell</i> , 402 F.3d 635 (6th Cir. 2005)	73
<i>Beck v. Alabama</i> , 447 U.S. 625 (1980).....	57
<i>Bosse v. Oklahoma</i> , 580 U.S. 1 (2016)	45, 82
<i>Branzburg v. Hayes</i> , 408 U.S. 665 (1972).....	87
<i>Brigham City v. Stuart</i> , 2005 UT 13, 122 P.3d 506.....	160
<i>Caldwell v. Mississippi</i> , 472 U.S. 320 (1985).....	57
<i>Chandler v. Florida</i> , 449 U.S. 560 (1981).....	52-53, 58, 75-78, 127
<i>Chicago Council of Laws. v. Bauer</i> , 522 F.2d 242 (7th Cir. 1975)	20, 68, 69, 72, 91
<i>Combined Communications Corp. v. Finesilver</i> , 672 F.2d 818 (10th Cir. 1982).....	54
<i>Conway v. United States</i> , 852 F.2d 187 (6th Cir.1988)	54
<i>Cox v. State of Louisiana</i> , 379 U.S. 559 (1965)	173
<i>Deck v. Missouri</i> , 544 U.S. 622 (2005).....	57, 145
<i>Delaney v. United States</i> , 199 F.2d 107 (1st Cir. 1952)	123
<i>Demery v. Arpaio</i> , 378 F.3d 1020 (9th Cir. 2004).....	161
<i>Deseret News Publishing Co. v. Salt Lake Cnty.</i> , 2008 UT 26, 182 P.3d 372	96-98, 102-103, 113, 115, 162
<i>Detroit Free Press Inc. v. United States Dep't of Justice</i> , 829 F.3d 478 (6th Cir. 2016)	96, 100
<i>Doyle v. Ohio</i> , 426 U.S. 610 (1976)	71
<i>Dunn v. United States</i> , 307 F.2d 883 (5th Cir. 1962)	122
<i>E*Trade Financial Corp. v. Deutsche Bank AG</i> , 582 F. Supp. 2d 528 (S.D.N.Y. 2008).....	81
<i>Eberhardt v. Bordenkircher</i> , 605 F.2d 275 (6th Cir. 1979).....	107
<i>Estes v. Texas</i> , 381 U.S. 532 (1965)	passim
<i>Florida. v. Bostick</i> , 501 U.S. 429 (1991)	71
<i>Frank v. Mangum</i> , 237 U.S. 309 (1915).....	49
<i>Frazier v. Superior Court of Santa Cruz County</i> , 486 P.2d 694 (Cal. 1971)	139, 146
<i>Gannett Co. v. DePasquale</i> , 443 U.S. 368 (1979).....	62
<i>Geders v. United States</i> , 425 U.S. 80 (1976)	64

<i>Gentile v. State Bar of Nevada</i> , 501 U.S. 1030 (1991)	5, 121, 124, 143
<i>Globe Newspaper Co. v. Superior Ct. for Norfolk Cnty</i> , 457 U.S. 596 (1982)	55, 87-88, 157
<i>Gov't of Virgin Islands v. Gereau</i> , No. CRIM. 97-1972, 1973 WL 354203 (D.V.I. July 23, 1973)	2
<i>Gregg v. Georgia</i> , 428 U.S. 153 (1976)	56
<i>Groppi v. Wisconsin</i> , 400 U.S. 505 (1971)	49
<i>Hamilton v. State of Ala.</i> , 368 U.S. 52 (1961)	24, 81
<i>Holbrook v. Flynn</i> , 475 U.S. 560 (1986).....	57
<i>Hollingsworth v. Perry</i> , 558 U.S. 183 (2010).....	79-81, 129-130, 171, 174
<i>Houchins v. KQED, Inc.</i> , 438 U.S. 1 (1978).....	161
<i>In re Brizzi</i> , 962 N.E.2d 1240 (Ind. 2012)	113, 115-116
<i>In the Matter of Discipline of Leavitt</i> , 2025 UT 46, 579 P.3d 343	6, 66, 72, 73, 105, 113, 116
<i>Irvin v. Dowd</i> , 366 U.S. 717 (1961).....	56, 60, 122
<i>Karantsalis v. U.S. Dep't of Justice</i> , 635 F.3d 497 (11th Cir. 2011)	96, 100
<i>Katz v. United States</i> , 389 U.S. 347 (1967)	160
<i>Katzman v. Victoria's Secret Catalogue</i> , 923 F. Supp. 580 (S.D.N.Y. 1996)	81
<i>Kiraly v. FBI</i> , 728 F.2d 273 (6th Cir. 1984)	96
<i>KUTV, Inc. v. Conder</i> , 668 P.2d 513 (Utah 1983).....	5, 50, 59
<i>Lauro v. Charles</i> , 219 F.3d 202 (2d Cir.2000)	158-160
<i>Lauro v. City of New York</i> , 39 F. Supp. 2d 351 (S.D.N.Y.1999).....	158, 160
<i>Levine v. U.S. Dist. Ct. for Cent. Dist. of California</i> , 764 F.2d 590 (9th Cir. 1985).....	122, 124
<i>Maine v. Superior Court</i> , 438 P.2d 372 (Cal. 1968).....	139, 141, 143, 147
<i>Marisol A. v. Giuliani</i> , 929 F. Supp. 660 (S.D.N.Y. 1996)	81
<i>Marshall v. United States</i> , 360 U.S. 310 (1959).....	60
<i>Martinez v. Superior Court of Placer County</i> , 629 P.2d 502 (Cal. 1981)	139, 140, 142
<i>Mau v. Rio Grande Oil</i> , 28 F. Supp. 845 (N.D. Cal. 1939)	162
<i>Murphy v. Florida</i> , 421 U.S. 794 (1975)	123
<i>Murthy v. Missouri</i> , 603 U.S. 43 (2024).....	30
<i>Nat'l Archives & Records Admin. v. Favish</i> , 541 U.S. 157 (2004).....	98
<i>NBC v. Stewart</i> , 360 F.3d 90 (2d Cir, 2004).....	120
<i>Nebraska Press Ass'n. v. Stuart</i> , 427 U.S. 539 (1976)	63
<i>NetChoice, LLC v. Reyes</i> , 748 F. Supp. 3d 1105 (D. Utah 2024).....	157
<i>Nevers v. Killinger</i> , 990 F. Supp. 844 (E.D. Mich. 1997)	137

<i>Nichols v. Dist. Ct. of Oklahoma Cnty</i> , 2000 OK 12, 6 P.3d 506.....	84-86
<i>Nixon v. Warner Communications, Inc.</i> , 435 U.S. 589 (1978)	53-54, 85
<i>Parker v. Bowersox</i> , 188 F.3d 923 (8th Cir. 1999).....	45
<i>Patterson v. Colorado ex rel. Attorney General</i> , 205 U.S. 454 (1907)	64
<i>Payne v. Tennessee</i> , 501 U.S. 808 (1991).....	45
<i>People v. Sirhan</i> , 497 P.2d 1121 (1972)	2
<i>People v. Tidwell</i> 473 P.2d 748 (Cal. 1970)	143-144
<i>Perry v. City & Cnty. of San Francisco</i> , No. 10-16696, 2011 WL 2419868 (9th Cir. Apr. 27, 2011)	152, 164, 178
<i>Powell v. Superior Ct.</i> , 283 Cal. Rptr. 777 (Cal. Ct. App. 1991)	141, 143- 144, 147
<i>Press-Enterprise Co. v. Superior Ct. of California, Riverside Cnty</i> , 464 U.S. 501 (1984)	54, 55, 87
<i>Prison Legal News v. Exec. Off. for U.S. Att'ys</i> , 628 F.3d 1243 (10th Cir. 2011).....	94
<i>Quercia v. United States</i> , 289 U.S. 466 (1933)	43
<i>Radio & Television News Ass'n of S. California v. U.S. Dist. Ct. for Cent. Dist. of California</i> , 781 F.2d 1443 (9th Cir. 1986)	54
<i>Rice v. Kempker</i> , 374 F.3d 675 (8th Cir. 2004)	54
<i>Rideau v. State of Louisiana</i> , 373 U.S. 723 (1963).....	41, 59, 68
<i>Rimmer v. Holder</i> , 700 F.3d 246 (6th Cir. 2012).....	96
<i>Sampson v. United States</i> , 724 F.3d 150 (1st Cir. 2013)	57
<i>Schoeps v. Museum of Modern Art</i> , 599 F. Supp. 2d 532 (S.D.N.Y. 2009)	81
<i>Shattuck-Owen v. Snowbird Corp.</i> , 2000 UT 94, 16 P.3d 555	162
<i>Sheppard v. Maxwell</i> , 384 U.S. 333 (1966).....	passim
<i>Sinclair v. Turner</i> , 434 P.2d 305 (Utah 1967)	50, 136-137, 170
<i>Skilling v. United States</i> , 561 U.S. 358 (2010)	5, 68, 72, 143
<i>State v. Arguelles</i> , 2003 UT 1, 63 P.3d 731	57
<i>State v. Bryan Kohberger</i> , Case No. CR29-22-2805 (D.C. Latah County Idaho, Nov. 17, 2023)	134-135, 168-169, 179
<i>State v. Curry</i> , 2006 UT App 390, 147 P.3d 483.....	25
<i>State v. DeJesus</i> , 2017 UT 22, 395 P.3d 111	53
<i>State v. James</i> , 767 P.2d 549 (Utah 1989)	57, 68, 82, 139, 142
<i>State v. Lafferty</i> , 749 P.2d 1239 (Utah 1988)	123
<i>State v. Pierre</i> , 572 P.2d 1338 (Utah 1977).....	59
<i>State v. Richins</i> , 2025 UT 10, 568 P.3d 1046	120, 124

<i>State v. Tiedemann</i> , 2007 UT 49, 162 P.3d 1106	160
<i>State v. Wiswell</i> , 639 P.2d 146 (Utah 1981)	71
<i>Stien v. Marriott Ownership Resorts, Inc.</i> , 944 P.2d 374 (Utah Ct. App. 1997)	162
<i>Turner v. Louisiana</i> , 379 U.S. 466 (1965)	121
<i>U.S. Dep't of Just. v. Reporters Committee for Freedom of Press</i> , 489 U.S. 749 (1989) 94-95, 100	
<i>U.S. ex rel. Bloeth v. Denno</i> , 313 F.2d 364 (2d Cir. 1963)	91, 93, 122, 125
<i>United States v. Al-Marimi</i> , 761 F. Supp. 3d 16 (D.D.C. 2024)	84
<i>United States v. Bowen</i> , 799 F.3d 336 (5th Cir. 2015)	30
<i>United States v. Casellas-Toro</i> , 807 F.3d 380 (1st Cir. 2015)	72, 141
<i>United States v. Concepcion Cueto</i> , 515 F.2d 160 (1st Cir. 1975)	122
<i>United States v. Edwards</i> , 785 F.2d 1293 (5th Cir.1986)	53
<i>United States v. Footman</i> , 33 F. Supp. 2d 60 (D. Mass. 1998)	123
<i>United States v. Hastings</i> , 695 F.2d 1278 (11th Cir. 1983)	54, 85
<i>United States v. Houlihan</i> , 926 F. Supp. 14 (D. Mass. 1996)	91, 123
<i>United States v. Irorere</i> , 69 F. App'x 231 (6th Cir. 2003)	100
<i>United States v. Kerley</i> , 753 F.2d 617 (7th Cir.1985)	54-55
<i>United States v. McCoy</i> , 848 F.2d 743 (6th Cir. 1988)	100
<i>United States v. McVeigh</i> , 918 F. Supp. 1467 (W.D. Okla. 1996)	82-83, 124
<i>United States v. McVeigh</i> , 931 F. Supp. 753 (D. Colo. 1996)	84
<i>United States v. McVeigh</i> , 944 F. Supp. 1478 (D. Colo. 1996)	45
<i>United States v. McVeigh</i> , 964 F. Supp. 313 (D. Colo. 1997)	84
<i>United States v. Mendoza</i> , 522 F.3d 482 (5th Cir. 2008)	36
<i>United States v. Mitchell</i> , 502 F.3d 931 (9th Cir. 2007)	45
<i>United States v. Moussaoui</i> , 205 F.R.D. 183 (E.D. Va. 2002)	86-90, 137, 152, 166
<i>United States v. Nixon</i> , 418 U.S. 683 (1974)	63
<i>United States v. Quattrone</i> , 402 F.3d 304 (2005)	120
<i>United States v. Romero-Rojo</i> , 67 F. App'x 570 (10th Cir. 2003)	107
<i>United States v. Tijerina</i> , 412 F.2d 661 (10th Cir. 1969)	55
<i>United States v. Trump</i> , 88 F.4th 990 (D.C. Cir. 2023)	passim
<i>United States v. Tsarnaev</i> , 595 U.S. 302 (2022)	52
<i>United States v. Wright</i> , 489 F.2d 1181 (D.C. Cir. 1973)	36
<i>Utah Legal Clinic v. Salt Lake City Corp.</i> , 2019 UT App 58, 440 P.3d 948	109-110
<i>Weaver v. Bowersox</i> , 438 F.3d 832 (8th Cir. 2006)	73

<i>Westmoreland v. Columbia Broadcasting Sys., Inc.</i> , 752 F.2d 16 (2d Cir.1984).....	53, 87
<i>Whiteland Woods, L.P. v. Township of W. Whiteland</i> , 193 F.3d 177 (3d Cir.1999)	53
<i>Wilson v. Layne</i> , 526 U.S. 603 (1999)	159-160
<i>Wood v. Georgia</i> , 370 U.S. 375 (1962)	90
<i>Woodson v. North Carolina</i> , 428 U.S. 280 (1976)	5
<i>World Publishing Co. v. U.S. Dep't of Justice</i> , 672 F.3d 825 (10th Cir. 2012).....	96, 107

Statutes

18 U.S.C. § 3592(c)(14).....	2
28 C.F.R. § 50.2 (2013)	16, 92, 104-105, 117-118
Utah Code § 13-71-102.....	157
Utah Code § 63G-2-201.....	7, 25, 92-93, 104-105, 108
Utah Code § 63G-2-302.....	7, 25, 92-93, 95-96, 98, 100-101, 113
Utah Code § 63G-2-305.....	7, 25, 92-93, 101-110, 113
Utah Code § 63G-2-406.....	110
Utah Code § 76-5-202.....	2
Utah Minor Protection in Social Media Act	156

Other Authorities

ABA, <i>Fair Trial & Public Discourse</i> (2013 Fourth Ed.)	5-6, 38, 113-114, 118, 120, 125
Alex Kozinski & Robert Johnson, <i>Of Cameras and Courtrooms</i> , 20 FORDHAM INTELL. PROP. MEDIA & ENT. L.J. 1107 (2010)	128, 131, 133-134, 151
Andrew G.T. Moore II, <i>The O.J. Simpson Trial-Triumph of Justice or Debacle?</i> , 41 ST. LOUIS U. L.J. 9 (1996)	48
Emily Ittner, <i>Technology In The Courtroom: Promoting Transparency Or Destroying Solemnity?</i> , 22 COMMLAW CONSPECTUS 347 (2014).....	51
F. Longa, <i>The Presumption of Innocence and the Media An Examination of Fair Trial Rights in the Digital Era</i> (2025)	31
Federal Judicial Center, ELECTRONIC MEDIA COVERAGE OF FEDERAL CIVIL PROCEEDINGS: AN EVALUATION OF THE PILOT PROGRAM IN SIX DISTRICT COURTS AND TWO COURTS OF APPEALS (1994).....	128
<i>Final Report of the Judicial Council Study Committee on Technology Brought into The Courtroom</i> (April 10, 2012).....	126, 128-131, 137-138, 174, 177-179
J. Skelly Wright, <i>Fair Trial-Free Press</i> , 38 F.R.D. 435 (1966)	2, 125
Katie Grace Frisbee, <i>Caught In The Content Tornado: How To Protect Violent-Crime Trials From The Prejudicial Effects Of Live Streaming</i> , 74 Duke Law J. 1053 (2025)	30

<i>Kelli L. Sager & Karen N. Fredericksen, Televising the Judicial Branch: In Furtherance of the Public’s First Amendment Rights</i> , 69 S. CAL. L. REV. 1519 (1996).....	128
Mary Angela Bock, <i>Framing the Accused: The Perp Walk as Media Ritual</i> , 22 VISUAL COMM. QUARTERLY 206 (2015).....	164, 169
Parham Porouhan, <i>From Neutrality to Suspicion: AI-Powered Text Classification of High-Impact Political Discourse Online (A Case Study of Charlie Kirk's Assassination)</i> , 23rd International Conference on ICT and Knowledge Engineering (ICT&KE) (Nov 2025)	45
United States House of Representatives, <i>Rules of the House of Representative</i> , Rule XI(4) (Jan. 10, 2023)	132

Rules

Fed. R. Crim. P. 21(a).....	82
Fed. R. Crim. P. 53	84-85, 87
Fed. R. Evid. 404(b).....	108
Fed. R. Evid. 615	74
Utah Code Jud. Admin. R. 4-401.01.....	passim
Utah R. Prof’l Cond. 3.6	passim
Utah R. Prof’l Cond. 3.8	6

Constitutional Provisions

U.S. Const. amend. I	53-55, 85, 125, 138, 157, 159
U.S. Const. amend. IV	1, 158-162
U.S. Const. amend. V.....	69-70
U.S. Const. amend. VI	1, 57-58, 70, 90, 107, 168
U.S. Const. amend. VIII.....	1, 45, 57-58, 90
U.S. Const. amend. XIV	passim
U.S. Const. art. VI.....	53
Utah Const. art. I, § 10.....	1, 58
Utah Const. art. I, § 12.....	1, 58
Utah Const. art. I, § 14.....	1, 160-162
Utah Const. art. I, § 7	1, 58
Utah Const. art. I, § 9.....	1, 57-58

INTRODUCTION

Defendant, Tyler James Robinson, by and through undersigned counsel, hereby moves the Court to exclude from the courtroom during the pendency of this case television cameras and microphones, still photographers, radio microphones and other similar implements of the electronic or broadcast media. The exclusion of these devices is necessary to ensure Mr. Robinson's rights to due process, to a fair and impartial jury, to counsel, to be free from unreasonable searches and seizures, and to be free from cruel and unusual punishment, as required by the Fourth, Sixth, Eighth and Fourteenth Amendments to the United States Constitution and article I, sections 7, 9, 10, 12, and 14 of the Utah Constitution.

REQUESTED RELIEF

Mr. Robinson seeks an order of this Court pursuant to the constitutional provisions cited above and Utah Rule of Judicial Administration 4-401.01 ("Rule 4-401.01") that prohibits or restricts further electronic media coverage in this cases because: (1) such action is necessary to preserve and protect the constitutional provisions set forth above; (2) under Rule 4-401.01, further electronic media coverage should be prohibited or restricted because (a) the electronic media coverage in this case has not been and will not in the future be for the predominant purpose of journalism or dissemination of news to the public (Rule 4-401.01(2)(A)); (b) the reasons for doing so are sufficiently compelling to outweigh any presumption that electronic media coverage by a news reporter shall be permitted (Rule 4-401.01(2)(A)); (c) a judge may terminate or suspend electronic media coverage at any time without prior notice if the judge finds that continued electronic media coverage is no longer appropriate based upon consideration of one or more of the factors in Paragraph (2)(B) (Rule 4-401.01(3)(B)) ; and (d) the electronic media has violated this Court's decorum order so prohibition or restriction of electronic media coverage is warranted under Rule 4-401.01(5) .

It is possible, of course, that in spite of ...safeguards, when a President is assassinated or some similar crime is committed, the public in all parts of the country is so saturated with the publicity respecting the crime that a fair trial may indeed be impossible.

J. Skelly Wright, *Fair Trial-Free Press*, 38 F.R.D. 435, 437 (1966).

RELEVANT FACTS¹

Even before a suspect was arrested for the killing of Mr. Kirk on September 10, 2025, influential politicians were appearing on national television broadcasts to proclaim they knew for a fact what the motivation for the killing was and what awaited the killer once he was apprehended. For instance, shortly after the killing, Utah Governor Cox held a nationally televised press conference in which he announced that although the “investigation is ongoing”, “I want to be very clear that this is a political assassination.” NBC NEWS, *‘This is a political assassination’: Gov. Spencer Cox speaks out on Charlie Kirk’s death*, Sep. 10, 2025), <https://www.youtube.com/watch?v=5kmC8IyhD-A>.² The Governor also delivered a personal

¹ Citations to documents in the existing record are referenced by the docket entry number (“Dkt.”) and applicable page number, where appropriate. All videographic references throughout the motion are on file with defense counsel. Defense counsel notes that there are references throughout to the paramour of Mr. Robinson both in argument and in electronic media references. The electronic media references refer to her as “boyfriend,” “Lance Twiggs” and “Mr. Twiggs,” and using male-gendered pronouns. However, out of respect for Ms. Twiggs and for clarity, outside of the media references, defense counsel refers to her by her chosen name of Luna and by she/her pronouns.

² The term “political assassination”, while emotionally charged, has no legal meaning. While one judge, citing *People v. Sirhan*, 497 P.2d 1121 (1972), has suggested that “a political assassination raises the possibility of a more widespread plot (with perhaps additional targets)”, *Gov’t of Virgin Islands v. Gereau*, No. CRIM. 97-1972, 1973 WL 354203, at *23 (D.V.I. July 23, 1973), even Sirhan Sirhan was not charged with “political assassination”; he was charged with murder. In Utah, “[a]n actor commits aggravated murder if the actor intentionally or knowingly causes the death of another individual under any of the following circumstances:... (xii) the deceased individual was a local, state, or federal public official, or a candidate for public office, and the homicide is based on, is caused by, or is related to that official position, act, capacity, or candidacy” Utah Code § 76-5-202(2)(a)(xii). Even after what appears to be an exhaustive state and federal investigation, Mr. Robinson has not been charged with this offense or with the comparable federal aggravated murder provision. See 18 U.S.C. § 3592(c)(14). See

message to the killer: “But I want to make it crystal clear right now to whoever did this. We will find you. We will try you, and we will hold you accountable to the furthest extent of the law. And I just want to remind people that we still have the death penalty here in the state of Utah.” *Id.* at 2:16.

On the same day, President Donald J. Trump appeared on national television to inform his audience that he was “filled with grief and anger at the heinous assassination of Charlie Kirk”, that “Charlie inspired millions and tonight all who knew him and loved him are united in shock and horror”, that “Charlie was a patriot”, that “he fought for liberty, democracy, justice and the American people”, that he was a “martyr for truth and freedom”, and that “there has never been anyone who was so respected by youth.” FOX NEWS, *BREAKING: Trump releases Oval Office statement reacting to the assassination of Charlie Kirk*, (YouTube, Sep. 10, 2025), https://www.youtube.com/watch?v=DTYdkgN_s-E.

President Trump then continued, in what in the days ahead would become a dominant theme in the political rhetoric about the case, that

It’s a long past time for the American people and the media to confront the fact that violence and murder are the tragic consequence of demonizing those with whom you disagree day after day, year after year in the most hateful and despicable way possible. For years, those on the radical left have compared wonderful Americans like Charlie to Nazis and the world’s worst mass murderers and criminals. This kind of rhetoric is directly responsible for the terrorism that we are seeing in our country today and it must stop right now. My administration will find each and every one of those who contributed to this atrocity and to other political violence, including the organizations that fund it and support it, as well as those who go after our judges, law enforcement officials, and everyone else who brings order to our country... [R]adical left political violence has hurt too many innocent people and taken

also Michael Ruiz, Why political assassination cases aren’t automatically death penalty eligible: Luigi Mangione and Tyler Robinson cases expose gaps in assassination laws when victims aren’t in protected categories, FOX NEWS, Jan. 12, 2026, <https://www.foxnews.com/us/why-political-assassination-cases-arent-automatically-death-penalty-eligible>.

too many lives...Charlie was the best of America and the monster who attacked him was attacking our whole country.

Id. at 01:42-2:41, 2:59-3:06, 3:22-3:29.

The next day, in a statement to reporters at the White House, Mr. Trump was asked what his message was to “conservative influencers, podcasters, TV hosts that ... might be targeted by some of these radical groups” and he answered, “[w]e have radical left lunatics out there, and we just have to beat the hell out of them.” Donald J. Trump (2nd Term), *Remarks in an Exchange With Reporters Prior to Departure for New York City*, The American Presidency Project, (Sep. 11, 2025) <https://www.presidency.ucsb.edu/documents/remarks-exchange-with-reporters-prior-departure-for-new-york-city-3>. This call-to-arms was widely reported in the media. *See, e.g.*, David Sanger, *Trump Downplays Violence on the Right and Says the Left Is the Problem*, NY TIMES, (Sep. 12, 2025), <https://www.nytimes.com/2025/09/12/us/politics/trump-charlie-kirk-shooting.html>.

On the same day, in a broadcast carried by numerous electronic media outlets in Utah, the Governor returned to the same themes he had stressed in his earlier broadcast, assuring the public that the killer was an “assassin”, and an “evil human being.” KSL NEWS UTAH, *FBI director and Utah governor host press update on Charlie Kirk murder*, at 0:46, 1:13 (YouTube, Sep. 11, 2025), https://www.youtube.com/watch?v=fSrDS_0Fol8, The Governor was also more direct on what was going to happen once the killer was apprehended: “[M]ore than anything, we are going to catch this person. Uh last thing I will just say is we’ve been working with our attorneys getting everything we will need, getting affidavits ready so that we can pursue the death penalty in this case and that will happen here in the state of Utah.” *Id.* at 8:45-9:03.³

³ One may legitimately ask, what is so wrong with the head of the executive branch of a government announcing before a suspect has even been arrested his commitment to pursuing the

The electronic prejudicial pretrial publicity directed specifically at Mr. Robinson began early in the morning of September 12, 2025, following Mr. Robinson’s surrender to law enforcement authorities on the late evening of September 11, 2025.⁴ It has continued relentlessly ever since that date.

death penalty based solely on the facts of a crime and without regard to the identity, background, or character of the person who committed it. The United States Supreme Court answered this long ago in *Woodson v. North Carolina*:

A process that accords no significance to relevant facets of the character and record of the individual offender or the circumstances of the particular offense excludes from consideration in fixing the ultimate punishment of death the possibility of compassionate or mitigating factors stemming from the diverse frailties of humankind. It treats all persons convicted of a designated offense not as uniquely individual human beings, but as members of a faceless, undifferentiated mass to be subjected to the blind infliction of the penalty of death.

428 U.S. 280, 304 (1976).

⁴ This motion uses the term “prejudicial pretrial publicity” to refer not to all pretrial publicity, but only to that publicity that has been recognized by courts, legislatures, and other rule-making authorities as posing a threat to a defendant’s right to a fair trial. *See, e.g., Skilling v. United States*, 561 U.S. 358, 382 (2010) (a presumption of juror prejudice is warranted where the pretrial publicity references a “confession or other blatantly prejudicial information of the type readers or viewers could not reasonably be expected to shut from sight.”); *Gentile v. State Bar of Nevada*, 501 U.S. 1030, 1046 (1991) (noting that public statements that are “obvious bases for a finding of prejudice “ include mention of a confession or of “evidence from searches or test results.”); *KUTV, Inc. v. Conder*, 668 P.2d 513, 522-23 (Utah 1983) (referring to the American Bar Association’s *Standards Relating to Fair Trial and Free Press* (1966) as “instructive” on this issue); ABA, *Fair Trial & Public Discourse* (2013 Fourth Ed.), available at https://www.americanbar.org/groups/criminal_justice/resources/standards/fair-trial-public-discourse/; *id.* at Standard 8-2.2 (prohibiting prosecutorial comment on “the character, credibility, or reputation of a defendant...or the ...creed, religion, or sexual orientation of such person”, “the personal opinion of the prosecutor as to the guilt or innocence of the defendant”, “the existence or contents of any confession, admission, or statement given by a defendant..., or the refusal or failure of such person to make a statement”, “the performance or results of any examinations or tests, or the refusal or failure to submit to an examination or test by a defendant”, “the nature of physical evidence expected to be presented”, “the...creed, religion,...character, reputation, or credibility of” prospective witnesses or the victim, and “information that the lawyer knows or has reason to know would be inadmissible as evidence in a trial”); *id.* at Standard 8-3.1 (same prohibitions apply to law enforcement officers and agencies); *id.* at Standard 8-2.4 (same prohibitions apply to lawyers acting as legal commentators); Utah R. Prof’l Cond. 3.6 (providing that “[a] lawyer who is participating or has participated in the investigation or litigation of a matter shall not make an extrajudicial statement

Much of the very early prejudicial electronic media coverage in this case was directly linked to a decision by law enforcement and prosecutorial agencies to release to the media a three-page Affidavit of Probable Cause that outlined in detail the allegations against Mr. Robinson, including his alleged “confession” supposedly documented in online posts, and the finding of inscribed bullets at some unspecified location. Dkt. 2. The affidavit concludes with investigator Brian Davis’ personal opinion that “[b]ased on the evidence detailed in this statement, I believe there is probable cause that Tyler Robinson committed the crimes of aggravated murder by shooting Charlie Kirk in a circumstance that put many around him at grave risk of death, felony discharge of a firearm, and obstruction of justice for moving and hiding the rifle believed to be used in the shooting.” *Id.* at 3.⁵ Copies of this Affidavit began

that the lawyer knows or reasonably should know will be disseminated by means of public communication and will have a substantial likelihood of materially prejudicing an adjudicative proceeding in the matter”, and noting in the Comment that “[t]here are... certain subjects that are more likely than not to have a material prejudicial effect on a proceeding, particularly when they refer to a ...a criminal matter or any other proceeding that could result in incarceration”, and then listing most of the same prohibitions set forth in ABA Standard 8-2.2); Utah R. Prof’l Cond. 3.8(e) (“The prosecutor in a criminal case shall:... [e]xercise reasonable care to prevent investigators, law enforcement personnel, employees or other persons assisting or associated with the prosecutor in a criminal case from making an extrajudicial statement that the prosecutor would be prohibited from making under Rule 3.6.”). *See also In the Matter of Discipline of Leavitt*, 2025 UT 46, ¶ 2, 579 P.3d 343 (“Rule 3.6 recognizes the risk that a lawyer’s public commentary, especially in a criminal case, may unfairly taint the jury pool or otherwise compromise the legal proceeding. As officers of the court, all attorneys have a responsibility to protect the integrity of the judicial process. This is especially true when the attorney is in a position of public trust, like an elected county attorney responsible for prosecuting criminal conduct.”; upholding disciplinary sanction against former Utah County Attorney for violating Rule 3.6).

⁵ As argued below, because disclosure of this Affidavit and an even more detailed Statement of Probable Cause (Dkt.1, at 3-10) contained data the disclosure of which constitutes a clearly unwarranted invasion of personal privacy, created a danger of depriving Mr. Robinson of his right to a fair trial and to impartial hearings, posed a danger to him, his family, and another in disclosing his parents’ home address, related to what law enforcement insisted in its press releases was an “ongoing investigation”, and was prepared in anticipation of a judicial proceeding, these documents should never have been released to the media under the criteria set

appearing online in the early morning of September 12, 2025 and they remain online today. *See, e.g.,* Daisy Arvonen & Elsa Bray, *Charlie Kirk's murder suspect in custody*, THE DAILY UNIVERSE, (Sep. 12, 2025), <https://universe.byu.edu/metro/charlie-kirks-murder-suspect-in-custody> (posting full affidavit with parents' address); DESERET NEWS, *Affidavit of Probable Cause*, <https://media.deseret.com/media/misc/pdf/dn/news/RobinsonPC.pdf> (same); Lauren Conlin (@conlin_lauren), X, *Tyler Robinson Arrest Affidavit of Probable Cause & Public Safety Assessment Report* (Sep. 12, 2025, at 11:57 AM https://x.com/conlin_lauren/status/1966561714037551482 (same; also posting mugshot); Jim Spiewak, FACEBOOK, (Sep. 12, 2025 at 9:37 AM), <https://www.facebook.com/JimSpiewakKUTV2/posts/full-probable-cause-affidavit-for-charlie-kirks-suspected-shooterhere-is-the-ful/1209983280932837> (address redacted); FOX NEWS (Sep. 2025) <https://static.foxnews.com/foxnews.com/content/uploads/2025/09/tyler-robinson-affidavit-redacted.pdf> (address redacted).

Electronic media outlets have used this affidavit as a source of endless speculation about Mr. Robinson, often highlighting the most incriminating aspects of it, dramatizing its contents though eye catching graphics which feature Mr. Robinson's mugshots, and providing so-called "expert analysis" of it. *See, e.g.,* Wendy Halloran, *Engravings on bullet casings offer clues into motive in Charlie Kirk assassination*, KUTV, (Sep. 12, 2025, updated at 8:04 MST) <https://kutv.com/newsletter-daily/engravings-on-ammunition-offer-clues-in-charlie-kirk-murder-investigation>. KUTV's posting reminds the readers that

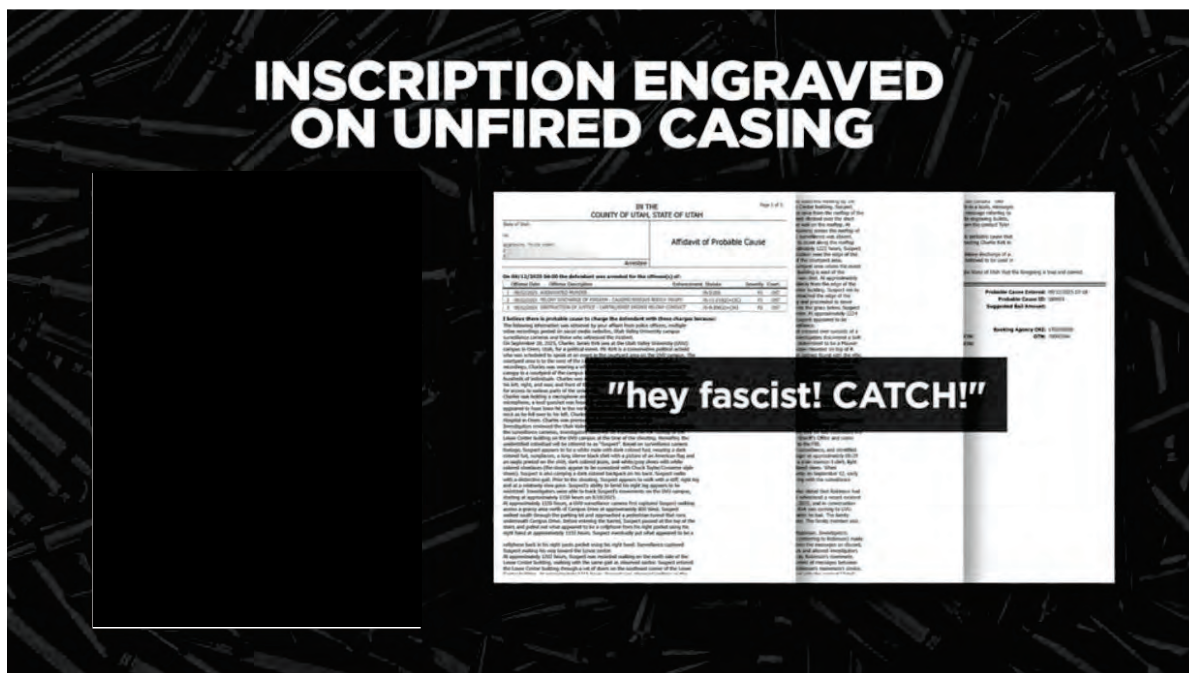
Davis concluded his affidavit by writing, "Based on the evidence detailed in this statement, I believe there is probable cause that Tyler Robinson committed the crimes of aggravated murder by shooting Charlie Kirk in a circumstance

forth in Utah Code § 63G-2-201(3), Utah Code § 63G-2-302(2)(d), Utah Code § 63G-2-305(10) and (11), and (18) and Utah Rule of Professional Conduct 3.6.

that put many around him at grave risk of death, felony discharge of a firearm, and obstruction of justice for moving and hiding the rifle believed to be used in the shooting.”

Id. The posting also offers three PowerPoint slides that are used as a platform for retired FBI Agent Greg Rogers to speculate about Mr. Robinson’s motives and state of mind. *Id.* Rogers speculated that “I think that he believed that Charlie Kirk, in his mind, he would have described Charlie Kirk as fascist”, that “[m]otive is not gonna be difficult to prove in this case,” and that “[i]t is highly likely people that he knows or that he’s gotten to know, that he’s had communications with — probably conversations that he’s had about his belief system and politics. In gaming, you have contacts, and in most of these games, you’re talking to the people you’re playing with. So, it’ll take some time to go through all of that, but there’s gonna be hundreds, at least hundreds of conversations that he’s had that are gonna also help identify his motive.” *Id.*

Rogers also offered his speculation about the three PowerPoint slides displayed on KUTV’s broadcast. For example, regarding this slide:



Rogers opined,

That is clearly referring to his intent to shoot him. He had told some associates he believed Charlie Kirk is a fascist... [I interpreted this as a snide way of saying] 'You're gonna get hit by my bullet.'... And the arrows arguably are referring to where he was. He was above him, shooting downward, so that's again indicative of the amount of thought I think that he put into this.

Id.

Even before Mr. Robinson's first court appearance, politicians, federal and state law enforcement officers, and the lead prosecution attorney in this case publicly offered their opinions about Mr. Robinson and Mr. Kirk, the details of the investigation (including an alleged confession), and even specific items of evidence and forensic tests that have not yet been deemed admissible at trial.

For instance, two days after the shooting and shortly after Mr. Robinson's arrest, President Trump appeared on a nationwide television broadcast and announced "with a high degree of certainty, we have him" and stated, "I hope he is going to be found guilty", and "I hope he gets the death penalty." TIMES NEWS, *Donald Trump Confirms Charlie Kirk Shooting Suspect Caught by Police*, at 0:01, 1:13 and 1:18 (YouTube, Sep. 12, 2025), <https://www.youtube.com/watch?v=KKk4TXK07RQ>.

On the same date, the Governor of Utah, himself a lawyer and presumably aware of the strictures of Utah Rule of Professional Conduct 3.6, began his video press conference dramatically with the words, "WE GOT HIM." GB NEWS, *Breaking: Mugshot of Charlie Kirk's suspected killer released - 'We got him!'*, at 0:15 (Sep. 12, 2025) <https://www.youtube.com/watch?v=H9QcsrpuTY8>. Flanked by Utah County District Attorney Gray, Utah County Sheriff Smith, and FBI Director Kash Patel, the Governor spent 24 minutes quoting verbatim from most of the Affidavit of Probable Cause and detailing all the alleged

evidence against Mr. Robinson, including the allegation that he “had confessed” (*id.* at 0:29), the content of incriminating messages allegedly connected to Mr. Robinson (*id.* at 1:55), and the engravings on the bullet. *Id.* at 20:27. At the end, the Governor returned to the microphone and announced that “there is one person responsible for what happened here and that person is now in custody and will be charged soon and will be held accountable.” *Id.* at 20:27.

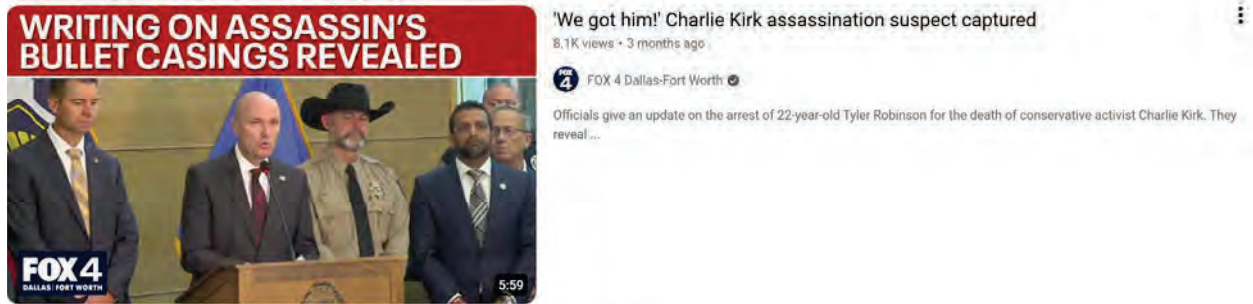
The electronic media’s response to the Governor’s press conference was instantaneous and predictable, with electronic posts such as the following:



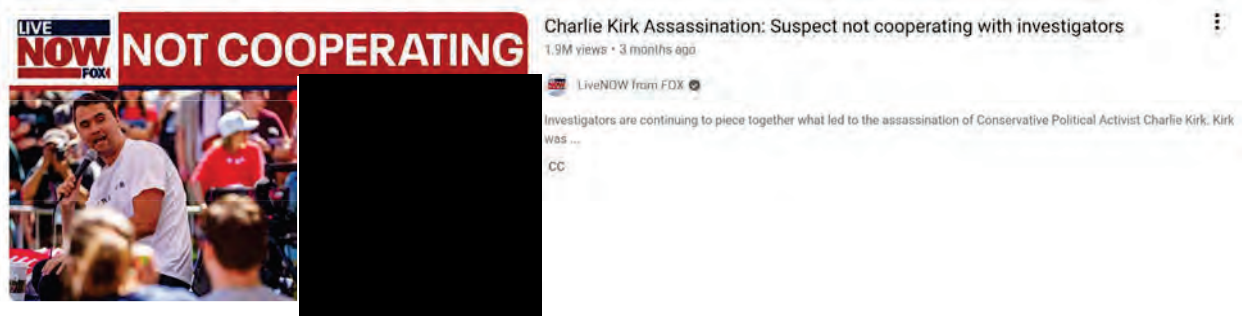
FOX NEWS CLIPS, *'We got him': Utah governor details arrest of Tyler Robinson for Charlie Kirk's murder* (Sep. 12, 2025), <https://www.youtube.com/watch?v=2SHbLbBMTpI>.



KHOU 11, *'We got him': 22-year-old man charged with killing political activist Charlie Kirk* (Sep. 12, 2025), https://www.youtube.com/watch?v=RN-Yy_47ZZs (featuring the Fox News clip of President Trump stating that he “hopes he gets the death penalty” (at 0:55)).



FOX 4 DALLAS-FORT WORTH, 'We got him!' *Charlie Kirk assassination suspect captured* (Sep. 12, 2025), https://www.youtube.com/watch?v=9vNkif_vbwk.



LIVENOW FROM FOX, *Charlie Kirk Assassination: Suspect not cooperating with investigators* (Sep. 13, 2025), <https://www.youtube.com/watch?v=dG-wuoh7zpw> (reporting that “[a]gain, as I mentioned, we are told by investigators that the suspect is not cooperating with investigators and is not answering their questions.” (at 12:12))

On September 14, 2025, Governor Cox appeared on a national broadcast of Meet the Press. See Tim Stelloh, Suzanne Gamboa, Erik Ortiz and Matt Lavietes, *Suspect in Charlie Kirk’s killing had a new interest in politics and a ‘squeaky clean’ reputation*, NBC NEWS (Sep. 12, 2025, updated 8:34 PM MDT), <https://www.nbcnews.com/news/us-news/suspect-charlie-kirk-shooting-tyler-robinson-rcna230504>. The Governor stated that he could confirm that Mr. Robinson came from a conservative family, but that “his ideology was very different from his family, so that is part of it.” *Id.* at 1:00. He also confirmed that “we do know that the roommate... is a boyfriend who is transitioning from male to female, so we know that piece.” *Id.*

at 1:06. He also stated “we have additional forensic evidence that has been processed. We’ll be sharing that when charges are filed on Tuesday. So everything we know confirms that this is the person.” *Id.* at 1:27.

Governor Cox also stated that “the why behind this. Again, we’re all drawing lots of conclusions and how someone like this could be radicalized.” *Id.* at 1:41. He also stated that the roommate was “very cooperative” and “did not have any knowledge, was shocked when...he found out about it.” *Id.* at 1:23, 2:05. He also indicated that “the suspect has not been cooperating so far.” *Id.* at 2:15. He added: “We’re getting all this information from family members, again people around the suspect, and then forensic information that we have which is confirming everything and more than what we were able to share in that initial press conference.” *Id.* at 2:20. Asked about a statement he had made in his Friday press conference that there had been a “radicalization that happened in a very short period of time” (*id.* at 2:34), the Governor answered:

[T]hose are pieces of information that we are still gathering trying to understand. We do know, and again this has been well publicized that this was a very normal young man. A very smart young man... Went to... Utah State University but was only there for a very short amount of time, dropped out after less than one semester. And it seemed to happen kind of after that, after he had moved back to the Southern part of Utah. Clearly there was a lot of gaming going on. Friends that have confirmed that there was kind of that deep dark internet, the Reddit culture and these other dark places of the internet where this person was going deep. You saw that on the casings.

Id. at 2:34. Near the end of the broadcast, the announcer plays a clip of President Trump in which he states that “the radicals on the left are the problem. And they’re vicious, and they’re horrible, and they’re politically savvy.” *Id.* at 6:58. Asked for his reaction, Governor Cox responded, “I talked to President Trump. President Trump is angry and he has every right to be angry. A lot of Americans are very angry right now. And there clearly was a leftist ideology with

this ... assassin. And so I totally understand that anger.” *Id.* at 7:10. The Governor finally noted that “the reason I’m doing these morning shows, I don’t do much national press any more, the White House asked us to come on and to talk about this because they are worried about the escalation that is happening out there.” *Id.* at 7:48.

On the same day, the Governor appeared on a CNN nationwide broadcast and again offered his speculations and hearsay about Mr. Robinson’s alleged political leanings, his romantic involvement with his transgender roommate, and new forensic evidence:



CNN, Gov. Cox: *‘If your view of America is not shaken right now, then there’s something wrong with you’* (Sep. 14, 2025, 12:24 ET) (<https://www.cnn.com/2025/09/14/politics/video/governor-spencer-cox-on-charlie-kirk-assassination>). The Governor ended his CNN appearance with these words: “If your view of America is not shaken right now then there is something wrong with you. This is a direct assault on America, a direct assault against every single one of us. Of

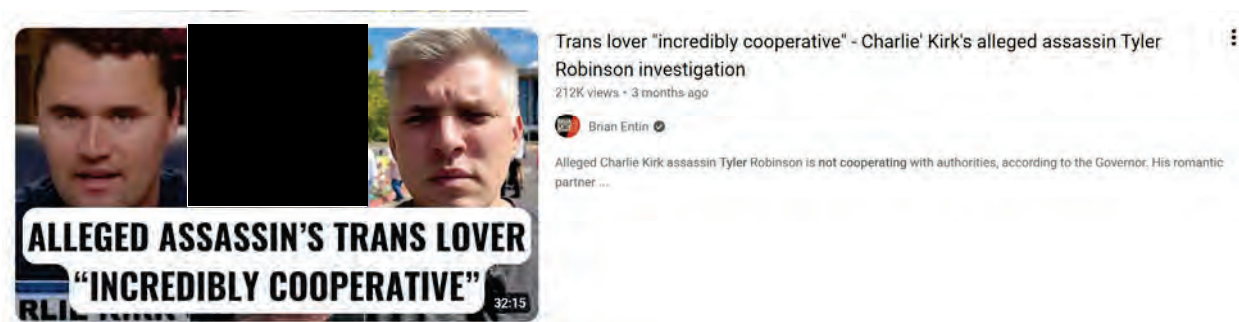
course, it's an assault on Charlie and we love Erika and her kids and his family but this is us.” *Id.* at 1:18.

In a third national appearance on September 14, 2025, Governor Cox was asked at the beginning of his appearance whether it was true that Mr. Robinson was talking to his friends about the killing. ABC NEWS, *‘These are very tragic circumstances that impact all of us’: Cox*, (YouTube, Sep. 14, 2025), <https://www.youtube.com/watch?v=ZZrwf18441s>. He responded: “all we can confirm is that those conversations definitely were happening, and they did not believe it was actually him. It was all joking until he admitted that it actually was him.” *Id.* at 00:32. . Asked if that meant that Mr. Robinson had confessed, the Governor responded: “[H]e has not confessed to authorities. He is not cooperating. But all the people around him are cooperating and I think that’s very important We can confirm that his roommate was, indeed, a boyfriend, who is transitioning from male to female... and that he is cooperating with authorities as well.” *Id.* at 0:55. As the Governor made these announcements, this image was displayed on the screen:



Asked if he had any evidence to support his assertion to the Wall Street Journal that Mr. Robinson was deeply indoctrinated with leftist ideology, the Governor responded that “so far that has come from his acquaintances and his family members”, but that “certainly there will be much more information that is released in the charging documents as they’re bringing all of that together”, and that “we’re collecting much more, including forensic evidence[.]” *Id.* at 1:30-2:10.

The Governor included in all three of these national appearances an impassioned discourse on the evils of social media, which is discussed below. Unfortunately, however, the predominant message that the electronic media chose to highlight in their coverage of Governor Cox’s national appearance were posts such as the following:



BRIAN ENTIN, *Trans love “incredibly cooperative”- Charlie’ (sic) Kirk’s alleged assassin Tyler Robinson investigation*, (YouTube, Sep. 14, 2025),

<https://www.youtube.com/watch?v=cHYoIUa762o> (reporting that “the Governor of Utah has confirmed that the roommate of the shooter, Tyler Robinson, was a romantic partner, a male transitioning to female, and this partner, the Governor says, has been incredibly cooperative...This is also new: Tyler Robinson has not been cooperating with police. He has not been cooperating with investigators. So the roommate has been cooperating, but Tyler Robinson has not been cooperating.” (at 2:03-3:07)).

On September 15, 2025, Mr. Patel appeared on national television and announced, “that the DNA hits from the towel that was wrapped around the firearm and ... the screwdriver are

positively processed for the suspect in custody.” FOX NEWS, *NEW: Kash Patel reveals ‘SHOCKING’ evidence from Kirk assassination investigation*, at 2:20 (YouTube, Sep. 15, 2025), <https://www.youtube.com/watch?v=Ku04krI7HKA>. He also stated that Mr. Robinson “has not been cooperating in terms of interrogations with our law enforcement officials.” *Id.* at 15:28. Patel also discussed a note that Robinson is alleged to have written before the crime and later allegedly destroyed. According to Patel, the note is “basically saying... ‘I have the opportunity to take out Charlie Kirk, and I’m going to take it’”. *Id.* at 7:13.⁶

Also on September 15, 2025, U.S. Attorney General Pam Bondi appeared on Fox News side-by-side with a blowup of Mr. Robinson’s mugshot in prison garb and announced that “the governor has said that they want to seek the death penalty which is very real in Utah and they still have the firing squad in Utah”, and that “as federal prosecutors we will look to see if we have federal charges as well and of course if we do we will also indict and work hand in hand with the state to *ensure that this horrible human being faces the maximum extent of the law.*” Fox News (@FoxNews), X, *AG Bondi On Potential Federal Charges for Charlie Kirk’s Alleged Assassin*, at 0:17 (Sep. 15, 2025, at 8:13 PM), <https://x.com/FoxNews/status/1967773759730815167> (emphasis added).⁷

⁶ See 28 C.F.R. § 50.2(b)(3) (2013) (containing no provision that would allow personnel of the Department of Justice to release information relating to a criminal proceeding on the basis that it is contained in a public record); § 50.2(b)(6) (“The release of certain types of information generally tends to create dangers of prejudice without serving a significant law enforcement function. Therefore, personnel of the Department should refrain from making available the following:... (ii) Statements, admissions, confessions, or alibis attributable to a defendant, or the refusal or failure of the accused to make a statement (iii) Reference to investigative procedures such as fingerprints, polygraph examinations, ballistic tests, or laboratory tests, or to the refusal by the defendant to submit to such tests or examinations...(v) Statements concerning evidence or argument in the case, whether or not it is anticipated that such evidence or argument will be used at trial.”).

⁷ 28 C.F.R. § 50.2(b)(6) (“[P]ersonnel of the Department should refrain from making available the following:(i) Observations about a defendant’s character.”).

Also on September 15, 2025, FBI Deputy Director Dan Bongino appeared on the Megyn Kelly show and announced that “it appears from the information we’ve accumulated both forensically and digitally and the comms between the two and some of the statements of family and friends that there was a relationship here that may have been beyond platonic”, that the “boyfriend’s name is Lance Twiggs”, that Mr. Robinson was on suicide watch , that “there was some significant concerns expressed by the suspect in the case about the gun and retrieving the gun”, that “the concerns the suspect in this case were expressing was retrieving the firearm from the crime scene”, that “the suspect [is] not cooperating”, that “the firearm was wrapped in a towel, and as the director said this morning on a cable news appearance, we did get a pretty strong forensic DNA hit.” MEGYN KELLY, *Dan Bongino on Status of Charlie Kirk Assassin Investigation, Plus, Halperin, Jashinsky, and Navarro*, at 14:07-35:00 (YouTube, Sep. 15, 2025), <https://www.youtube.com/watch?v=9E1aNMOU0s0>.

On the same date, White House Deputy Chief of Staff for policy Stephen Miller vowed on Kirk’s podcast, hosted by Vice President JD Vance, to use the killing of Charlie Kirk to target a “vast domestic terror movement” of left-wing political organizations that he said without evidence had led to Kirk’s killing. “The thing about anger is that unfocused anger, or blind rage, is not a productive emotion, but focused anger, righteous anger, directed for a just cause is one of the most important agents of change in human history,” and “we are going to channel all of that anger that we have over the organized campaign that led to this assassination to uproot and dismantle these terrorist organizations”, Miller told Vance. “With God as my witness, we are going to use every resource we have at the Department of Justice, Homeland Security and throughout this government to identify, disrupt, dismantle and destroy these networks and make America safe again,” Miller continued. “For the American people, it will happen, and we will do

it in Charlie’s name.” Vice President Vance added that “it is a statistical fact that most of the lunatics in American politics are proud members of the far left”, and that “something has gone very wrong with a lunatic fringe, a minority, but a very powerful minority on the far left.”

CHARLIE KIRK, *Vice President JD Vance Remembers Charlie Kirk*, at 2:00 (YouTube, Sep. 15, 2025), <https://www.youtube.com/live/ngofqx9EfcM> at 25:45 (2.3 million views).

On September 16, the elected county prosecutor in this case held a 45- minute live streamed press conference at 12:00 noon in anticipation of the filing of a criminal information at 1:00 pm and of Mr. Robinson’s arraignment at 3:00 pm. See UTAH COUNTY ATTORNEY, *Arrest of Tyler James Robinson* (Sep. 13, 2025) https://atty.utahcounty.gov/cms/uploads/2025_09_13_Press_Release_Robinson_Arrest_and_Potential_Charges_f526b4de85.pdf (press release of September 13, 2025 announcing this plan). But see Dkt. 238, at 5 (state announces at Mr. Robinson’s arraignment that “we did file, just recently within the last few minutes, a notice of intent to seek the death penalty.”). The Utah Court E-filing System indicates that the Information was filed on September 16, 2025 at 12:08:10 PM MT (Dkt. 1) and the Probable Cause Affidavit (Dkt. 2) was filed shortly thereafter at 12:11:10 PM MT:

09-16-2025 12:11:10 PM	3	Public Safety Assessment Report
09-16-2025 12:11:10 PM	2	Probable Cause Affidavit
09-16-2025 12:08:10 PM	1	INFORMATION

These documents were also released to the media and later that day, the Information was posted on the County Attorney’s website. See UTAH COUNTY ATTORNEY, *Viewing the Charging Criminal Information Filed in the Charlie Kirk Shooting Case* (Sep. 16, 2025 at 5:47 PM MT), <https://atty.utahcounty.gov/media/ckpr/59>.

The Probable Cause Statement in the Information expanded greatly the information contained in the earlier Davis Affidavit. *Cf.* Dkt. 1, with Dkt. 2. The purpose of this expansion could not have been because it was necessary to establish probable cause because a magistrate had already found on September 12, 2025, the existence of “substantial evidence” to support the charges based on the Davis declaration. *See* Exhibit 1.

Following the lead of Governor Cox and federal authorities, Mr. Gray proceeded to read verbatim the new Probable Cause Statement, which outlined all the alleged evidence against Mr. Robinson, including that, “DNA consistent with Robinson was found on the rifle’s trigger”, that “[a]fter shooting Mr. Kirk, Robinson hid the gun, discarded the clothing he wore when he fired the rifle, and told his roommate to delete incriminating text messages and not talk to police.”

EAST IDAHO NEWS, *Utah County Attorney Press Conference on Tyler Robinson arrest*

announced, at 26:07 (YouTube, Sep. 16, 2025),

<https://www.youtube.com/watch?v=m0QggDLxDls>. He later added that “DNA consistent with ...defendant was found on the trigger, other parts of the rifle, the fired cartridge casing, two of the three unfired cartridges, and the towel” (*id.* at 35:09) and that in discussion with his parents Mr. Robinson had “implied that he was the shooter and stated that he couldn’t go to jail and just wanted to end it. When asked why he did it, Robinson explained there is too much evil and the guy, referring to Charlie Kirk, spreads too much hate.” *Id.* at 38:21.

The County Attorney then read aloud and verbatim the complete content of incriminating text messages, claiming they were connected to Mr. Robinson and his roommate. *Id.* at 39:49-44:16. After setting forth in detail all of the alleged evidence against Mr. Robinson, he ended his press conference with the inexplicable statement: “Why are we reluctant to share the details of

the investigation itself and comment on the case? Because I want to ensure a fair and impartial trial.” *Id.* at 45:18.⁸

The full reading of the Probable Cause Statement was prefaced by the following statement, which offered the County Attorney’s personal opinion about the “senseless and needless” nature of the crime, and was clearly in the nature of a death penalty phase closing argument, highlighting the effect of the killing on Mr. Kirk’s family and on the State and Nation:

The murder of Charlie Kirk is an American tragedy. Charlie Kirk was murdered while engaging in one of our most sacred and cherished American rights. The bedrock of our democratic Republic, the free exchange of ideas in a search for truth, understanding, and a more perfect union. It is also an offense against the state and to the peace and enjoyment of the people of Utah and of all those who visit here. But Charlie Kirk’s murder also strikes a more personal and intimate chord. Charlie Kirk was first and foremost a husband and a father to two beautiful young children. He was a son, he was a brother, and a friend. Like all murders, the senseless and needless taking of Charlie Kirk’s life has shattered the lives of those he loved and those who loved him. To Charlie’s wife, Erika, his two young children, his parents, his family, and his friends, I express my sincere condolences and offer my heartfelt prayers on your behalf. I also want to express my concern for everyone who was at Charlie’s Turning Point USA event at the Utah Valley University and all who have been impacted by this tragedy.

As county attorney, I am charged with bringing justice to those who offend our laws. I am charged with bringing justice for those who harm... For those who are harmed. I am charged with bringing justice for Charlie Kirk. I am committed to these aims. I take this responsibility seriously.

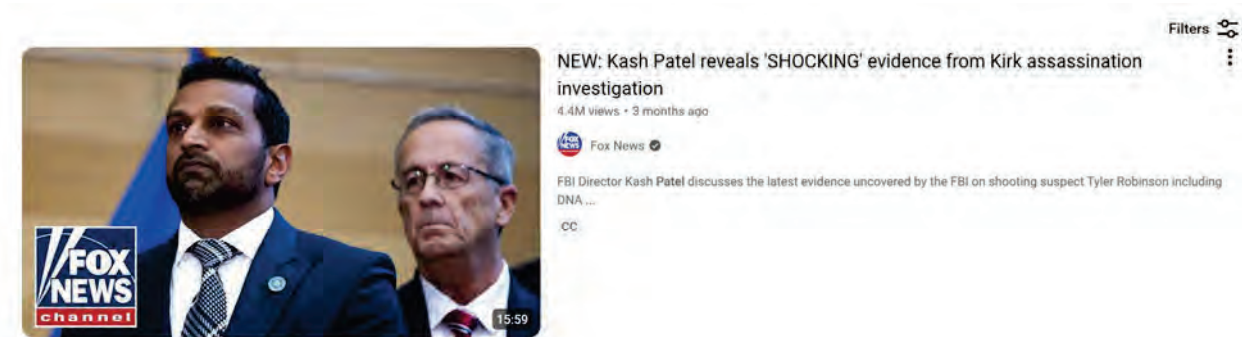
... Also, following the press conference, I am filing a notice of intent to seek the death penalty. I do not take this decision lightly, and it is a decision I have made independently as county attorney based solely on the available evidence and circumstances and nature of the crime. Because we are seeking

⁸ The prosecutor added that “under our Constitution, the accused is presumed innocent until we the state prove to an impartial jury of defendant’s peers his guilt beyond a reasonable doubt. That jury cannot rely on our allegations, on what they hear in the news, or on what they hear from a public official.” *Id.* at 28:01. As observed in *Chicago Council of Laws. v. Bauer*, “[o]nly slight reflection is needed to realize that the scales of justice in the eyes of the public are weighed extraordinarily heavy against an accused after his indictment. A bare denial and a possible reminder that a charged person is presumed to be innocent until proved guilty is often insufficient to balance the scales.” 522 F.2d 242, 250 (7th Cir. 1975).

the death penalty, the defendant will continue to be held without bail in the Utah County Jail.

Id. at 20:28-22:34, 24:44-25:14.

The reactions of the media to these early press conferences were predictable and extremely damaging to Mr. Robinson's right to a fair trial:



See supra, FOX NEWS, *NEW: Kash Patel*.



THE PASCAL SHOW, *DEATH NOTE REVEALED! Kash Patel Reveals 'SHOCKING' Evidence in Kirk Assassination Investigation* (YouTube, Sep. 15, 2025),

https://www.youtube.com/watch?v=Wit_gdIaR8Q.



Charlie Kirk shooting suspect's motive revealed by prosecutors

FOX 9 Minneapolis-St. Paul

2.1M views • 3 months ago

FOX 9 MINNEAPOLIS-ST. PAUL, *Charlie Kirk shooting suspect's motive revealed by prosecutors* (YouTube, Sep. 16, 2025), <https://www.youtube.com/watch?v=hFOCgrEpGxQ>.



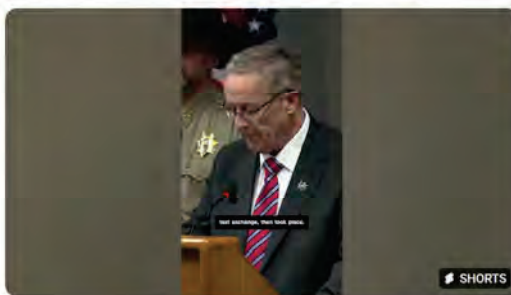
Tyler Robinson said he killed Charlie Kirk because he 'spreads too much hate': Officials

733K views • 3 months ago

GMA Good Morning America

Tyler Robinson, who is accused of assassinating conservative influencer Charlie Kirk during an event at Utah Valley University on ...

GOOD MORNING AMERICA, *Tyler Robinson said he killed Charlie Kirk because he 'spreads too much hate': Officials* (YouTube, Sep. 17, 2025), <https://www.youtube.com/watch?v=niOjF93BIDE>.



Tyler Robinson confessed to partner that he killed Charlie Kirk

55K views • 3 months ago

WKYC Channel 3

(AP) As authorities worked feverishly to find the person who assassinated Charlie Kirk at Utah Valley University last week, the ...

WKYC CHANNEL 3 (@WKYCCChannel3), *Tyler Robinson Confessed to partner that he killed Charlie Kirk* (YouTube, Sep. 17, 2025), <https://www.youtube.com/shorts/eKIXSQfUOKQ>.

Immediately following that press conference, Utah County Sheriff Mike Smith and Under-Sheriff Shaun Bufton, conducted their own joint television interview with News Nation (2.42 million subscribers). NEWSNATION, *Charlie Kirk suspect on 'special watch' in jail: Utah sheriff* (YouTube Sep. 16, 2025), <https://www.youtube.com/watch?v=6LJVrxwp9dM>. During this interview, against the backdrop of clips of Mr. Robinson's image from his initial court appearance, both Smith and Bufton offered their opinions and speculations about how strong the evidence was against Mr. Robinson, whether the video of his court appearance indicated he showed emotion or was remorseful, and whether Mr. Robinson is homosexual.



Charlie Kirk suspect on 'special watch' in jail: Utah sheriff | Elizabeth Vargas Reports

Q. Sheriff Smith, you are at that press conference with the DA today. There is a huge amount of evidence against Tyler Robinson, DNA on the towel, the rifle, the cartridges. **Is this beginning to seem like an open and shut case?**

Sheriff Smith: Well, you we would hope they the investigation continues. we're not going to look at it is open and shut. **But you're right. I agree with you 100%. The evidence is piling up and is becoming overwhelming.**

Id. at 0:12-0:45 (emphasis added).

Q. Undersheriff [we] are looking at video right now of Tyler Robinson just a short time ago appearing for his first court hearing. I was struck by the fact that he showed absolutely zero emotion and there are reports he is no longer cooperating with the investigation. Can you confirm that?

Undersheriff Bufton: He certainly doesn't seem to be showing any emotion right there.

Id. at 0:45-1:12.

Q. What's his demeanor in jail? [I]s he expressing any remorse of any kind?

Undersheriff Bufton: Again, I haven't been down to visit him so. this is the photos that I'm s[ee]ing is the one you're s[ee]ing and doesn't seem to be much emotion there.

Id. at 1:17-1:35.

Q. Sheriff Smith, the charging documents and the DA said today that Robinson's family had said that he'd grown more pro-gay and more pro [trans rights] over the past 2 years. does that coincide with the same time that he became romantically involved with his roommate?

Sheriff Smith: Well, from the from the text messages that were that were read today and also things that we know. Yes, it would appear that. those things are all moving in the same direction.

Id. at 2:15-2:46.

Following the press conference and hundreds of postings like those above, Mr. Robinson appeared without benefit of counsel for his first court appearance on September 16, 2025, where the Court allowed live streaming of his arraignment without any input from any attorney representing Mr. Robinson, and where for a full twelve minutes he appeared before the nation from the jail via WebEx wearing what appeared to be a bullet-proof or suicide vest.⁹ *See* ABC

⁹ *See Hamilton v. State of Ala.*, 368 U.S. 52, 54 (1961) ("Whatever may be the function and importance of arraignment in other jurisdictions, we have said enough to show that in Alabama it is a critical stage in a criminal proceeding."); *State v. Curry*, 2006 UT App 390, ¶ 9 n. 3, 147

NEWS, *Charlie Kirk shooting suspect Tyler Robinson makes first court appearance: ABC NEWS SPECIAL REPORT* (YouTube, Sep. 16, 2025), <https://www.youtube.com/watch?v=K6w9-JsWfUU> (282, 291 views as of Jan. 14, 2026); FOX 13 NEWS UTAH, *Full Hearing: Tyler Robinson makes first court appearance after arrest* (Sep. 16, 2025), <https://www.youtube.com/watch?v=BsNojXN6iUw> (indicating that Mr. Robinson was “[w]earing a green bulletproof vest”) (139,829 views as of Sep. 16, 2025).

Multiple national and international media outlets broadcast the court appearance in its entirety and thus exposed countless numbers of prospective jurors to the image of Mr. Robinson sitting in jail, clothed in security apparel. They also inevitably heard the Court ask whether the jail was ready for the court appearance (clearly indicating that Mr. Robinson was in custody), and also heard the Court pronounce that Mr. Robinson was being held without bail because he was being charged with a capital offense. They also heard the Court grant the prosecution’s request to enter a protective order against Mr. Robinson in favor of Erika Kirk. *See id.*

Immediately before the arraignment, and continuing to the present time, numerous media outlets began circulating both a mugshot released either by law enforcement or prosecutorial agencies, and a still shot from the arraignment video depicting Mr. Robinson sitting in jail in security apparel.¹⁰ Examples are:

P.3d 483 (“Critical stages of a criminal proceeding include arraignment, preliminary hearing, and trial.” (citing *Hamilton*)).

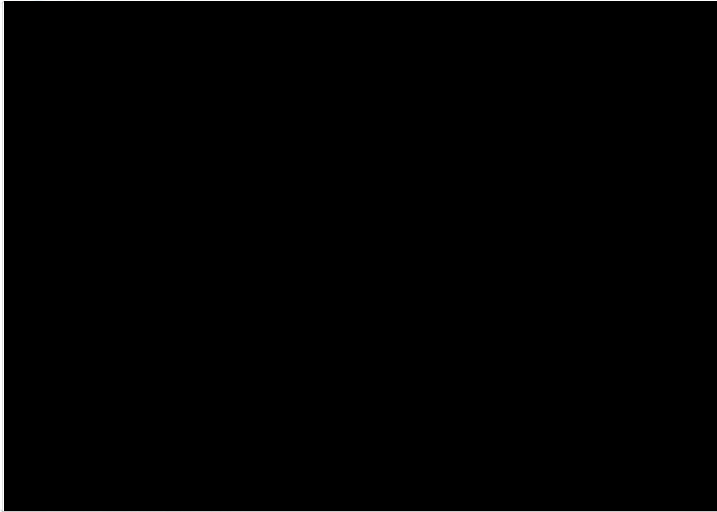
¹⁰ As argued below, release of this mug shot was prohibited by of Utah Code §§ 63G-2-201(3), 63G-2-302(2)(d), 63G-2-305(10), (11), (18), and (80) and Utah Rule of Professional Conduct 3.6.

Mugshot Released of Charlie Kirk Shooting Suspect Tyler Robinson, 22

Robinson was arrested 33 hours after Kirk was fatally shot at Utah Valley University, and officials say a family friend turned him in

By **Christina Coulter** | Published on September 12, 2025 11:24AM EDT

2 COMMENTS



Utah Valley University Sheriff's Office

Advertisement

← Ads by Google

Ad options

Send feedback

Why this ad? ▶

Christina Coulter, Mugshot Released of Charlie Kirk Shooting Suspect Tyler Robinson, 22, PEOPLE (Sep. 12, 2025, at 11:24 ET) (https://people.com/tyler-robinson-mugshot-charlie-kirk-shooting-11808857?utm_source=chatgpt.com).

What Is Tyler Robinson Wearing in His Court Video? Why Charlie Kirk's Shooting Suspect Needs a 'Suicide Smock' in Prison

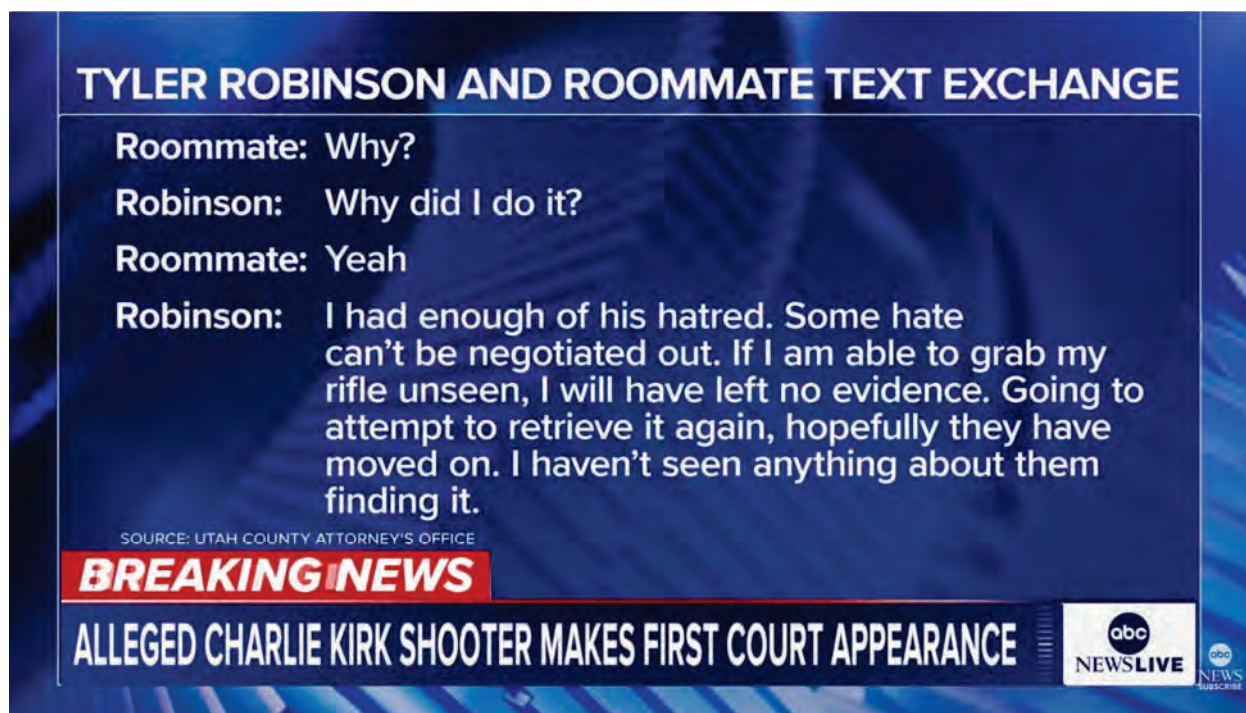


REBECCA FRIEDMAN
September 17, 2025



Rebecca Friedman, *What is Tyler Robinson Wearing in His Court Video?*, AOL.COM (Sep. 17, 2025), https://www.aol.com/entertainment/tyler-robinson-wearing-court-video-141745001.html?utm_source=chatgpt.com (reporting that a spokesperson for the Utah County Sheriff's Office confirmed that Robinson was wearing “an outfit designed to prevent a prisoner from taking their own life”, and that the police had “previously reported that the alleged assassin told his father he’d rather commit suicide than turn himself in to law enforcement.”)

Commentary accompanying the arraignment broadcasts were quick to pick up the incriminating details from the prosecution team’s pre-arraignment press conference, described above. For example, the ABC News broadcast quoted above featured this PowerPoint slide:



See supra, ABC NEWS, Charlie Kirk shooting suspect.

On September 22, 2025, President Trump delivered a speech at Mr. Kirk's memorial service, telling thousands that "the depraved assassin who planned and executed Charlie's killing has been arrested and charged with capital murder. God willing, he will receive the full and ultimate punishment for his horrific crime." Diario AS, *TRUMP calls for DEATH PENALTY for CHARLIE KIRK'S KILLER*, at 0:07(YouTube, Sep. 22, 2025), <https://www.youtube.com/watch?v=jmMfSRrDBTU>.

On September 25, 2025, President Trump upgraded his personal opinions into official government policy, writing in a National Security Presidential Memorandum issued on that date that "[e]ven in the aftermath of the horrifying assassination of Charlie Kirk, some individuals who adhered to the alleged shooter's ideology embraced and cheered this evil murder while actively encouraging more political violence.... This political violence is not a series of isolated incidents and does not emerge organically. Instead, it is a culmination of sophisticated, organized

campaigns of targeted intimidation, radicalization, threats, and violence designed to silence opposing speech, limit political activity, change or direct policy outcomes, and prevent the functioning of a democratic society.” Presidential Memoranda, *Countering Domestic Terrorism and Organized Political Violence*, THE WHITE HOUSE (Sep. 25, 2025), <https://www.whitehouse.gov/presidential-actions/2025/09/countering-domestic-terrorism-and-organized-political-violence/>.

The foregoing summaries are illustrative and not exhaustive of the thousands of similar, and in most instances much worse, items of prejudicial and in some instances downright false pretrial publicity that have relentlessly focused on Mr. Robinson’s alleged confession, the alleged DNA evidence against him, his supposed motives, his appearance in mug shots and during his jail-house court appearance, his demeanor, his ideology, his romantic relationship with a transgender person, and other false narratives that have undeniably polluted the waters of justice in this case.¹¹ Based on the foregoing and other examples discussed below, Mr. Robinson agrees that as far as it goes the state and the Sheriff’s characterization of the media coverage in this case is correct: “[t]he public assassination of a popular political commentator that underlies this case has garnered worldwide attention, created a lightning rod for controversy, and provided

¹¹ See, e.g., CBS NEWS, *AI fuels false claims after Charlie Kirk’s death, CBS News analysis reveals*, (Sep. 12, 2025), <https://www.cbsnews.com/news/ai-false-claims-charlie-kirk-death/> (“False claims, conspiracy theories and posts naming people with no connection to the incident spread rapidly across social media in the aftermath of conservative activist Charlie Kirk’s killing on Wednesday, some amplified and fueled by AI tools.”); Melissa Goldin, *FACT FOCUS: Assassination of Charlie Kirk prompts flood of false and misleading claims online*, AP News (Sep. 13, 2025 at 8:11 PM MT) <https://apnews.com/article/fact-check-charlie-kirk-shot-assassination-3354b7ba0d736c198b454f77b3744308> (“More claims spawned on Thursday and Friday, presenting old videos and photos as recent footage of the shooter and erroneously reporting on Robinson’s background.”).

a platform for pundits and other attention seekers with varying levels of mental stability.” Dkt. 109, at 9.

Respectfully, however, this statement does not go far enough. A more apt description of what is truly happening in this case with respect to prejudicial media coverage has been described by one legal researcher as a “Content Tornado.” See Katie Grace Frisbee, *Caught In The Content Tornado: How To Protect Violent-Crime Trials From The Prejudicial Effects Of Live Streaming*, 74 Duke Law J. 1053 (2025). As the author explains:

The content tornado... refers to the whirlwind of fact, fiction, and opinion that emerges when violent-crime trials are live streamed on social media. This concept describes how live streamed trials generate emotional and moralized content that gets amplified by social media algorithms. The emotional nature of violent-crime trials—fueled by anger, grief, and public passion—draws viewers in, and as they engage with the content, they become more likely to produce their own secondary content on the subject. This user-generated secondary content—in the form of videos, comments, and posts—amplifies the tornado and mixes accurate information with misinformation, exaggerations, and public biases.

Id. at 1053. See also *Murthy v. Missouri*, 603 U.S. 43, 50 (2024) (“With their billions of active users, the world’s major social-media companies host a ‘staggering’ amount of content on their platforms.”); *United States v. Bowen*, 799 F.3d 336, 357 (5th Cir. 2015) (warning against the “growing influence of online communications to mold public opinion in our society, and the danger of mob reactions.”)

The devastating effect of the content tornado on the search for truth in this capital case is very well summarized

Digital amplification intensifies legacy media pitfalls. Social platforms enable user-generated content—memes, threads, and live commentary—that evades editorial gatekeeping, propagating unverified rumors at viral speeds. Algorithms prioritize engagement via outrage, creating echo chambers where 70% of users encounter reinforcing narratives, per platform transparency reports, thus polarizing perceptions and pressuring judicial actors indirectly.

F. Longa, *The Presumption of Innocence and the Media An Examination of Fair Trial Rights in the Digital Era*, 4 (2025): ¹²

This Court found in its October 27, 2025 order that “[t]his case has generated an immense amount of pre-trial publicity” and that “[a]s with many high-profile cases, public interest may both wax and wane, but it is likely to persist.” Dkt. 137, at 6. The Court’s finding that public interest in this case is “likely to persist” has certainly been borne out, as has the fact that the overwhelming amount of the most recent publicity has consisted of prejudicial pretrial publicity as defined above. Recent events have also demonstrated that the Court’s laudable efforts to put reasonable limits on the media have been to no avail.

The futility of attempting to contain the “content tornado” in this case and to curb electronic media abuses through warnings and repositioning of cameras is nowhere better illustrated than the electronic media’s handling of the violation of the Court’s decorum order on December 11, 2025. As the Court knows, after the Court ruled that the issue concerning violation of the protective order was outside the scope of the closed hearing and must be addressed in public (SEALED Dkt. 273 at 54), the parties necessarily had to discuss the fact *on camera* that the violation consisted in part in showing Mr. Robinson in shackles. *See* Dkt. 256 at 7 (Visser: “It’s our understanding that his shackles are visible.”); *Id.* at 8-9 (Hunt: “My understanding is that there was a zoom-out shot that did inadvertently show the shackles. That was improper. That was inadvertent. We apologize for that. And they’ve taken measures to make sure that the pool video that is disseminated to the rest of the pool does not contain any capture of the defendant in the shackles. We can’t do anything about the live-stream, of course, but we can control what the rest of the video is that we capture and disseminate. So that is being done.”); *Id.* at 10 (Visser:

¹² Available at <https://www.preprints.org/manuscript/202512.0104>

“We’re still receiving messages that shackles can be seen on the live-stream as we restarted. So it’s still a problem.”); *Id.* at 10-11 (Court: “I find that there was a violation of the protective order...I want to immediately address any possible transmission of shackles...”).

In light of the Media’s representations, and without having access to the offending video captures, the Court further ruled that “[t]he sanction for today is that this camera will be relocated”, and that “if there is further violations of the standing decorum order, this Court does have the right and will exercise termination of broadcast of these proceedings.” *Id.* at 11.

What the Court did not know when it made this ruling was the camera’s focus on Mr. Robinson’s restraints was anything but “inadvertent”, as is indicated by local station KUTV’s video of the prehearing proceedings which is still available on YouTube and features prolonged close-ups of Mr. Robinson’s face and lips as he is talking to his attorneys, shots of the court’s staff and two uniformed and readily identifiable deputies in full combat gear, and shots of Mr. Robinson in handcuffs. See KUTV 2 NEWS SALT LAKE CITY *Hearing for man accused of assassinating Charlie Kirk returns to public after closed door arguments* (YouTube, Dec. 11, 2025), <https://www.youtube.com/watch?v=tzK6JtHilsE>.



Id. at 15:03. As one commentator to this post noted, even “the repositioned camera showed him in shackles. (27:48).”

This revelation of Mr. Robinson in handcuffs was then used by other media outlets to create sensationalistic images such as the following:



CYPHER CRIMES, *Charlie Kirk Murder: Tyler Robinson’s Shackles Scandal in Court* (YouTube, Dec. 18, 2025), <https://www.youtube.com/watch?v=Lkvgf2wvkTM>.

Another example:



CNN-News18, *Charlie Kirk Killer's Chilling Court Showdown* (YouTube, Dec. 12, 2025), <https://www.youtube.com/watch?v=ZswrRwufamI>.

Further, at the time of its ruling, the Court did not know that media counsel's promised editing "solution" did not in fact remove a video that was clearly in violation of the decorum order and left in place a second video that simply underscored the fact that Mr. Robinson was appearing in court in restraints. Thus, still readily available to the public is a YouTube video of the pre-hearing proceedings which features approximately 18 minutes of coverage consisting entirely of close-ups of Mr. Robinson and his interaction with his attorneys, his restraints--a video that is clearly in violation of the decorum order. *See supra*, KUTV 2 NEWS SALT LAKE CITY, *Hearing for man accused*.

A separate video features the in-court coverage and ironically beginning at 8:27 shows the media lawyer doing his *mea culpa* while his cameraman continues to violate the Court's decorum order by taking prolonged shots of the court's security officer and court staff. *See* KSL NEWS UTAH, *Tyler Robinson's first public in-person appearance in Provo courthouse for hearings* (YouTube, Dec. 11, 2025), <https://www.youtube.com/watch?v=EuNxDBBycoFc>. This second video also contains this introductory statement:

**To comply with court orders,
KSL has edited out conversations
with Robinson's lawyers before
the hearing, signs of him being
in restraints, and standing up.**



Id. at 0:01.

The effect of this editing, like the argument on the sanction motion itself, was to constantly remind the public, including prospective jurors, that Mr. Robinson is appearing in court in shackles. And this message is being conveyed visually through countless posts like KSL's and other posts cited above, regardless of whether the actual images of Mr. Robinson in restraints have been removed from posted videos (which they have not), and many are interspersed with product advertisements, calling into serious question whether "the predominant purpose of the electronic media coverage request is journalism or dissemination of news to the public" within the meaning of Rule 4-401.01(2)(A) .

Further underscoring that the predominant purpose being served by the live stream coverage has not been the educational reporting of the court proceedings, but rather advertising profit, sensationalism, political agendas, and, most prominently, the vilification of Mr. Robinson, are the following YouTube posts on December 11, 2025, all of which feature product

advertisements and “expert” commentary on the legally irrelevant, but according to the electronic media highly incriminating significance, of Mr. Robinson’s demeanor during filming of him before court was even in session:¹³



FOX NEWS CLIPS, ‘NO REMORSE’: *Charlie Kirk assassination suspect decried for smile* (YouTube, Dec. 11, 2025), <https://www.youtube.com/watch?v=bUTeAXUi-bI>.

This nationwide public broadcast by Fox News features extensive and impassioned commentary by retired FBI Special Agent Nicole Parker: “It’s disgusting. He’s a true sociopath. It’s someone who has absolutely no empathy, no remorse, no conscience. He doesn’t care. He’s smiling. That won’t serve well when the trial comes to pass, the death penalty is on the table. Again, jurors will not be OK with that[.]” *Id.* at 00:10. She then urges the audience to take a “victim-centered approach” because “Erika Kirk and those in her surrounding sphere, her family (photo of Erika Kirk and her children displayed), loved ones, Turning Point family, they are the

¹³ See *United States v. Wright*, 489 F.2d 1181, 1186 (D.C. Cir. 1973) (“A defendant has no right to disregard the dignity, order and decorum of judicial proceedings. But this does not mean that his courtroom behavior off the witness stand is in any sense legally relevant to the question of his guilt or innocence of the crime charged.” (internal citation omitted)); *United States v. Mendoza*, 522 F.3d 482, 491 (5th Cir. 2008) (“The precedents that we have discovered from other circuits agree that courtroom demeanor of a non-testifying criminal defendant is an improper subject for comment by a prosecuting attorney.... Mendoza did not testify. His courtroom demeanor was not ‘in any sense legally relevant to the question of his guilt or innocence of the crime charged.’ The prosecutor’s comments were error.” (quoting *Wright*)).

victims of this, and *frankly the American people who have had to watch this live on television*.¹⁴

It's disgusting, heinous." *Id.* at 00:35 (emphasis added). She continues: "Rest assured, on this investigation, no stone will be left unturned. All eyes on this, no mistakes will be made. Don't feel the liberty to fill in gaps when you don't have answers. It is inappropriate.... Most of all, you are hurting Erika Kirk, her loved ones, and her family. It is unacceptable. It cannot be tolerated." *Id.* at 2:04. She concludes her diatribe with this statement: "Again, this was a political assassination. It does affect everybody." *Id.* at 3:42.

Another example of such overheated electronic media coverage is the following:



MEGYN KELLY, *Megyn Kelly on Why Tyler Robinson MUST Be Executed After He's Convicted of Killing Charlie Kirk* (YouTube, Dec. 12, 2025),

<https://www.youtube.com/watch?v=KR6JvBgPi10>.

¹⁴ The American people "have had to watch this live on television", only because electronic and social media outlets, in the interest of sensationalism and profit, have flooded the internet with footage of the shooting. See Shannon Bond, *Kirk shooting videos spread online, even to viewers who didn't want to see them*, NPR (Sep. 18, 2025, at 5:00 AM ET) <https://www.npr.org/2025/09/18/nx-s1-5542231/kirk-shooting-violence-social-media> (noting that "[e]ven without searching them out, people were confronted with the graphic footage in their social media feeds — sometimes playing automatically" and that "[s]ocial media, which is where these images are being shared and these videos are being shared, rewards this kind of extreme content. People aren't just sharing it because they want people to have this communal experience of having seen and witnessed this terrible event. But they are making money off of it. They're gaining followers off of it.").

In this broadcast to the public, attorney Megyn Kelly provides impassioned and one-sided advocacy having nothing to do with journalism in blatant violation of ABA *Fair Trial and Public Disclosure*, Standard 8-2.4 (Statements by Legal Commentators and Consultants).¹⁵ Her statements, in support of the blaring headline that “Tyler Robinson MUST be executed” included:

He was in the courtroom smiling. I certainly hope that he doesn’t have reason to smile. I certainly hope he’s not banking on people being confused about the overwhelming mountain of evidence against him. Because let me tell you, those of us who are cleareyed about what is and is not admissible as proof, and that’s really all we should be concerned with, see all the evidence pointing directly to Tyler Robinson.

Id. at 0:00-0:27. She then drew attention to the courtroom security: “Inside the courtroom, multiple law enforcement officers stood along the walls, more than is usually seen in a courtroom. Four of them wore camouflage fatigues and SWAT gear.” *Id.* at 0:44. Later in the broadcast Ms. Kelly added:

Uh, look, Tyler Robinson did this. Seems very clear to me. My only hope is that I can be there in the room when they flip the switch and take his life. I want him dead. I want the death penalty handed down against him and anyone who helped him, and I will be gleeful on the day it is carried out. Everything

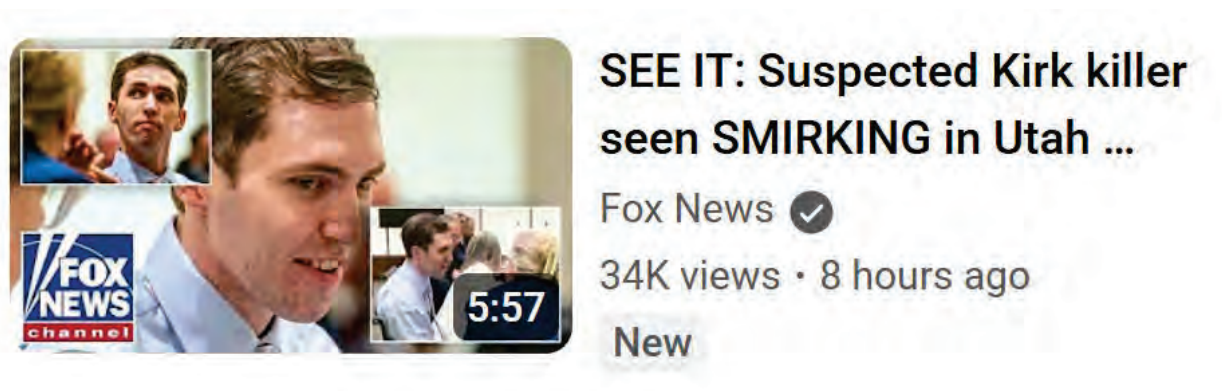
¹⁵ Standard 8-2.4 (b) provides in part that “[a] lawyer who is serving as a legal commentator should strive to ensure that the lawyer’s commentary enhances the public’s understanding of the criminal matter and of the criminal justice system generally, promotes respect for the judicial system, and does not materially prejudice the fair administration of justice, in the particular case or in general. To that end, a legal commentator should:…refrain from providing commentary designed to sensationalize a criminal matter.” Standard 8-2.4(c) provides in part that “[a] lawyer serving as a commentator should exercise great caution if asked to express personal opinions regarding the performance of the participants or the likely outcome of the proceedings. If the lawyer chooses to respond to such inquires, the lawyer should identify with specificity the basis for any such opinions.” The commentary to this standard states: “While legal commentators appropriately may help explain legal proceedings and principles, they should not be fanning public emotions. And while criminal trials are by their very nature adversarial, they are not a sporting match.” American Bar Association, *Fair Trial and Public Discourse*, 48-51 (2013 Fourth Ed.) (“Public Discourse Standard”), available at https://www.americanbar.org/content/dam/aba/publications/criminal_justice_standards/fair_trial_commentaries.pdf

the world, the country, a future president, we all believe we have been cheated out of, he deserves to be put to death. When he's convicted of this crime, which in my strong legal opinion he should be. So that's where I am today, being reminded of the depravity of this so-called man, evil, an evil, evil being, I don't want to use the term person.

Id. at 3:24.

This piece of advocacy, from a lawyer who could not have reviewed the evidence in this case since to the defense's knowledge none has been released much less vetted, has so far reached 93,516 viewers, provoked 1,666 comments (e.g., "He's EVIL!!"; "This SOB is a monster, I've never seen anyone with this sick twisted smile of a murderer. He reeks of evil."; "Pyscopathy (sic) causes grins during stress. (see Ted Bundy documentaries)"), and is still available for viewing today.

Another representative example:



FOX NEWS, *SEE IT: Suspected Kirk killer seen SMIRKING in Utah Courtroom* (YouTube, Dec. 12, 2025), <https://www.youtube.com/watch?v=t7sohrdZbKM>.

In this nationally televised broadcast to the public, attorney Josh Ritter stressed:

If I could add to our comments about his demeanor in court earlier. You know, we talked a little bit about don't try to understand the mind of a monster. We do know a little bit about the mind of this monster. In that, I believe that he's incredibly proud of his handiwork. It makes us think a lot about Luigi Mangione. These two men inscribed notes on the bullet casings that they used to commit murders, murders that were to send a message. He committed an assassination in a very public place against a person that he had ideological

differences with, entirely politically motivated. That is a person proud of their handiwork. So I think when we see him loose and calm, relaxed and smiling in court, I think that's an outer manifestation of his inner feelings, that he is very proud of what he's done, stands by what he's done, has no remorse for what he's done, and is looking forward to the world watching.

Id. at 3:23-4:19. Attorney and law professor Jonathan Turley then interjects: “Yeah, I think that’s exactly right, as Josh put out. When you have cases of this kind you are off the map. You are where monsters dwell This is where you find monsters are in these cases, and you find people that don’t think the way you do The evidence is overwhelming. And a lot of attention is likely to be what possesses a person like this to treat someone like Kirk as a trophy. And that is what happened.” *Id.* at 4:23-5:07.

Meanwhile, other media talking heads and other self-proclaimed “experts” have used the live feed coverage as a springboard to launch speculative character attacks against Mr. Robinson, yielding a windfall before the trial has even begun for prosecutors seeking his conviction and death. A good example is the following video from local station KUTV, which like the other videos, features product advertisements:



Body language expert analyzes Tyler Robinson during first in-...

KUTV 2 News Salt Lake City ✓

30K views • 12 hours ago

New

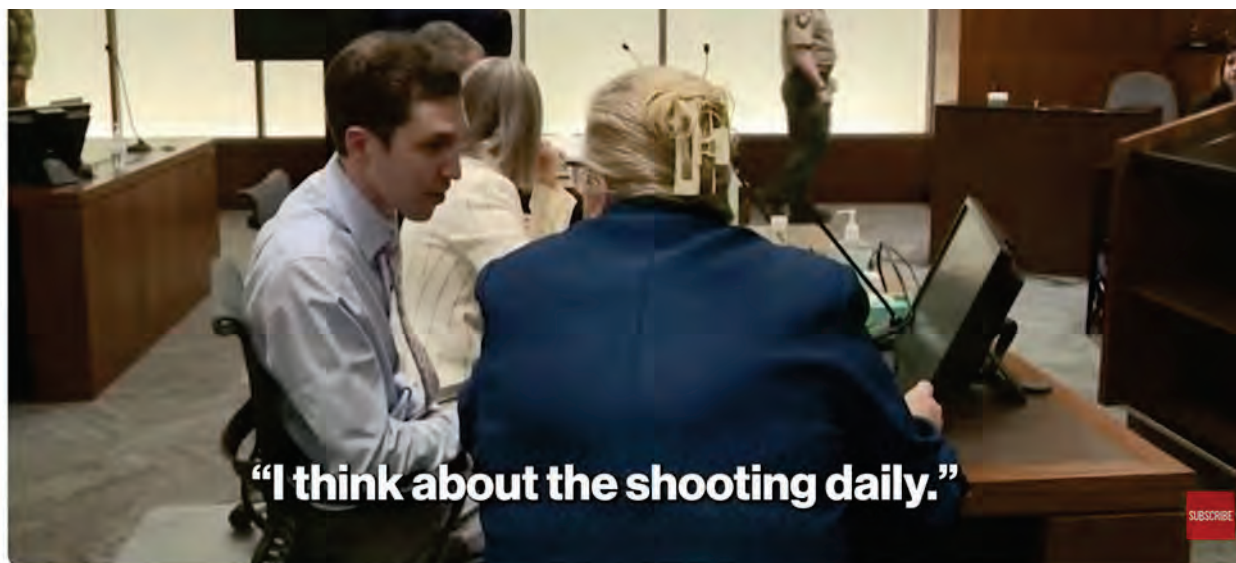
KUTV 2 NEWS SALT LAKE CITY, *Body language expert analyzes Tyler Robinson during first in-person court appearance* (YouTube, Dec. 11, 2025),

<https://www.youtube.com/watch?v=NAqBXXW4JdI>. During this broadcast to the public, self-proclaimed “renowned body language expert” Scott Rouse intones to his audience: “I don’t see

any grief muscle that lets us know he's really, really worried about anything and no concern." *Id.* at 01:47.

Not to be outdone, and in flagrant violation of the Court's order that "[n]o visual recording is permitted of a person's lips, so as to be decipherable by a lip reader, during conferences involving counsel at counsel table", and that court staff not be photographed (Dkt. 138, at 2, ¶¶ 40, 47), the cameraman made such a recording and the New York Post then employed it to have a lip reader speculate that Mr. Robinson actually confessed to his lawyer during the hearing.¹⁶

¹⁶ As explained in *Estes v. Texas*, , " [i]n *Rideau v. State of Louisiana*, 373 U.S. 723...(1963), this Court constructed a rule that the televising of a defendant in the act of confessing to a crime was inherently invalid under the Due Process Clause of the Fourteenth Amendment even without a showing of prejudice or a demonstration of the nexus between the televised confession and the trial." 381 U.S. 532, 538 (1965). The Court in *Rideau* reasoned: "For anyone who has ever watched television the conclusion cannot be avoided that this spectacle, to the tens of thousands of people who saw and heard it, in a very real sense was Rideau's trial—at which he pleaded guilty to murder. Any subsequent court proceedings in a community so pervasively exposed to such a spectacle could be but a hollow formality." 373 U.S. at 726. Here, in what the Post described as a "chilling exchange with his attorney", Mr. Robinson supposedly confessed to his attorney while he "appeared calm and even shared a laugh with his attorney." The prejudice here is even greater than in *Rideau* because it was allegedly made in confidence to his attorney.



Charlie Kirk Murder Suspect Said He Thinks About the Shooting 'Everyday': Lipreader



New York Post
2.33M subscribers

Subscribe

473



Share

Save



99,347 views Dec 12, 2025 NY Post Explainers

Charlie Kirk's alleged assassin Tyler Robinson said he thinks about the shooting "every day" — and mentioned the slain conservative activist's wife, Erika, in a chilling court exchange with his attorney, according to Forensic Lip Reading Expert & Analyst at LipReader, Nicola Hickling.

Robinson, 22, appeared calm and even shared a laugh with his attorney as he made his first in-person court appearance in Provo, Utah, on Thursday, more than three months after Kirk was shot dead at Utah Valley University.

NEW YORK POST, *Charlie Kirk Murder Suspect Said He Thinks About the Shooting 'Everyday': Lipreader*, at 0:14 (YouTube, Dec. 12, 2025), <https://www.youtube.com/watch?v=XcVbg-zc1LU> (including advertisements).

Even the Court's own demeanor has not escaped intense media scrutiny and wild speculation, with one media source zooming in on the Court and then reporting that:

Tyler Robinson, the man accused of murdering conservative activist Charlie Kirk, made his first in-person court appearance today, *creating intense drama* inside the packed courtroom. Cameras captured Robinson's unsettling body language — from long, emotionless stares to tense, rigid movements — *moments that reportedly left the judges visibly taken aback....* The hearing quickly grew tense as the court balanced public transparency with legal concerns, while *Robinson's eerie demeanor became the focal point of nationwide attention.*

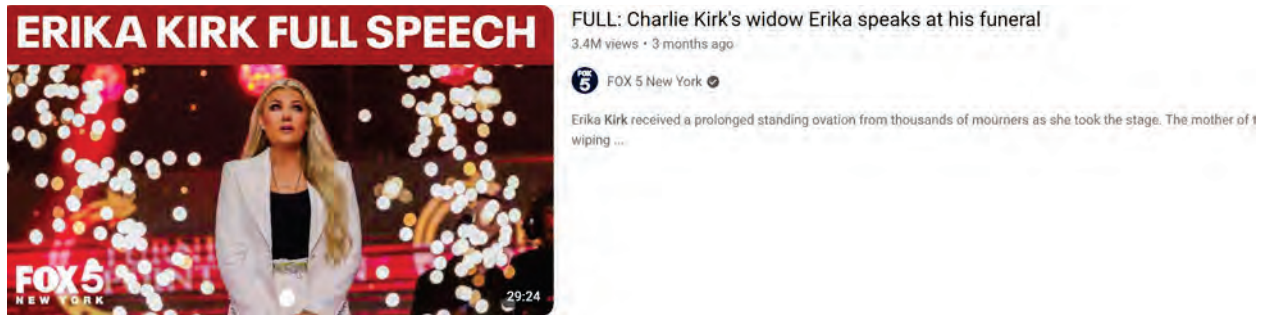
ONEINDIA NEWS, *Charlie Kirk Killer, Tyler Robinson's, 1st Court Appearance Leaves Judge SHAKEN - Shows ZERO Emotion* (YouTube, Dec. 12, 2025)

<https://www.youtube.com/watch?v=rbYqgcMh1Is>.



Id. The clear thrust of this post was to push the false and clearly prejudicial narrative that the Court itself (and imaginary other “Judges”) were somehow “taken aback” and “shock[ed]” by Mr. Robinson’s demeanor during a pre-session conference between Mr. Robinson and his lawyers at which this Court and the imaginary “judges” were not even present. *Cf. Quercia v. United States*, 289 U.S. 466, 470 (1933) (“The influence of the trial judge on the jury is necessarily and properly of great weight and his lightest word or intimation is received with deference, and may prove controlling.” (internal quotation marks omitted)).

While the electronic media has spent considerable effort vilifying and condemning Mr. Robinson, it has from the start of the case provided an open platform for Mrs. Kirk to express her views about the crime, Mr. Robinson, his demeanor, the sentence he should receive, how the court proceedings should proceed, and the impact of the crime on the Kirk family and the nation. A good example of the early coverage is the following presentation, which so far has 3.4 million views:



FOX 5 NEW YORK, *FULL: Charlie Kirk's widow Erika speaks at his funeral* (YouTube, Sep. 21, 2025), <https://www.youtube.com/watch?v=zFfdJyaUzTU>.

Often, these broadcasts have been lengthy and feature commercials along with emotional narrative, and photographs and videos of all members of the Kirk family. A more recent example is this hour-long presentation, which to date has received 5.64 million views:



CHARLIE KIRK, *Erika Kirk's Full Interview with Jesse Watters* (YouTube, Nov. 6, 2025), <https://www.youtube.com/watch?v=jSYZMWXesAwby>. Again, these are representative, but by

no means exhaustive examples of this type of electronic coverage of Mrs. Kirk. Much of the content of such coverage would never be admissible in any phase of a capital case.¹⁷

Finally, as described in more detail below, from the outset of this tragic case and continuing up to the present, many electronic media outlets, politicians, and others have used the case to advance outlandish conspiracy theories and political agendas. *See, e.g.,* Parham Porouhan, *From Neutrality to Suspicion: AI-Powered Text Classification of High-Impact Political Discourse Online (A Case Study of Charlie Kirk’s Assassination)*, 23rd International Conference on ICT and Knowledge Engineering (ICT&KE) (Nov 2025), *available at* <https://ieeexplore.ieee.org/abstract/document/11274442> (a small sampling of the publicity from this case demonstrated that 100% of the posts were based on conspiracy/political theories, including “Other State Actors (China, Russia, Iran, etc.)”; “Democratic Party Setup”, “Mix of the Above / Other Interpretations”, “State-Engineered Operation (CIA, FBI, local intelligence)”,

¹⁷ Understandably, the family members of Mr. Kirk have been emotionally devastated by the crime and these proceedings. However, precisely because of the searing emotional impact of their views on Mr. Robinson’s right to a fair and impartial jury, the law strictly curtails what jurors may hear from victims’ families. *See, e.g., Payne v. Tennessee*, 501 U.S. 808, 809 (1991) (“In the event that [victim impact] evidence is introduced that is so unduly prejudicial that it renders the trial fundamentally unfair, the Fourteenth Amendment’s Due Process Clause provides a mechanism for relief.”). *See also Andrew v. White*, 604 U.S. 86, 93 (2025) (“*Payne* ...broke little new ground in this respect. By the time of the OCCA’s decision in this case, it was clear that the introduction of unduly prejudicial evidence could, in certain cases, violate the Due Process Clause.”); *Bosse v. Oklahoma*, 580 U.S. 1, 3 (2016) (per curiam) (“The Oklahoma Court of Criminal Appeals has recognized that *Payne* ‘specifically acknowledged its holding did not affect’ *Booth* ‘s prohibition on opinions about the crime, the defendant, and the appropriate punishment. That should have ended its inquiry into whether the Eighth Amendment bars such testimony.” (internal citation omitted)); *Parker v. Bowersox*, 188 F.3d 923, 931-32 (8th Cir. 1999) (post- *Payne* decision holding that victim family members may not give characterizations of the crime, the defendant or the appropriate sentence); *United States v. Mitchell*, 502 F.3d 931, 990 (9th Cir. 2007) (admitting these sorts of statements is “obvious” error); *United States v. McVeigh*, 944 F. Supp. 1478, 1491 (D. Colo. 1996) (“[B]ecause victim impact evidence is relevant only to demonstrate the specific harm caused by a particular crime, it seems clear that the victims’ testimony must reflect the harm caused by the criminal conduct, rather than the impact of the trial proceedings.” (internal citation omitted)).

“Divine Plan / God / Prophecy”, “Republican Party Setup”, “Event Fabricated / Misinformed”, “Paranormal / Metaphysical / Occult”, “Demonic / Devil / Satanic Influence”, and “Extraterrestrial Involvement.”)

The latest example of this genre is the electronic media’s broadcasting in full of a political speech by Vice President and lawyer JD Vance at a Turning Point “Amfest” event in Phoenix on December 21, 2025:



RIGHT SIDE BROADCASTING NETWORK, *WATCH: Vice President JD Vance Closes out an Electric America Fest – 12/21/25* (YouTube, Dec. 21, 2025),

https://www.youtube.com/watch?v=i_nFsrA7Ue0. Amid much fanfare, Vance told his crowd of 30,000 and his national audience through the widespread broadcast of this speech, “People of every faith come to our banner because they know that the America First movement will make their lives better, and they also know that the Democrats don’t care about anything other than maybe transing their kids.” *Id.* at 3:47. He told them that “to honor Charlie, but also to honor all

of you, we're working to end the scourge of left-wing violence in the United States of America. We're going after the far-left crime networks, but we're also going after the monsters that fund them." *Id.* at 9:52. He continued: "Do you want more prosecutions? Great, so do we. Donald Trump and I have a list of better judges and prosecutors to enact swifter justice, so join us in the fight against the stupid Senate rules to stand in their way." *Id.* at 11:14. He also told the crowd, "And while President Trump and I are doing everything we can to break that machine, the left is still there, my friends, and they are still very powerful. Don't delude yourselves. It's the activist groups who want to poison your kids with hormone replacement therapy and toxins in your water supply." *Id.* at 14:31. According to Vance, the "left" has "replaced God's beautiful design for the family that men and women could rely on and return to one another with the idea that men could turn into women so long as they bought the right bunch of pills from Big Pharma." *Id.* at 20:47. And then he turned to Tyler Robinson:

Scripture tells us, "By your fruits, ye shall know them." And we might ask, what are the fruits of these people and their principles? And the answer is a man named Tyler Robinson who killed my friend.

Think about it. He has everything that the far left wants from our young men. He rejected the conservatism and the spirituality, the values of a small-town family. He moved into a small apartment, he became addicted to porn, he became addicted to hate, and he ended up sleeping with somebody who doesn't know whether they're a man or a woman.

That is the nightmare scenario, but that is the scenario that the left has actively advertised they want for American families, and the young men in the audience in particular. That is exactly why we have to fight them.

Because the fruits of true Christianity are men like Charlie Kirk. The fruits of true Christianity are good husbands, patient fathers, builders of great things, and slayers of dragons. And yes, men who are willing to die for a principle if that's what God asks them to do. Because so many of us recognize that it is better to die a patriot than live a coward.

Id. at 21:16.

The phrase “media circus”, often overused, is most typically identified with Judge Lance Ito’s mishandling of the OJ Simpson case.¹⁸ But in this case, that phrase is particularly apt, at least in relation to the extent and content of the sensationalistic and prejudicial pretrial publicity that has thus far been produced in this case, and that will no doubt continue unrestrained unless this motion is granted.

ARGUMENT

I. INTRODUCTION

This argument begins with three findings of fact the Court has already made:

- (1) “The media interest in Mr. Robinson’s trial is arguably unprecedented in the State of Utah. Photographs and visual recordings of Mr. Robinson in jail clothing will likely be shared and disseminated in various public platforms. There is a strong likelihood that a substantial number of potential jurors in Utah County will view these images and may associate Mr. Robinson’s jail clothing with indicia of guilt. The danger of prejudice is compounded by technological advancements that allow the images to be manipulated in ways that do not accurately reflect the truth of the court proceedings”
- (2) “This case has generated an immense amount of pre-trial publicity. As with many high- profile cases, public interest may both wax and wane, but it is likely to persist. Visual recordings and photographs of Mr. Robinson shackled may give the impression that he is dangerous and may undermine his presumption of innocence. The potential jury pool in Utah County, based on their proximity, is likely to be even more exposed to the images of these proceedings and the messages those images send.”
- (3) “This case generates extraordinary ongoing national and international attention, some of which is threatening in nature to the parties, their representatives, and non-party participants (e.g. witnesses and court personnel).”

Dkt. 137, at 5-6; Dkt. 266, at 2.

¹⁸ See, e.g., Andrew G.T. Moore II, *The O.J. Simpson Trial-Triumph of Justice or Debacle?*, 41 ST. LOUIS U. L.J. 9, 10 (1996) (“Unfortunately, the [O.J. Simpson] trial became a stage for the jury, lawyers and judge to pursue their own self-serving purposes. With the defense attorneys claiming their client was the real ‘victim,’ the prosecution losing sight of its duty to present evidence fairly, a judge totally smitten with his own self-generated celebrity status, and jurors being discharged for a variety of problems, including misconduct, the whole proceeding became an embarrassing reflection of the American legal system.”).

“The problem is an ancient one. Mr. Justice Holmes stated no more than a commonplace when, two generations ago, he noted that ‘(a)ny judge who has sat with juries knows that, in spite of forms, they are extremely likely to be impregnated by the environing atmosphere.’” *Groppi v. Wisconsin*, 400 U.S. 505, 510 (1971) (quoting *Frank v. Mangum*, 237 U.S. 309, 349 (1915) (dissenting opinion)).

Nowhere is this statement more true than when television cameras are allowed into the courtroom at all stages of a criminal case, and when television and internet news crews in the age of social media use livestream coverage as a platform for the speculations and falsehoods of those eager to obtain fame, fortune, or political advantage from the tragic events surrounding a notorious criminal case.

The United States Supreme Court long ago stressed in *Estes v. Texas*, that it was not just the electronic media that was responsible in that case for creating a media circus that deprived the defendant of a fair trial, but also the trial judge himself, who decided to allow electronic media coverage of a notorious criminal case and thereby unconstitutionally fanned the flames of prejudicial pretrial publicity:

From the moment the trial judge announces that a case will be televised it becomes a *cause celebre*. The whole community, including prospective jurors, becomes interested in all the morbid details surrounding it. The approaching trial immediately assumes an important status in the public press and the accused is highly publicized along with the offense with which he is charged. Every juror carries with him into the jury box these solemn facts and thus increases the chance of prejudice that is present in every criminal case. And we must remember that realistically it is only the notorious trial which will be broadcast, because of the necessity for paid sponsorship. The conscious or unconscious effect that this may have on the juror’s judgment cannot be evaluated, but experience indicates that it is not only possible but highly probable that it will have a direct bearing on his vote as to guilt or innocence.

381 U.S. at 545.¹⁹ And in *Estes*,

The judge decided that the trial proceedings would be telecast. He announced no restrictions at the time. This emphasized the notorious nature of the coming trial, increased the intensity of the publicity on the petitioner and together with the subsequent televising of the trial beginning 30 days later inherently prevented a sober search for the truth.

Id. at 550-51.

Estes also addressed the effect of a judge allowing electronic media coverage of pretrial proceedings:

It is contended that this two-day pretrial hearing cannot be considered in determining the question before us. We cannot agree. Pretrial can create a major problem for the defendant in a criminal case. Indeed, it may be more harmful than publicity during the trial for it may well set the community opinion as to guilt or innocence. Though the September hearings dealt with motions to prohibit television coverage and to postpone the trial, they are unquestionably relevant to the issue before us. All of this two-day affair was highly publicized and could only have impressed those present, and also the community at large, with the notorious character of the petitioner as well as the proceeding.

Id. at 565.

This Court has the right and duty to prohibit or restrict broadcasts of court proceedings in the specific circumstances of this case under the federal and state constitutions, and under Rule

¹⁹ The Court's lead opinion in *Estes* was written by Justice Clark and concurred in by Chief Justice Warren, and Justices Douglas and Goldberg. Chief Justice Warren wrote a separate concurring opinion in which Justices Douglas and Goldberg joined. Justice Harlan also wrote a concurring opinion and agreed with many of the points raised by Justice Clark and Chief Justice Warren and concluded that "[a]t the present juncture I can only conclude that televised trials, at least in cases like this one, possess such capabilities for interfering with the even course of the judicial process that they are constitutionally banned." *Estes*, 381 U.S. at 596 (Harlan, J. concurring). See also *Sinclair v. Turner*, 434 P.2d 305, 307 n.6 (Utah 1967) (describing *Estes* as a case where reversal was required because "there was a radical departure from the dignity and decorum proper to maintain in a courtroom, the main aspect of which was making a public drama of the trial by permitting televising and broadcasting during the trial."); *Conder*, 668 P.2d at 517 (citing Justice Clark's lead opinion in *Estes* as demonstrating the "potential prejudicial impact of televising jurors.").

4-401.01(2)(A), (3)(B) and (5). Importantly, although Rule 4-401.01(2)(A) sets forth a state law rule-based presumption in favor of electronic media coverage if, but only if, “the predominant purpose of the electronic media coverage request is journalism or dissemination of news to the public,” that presumption can be overcome based on “some or all” of the nine factors set forth in Paragraph 2(B).

Under Paragraph 3(B), the court may also terminate or suspend electronic media coverage at any time without prior notice “if the judge finds that continued electronic media coverage is no longer appropriate based upon consideration of one or more of the factors in Paragraph (2)(B).” Finally, under Paragraph (5), upon finding that anyone violated “this rule or the court’s directives” the court may “terminate or suspend electronic media coverage[.]” Under Paragraphs (2)(C) and 2(D), and 3(B), a decision to prohibit or restrict media access made under Paragraph (2)(B) or Paragraph (3)(B) must be accompanied by particularized oral or written findings that relate to the specific circumstances of the proceedings “rather than merely reflect generalized views or preferences.” No such findings are required if the decision to prohibit or restrict media access is made under Paragraph (5).²⁰

²⁰ No Utah court has yet interpreted Rule 4-401.01 and thus the Court is without any guidance as to how to apply the Rule. As a foundational objection, Mr. Robinson objects to the use of the Rule in this case because it violates the due process void for vagueness doctrine. See Emily Ittner, *Technology In The Courtroom: Promoting Transparency Or Destroying Solemnity?*, 22 COMMLAW CONSPECTUS 347, 374-375 (2014), available at <https://scholarship.law.edu/cgi/viewcontent.cgi?article=1541&context=commlaw> (“Utah’s rule ...does not provide sufficient guidance to judges to help them in deciding whether to prohibit or restrict coverage. The rule requires judges to consider “some or all” of nine factors when determining whether the presumption of electronic coverage has been overcome and should be prohibited or restricted. Offering a list of specific factors to aid judges in their decision making is a positive step. However, the rule is still ambiguous, in that it does not state how judges must weigh these factors in their determination of whether or not to limit or prohibit coverage.”).

Three separate issues thus arise under Rule 4-401.01. The first issue is whether the “predominant purpose” of the electronic media coverage is “journalism or dissemination of news to the public” Utah R. Jud. Admin. 4-401.01(2)(A). If it is not, then there is no statutory presumption in favor of electronic media coverage and no entitlement to such coverage. If it is, then the second issue is whether the presumption has been overcome under the facts set forth in Paragraph 2(B). The third issue is whether electronic media coverage should be prohibited or restricted under Paragraph (5) given the electronic media’s admitted violation of the Court’s decorum order, the consequences of that violation in causing the worldwide distribution of an electronic fake confession and of other bogus analyses, and its continued violation of that order as documented above. As argued below, these determinations can be made only after the Court considers both argument and evidence bearing on the factors, but in this extraordinary case, even without further evidence, the applicable factors and the electronic media’s violations of the decorum order weigh heavily in favor of prohibiting any further electronic coverage of this case.

Moreover, regardless of how the Court determines these three state law issues, it is elementary but important to stress that a state statute or rule cannot trump the state or federal constitution principles discussed in this motion. *See United States v. Tsarnaev*, 595 U.S. 302, 315-16 (2022) (“[S]upervisory rules cannot conflict with or circumvent a constitutional provision or federal statute” and “most relevant here, lower courts cannot create prophylactic supervisory rules that circumvent or supplement legal standards set out in decisions of this Court.”); *Chandler v. Florida*, 449 U.S. 560, 582 (1981) (“We are not empowered by the Constitution to oversee or harness state procedural experimentation; *only when the state action infringes fundamental guarantees are we authorized to intervene.*” (emphasis added)); *Estes*, 381 U.S. at 566 (Warren, CJ, concurring) (noting with respect to the trial judge’s comments that “[t]his case

is not being tried under the Federal Constitution”, and that “[t]his Defendant has been brought into this Court under the state laws, under the State Constitution”, that “I find it difficult to believe that this trial judge, with over 20 years’ experience on the bench, was unfamiliar with the fundamental duty imposed on him by Article VI [the Supremacy Clause] of the Constitution of the United States.”).²¹

The *constitutional* question of whether, in the circumstances of this capital case, unlimited electronic media coverage of all aspects of this capital case should be permitted to continue when the media has violated both the letter and spirit of the Court’s decorum order, and when prejudicial electronic media pretrial publicity has been extreme and continuous and is unlikely to abate, cannot be answered by merely invoking a rule-based presumption or the media’s or the public’s “right of access.”

The Supreme Court has repeatedly held that there is no constitutional right to have judicial proceedings recorded and broadcast. *Chandler*, 449 U. S at 569; *Nixon v. Warner Communications, Inc.*, 435 U.S. 589, 590 (1978) (“[T]here is no constitutional right to have ... testimony recorded and broadcast.”); *Estes*, 381 U.S. at 539-42, 583-84, 588 (same).²²

²¹ The same supremacy principle applies to the state constitution and to decisions based on the state constitution. *See State v. DeJesus*, 2017 UT 22, ¶ 34, 395 P.3d 111 (“[O]ur constitutional decisions are set in relative stone in that [t]hey place matters resolved by them beyond the policy reach of this or other branches of government, and they establish precedent that we ourselves may be bound by under the doctrine of *stare decisis*.” (internal quotations omitted)).

²² After *Chandler*, no Federal Circuit Court has opined that the Federal Constitution guarantees the media or the public a right to record or broadcast court proceedings. *See, e.g., Westmoreland v. Columbia Broadcasting Sys., Inc.*, 752 F.2d 16, 23-24 (2d Cir.1984) (“There is a long leap ... between a public right under the First Amendment to attend trials and a public right under the First Amendment to see a given trial televised.”); *Whiteland Woods, L.P. v. Township of W. Whiteland*, 193 F.3d 177, 183 (3d Cir.1999) (“The First Amendment does not require states to accommodate every potential method of recording its proceedings, particularly where the public is granted alternative means of compiling a comprehensive record.”); *United States v. Edwards*, 785 F.2d 1293, 1295-96 (5th Cir.1986) (First Amendment does not guarantee a positive right to televise or broadcast criminal trials); *Conway v. United States*, 852 F.2d 187, 188-89 (6th

The Supreme Court put the issue plainly and bluntly in *Nixon*:

The First Amendment generally grants the press no right to information about a trial superior to that of the general public. Once beyond the confines of the courthouse, a news-gathering agency may publicize, within wide limits, what its representatives have heard and seen in the courtroom. But the line is drawn at the courthouse door; and within, a reporter's constitutional rights are no greater than those of any other member of the public.

435 U.S. at 609 (internal quotation omitted).

The present motion is not seeking to infringe either the media's or the public's "right of access" to Mr. Robinson's trial. And it is that "right of access," not any alleged but non-existent constitutional right of the electronic media to record and broadcast proceedings for profit or sensationalism, that serves important constitutional interests. See *Press-Enterprise Co. v. Superior Ct. of California, Riverside Cnty*, 464 U.S. 501, 508 (1984) ("[T]he sure knowledge that *anyone* is free to attend gives assurance that established procedures are being followed and that deviations will become known." (emphasis in original)).

Because, at most, the media in this case can assert only a "presumption" which is grounded in a court rule and not in a constitutional provision, for purposes of analyzing Mr. Robinson's constitutional claims—any talk of a "strict scrutiny", "compelling interest", or "least intrusive means" standard has no place. See, e.g., *Globe Newspaper Co. v. Superior Ct. for*

Cir.1988) (per curiam) (no First Amendment right to televise judicial proceedings); *United States v. Kerley*, 753 F.2d 617, 621 (7th Cir.1985) ("exclusion of cameras from federal courtrooms is constitutional"); *Rice v. Kempker*, 374 F.3d 675, 678 (8th Cir. 2004) ("[W]e hold that neither the public nor the media has a First Amendment right to videotape, photograph, or make audio recordings of government proceedings that are by law open to the public."); *Radio & Television News Ass'n of S. California v. U.S. Dist. Ct. for Cent. Dist. of California*, 781 F.2d 1443, 1447 (9th Cir. 1986) ("the media's 'right to gather information' during a criminal trial is no more than a right to attend the trial and report on their observations"); *Combined Communications Corp. v. Finesilver*, 672 F.2d 818, 821 (10th Cir. 1982) ("The First Amendment does not guarantee the media a constitutional right to televise inside a courthouse"); *United States v. Hastings*, 695 F.2d 1278, 1280 (11th Cir. 1983) (right of access does not extend to "the right to televise, photograph, record, and broadcast federal criminal trials").

Norfolk Cnty, 457 U.S. 596, 607 n. 17 (1982) (“Of course, limitations on the right of access that resemble ‘time, place, and manner’ restrictions on protected speech, would not be subjected to ...strict scrutiny.”); *United States v. Kerley*, 753 F.2d 617, 620-21 (7th Cir. 1985) (“A limitation on the public access to a trial is not subject to the same “strict scrutiny” given a denial of access. All we have in the case before us is a limitation on the manner of news coverage; the media can do everything but televise the trial. The limitation can withstand constitutional scrutiny so long as it is reasonable and neutral, as with time, place, and manner restrictions generally.” (citing *Globe Newspaper Co* and numerous other cases)).

Further, the Supreme Court has “always held that the atmosphere essential to the preservation of a fair trial—the most fundamental of all freedoms—must be maintained at all costs.” *Estes*, 381 U.S. at 540. *See also Press-Enterprise*, 464 U.S. at 508 (“No right ranks higher than the right of the accused to a fair trial.”); *United States v. Tijerina*, 412 F.2d 661, 667 (10th Cir. 1969) (“The [First Amendment] argument necessarily places freedom of speech in a preferred position above fair trial. Some decisions of the Supreme Court place First Amendment rights in a preferred position. This preferred position has never been approved in a case where a balance must be had between free speech and fair trial. Indeed, the Court has awarded the preference to fair trial.” (citation omitted).) In other words, from a constitutional perspective, a bare rule-based presumption can never outweigh Mr. Robinson’s compelling interest in a fair trial.

Lastly, and most importantly, the fact that the State is seeking the death penalty in this case means that the Court must be especially vigilant to guard against the pernicious effects of prejudicial pretrial publicity, and do everything it can to ensure that every procedural safeguard

is observed. *See Gregg v. Georgia*, 428 U.S. 153, 187 (1976) (“When a defendant’s life is at stake, the Court has been particularly sensitive to insure that every safeguard is observed.”)

The President of the United States, the Vice President, the Attorney General, the Governor of the State of Utah, the County Attorney, law enforcement officials, and the electronic media have all condemned Mr. Robinson before his trial has even begun. The President has told a nationwide audience that “with a high degree of certainty, we have him”, that “I hope he is going to be found guilty”, that “I hope he gets the death penalty”, that “the depraved assassin who planned and executed Charlie’s killing has been arrested and charged with capital murder”, and that “ God willing, he will receive the full and ultimate punishment for his horrific crime.”

See supra, TIMES NEWS, *Donald Trump Confirms*. As the Supreme Court put it long ago:

With such an opinion permeating their minds, it would be difficult to say that each [juror] could exclude this preconception of guilt from his deliberations. The influence that lurks in an opinion once formed is so persistent that it unconsciously fights detachment from the mental processes of the average man. Where one’s life is at stake—and accounting for the frailties of human nature—we can only say that in the light of the circumstances here the finding of impartiality does not meet constitutional standards.... With his life at stake, it is not requiring too much that petitioner be tried in an atmosphere undisturbed by so huge a wave of public passion[.]

Irvin v. Dowd, 366 U.S. 717, 727-28 (1961) (internal citations omitted).

Consistent with *Irvin*, the Utah Supreme Court held in *State v. James*, that the fact that the state is seeking the death penalty is an important factor in assessing the reasonable likelihood that media coverage will prejudice the right to a fair trial:

This is a capital case. Not only will a jury be required to determine the guilt or innocence of defendant, but if guilt is found, the jury will probably be urged by the prosecution to impose the death penalty. In deciding whether to impose the death penalty, the jury must weigh aggravating circumstances against mitigating circumstances. This is the most momentous judgment a jury can be asked to make. The judgment should be made in an atmosphere as free from any taint of bias or prejudice as is reasonably possible.

767 P.2d 549, 555 (Utah 1989). *See also State v. Arguelles*, 2003 UT 1, ¶ 102, 63 P.3d 731 (“We... encourage trial judges...to continue to exercise caution in maintaining quiet and non-distracting courtroom environments in all cases, and particularly in capital proceedings.”); *Sampson v. United States*, 724 F.3d 150, 163 (1st Cir. 2013) (“The right to an impartial jury is nowhere as precious as when a defendant is on trial for his life.”).

The prejudicial electronic pretrial publicity in this case, with its obsession on courtroom attire and restraints, mugshots, demeanor, and other irrelevant and prejudicial factors, has imperiled not only Mr. Robinson’s constitutional right to an impartial guilt and penalty phase jury, but also his Eighth Amendment and article 1, section 9 rights to be free from cruel and unusual punishment. *See Beck v. Alabama*, 447 U.S. 625, 638 (1980) (“To insure that the death penalty is indeed imposed on the basis of reason rather than caprice or emotion, we have invalidated procedural rules that tended to diminish the reliability of the sentencing determination. The same reasoning must apply to rules that diminish the reliability of the guilt determination.” (internal quotation omitted)); *Caldwell v. Mississippi*, 472 U.S. 320, 340 (1985) (invalidating a procedure that was “incompatible with the Eighth Amendment’s heightened need for reliability in the determination that death is the appropriate punishment in a specific case.” (internal quotation omitted)).

Indeed, the Supreme Court “has stressed the ‘acute need’ for reliable decisionmaking when the death penalty is at issue.” *Deck v. Missouri*, 544 U.S. 622, 632 (2005). And it is well established that reliable decisionmaking must be grounded in admissible evidence, not on innuendo derived from the defendant’s custodial status, demeanor, or prejudicial pretrial publicity. *See, Holbrook v. Flynn*, 475 U.S. 560, 567 (1986) (“Central to the right to a fair trial, guaranteed by the Sixth and Fourteenth Amendments, is the principle that one accused of a crime is entitled to have

his guilt or innocence determined solely on the basis of the evidence introduced at trial, and not on grounds of official suspicion, indictment, continued custody, or other circumstances not adduced as proof at trial.”); *Estes*, 381 U.S. at 564 (Warren, CJ, concurring) (“[T]he criminal trial under our Constitution has a clearly defined purpose, to provide a fair and reliable determination of guilt, and no procedure or occurrence which seriously threatens to divert it from that purpose can be tolerated.”)

This Court’s factual findings quoted above with respect to Mr. Robinson’s jail attire and shackles and the likely effect that publicity about such factors will have on a Utah County jury pool have important implications under the Sixth, Eighth, and Fourteenth Amendment to the United States Constitution, and under Utah Constitution, article I, sections 7 (due process), 9 (prohibition against cruel and unusual punishment), 10 (“In capital cases the right of trial by jury shall remain inviolate”), and 12 (right to counsel and to a public trial by an impartial jury).

In light of the factual circumstances outlined above, continuing to broadcast the proceedings in this capital case threatens to undermine Mr. Robinson’s fundamental right to a fair and reliable trial and sentencing hearing by an impartial jury. The United States Supreme Court has noted that cameras in the courtroom can have a prejudicial effect on the performance of the jurors, the trial court judge, witnesses and the defendant. *See Estes*, 381 U.S. at 545-50.

While the United States Supreme Court has not adopted a per se ban on cameras in the courtroom for all cases, it has ruled that in notorious cases the broadcast of the proceedings constitutes prejudicial, reversible constitutional error. *See id.*; *Chandler*, 449 U.S. at 582. The present case is the type of case where broadcasting the case would cause irreparable bias and prejudice to Mr. Robinson. This case has been highly publicized and emotional since its

inception. Given the nature and history of the case, the exclusion of the electronic media is necessary to preserve Mr. Robinson's rights under the United States and Utah Constitutions.

II. GIVEN THE PARTICULAR CIRCUMSTANCES OF THIS CAPITAL CASE, WHERE THE AMOUNT OF PREJUDICIAL ELECTRONIC MEDIA PRETRIAL PUBLICITY IS ALREADY EXTREMELY HIGH AND IS LIKELY TO CONTINUE, AND WHERE THE ELECTRONIC MEDIA HAS ALREADY VIOLATED THE COURT'S DECORUM ORDER AND DIRECTLY CAUSED FURTHER PREJUDICE , CONTINUING TO ALLOW LIVE STREAMING OF ALL PROCEEDINGS WOULD INFRINGE MR. ROBINSON'S FUNDAMENTAL RIGHT TO A FAIR AND RELIABLE TRIAL AND SENTENCING HEARING BY AN IMPARTIAL JURY AS GUARANTEED BY THE SIXTH, EIGHTH, AND FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION AND THEIR UTAH CONSTITUTIONAL COUNTERPARTS.

A. The Court Has a Constitutional Duty to Take Strong Measures to Ensure That Mr. Robinson's Right to a Fair Trial by an Impartial Jury Is Protected From Prejudicial Electronic Pretrial Publicity.

The Utah Supreme Court has long noted, "It is well established that due process requirements of the Constitutions of Utah and the United States guarantee that an accused receive a trial before a fair and impartial jury free from outside influences." *State v. Pierre*, 572 P.2d 1338, 1348 (Utah 1977) (footnote omitted). Further, "[t]here can be no doubt that pretrial or during-trial publicity that comes to the attention of prospective or sitting jurors can deprive a criminal defendant of a fair trial. Appellate courts have been obliged to reverse convictions on this ground where the publicity was pervasive and prejudicial." *Conder*, 668 P.2d at 518. The United States Supreme Court has dealt with the detriments of excessive media involvement in cases by reversing a number of criminal convictions on the ground that excessive pretrial publicity, of the same or even lesser type and intensity as that present in this case, deprived the defendants of due process. *See Estes*, 381 U.S. at 533-52 (1965) (holding that a defendant had been denied due process because a pre-trial hearing had been televised live and then rebroadcast, and because the court proceedings had been disrupted by the presence of the media); *Rideau* , 373 U.S. at 723-27 (reversing a conviction after the defendant had been denied a change of

venue even though a local television station had broadcast his recorded confession three times, and 106,000 of the estimated 150,000-person community viewed the broadcast); *Irvin*, 366 U.S. at 727-28 (reversing a conviction where pre-trial publicity distributed in the vicinity of the trial included, *inter alia*, media accounts of the defendant's juvenile record, his confessions, and previous court-martial proceedings); *Marshall v. United States*, 360 U.S. 310 (1959) (per curiam) (reversing a conviction because seven of twelve jurors had been exposed to news accounts of evidence that was not admitted at trial). The leading case during this era, which identified the need for trial publicity reform and shaped the American Bar Association's remedial measures, was *Sheppard v. Maxwell*, 384 U.S. 333 (1966). *See supra*, n. 2. There, the Court, on due process grounds, reversed the murder conviction of Sam Sheppard, whose high-profile trial had been preceded and pervaded by a media frenzy. *Id.* at 363. Newspapers had documented Sheppard's alleged refusal to cooperate with investigating officials and had published articles discussing incriminating evidence that was never admitted at trial. *Id.* at 338-41. Furthermore, reporters had crowded the defense table at trial, making it very difficult for Sheppard to have private discussions with his counsel. *Id.* Despite the chaotic conditions, the trial judge refused to allow a change of venue and failed to take steps to control the adverse effects of the publicity. *Id.* at 354 n. 9, 358-59.

The Supreme Court admonished the trial court in *Sheppard* for its failure to control the extrajudicial publicity:

The fact that many of the prejudicial news items can be traced to the prosecution, as well as the defense, aggravates the judge's failure to take any action. Effective control of these sources—concededly within the court's power—might well have prevented the divulgence of inaccurate information, rumors, and accusations that made up much of the inflammatory publicity[.]

Id. at 361 (internal citation omitted).²³ The Court suggested how the trial judge could have minimized the prejudicial publicity, including proscribing extrajudicial statements by lawyers and other trial participants, requesting local officials to implement regulations with respect to the dissemination of trial information, and warning news media about the impropriety of publicizing material not introduced at the proceeding. *Id.* at 361-62. Emphasizing the prejudicial effect of news media on fair trials, the Court iterated:

Due process requires that the accused receive a trial by an impartial jury free from outside influences. Given the pervasiveness of modern communications and the difficulty of effacing prejudicial publicity from the minds of the jurors, the trial courts must take strong measures to ensure that the balance is never weighed against the accused.... [W]here there is a reasonable likelihood that prejudicial news prior to trial will prevent a fair trial, the judge should continue until the threat abates, or transfer it to another county not so permeated with publicity.

Id. at 362-63. Moreover, the Court recognized that repeatedly reversing convictions would not suffice as a long-term remedy for the harm of trial publicity. The Court recommended an alternative solution:

But we must remember that reversals are but palliatives; the cure lies in those remedial measures that will prevent the prejudice at its inception. The courts must take such steps by rule and regulation that will protect their processes from prejudicial outside interferences. Neither prosecutors, counsel for defense, the accused, witnesses, court staff nor enforcement officers coming under the jurisdiction of the court should be permitted to frustrate its function. Collaboration between counsel and the press as to information affecting the fairness of a criminal trial is not only subject to regulation, but it is highly censurable and worthy of disciplinary measures.

²³ Here, in contrast to *Sheppard*, the Court will search the substantial pretrial publicity in this case in vain for any indication that the defense lawyers representing Mr. Robinson have held press conferences or otherwise spoken to the media.

Id. at 363.²⁴

Under *Sheppard* and its progeny, this Court has a constitutional duty to construe Rule 4-401.01 in a manner that adequately protects Mr. Robinson’s due process rights, including his right to a fair trial. *See Gannett Co. v. DePasquale*, 443 U.S. 368, 378 (1979) (“a trial judge has an affirmative constitutional duty” to protect a criminal defendant’s due process rights). Because it is difficult to remedy any violation of Mr. Robinson’s constitutional rights after the fact, “our criminal justice system permits, and even encourages, trial judges to be over-cautious in ensuring that a defendant will receive a fair trial.” *Id.* at 379 n. 6.; *also id.* at 379 (“And because of the Constitution’s pervasive concern for these due process rights, a trial judge may surely take protective measures even when they are not strictly and inescapably necessary.”).

B. The Prejudicial Pretrial Electronic Media Coverage in This Case Clearly Meets the Threshold Standard Set Forth in *Sheppard* for Invoking This Court’s Affirmative Constitutional Duty to Take Protective Measures to Protect Mr. Robinson’s Due Process Rights by Prohibiting Further Electronic Media Live Streaming.

1. The *Sheppard* Standard Has Clearly Been Met.

Sheppard’s strictures that trial courts must take “strong measures to ensure that the balance is never weighed against the accused”, and that “courts must take such steps by rule and regulation that will protect their processes from prejudicial outside interferences”, retain special vitality today, in the age of the widespread dissemination of information and disinformation on internet/social media platforms by those whose opinions hold special weight in our increasingly polarized society. For example, when President Trump, as a criminal defendant, used social media to make threats to and derogatory comments about trial participants in his pending federal

²⁴ Mr. Robinson discusses below why this and other traditional means short of prohibiting further electronic media coverage will not be effective in this unique case.

criminal case, the district court stepped in and issued a gag order after the President continued with such posts after being specifically warned not to do so. *See United States v. Trump*, 88 F.4th 990, 998 (D.C. Cir. 2023) (“Before and after the district court’s warning, Mr. Trump repeatedly used his public platform to denigrate and attack those involved in the criminal case against him.”).

In upholding the essential part of that gag order on appeal, and concluding that “the district court had the authority to prevent Mr. Trump from laundering communications concerning witnesses and addressing their potential trial participation through social media postings or other public comments”, the appellate court relied primarily on *Sheppard* and its progeny, reasoning, “[W]hen a case involves extensive media coverage and public interest, or when the parties are trying the case in the media rather than the courtroom, a court cannot sit back and wait for a “carnival atmosphere” to descend before acting. Quite the opposite. *Id.* at 1004 (citing *Sheppard*, 384 U.S. at 356-63). Quoting *United States v. Nixon*, 418 U.S. 683, 707 (1974), the *Trump* Court noted, “[T]he primary constitutional duty of the Judicial Branch [is] to do justice in criminal prosecutions[.]” Thus, “[a]s part of that duty, courts must ‘prevent the prejudice’ to the trial process “at its inception.”” *Id.* (quoting *Sheppard*, 384 U.S. at 363) (citing to *Nebraska Press Ass’n. v. Stuart*, 427 U.S. 539, 553 (1976) (The cure for prejudice to the trial “lies in those remedial measures that will prevent the prejudice at its inception.”)) Indeed,

That is because waiting until the trial is over and reversing the conviction would be an ineffective, costly, and wasteful “palliative,” inflicting the additional burdens on a defendant and extra expenses on the taxpayers of a retrial in an already contaminated public atmosphere, with witness recall and evidence growing staler all the while.

Id. (quoting *Sheppard*, 384 U.S. at 363). The *Trump* Court thus instructed:

As a result, courts have an ongoing obligation to ensure that speech about a criminal case does not divert the trial from the very purpose of a court system,

which is to adjudicate controversies, both criminal and civil, in the calmness and solemnity of the courtroom according to legal procedures. Due process demands that the conclusions to be reached in a case will be induced only by evidence and argument in open court, and not by any outside influence, whether of private talk or public print. *Id.* at 351... (quoting *Patterson v. Colorado ex rel. Attorney General*, 205 U.S. 454, 462... (1907)); The courts' duty to protect trials from outside influence includes protecting court personnel from both the reality and the appearance of undue outside pressure. The Supreme Court "has recognized that the unhindered and untrammelled functioning of our courts is part of the very foundation of our constitutional democracy." *Cox*, 379 U.S. at 562[.].

Id. at 1004-05 (additional internal citations and quotation marks omitted; cleaned up). *See also Geders v. United States*, 425 U.S. 80, 86-87 (1976) ("If truth and fairness are not to be sacrificed, the judge must exert substantial control over the proceedings.").

Significant to the present case, where President Trump has expressed his strong opinion through electronic media that Mr. Robinson is part of a "radical left" conspiracy, and a "depraved assassin"²⁵ who should be convicted and executed, the court also upheld the gag order in part because "President Trump's words have real-world consequences." *Trump*, 88 F.4th at 1011. The *Trump* Court elaborated:

The record also shows that former President Trump's words have real-world consequences. Many of those on the receiving end of his attacks pertaining to the 2020 election have been subjected to a torrent of threats and intimidation from his supporters. A day after Mr. Trump's "IF YOU GO AFTER ME, I'M COMING AFTER YOU!" post, someone called the district court and said: "Hey you stupid slave n[****]r[.] * * * If Trump doesn't get elected in 2024, we are coming to kill you, so tread lightly b[***]h. * * * You will be targeted personally, publicly, your family, all of it." Special Counsel Br. 5; *see United States v. Shry*, No. 4:23-cr-413, ECF 1 at 3 (Criminal Complaint) (S.D. Tex. Aug. 11, 2023). The Special Counsel also has advised that he has received threats, and that a prosecutor in the Special Counsel's office whom Mr. Trump has singled out for criticism has been "subject to intimidating communications." Special Counsel Mot. 12.

The former President has repeatedly attacked both the presiding judge and his law clerk in a New York state-law lawsuit. Since those attacks, the judge's

²⁵ *See, e.g., supra*, DIARIO AS, *TRUMP calls for DEATH PENALTY*.

chambers have been “inundated with hundreds of harassing and threatening phone calls, voicemails, emails, letters, and packages.” *New York v. Trump*, No. 452564/2022, NYSCEF No. 1631 at 2 (N.Y. Sup. Ct. Nov. 3, 2023). In addition to threatening death or serious harm, callers have labeled the judge and clerk “Nazi[s],” “dirty Jews,” and child molesters. See *Trump v. Engoron*, No. 2023-05859, NYSCEF No. 9, Ex. E at 3-5 (N.Y. App. Div. Nov. 22, 2023).

Election officials involved in the 2020 election were subjected to similar attacks. One election official explained: “After the [then-]President tweeted at me by name, calling me out the way that he did, the threats became much more specific, much more graphic, and included not just me by name but included members of my family by name, their ages, our address, pictures of our home. Just every bit of detail that you could imagine. That was what changed with that tweet.” ... Another state official explained that he avoided “commenting on most things publicly” because it was “the safest thing to do” after then-President Trump tweeted about him.... And a local election official had to evacuate his home after then-President Trump criticized his office and a supporter posted his address online.

Likewise, after former President Trump publicly condemned and then fired a federal official for making statements reassuring the public about the 2020 election’s security, one of Mr. Trump’s campaign’s lawyers publicly stated that the official “should be drawn and quartered. Taken out at dawn and shot.” After receiving death threats, the official and his family had to evacuate their home....

Others too have had their lives turned upside down after coming within Mr. Trump’s verbal sights. For example, a temporary Georgia election worker testified before Congress that she and her daughter endured “horrible, racist threats” after then-President Trump falsely accused them of election misconduct..... She testified that she “had to move out of [her] house because the FBI said it wasn’t safe.” People would send messages “say[ing] things like, ‘We know where you live, and we’re coming to get you, n[****]r.’ “ Some would show up at her home to confront her, and one person even tried to force her way into the election worker’s mother’s home to effectuate a citizen’s arrest of the election worker. The election worker explained: “Do you know how it feels to have the President of the United States to target you? * * * [W]hen someone as powerful as the President of the United States eggs on a mob, that mob will come.”

Mr. Trump himself recognizes the power of his words and their effect on his audience, agreeing that his supporters “listen to [him] like no one else.” Transcript of CNN’s Town Hall with Former President Donald Trump, CNN (May 11, 2023).

Based on that record, the district court made a factual finding that, “when Defendant has publicly attacked individuals, including on matters related to this case, those individuals are consequently threatened and harassed.” Mr. Trump has not shown that factual finding to be clearly erroneous, and we hold that the record amply supports it.

Id. at 1011-12 (internal citations to case filings and select committee transcript omitted).

This finding is highly relevant in this case in assessing the prejudicial impact of statements made by President Trump and his supporters, including Vice President Vance, U.S. Attorney General Bondi, FBI Director Patel, Deputy FBI Director Bongino, White House staff member Miller, and Governor Cox, who specifically mentioned during his Meet the Press national broadcast that he was appearing at the request of the White House. *See Leavitt*, 2025 UT 46, ¶ 32 (Important factors to consider in assessing the prejudicial impact of statements to the media are, among other things, “when the statement was made in relation to trial, the attention the case and comments received, and the *role and reputation of the speaker*.” (emphasis added)).

Notably, in the 2024 presidential election, President Trump received 66.65% of the 308,981 votes cast in Utah County, as compared to 27.82% received by Ms. Harris. *See Countywide Summary Results for Utah County*, 2024 Gen. Election (Nov. 5, 2024), available at https://vote.utahcounty.gov/cms/uploads/Summary_Results_FINAL_ec1e91cd43.pdf. Statewide, Mr. Trump received 59.38% of the vote, compared to Ms. Harris receiving 37.79% of the vote. *See 2024 General Election* (Nov. 5, 2024), available at <https://electionresults.utah.gov/results/public/Utah/elections/general11052024>. As Mr. Trump himself put it, his supporters “listen to [him] like no one else.” *Trump*, 88 F.4th at 1011.

In a national public opinion poll taken shortly after Mr. Kirk’s death, just 6% of Americans said political violence was not much of a problem (5%) or not a problem (1%). 87% said it is a problem, with a majority (59% of U.S. adults) saying political violence is a very big

problem and 28% calling it somewhat of a problem. Republicans were more likely than Democrats to say political violence was a very big problem (67% vs. 58%). See David Montgomery, *What Americans really think about political violence*, YOUGov (Sep. 12, 2025, at 4:21 PM MT), <https://today.yougov.com/politics/articles/52960-charlie-kirk-americans-political-violence-poll>

In a national public opinion poll conducted in November 2025, 61% of respondents to an NBC poll said they believed extreme rhetoric was to blame for the killing of Mr. Kirk while 28% said it was “caused by a disturbed person,” and just 4% said they felt that both factors had played a part. Republicans apportioned the blame 73% to 19% in favor of violent rhetoric, Democrats put it at 54% to 34%, and independents at 53% to 28%. See Joe Sommerland, *Majority of Americans say ‘extreme political rhetoric’ led to the killing of Charlie Kirk, poll finds*, INDEPENDENT (Nov. 17, 2025, at 13:09 ET), <https://www.the-independent.com/news/world/americas/us-politics/charlie-kirk-political-rhetoric-poll-b2866842.html>

Given these opinion polls, the fact that Mr. Trump’s popularity in Utah County and in Utah generally is extremely high, the vehemence, scope, and frequency of the attacks that he and his supporters have mounted against Mr. Robinson, and this Court’s existing findings of fact quoted above, it should be concluded that he easily meets the standard set forth in *Sheppard* for determining whether a notorious criminal case has reached the point where the trial court has a duty to take “strong measures” to ensure a defendant’s fundamental right to a fair trial by an impartial jury. That standard is that the defendant need only show that there is “a reasonable likelihood that prejudicial news prior to trial will prevent a fair trial.” *Sheppard*, 384 U.S. at 363. This is the same standard used by the Utah Supreme Court in assessing the need for a change of

venue. *See James*, 767 P.2d at 555. And it is the same standard used in Rule 4-401.01(2)(B) to assess whether electronic media should be prohibited or restricted as a matter of state law.

A full application of that standard to this case is set forth below in relation to the analysis of Rule 4-401.01(2)(B). Here, Mr. Robinson emphasizes a critical point which leaves no doubt that he has met the *Sheppard* standard. More specifically, the Trump-related prejudicial publicity concerning Mr. Robinson's alleged connection with the "radical left" is certainly highly prejudicial and is alone sufficient to satisfy the *Sheppard/James* reasonable likelihood standard, but it is only one of many judicially-recognized categories of prejudicial pretrial publicity that are present in this case. *See*, fn. 4, *supra*. It will be sufficient for present purposes to discuss only four of those categories.

First, there are thousands of posts relating to the prosecutor's allegation that Mr. Robinson confessed to his roommate and parents, and the alleged lip reader video confession has also been widely circulated. As noted above in *Rideau*, the Supreme Court reversed a conviction solely because the media had publicized a similar video confession. 373 U.S. at 723-27. And as *Skilling* and numerous other cases make clear, pretrial publicity about an alleged confession gives rise to a presumption of prejudice. *See, e.g., Skilling*, 561 U.S. at 382 (a presumption of juror prejudice is warranted where the pretrial publicity references a "confession or other blatantly prejudicial information of the type readers or viewers could not reasonably be expected to shut from sight."); *Chicago Council of Laws. v. Bauer*, 522 F.2d 242, 254 (7th Cir. 1975) ("DR 7-107(B)(3) prevents comments relative to confessions or statements by the accused. Disclosures concerning such matters are fraught with almost incurable prejudice.").

Second, the Utah Governor, FBI Director Patel, and FBI Deputy Bongino, and others have all commented that Mr. Robinson is not cooperating with law enforcement, and the

electronic media has dutifully broadcast these comments nationally, often with screen shots such as the following:



Hannity Staff, *HANNITY MONOLOGUE: This Out to be a Moment Where the Whole Country is United [WATCH]*, HANNITY, at 1:14 (Sep. 16, 2025), <https://hannity.com/media-room/hannity-monologue-this-ought-to-be-a-moment-where-the-whole-country-is-united-watch/>.

The Seventh Circuit's decision in *Chicago Council of Laws. v. Bauer*, is helpful on this point as well:

Disclosures concerning such matters are fraught with almost incurable prejudice. They could infringe on a defendant's Fifth Amendment privilege. In view of the natural tendency to draw an adverse inference from the assertion of the privilege and the careful attempts to avoid comment about such a choice during a trial, it seems that courts at least can require that attorneys who publicly discuss such matters must prove that their comment was not of the type that poses a serious and imminent threat of interference with a fair trial.

522 F.2d at 254.

The State will not be able to produce such proof in this case. Discovery Bates 000007 at p. 20 indicates that on the evening of his arrest “Tyler Robinson declined to be interviewed without having an attorney present.” A video of the encounter at Bates 003996-R2 at timestamp 03:36:53 indicates the following:

06:25 PM / 03:36:53

So Tyler, um, before we begin, I’m just gonna read you your rights. Mm-hmm <affirmative>. Okay. Um, you have the right to remain silent. Anything you say can be used against you in court. You have the right to talk to a lawyer before advice before we ask you any questions. You have the right to have a lawyer with you during questioning. If you cannot afford a lawyer, one will be appointed for you before any questioning begins. And if you decide to answer questions now, you can stop at any time. Okay. Um, so are you, are you good to proceed? I’d love to talk to you.

06:26 PM / 03:37:38

Uh, I would like to speak with my, uh, legal counsel. I’m hoping for a fellow in Utah named Doug Terry.

06:26 PM / 03:37:38

Okay.

06:26 PM / 03:37:39

Uh, told he’s a pretty good, uh, attorney here, but I, I think my folks are trying to get ahold of him, but I think his office is closed for the night.

06:26 PM / 03:37:52

Okay.

06:26 PM / 03:37:52

But, uh, until I’ve had the opportunity to speak with someone, I would like to remain silent.

These are facts that the Governor, the FBI Director, the FBI Deputy Director, and every other law enforcement officer who told the media that Mr. Robinson was refusing to cooperate with law enforcement knew or should have known. Yet not one governmental official who made such statements, or any of the electronic media persons who reported such statements, ever mentioned that Mr. Robinson had a Fifth and Sixth Amendment right to remain silent until his attorney was present, and that listeners should not draw an adverse inference from such silence. *See Doyle v.*

Ohio, 426 U.S. 610, 619 (1976) (“We hold that the use for impeachment purposes of petitioners’ silence, at the time of arrest and after receiving *Miranda* warnings, violated the Due Process Clause of the Fourteenth Amendment.”); *State v. Wiswell*, 639 P.2d 146, 147 (Utah 1981) (“The continued attempts by the prosecutor to put the defendant’s silence before the jury after his having been advised of his right to remain silent amounts to prosecutorial misconduct. The references to defendant’s silence are fundamental error, which could have affected the result and are therefore prejudicial.”). *See also, Florida v. Bostick*, 501 U.S. 429, 437 (1991) (“[A]n individual may decline an officer’s request without fearing prosecution.... We have consistently held that a refusal to cooperate, without more, does not furnish the minimal level of objective justification needed for a detention or seizure.”).

Third, another type of prejudicial electronic media coverage that gives rise to a presumption of prejudice in this case is the electronic media’s insistence on giving prominent attention to demeaning and grossly unfair characterizations. For example, President Trump has called Mr. Robinson a “monster”, and a “depraved assassin.”, Vice President Vance described Mr. Robinson as a person who is “everything that the far left wants from our young men [who] rejected the conservatism and the spirituality, the values of a small-town family [and]...moved into a small apartment, he became addicted to porn, he became addicted to hate, and he ended up sleeping with somebody who doesn’t know whether they’re a man or a woman”. U.S. Attorney General Bondi called Mr. Robinson a “horrible human being”. Governor Cox called Mr. Robinson an “evil human being” and described him as a person “deeply indoctrinated by leftist ideology”. A Retired FBI Agent Parker deemed Mr. Robinson a “true sociopath”. And political commentator and attorney Megyn Kelly called Mr. Robinson an “evil, evil human being”.

This type of character assassination has also been held condemned in numerous cases. *See, e.g., United States v. Casellas-Toro*, 807 F.3d 380, 387 (1st Cir. 2015) (prejudice presumed where “[l]ike the broadcasts of Rideau’s confession, the media here publicized ‘blatantly prejudicial information of the type readers or viewers could not reasonably be expected to shut from sight.’ The media reported rumors about Casellas’s character—that he was a drug user, threatened people with firearms, was involved in a hit-and-run vehicle accident, and bragged about assassinating the then-governor of Puerto Rico. The public took to Facebook and Twitter to publicly discuss Casellas’s case.” (quoting *Skilling*, 561 U.S. at 382); *Bauer*, 522 F.2d at 254 (“DR 7-107(B)(1) prohibits communication concerning ‘character, reputation, or prior criminal record.’ The possible prejudicial effect of negative comments on such matters is self-evident.”))

Yet a fourth area of presumptive prejudice that is involved in this case is the numerous statements by the President, the Governor, and law enforcement officials stating their opinion as to Mr. Robinson’s guilt, or, in the case of the County Attorney, as to the existence of aggravating factors relating to the victim, and the propriety of the death penalty. *See Leavitt*, 2025 UT 46, ¶ 61 (upholding disciplinary sanction against former Utah County District Attorney because “his expression of belief in Baum’s guilt, and his other inflammatory statements did a disservice to the legal system by creating a substantial risk of tainting the jury pool, thereby jeopardizing a criminal defendant’s constitutional right to a fair and impartial trial. Further, these comments impinged upon the presumption of innocence that is so important to our criminal justice system.”); *Id.* ¶ 39 (“Leavitt’s position as the County Attorney made the potential for prejudice even higher. His statements likely carried more weight in the eyes of the public.”).

As stated in *Bauer*, “[t]he prohibition on opinion as to guilt or innocence is permissible since this is a traditional ethical requirement in the legal profession and such an opinion could

never properly be offered in court.” 522 F.2d at 254. The same statement is also obviously true with respect to a statement of opinion about aggravating factors relating to the victim or the appropriateness of the death penalty, either by lawyers, or of even more concern here, by influential politicians and the victim’s family. *See Leavitt*, 2025 UT 46, ¶ 38 (“Additionally, Leavitt made the remarks at a live-streamed press conference in which he announced that his Office was seeking the death penalty against Baum. This was a high-profile case that had already received much media attention. And the press was in attendance that day. So Leavitt knew that his statements would be broadcasted and reported on, including in Utah County where the prospective jury pool lived.”); *Weaver v. Bowersox*, 438 F.3d 832, 840-41 (8th Cir. 2006) (petitioner was entitled to habeas relief based in part on the prosecutor’s improper statements during closing argument in the penalty phase “about his personal belief in the death penalty”; concluding that “[s]tatements about the prosecutor’s personal belief in the death penalty are inappropriate and contrary to a reasoned opinion by the jury,” and noting that “[a] prosecutor should not emphasize his or her position of authority in making death penalty determinations because it may encourage the jury to defer to the prosecutor’s judgment.”); *Bates v. Bell*, 402 F.3d 635, 644 (6th Cir. 2005) (“In the capital sentencing context, prosecutors are prohibited from expressing their personal opinion as to the existence of aggravating or mitigating circumstances and the appropriateness of the death penalty. Jurors are mindful that the prosecutor represents the State and are apt to afford undue respect to the prosecutor’s personal assessment.”). *See also*, *supra* n. 16.

In sum, the prejudicial pretrial electronic media coverage in this case clearly meets the threshold standard set forth in *Sheppard* for invoking this Court’s affirmative constitutional duty to take protective measures to protect Mr. Robinson’s due process rights.

2. The United States Supreme Court’s Camera-In-The Courtroom Cases Strongly Support Granting This Motion and Establish Mr. Robinson’s Right to an Evidentiary Hearing to Present Empirical Data and Other Evidence in Support of This Motion.

As indicated above, the Supreme Court first addressed the broadcasting of criminal proceedings in *Estes v. Texas*, 381 U.S. 532 (1965). There, the Court reversed a state court defendant’s criminal conviction because it found that the televised broadcasting of the trial had created such a strong likelihood of prejudice that it violated the defendant’s due process rights under the Fourteenth Amendment. *Id.* at 542. Justice Clark’s lead opinion began by noting that

At the outset the motion should be dispelled that telecasting is dangerous because it is new. It is true that our empirical knowledge of its full effect on the public, the jury or the participants in a trial, including the judge, witnesses and lawyers, is limited. However, the nub of the question is not its newness but, as Mr. Justice Douglas says, ‘the insidious influences which it puts to work in the administration of justice.’ Douglas, *The Public Trial and the Free Press*, 33 Rocky Mt. L. Rev. 1 (1960).

Id. at 541.

The Court then noted the “numerous situations in which [televising a trial] might cause actual unfairness—some so subtle as to defy detection by the accused or control of the judge.” *Id.* at 544-45. In particular, it explained that broadcasting criminal trials might undermine a court’s ability to invoke Rule 615 of the Federal Rules of Evidence, which permits the exclusion of potential witnesses from the courtroom to prevent them from being influenced by others’ testimony. Broadcasting would enable excluded witnesses to hear others’ testimony and adjust their own testimony accordingly. *Id.* at 547. Likewise, broadcasting would amplify the risk that jurors could be tainted from exposure to the coverage. *Id.* at 545-46. Finally, the Court noted that cameras in the courtroom could subject trial participants—jurors, witnesses, attorneys, and judges—to psychological pressures from the knowledge that their actions would be reproduced

and disseminated publicly, potentially distorting the trial process by causing participants to conduct themselves differently. *Id.* at 545-50.

As indicated above, Justice Harlan wrote a concurring opinion and agreed with many of the points raised by Justice Clark's lead opinion and Chief Justice Warren's concurring opinion and he ultimately concluded that "[a]t the present juncture I can only conclude that televised trials, at least in cases like this one, possess such capabilities for interfering with the even course of the judicial process that they are constitutionally banned." *Estes*, 381 U.S. at 596 (Harlan, J. concurring).

Subsequently, in *Chandler v. Florida*, the Supreme Court clarified that "*Estes* did not announce a constitutional rule that all photographic or broadcast coverage of criminal trials is inherently a denial of due process." 449 U.S. at 573-74. In the Court's view, the critical language in Justice Harlan's concurring opinion that resulted in a five member majority was his statement at the beginning of his opinion that "[m]y conclusion is that there is no constitutional requirement that television be allowed in the courtroom, and, at least *as to a notorious criminal trial such as this one*, the considerations against allowing television in the courtroom so far outweigh the countervailing factors advanced in its support as to require a holding that what was done in this case infringed the fundamental right to a fair trial assured by the Due Process Clause of the Fourteenth Amendment.'" *Id.* at 571 (quoting *Estes*, 381 U.S. at 587 (Harlan, J. concurring) (emphasis added)).

In *Chandler*, which was a routine burglary case, the Court upheld the facial constitutionality of an experimental program in Florida allowing electronic media coverage in any criminal case, even over a defendant's objection. 449 U.S. at 566. The defendant contended that the program was unconstitutional because *Estes* established a per se ban against electronic

recordings in all cases, regardless of circumstances. *Id.* at 570. The Court rejected that contention and upheld the Florida program because it contained certain essential procedural safeguards. *Id.* at 566. Most importantly, it provided that “[t]he judge has sole and plenary discretion to exclude coverage of certain witnesses, and the jury may not be filmed. The judge has discretionary power to forbid coverage whenever satisfied that coverage may have a deleterious effect *on the paramount right of the defendant to a fair trial.*” *Id.* (emphasis added). The Court further stressed that “Florida admonishes its courts to take special pains to protect certain witnesses—for example, children, victims of sex crimes, some informants, and even the very timid witness or party—from the glare of publicity and the tensions of being ‘on camera’”, and that “the Florida guidelines place on trial judges positive obligations to be on guard to protect the *fundamental right of the accused to a fair trial.*” *Id.* at 576-77. The Court also noted that the program guaranteed the right to an evidentiary hearing:

Inherent in electronic coverage of a trial is a risk that the very awareness by the accused of the coverage and the contemplated broadcast may adversely affect the conduct of the participants and the fairness of the trial, yet leave no evidence of how the conduct or the trial’s fairness was affected. Given this danger, it is significant that Florida requires that objections of the accused to coverage be heard and considered on the record by the trial court. In addition to providing a record for appellate review, a pretrial hearing enables a defendant to advance the basis of his objection to broadcast coverage and allows the trial court to define the steps necessary to minimize or eliminate the risks of prejudice to the accused. Experiments such as the one presented here may well increase the number of appeals by adding a new basis for claims to reverse, but this is a risk Florida has chosen to take after preliminary experimentation. Here, the record does not indicate that appellants requested an evidentiary hearing to show adverse impact or injury. Nor does the record reveal anything more than generalized allegations of prejudice.

Id. at 577 (internal citation omitted).

The Court went on to observe that the existing empirical studies in favor of allowing electronic media coverage of trials were “limited” and “non-scientific”. *Id.* at 576, n. 11 (citation

omitted). The Court went on to observe that “further experimentation is necessary to evaluate the potential psychological prejudice associated with broadcast coverage of trials. Further developments and more data are required before this issue can be finally resolved.” *Id.* at 579, n. 12.

The Court further stressed the need for the defendant to present evidence by observing:

To say that the appellants have not demonstrated that broadcast coverage is inherently a denial of due process is not to say that the appellants were in fact accorded all of the protections of due process in their trial. As noted earlier, a defendant has the right on review to show that the media’s coverage of his case—printed or broadcast—compromised the ability of the jury to judge him fairly. Alternatively, a defendant might show that broadcast coverage of his particular case had an adverse impact on the trial participants sufficient to constitute a denial of due process. Neither showing was made in this case.

Id. at 581.

Finally, the Court made it clear that it was distinguishing the routine burglary case before it from the kind of “notorious case” that five members of the Court in ruled could not constitutionally be televised:

The concurring opinion of Chief Justice Warren joined by Justices Douglas and Goldberg in *Estes* can fairly be read as viewing the very broadcast of some trials as potentially a form of punishment in itself—a punishment before guilt. This concern is far from trivial. But, whether coverage of a few trials will, in practice, be the equivalent of a “Yankee Stadium” setting—which Justice Harlan likened to the public pillory long abandoned as a barbaric perversion of decent justice—must also await the continuing experimentation.

Id. at 580-81.

The risk of prejudice to particular defendants is ever present and must be examined carefully as cases arise. Nothing of the “Roman circus” or “Yankee Stadium” atmosphere, as in *Estes*, prevailed here, however, nor have appellants attempted to show that the unsequestered jury was exposed to “sensational” coverage, in the sense of *Estes* or of *Sheppard v. Maxwell*, 384 U.S. 333.... Absent a showing of prejudice of constitutional dimensions to these defendants, there is no reason for this Court either to endorse or to invalidate Florida’s experiment.

Id. at 582.

Chandler is important to the present case for four reasons.

First, it establishes that to pass muster under the federal constitution, a local rule permitting electronic media coverage over the defendant's objection must contain certain procedural safeguards, including the right to an evidentiary hearing and a standard guiding the decision that provides a trial court with "discretionary power to forbid coverage whenever satisfied that coverage may have a deleterious effect *on the paramount right of the defendant to a fair trial.*" *Id.* at 566 (emphasis added).

Second, it establishes that independent of any state rule, a defendant has a due process right to an evidentiary hearing to demonstrate that "the media's coverage of his case—printed or broadcast—compromised the ability of the jury to judge him fairly. Alternatively, a defendant might show that broadcast coverage of his particular case had an adverse impact on the trial participants sufficient to constitute a denial of due process. Neither showing was made in this case." *Id.* at 581.

Third, *Chandler* expressly recognized in 1981 that "further experimentation [was] necessary to evaluate the potential psychological prejudice associated with broadcast coverage of trials", and that "[f]urther developments and more data are required before this issue can be finally resolved." *Id.* at 579, n. 12. As Exhibit 2, the Declaration of Dr. Christine L. Ruva, PH.D, demonstrates, the requested studies have now been done by her and other researchers. Under *Chandler*, Mr. Robinson is entitled to present the results of those studies and other evidence through the testimony of Dr. Ruva and by other means.

Lastly, *Chandler* establishes that the consensus reached by five members of the Court in *Estes* that electronic media coverage is unconstitutional per se in notorious cases is still good

law. By any definition, the present case is a “notorious case” within the meaning of *Estes* and therefore electronic media coverage is banned under the federal constitution.

This last conclusion is supported by the most recent case in which the Supreme Court has considered the issue of cameras in the courtroom. *See Hollingsworth v. Perry*, 558 U.S. 183 (2010) (per curiam). In that case, the Court granted a stay of an order of the United States District Court for the Northern District of California permitting audio and video broadcast of a bench trial to a number of federal courthouses around the country. *Id.* at 184. The order had been made pursuant to a hastily adopted local rule that enacted without sufficient opportunity for notice and comment. *Id.* at 184-85. The Court agreed that the local rule was invalid for this reason. *Id.* at 199. The importance of *Hollingsworth* for the present case lies in the reasons the Court articulated for why public comment on the rule was important, and the court’s discussion of cameras in the courtroom.

According to *Hollingsworth*, “[t]he question whether courtroom proceedings should be broadcast has prompted considerable national debate. Reasonable minds differ on the proper resolution of that debate and on the restrictions, circumstances, and procedures under which such broadcasts should occur. We do not here express any views on the propriety of broadcasting court proceedings generally.” *Id.* at 189. Despite this general comment, the Court went on to observe that:

The need for a meaningful comment period was particularly acute in this case. Both courts and legislatures have proceeded with appropriate caution in addressing this question. In 1996, the Judicial Conference of the United States adopted a policy opposing the public broadcast of court proceedings. This policy was adopted after a multiyear study of the issue by the Federal Judicial Center which drew on data from six district and two appellate courts, as well as state-court data. In light of the study’s findings, the Judicial Conference concluded that “the intimidating effect of cameras on some witnesses and jurors [is] cause for concern.” ...

In more than a decade since its adoption the Judicial Conference has continued to adhere to its position on the broadcast of court proceedings. While the policy conclusions of the Judicial Conference may not be binding on the lower courts, they are “at the very least entitled to respectful consideration.” ...Before abandoning its own policy—one consistent with the Judicial Conference’s longstanding views—it was incumbent on the District Court to adopt a proposed rule only after notice and an adequate period for public comment.

Id. at 193-94 (internal citations omitted). The Court ultimately concluded:

Applicants also have shown that irreparable harm will likely result from the denial of the stay. Without a stay, the District Court will broadcast the trial. It would be difficult—if not impossible—to reverse the harm from those broadcasts. The trial will involve various witnesses, including members of same-sex couples; academics, who apparently will discuss gender issues and gender equality, as well as family structures; and those who participated in the campaign leading to the adoption of Proposition 8. *This Court has recognized that witness testimony may be chilled if broadcast. See Estes v. Texas, 381 U.S. 532, 547, 85 S.Ct. 1628, 14 L.Ed.2d 543 (1965); id., at 591, 85 S.Ct. 1628 (Harlan, J., concurring).* Some of applicants’ witnesses have already said that they will not testify if the trial is broadcast, and they have substantiated their concerns by citing incidents of past harassment. ...These concerns are not diminished by the fact that some of applicants’ witnesses are compensated expert witnesses. There are qualitative differences between making public appearances regarding an issue and having one’s testimony broadcast throughout the country. Applicants may not be able to obtain adequate relief through an appeal. The trial will have already been broadcast. It is difficult to demonstrate or analyze whether a witness would have testified differently if his or her testimony had not been broadcast. And witnesses subject to harassment as a result of broadcast of their testimony might be less likely to cooperate in any future proceedings.

Id. at 195-96 (emphasis added) (additional internal citation omitted).

The Court concluded that a central flaw in the local rule was that “[t]he District Court here attempted to revise its rules in haste, contrary to federal statutes and the policy of the Judicial Conference of the United States. *It did so to allow broadcasting of this high-profile trial without any considered standards or guidelines in place.*” *Id.* at 196 (emphasis added).

The fact that the trial was of a high-profile case was of significance because “If Local Rule 77-3 had been validly revised, questions would still remain about the District Court’s

decision to allow broadcasting of this particular trial, in which several of the witnesses have stated concerns for their own security. Even districts that allow trials to be broadcast . . . recognize that a district judge’s discretion to broadcast a trial is limited, ...*Id.* at 198 (internal citations omitted) (citing *Hamilton v. Accu-Tek*, 942 F. Supp. 136, 138 (E.D.N.Y.1996) (broadcast forbidden unless “there is no interference with the due process, the dignity of litigants, jurors and witnesses, or with other appropriate aspects of the administration of justice”)). The Court noted distinguishing factors for allowing broadcast of proceedings: “*the basis that those cases were not high profile,*” *id.* (citing *E*Trade Financial Corp. v. Deutsche Bank AG*, 582 F. Supp. 2d 528, 535 (S.D.N.Y. 2008)); “*or did not involve witnesses*”, *id.* (citing *Marisol A. v. Giuliani*, 929 F. Supp. 660, 661 (S.D.N.Y. 1996); *Katzman v. Victoria’s Secret Catalogue*, 923 F. Supp. 580, 586-87 (S.D.N.Y. 1996)).

The Court highlighted one court that “did not allow the broadcasting of its proceedings because the case ‘involv[ed] very sensitive issues.’” *Id.* (citing *Schoeps v. Museum of Modern Art*, 599 F. Supp. 2d 532, 534 (S.D.N.Y. 2009)). The Court found that like *Schoeps*, the matter “involve[d] issues subject to intense debate in our society” and that “[t]he District Court intends not only to broadcast the attorneys’ arguments but also witness testimony.” *Id.* And thus, the case was “not a good one for a pilot program. Even the studies that have been conducted thus far have not analyzed the effect of *broadcasting in high-profile, divisive cases.*” *Id.* (emphasis added).

Hollingsworth establishes that at least five members of the present Court believe that Justice Harlan’s concurring opinion in *Estes* is speaking for “the Court”, and that these same five members share the view of the *Estes* majority that televising of a notorious case is improper. In any event, however one reads *Hollingsworth*, the constitutional rule established by five members of the Court in *Estes* is that the televising of a notorious case is unconstitutional. Again, because

of its nature and the extent of prejudicial pretrial publicity in this case, it must be categorized as a notorious case within the meaning of *Estes*, and *Estes* must be followed. *See Bosse*, 580 U.S. at 3 (“[I]t is this Court’s prerogative alone to overrule one of its precedents.....Our decisions remain binding precedent until we see fit to reconsider them, regardless of whether subsequent cases have raised doubts about their continuing vitality.”(internal quotation and citations omitted) (Thomas, J., concurring)).

3. Lower Court Decisions Also Support the Constitutional Necessity of Protecting Mr. Robinson’s Due Process Rights by Prohibiting Further Electronic Media Live Streaming OR Photographing

The only comparable recent cases in America where a President and his supporters have been so directly involved in attempting to influence a criminal prosecution or in being the source of negative pretrial publicity are the *Trump* case discussed above, the Timothy McVeigh and Terry Nichols cases in Oklahoma, and the 9/11 trial of Zacarias Moussaoui in Virginia. All four of these cases strongly support granting the present motion on constitutional grounds.

Initially, in *United States v. McVeigh*, where, as here, “national media coverage of the [tragedy] was extremely comprehensive”, “[t]he immediate reactions of the President, the Attorney General, and an FBI spokesman were broadcast across the nation”, “[t]here were extensive interviews with injured victims, members of the families of the dead ...and residents of Oklahoma City”, and “[t]he Governor of the State of Oklahoma was a continual presence in the media coverage”, Judge Matsch considered whether to grant a change of venue under the standard set forth in Federal Rule of Criminal Procedure Rule 21(a), which is even higher than that set forth in *Sheppard* and *James*.²⁶ 918 F. Supp. 1467, 1470-71 (W.D. Okla. 1996). He

²⁶ Fed. R. Crim. P. 21(a) provides:

The court upon motion of the defendant shall transfer the proceeding as to that defendant to another district whether or not such district is specified in the

concluded based on the review of the publicity summarized above that there is “so great a prejudice against these two defendants in the State of Oklahoma that they cannot obtain a fair and impartial trial at any place fixed by law for holding court in that state. The court also finds and concludes that an appropriate alternative venue is in the District of Colorado.” *Id.* at 1474. Of course, such an inter-state transfer is not an option in Mr. Robinson’s case and as discussed below other traditional options are also unavailable, leaving the termination of electronic media coverage the one thing the Court can do to lessen the flow of electronic media coverage.

Notably, the court in *McVeigh* did not abandon its duty under *Sheppard* to take strong remedial measures under some misguided notion that the existing prejudicial publicity was already so pervasive and widespread that it was futile to take any remedial action. *See Sheppard*, 384 U.S. at 363. Nor did the court simply adopt the preferences of the numerous victims’ families. Instead, the court indicated that although he was “acutely aware of the wishes of the victims of the Oklahoma City explosion to attend this trial and that it will be a hardship for those victims to travel to Denver”, he was obligated to rule upon a proper weighing of constitutional interests that “[t]he interests of the victims in being able to attend this trial in Oklahoma are outweighed by the court’s obligation to assure that the trial be conducted with fundamental fairness and with due regard for all constitutional requirements.” *McVeigh*, 918 F. Supp. at 1474-75.

Subsequently, Judge Matsch prevented electronic coverage of the trial because he was required to do so under the strict ban on electronic coverage imposed by Federal Rule of

defendant’s motion if the court is satisfied that there exists in the district where the prosecution is pending so great a prejudice against the defendant that the defendant cannot obtain a fair and impartial trial at any place fixed by law for holding court in that district.

Criminal Procedure 53.²⁷ See *United States v. McVeigh*, 931 F. Supp. 753, 754 (D. Colo. 1996).

In the midst of continued pervasive publicity after the case was transferred to Colorado, he continued to discharge his duty under *Sheppard*, imposing on the attorneys “a blanket bar on out of court comments because no lesser restriction would adequately protect against a substantial likelihood of prejudicing the proceedings”, and finding that “[t]he compelling interest is the protection of jurors from being influenced by any such statements which may break through the barriers constructed by them under the court’s instructions.” *United States v. McVeigh*, 964 F. Supp. 313, 316 (D. Colo. 1997). As indicated below, a variation of that remedy has been used in this case and has had no effect on the excesses of the electronic media.

Following the conviction of both McVeigh and Nichols in federal court, and the imposition of a death verdict on McVeigh but not on Nichols, the State of Oklahoma filed a capital prosecution against Nichols. See *Nichols v. Dist. Ct. of Oklahoma Cnty*, 2000 OK 12, ¶ 2, 6 P.3d 506. Numerous media organizations filed a motion asking the trial judge to permit them to televise the preliminary hearing, trial, and other proceedings in this case. Both the State and the defense objected to the media’s motion. *Id.*

On May 8, 2000, the trial judge issued an order granting the Media the right to broadcast any and all court proceedings in this matter. *Id.* The trial judge acknowledged that Canon

²⁷ Fed. R. Crim. P. 53 provides:

Except as otherwise provided by a statute or these rules, the court must not permit the taking of photographs in the courtroom during judicial proceedings or the broadcasting of judicial proceedings from the courtroom.

As explained in *United States v. Al-Marimi*, 761 F. Supp. 3d 16, 23 (D.D.C. 2024), “the only legal challenges to Rule 53 have been filed by criminal defendants or media organizations. In each of those cases, courts concluded that Rule 53’s ban on broadcasting is both constitutional and justified given the serious risks broadcasting poses to both the defendant’s and government’s right to a fair trial.”

3(B)(9)(e)(2) of the Code of Judicial Conduct explicitly prohibited broadcast over the objection of the defendant. *Id.* However, he determined the Canon violated the State and Federal Constitutions and therefore need not control his decision. *Id.* He found the trial judge or presiding judge has final authority to order, manage and control the courtroom and that camera coverage would not adversely affect Petitioner’s right to a fair trial. *Id.* He made this finding despite the overwhelming prejudicial publicity concerning Nichols, including that he had been convicted and sentenced in federal court.

Ruling on a pre-preliminary hearing for a writ of mandamus to overturn the ruling, the Court of Criminal Appeals of Oklahoma overturned the trial court’s order on constitutional grounds. *Id.* ¶ 10. The Court placed primary reliance on the *Estes* decision:

In *Estes*, the U.S. Supreme Court found the use of television, however, “cannot be said to contribute materially to [the] objective of a fair trial.” [381 U.S. at 544]. “Rather its use amounts to the injection of an irrelevant factor into court proceedings. In addition experience teaches that there are numerous situations in which it might cause actual unfairness—some so subtle as to defy detection by the accused or control by the judge.” [*Id.* at 544-45]. The potential impact of television on the jurors, the possibility the quality of the testimony in criminal trials may be impaired, the additional responsibilities the presence of television places on the trial judge, and the impact of courtroom television on the defendant were among the concerns mentioned by the Court. [*Id.* at 545-549].

The requirement of a public trial is satisfied by the opportunity of members of the public and the press to attend the trial and to report what they have observed. [*Nixon, Inc.*, 435 U.S. at 610]. No constitutional provision guarantees a right to televise trials. First Amendment rights of the press are subject to reasonable time, place, and manner restrictions. [*Hastings*, 695 F.2d at 1282. The federal courts prohibit televising of trials by specific rule. See Rule 53, Federal Rules of Criminal Procedure.

Television is a powerful medium. At its best, it educates and informs. At its worst, it has the potential for “distorting the integrity of the judicial process bearing on the determination of the guilt or innocence of the accused, and, more particularly, for casting doubt on the reliability of the fact-finding process carried on under such conditions.” *Estes*, 381 U.S. at 592[] (Harlan J., concurrence). Petitioner’s fundamental right to a fair trial assured by the Due

Process Clause of the Fourteenth Amendment takes precedence over the interest of the press in televising the proceedings in this case.

Id. ¶¶ 6-8.

After finding that allowing electronic coverage would also violate the state constitution, the court concluded that “[i]n order to ensure the solemnity of the judicial proceedings, to minimize the potential tainting of a possible future jury pool, to curtail outside interference with these criminal proceedings, and to ensure the reliability of the result ultimately determined in this case”, the application for a writ was granted and the trial court’s order was vacated. *Id.* ¶ 10. As in *McVeigh*, the court found no significance in the fact that by the time the court issued its ruling, Nichols’s case had already been exposed to massive nationwide publicity.

Similarly, in *United States v. Moussaoui*, Court TV filed a motion to record and telecast the pretrial and trial proceedings. 205 F.R.D. 183, 184 (E.D. Va. 2002). Stressing the “extraordinary national and international public interest in this prosecution, which involves allegations that the defendant was a member of the al Qaeda conspiracy to blow up the World Trade Center in Manhattan and government buildings in the Washington, D.C. area”, COURT TV asked the court to “ignore or declare unconstitutional the well-established ban on photographing and broadcasting federal criminal pretrial and trial proceedings.” *Id.* The United States vigorously opposed the constitutional challenge to the ban and raised “compelling objections to the photographing and broadcasting of these proceedings in any format.” *Id.* Defendant opposed any broadcast of pretrial proceedings out of concern that it might taint the potential jury pool, and he opposed any televised replay of the trial if the jury was not sequestered; if the jury was sequestered, he supported Court TV’s motion. *Id.*

The court’s ruling was three-fold. First, the court ruled that it had no discretion to disregard the present ban on the photographing and broadcasting of federal criminal proceedings.

Id. Second, the court found that the ban did not violate the constitutional rights of either the public or the broadcast media. *Id.* Third, the court ruled that “even if the mandatory ban were declared unconstitutional, given the issues raised in the indictment, any societal benefits from photographing and broadcasting these proceedings [were] heavily outweighed by the significant dangers worldwide broadcasting of this trial would pose to the orderly and secure administration of justice.” *Id.* at 184. The court’s decision on the first two issues was in line with all of the court of appeal rulings on those issues cited above in footnote 17. The court’s ruling on the third issue addressed many arguments that are likely to be raised by the media in this case.

The court began its analysis as follows:

Even if Rule 53 and Local Rule 83.3 were found unconstitutional, this Court would deny the intervenors’ motion. The right of access is not absolute. See [*Globe Newspaper*, 457 U.S. at 606]; *Westmoreland*, 752 F.2d at 19. It may be tempered by a defendant’s right to a fair trial, see [*Press-Enterprise*, 478 U.S. at 14-15], the need to preserve the secrecy of Grand Jury proceedings, see [*Branzburg v. Hayes*, 408 U.S. 665, 684 (1972)], or concerns about witness security, see [*Globe Newspaper*, 457 U.S. at 608-09]. Limitations on access may be necessary to “preserve higher values.” [*Press-Enterprise Co.*, 478 U.S. at 9].

Significant concerns about the security of trial participants and the integrity of the fact- finding process justify a ban on photographing and broadcasting this trial. In particular, we find that audio or visual broadcasting of any portion of these proceedings is likely to intimidate witnesses and jurors, as well as threaten the security of the courtroom and all those involved in this trial.

Id. at 186.

The court next addressed several arguments raised by Court TV. First,

Intervenors contend that televising this trial will enhance its truth seeking aspects. They argue that allowing the public to participate through the lens of the television camera will serve as a check on the judicial process. However, “it is impossible to believe that the reliability of a trial as a method of finding facts and determining guilt or innocence increases in relation to the size of the crowd watching it.” [*Estes*, 381 U.S. at 595] (Harlan, J., concurring). The presence of interested spectators, attorneys, jurors and a judge will satisfy the

safeguards of a public trial and ensure the integrity of these proceedings. *See id.*; *see also* [*Globe Newspaper*, 457 U.S. at 606].

Id.

Second, the court considered the following argument:

Intervenors stress that the state of audio-visual technology has reached such a degree of miniaturization and efficiency as to avoid the tangle of wires and obtrusiveness of cameras, microphones and lighting which led the Supreme Court to hold that televising the trial so interfered with the orderly process of justice that it violated the defendant's rights to due process and his Sixth Amendment right to a fair trial. *See* [*Estes*, 381 U.S. at 550-51] We agree with the intervenors that broadcast technology has changed dramatically since 1965 and that many of the specific problems discussed in *Estes* may no longer apply.

Advances in broadcast technology, however, have also created new threats to the integrity of the fact-finding process. The traditional public spectator or media representative who attends a federal criminal trial leaves the courtroom with his or her memory of the proceedings and any notes he or she may have taken. These spectators do not leave with a permanent photograph. However, once a witness' testimony has been televised, the witness' face has not just been publicly observed, it has also become eligible for preservation by VCR or DVD recording, digitizing by the new generation of cameras or permanent placement on Internet web sites and chat rooms. Today, it is not so much the small, discrete cameras or microphones in the courtroom that are likely to intimidate witnesses, rather, it is the witness' knowledge that his or her face or voice may be forever publicly known and available to anyone in the world.

As the United States argues, this intimidation could lead foreign prosecution witnesses, outside the jurisdiction of the Court, to refuse to testify or withhold their full testimony out of reasonable fears for their personal safety. It could similarly lead witnesses favorable to the defense to refrain from coming forward for fear of being ostracized. The permanent preservation of images of law enforcement witnesses could also jeopardize their future careers or personal safety. How could an agent whose face was known throughout the world ever be able to work undercover or interview witnesses on the street effectively?

Knowledge that the proceedings were being broadcast may also intimidate jurors. Excluding cameras and other recording devices from the courtroom will help preserve the anonymity of the jurors who are selected to serve and minimize the potential for a "popular verdict." *See* [*Estes*, 381 U.S. at 592] (Harlan, J., concurring).

The intervenors, obviously sensitive to these concerns, argue that they would agree to mask the faces of all jurors or witnesses who did not wish to be photographed. That response is insufficient for two reasons. First, it creates an additional management issue for the Court in what is an already complex case. As a practical matter, names of trial witnesses in criminal cases are not usually exchanged in advance. Therefore, witness requests not to be photographed would likely have to be addressed just as the witness is called to testify, and directions would have to be given to camera operators not to photograph those witnesses. How much time that colloquy might take and the impact on the witness is hard to determine, but it would certainly add to any nervousness that person might have about testifying and could delay the trial while the camera was being adjusted. Second, mistakes can be made. If a witness' or juror's face were inadvertently televised, the harm cannot be undone. Given that this case involves allegations that members of the al Qaeda conspiracy, a world wide terrorist organization with cells operating within this country, monitor trial proceedings involving its members, any mistake could expose the juror or witness to serious risks to their personal safety.

Even if every witness' face were obscured, the faces of the attorneys, court staff, and security officers would be exposed, subjecting them to the possibility of long-term security problems. In addition, publicly broadcast photographic images of the set-up of the courtroom, the location of the cell block, the number of deputy marshals, where the deputies stand in the courtroom, placement of doors and other courtroom details could jeopardize the security of these proceedings. Intervenors have offered no solutions to these problems.

Id. at 186-87.

This aspect of the court's ruling is especially compelling in this case where there have already been multiple violations of the court's decorum order directing the media to use its "best efforts" to avoid visually recording court security staff, clerks, and judicial assistants, and counsel for the media has expressed the cavalier attitude with respect to even more serious violations that "[t]hey're not perfect; mistakes happen." Dkt. 256, at 9; *see also* Dkt. 265.

Next, the court adopted an argument urged by the United States:

The United States also argues that any retrial of this already highly publicized case would be rendered extremely difficult if the trial proceedings have been broadcast. A potential juror who had watched portions of the first trial could be tainted. If witnesses experienced any recrimination from members of the public for testifying in the first trial, those witnesses may be unwilling or hesitant to testify at a retrial.

Id. at 187.

The *Moussaoui* Court also ruled that another factor justifying denial of the motion was that “world- wide broadcasting of these proceedings, either by television, radio or the Internet, would be an open invitation to any trial participant to engage in showmanship or make a public spectacle for the world to see or hear.” *Id.*

Lastly, the court addressed the intervenor’s argument that the intense national and international interest in the case, coupled with the needs of the victims, justified allowing Court TV to televise the proceedings:

We are very aware of the extensive, legitimate public interest in this case, and understand that many thousands of people in this country and throughout the world, suffered devastating losses on September 11, 2001. It is understandable that they might want to watch this trial. However, contrary to what intervenors have argued, the purpose of this trial is not to provide catharsis to the victims or to educate the world about the American legal system. Instead, the purpose is to determine the innocence or guilt of this defendant for the specific crimes charged in the Indictment. It remains a bedrock principle of our legal system that the courts have the right “to conduct their business in an untrammelled way.” [*Wood v. Georgia*, 370 U.S. 375, 383 (1962)]. To ensure that both this defendant and the United States receive a fair and orderly trial, none of these proceedings should be photographed or broadcast in any form.

We find that all of these concerns provide compelling reasons for prohibiting any photographing or broadcasting of either the pretrial or trial proceedings. Accordingly, the intervenors’ Motion to Record and Telecast will be denied by an Order issued with this Memorandum Opinion.

Id. at 188.

To summarize, under *Sheppard* and its progeny, once it is shown that there is “a reasonable likelihood that prejudicial electronic media coverage prior to trial will prevent a fair trial”, the Federal Constitution imposes a duty on a trial court to take “strong measures” to protect to the fullest extent possible a capital defendant’s Sixth, Eighth, and Fourteenth

Amendment and Utah Constitutional rights to a fair and reliable trial and sentencing hearing by an impartial jury. That standard has clearly been met in this case. Both the Supreme Court's camera-in-the-courtroom cases and lower court decisions support granting the present motion on constitutional grounds as a necessary remedy to fully protect Mr. Robinson's state and federal constitutional rights.

C. The Fact That the State and Its Agents Released Extremely Prejudicial Information and Opinions to the Media in Violation of Applicable Law and Standards Weighs in Favor of Granting This Motion.

1. Introduction

"A very important factor in many of these cases is the fact that the publicity has been engendered by reports given by government agents. It has been suggested that where government agents have been responsible for the dispensing of information, thereby giving such information their imprimatur, a court is more likely to consider [remedial relief]." *United States v. Houlihan*, 926 F. Supp. 14, 16, n. 3 (D. Mass. 1996) (collecting cases); *see also Sheppard*, 384 U.S. at 363 ("The courts must take such steps by rule and regulation that will protect their processes from prejudicial outside interferences. Neither prosecutors, counsel for defense, the accused, witnesses, court staff nor enforcement officers coming under the jurisdiction of the court should be permitted to frustrate its function. Collaboration between counsel and the press as to information affecting the fairness of a criminal trial is not only subject to regulation, but is highly censurable and worthy of disciplinary measures."); *Bauer*, 522 F.2d at 253 (7th Cir. 1975) (special rules regulating release of information by prosecutors and law enforcement officials are justified because "[t]hey have the ability to influence and ensure proper governmental procedure without resort to public opinion" and "they know what charges may be brought and are a prime source of damaging statements."); *U.S. ex rel. Bloeth v. Denno*, 313 F.2d 364, 372 (2d Cir. 1963) (en banc) (reversing a conviction where the defendant was denied his right to an impartial jury

by prejudicial pretrial publicity, and emphasizing the fact that “much of the prejudicial matter, particularly that from the files of a state institution, and in part the attack on the insanity defense, came from the prosecution.”).

As indicated above, law enforcement and prosecutorial agencies have made numerous disclosures to the media of highly prejudicial material, in direct violation of controlling statutes, rules, and ethical guidelines. On September 12, 2025, someone on the joint state and federal law enforcement team released to the media an Affidavit of Probable Cause that was posted unredacted on the internet by media outlets, and a substantial portion of the affidavit was then read to a national audience during Governor Cox’s “We GOT HIM” press conference, all in violation of Utah Code § 63G-2-201(3), Utah Code § 63G-2-302(2)(d), Utah Code § 63G-2-305(10), (11), and (18), and Utah Rule of Professional Conduct 3.6 (“Prof’l Rule 3.6”). On the same date, someone in law enforcement released Mr. Robinson’s mugshot to the media in direct violation of Utah Code § 63G-2-201(3), Utah Code § 63G-2-302(2)(d), and Utah Code § 63G-2-305(10), (11), (18) and (80).²⁸ On September 15, 2025, Attorney General Bondi, FBI Director Patel, and FBI Deputy Director Bongino made statements to the media in blatant violation of 28 C.F.R. § 50.2(b)(6) and Utah Code § 63G-2-201(3). On September 16, 2025, an even more detailed Statement of Probable Cause was read to and then released to the media in its entirety during the County Attorney’s September 16, 2025 press conference, and that reading was

²⁸ On October 24, 2025, the State informed the Court that “it was not the sheriff’s office that released that to the media. That was a different law enforcement agency that did that...In fact, when that was made public, the ...sheriff’s office was very concerned that it had been made public.” Dkt. 268, at 51. Somebody in the Governor’s Office seems to have admitted that it was the Governor who released the mugshot under a shaky rationale. See Daniella Rivera, *Why Gov. Cox’s release of Charlie Kirk murder suspect’s mugshot is unusual in Utah*, KSLTV.COM, (Sep. 16, 2025, 1:37 PM MT), <https://ksltv.com/ksl-investigates/why-gov-coxs-release-of-charlie-kirk-murder-suspects-mugshot-is-unusual-in-utah/819901/>.

accompanied by what was essentially a penalty phase closing argument on victim impact issues, in violation of Utah Code § 63G-2-201(3), Utah Code § 63G-2-302(2)(d), Utah Code § 63G-2-305(10), (11), and (18), and Prof'l Rule 3.6. As is further indicated, the sheriff held his own press conference at which he expressed his opinion about the strength of the evidence against Mr. Robinson, and commented on his demeanor, which also violated the same Utah Code and rule provisions. Finally, the Governor, in three nationally televised broadcasts, expressed his opinion about Mr. Robinson's guilt and character and discussed the forensic evidence in the case, which also violated the same provisions.

As argued below, the documents, photographs, information and opinions disclosed to the media on these occasions were not properly released, and these disclosures, which reached the public primarily through the electronic media, have severely impaired Mr. Robinson's opportunity to be tried by a fair and impartial jury that can reach reliable conclusions based on evidence produced and tested in court. To prevent further eroding of that opportunity, the Court should prohibit any further electronic media live streaming or photography.

The media will no doubt argue that the "bell cannot be unrung" and the fact that the prosecution and law enforcement have already polluted the jury pool argues in favor of allowing the electronic media to continue to do so. But there are at least four compelling answers to this argument. The first two reasons are explored in *U.S. ex rel. Bloeth v. Denno*:

It may be argued that since the trial strategy adopted by [the defense] called for emphasis on the number and brutality of Bloeth's crimes as a basis for the defense of insanity, no harm was done in choosing a jury already familiar with his otherwise inadmissible history. There are at least two insurmountable difficulties with this argument. The publicity, partly sponsored by the prosecution, created opinions of guilt long before trial, far removed from any safeguards against inadmissible matter, and included inadmissible material emanating from the prosecution denigrating the insanity defense and so predisposing the prospective jurors to reject it. A defendant is entitled to be

tried on the evidence and arguments before the jury in open court, under the guidance of a judge.

The opinions formed in this case, moreover, were based not solely on accounts of the crime at issue, but on ... accounts containing expressions of the [opinion] of the District Attorney..., The interest of the public in the knowledge of the apprehension of the [suspect]... exists, but cannot justify the denial of an impartial jury to the one accused.

313 F.2d at 373.²⁹

In addition, the “can’t unring the bell” argument fails to account for the cumulative impact of prejudicial electronic media coverage. As explained in the Declaration of Ruva,

The volume of coverage in notorious cases can be overwhelming. And studies show that the quantity of pre-trial publicity to which jurors are exposed affects their level of bias. Across studies extending back several decades, researchers have demonstrated that individuals exhibit a greater propensity to pre-judge defendants when they are exposed to more publicity—both as a general conclusion (i.e., showing a general propensity to prejudgment based on an increase in the amount of exposure), and in response to specific thresholds (i.e., showing that prospective jurors exposed to at least three newspaper articles about a crime were more likely to believe there was ample evidence against a defendant). This effect has been demonstrated in both naturally occurring and controlled settings, confirming the validity of the proposition.

Ex. 2, ¶ 9 (footnotes omitted).

Lastly, the Supreme Court has expressly ruled in the context of protecting the privacy of criminal justice records that “the fact that an event is not wholly ‘private’ does not mean that an individual has no interest in limiting disclosure or dissemination of the information.” *U.S. Dep’t of Just. v. Reporters Committee for Freedom of Press*, 489 U.S. 749, 770 (1989) (internal quotation omitted). *See also Prison Legal News v. Exec. Off. for U.S. Att’ys*, 628 F.3d 1243, 1249 (10th Cir. 2011) (“That the video and photographs were, at the time of the trials, displayed publicly, may impact the family’s expectation of privacy in those materials but does not negate

²⁹ Unlike in *Denno*, the defense in this case has in no way attempted to try this case in the press.

it.... *Reporters Committee* thus requires an examination whether, as a practical matter, the extent of prior public disclosure has eliminated any expectation in privacy.” (citing *Reporters Committee*, 489 U.S. at 762-63)). Here, although Mr. Robinson’s fair trial and privacy interests have been badly damaged, they have not yet been “eliminated”, an outcome that the present motion is seeking to avoid.

2. The Affidavit of Probable Cause, the Statement of Probable Cause, and the Mugshots Should Never Have Been Released to the Media, and the Governor’s, the District Attorney’s, the Sheriff’s, and the Department of Justice’s Press Conferences and Other Media Appearances All Violated Controlling Statutes, Rules and Regulations.

Numerous statutes, rules, and regulations should have governed the governmental release to the media of prejudicial documents, photographs, information and opinions. These are:

a) Utah Code § 63G-2-302(2)(d) and Utah Code § 63G-2-305(80)

Utah Code § 63G-2-302(2)(d) provides that: “The following records are private if properly classified by a governmental entity:... (d) other records containing data on individuals the disclosure of which constitutes a clearly unwarranted invasion of personal privacy.”

The United States Supreme Court has described an identically worded exemption under the federal Freedom of Information Act (Exemption 7(C)) as reflecting privacy interests in “avoiding disclosure of personal matters,” *Reporters Committee*, 489 U.S. at 762; maintaining “the individual’s control of information concerning his or her person,” *id.* at 763; avoiding “disclosure of records containing personal details about private citizens,” *id.* at 766; and “keeping personal facts away from the public eye” *Id.* at 769.

Embarrassing and humiliating facts—particularly those connecting an individual to criminality—qualify for these descriptors. *See, e.g., id.* at 771 (finding a privacy interest in criminal rap sheets); *Detroit Free Press Inc. v. United States Dep’t of Justice*, 829 F.3d 478, 480

(6th Cir. 2016) (en banc) (holding that individuals enjoy a non-trivial privacy interest in their booking photos, for purposes of determining whether to apply the FOIA exemption for information compiled for law enforcement purposes where the disclosure could constitute an unwarranted invasion of personal privacy); *World Publishing Co. v. U.S. Dep’t of Justice*, 672 F.3d 825, 830-32 (10th Cir. 2012) (same); *Karantalis v. U.S. Dep’t of Justice*, 635 F.3d 497, 499 (11th Cir. 2011) (per curiam) (same); *Rimmer v. Holder*, 700 F.3d 246, 257 (6th Cir. 2012) (the names and identifying information of individuals associated with investigation of a murder); *ACLU v. U.S. Dep’t of Justice*, 655 F.3d 1, 8 (D.C. Cir. 2011) (“there is no real dispute that the scope of Exemption 7(C) can extend even to convictions and public pleas”); *Kiraly v. FBI*, 728 F.2d 273, 277 (6th Cir. 1984) (FBI files identifying individuals suspected of criminal activity but not indicted or tried). *See also Deseret News Publishing Co. v. Salt Lake Cnty.*, 2008 UT 26, ¶ 33 n. 6, 182 P.3d 372 (“Our interpretation of the phrase “clearly unwarranted invasion of privacy” finds support in the United States Supreme Court’s interpretation of identical language contained in the federal Freedom of Information Act.”).

The Utah Supreme Court held in *Deseret News Pub. Co* that under Utah Code § 63G-2-302(2)(d), “most investigative reports ...could qualify for nonpublic status” but not when (1) names have been redacted from the report and there is no evidence to show that if the report is released that anyone will be able to connect the dots and figure out who the people are or (2) the disclosure of names involves only the person who initiated the complaint or public officials. 2008 UT 26, ¶¶ 34-40. The Court also held that “section 63-2-302(2)(d) necessarily demands an expansive and searching evaluation of the interests that might make an invasion of personal privacy warranted.” *Id.* ¶ 33.

In this case, the Affidavit of Probable Cause contained Mr. Robinson's name, date of birth, his parent's home address, and the details about the ongoing investigation. Dkt. 2. As indicated in the statement of facts, the entire unredacted affidavit began appearing on the internet on the morning of September 12, 2025, shortly after the document was created, so it is highly unlikely that before release of the document anyone conducted "an expansive and searching evaluation of the interests that might make an invasion of personal privacy warranted." *Deseret News Publishing Co.*, 2008 UT 26, ¶ 33.

And although the Affidavit used the generic terms "family members" and "roommate", by disclosing Mr. Robinson's name, date of birth, and his parent's home address the actual names of the parents and the roommate were easily discoverable. Indeed, by the early morning of September 12, 2025, the media were at the parent's home and at Mr. Robinson's apartment where they interviewed neighbors, published details about Mr. Robinson's background, and broadcast his mug shot. See CBS NEWS, *FBI searches childhood home of Charlie Kirk killing suspect* (YouTube, Sep. 12, 2025), <https://www.youtube.com/watch?v=2QwkFKBBM6M>; WSJ News, *What We Know About the Charlie Kirk Shooting Suspect Tyler Robinson* (YouTube, Sep. 12, 2025), <https://www.youtube.com/watch?v=W5aIkefBZWc>. On the same date, electronic media outlets were posting Matt and Amber's Robinson's name and their pictures on the internet. See, e.g., ONEINDIA NEWS, *Charlie Kirk LATEST: Tyler Robinson's Father Becomes A National Hero | Shocking Story Behind ARREST* <https://www.youtube.com/watch?v=4usjW8UgYWW>; Jenna Sundel & Joshua Rhett Miller, *Who Is Tyler Robinson's Father? Matt Robinson Helped Turn in Kirk Suspect*, NEWSWEEK (Sep. 12, 2025, at 9:57 AM ET), <https://www.newsweek.com/matt-robinson-father-tyler-charlie-kirk-suspect-2128904>.

By September 13, 2025, the New York Post had identified “Lance Twiggs” as Mr. Robinson’s roommate. See Josh Christenson & Georgia Worrell, *Charlie Kirk’s alleged assassin, Tyler Robinson, lived with transgender partner: source*, NEW YORK POST (Sep. 13, 2025, at 4:23 PM ET), <https://nypost.com/2025/09/13/us-news/charlie-kirk-shooter-tyler-robinson-lived-with-transgender-partner/>. And on the same date, the FBI confirmed to the media that this information was correct. See DALLAS EXPRESS, “*Trans*” Roommate of Tyler James Robinson Identified As Lance Twiggs, Cooperating With FBI (Sep. 12, 2025), <https://dallasexpress.com/national/trans-roommate-of-tyler-james-robinson-identified-as-lance-twiggs-cooperating-with-fbi/>. (“Senior FBI officials told Fox News Digital that Robinson and Twiggs were in a ‘romantic relationship’ and shared an apartment in St. George.”) Shortly thereafter, the media began delving into Luna’s background. See Marni Rose McFall, , *What Lance Twiggs’ Social Media Reveals About Tyler Robinson’s Trans Partner*, Newsweek (Sep. 16, 2025, at 3:11 AM ET), <https://www.newsweek.com/lance-twiggs-tyler-robinson-partner-social-media-2129970>. The present case, therefore, does not fall within either of the two exceptions to application of Utah Code § 63G-2-302(2)(d) that were recognized in *Deseret News Publishing Co.*, 2008 UT 26, ¶¶ 34-40.

The United States Supreme Court has noted that the privacy interest recognized in the federal counterpart to Utah Code § 63G-2-302(2)(d) “must be understood ... in light of the consequences that would follow” from unlimited disclosure. *Nat’l Archives & Records Admin. v. Favish*, 541 U.S. 157, 170 (2004). Here, the predictable harm to [REDACTED] privacy rights caused by the authorities’ release to the media of the Affidavit of Probable Cause (Dkt.2), and later, the more expansive Statement of Probable Cause (Dkt. 1) are briefly

summarized in the attached Exhibit 3 [REDACTED] and Exhibit 4

[REDACTED]

[REDACTED]

Ex. 3.

[REDACTED]

[REDACTED]

[REDACTED]

The predictable harm to Tyler Robinson’s privacy and fair trial rights caused by the authorities’ release to the media of the Affidavit of Probable Cause and the more expansive Statement of Probable Cause is more extensive, as fully documented in the statement of facts. As there indicated, release of these documents, which are based on several layers of hearsay that have never been subject to any adversary testing, led directly to the media repeatedly publishing, dramatizing, and having their “experts” make derogatory and speculative comments about such material, creating in the minds of the jury pool in this case the lasting impression that Mr. Robinson is both guilty and dangerous enough to require execution.

Particularly damaging has been the display of Mr. Robinson’s mug shot in virtually every one of the electronic media stories about this case, which are often juxtaposed against loving images of Mr. Kirk and his family. As was concluded in *Detroit Free Press*, in the course of holding that the disclosure of a mug shot violated to federal counterpart to Utah Code § 63G-2-302(2)(d), “a disclosed booking photo casts a long, damaging shadow over the depicted individual”, and “modern technology only heightens the consequences of disclosure—in today’s society the computer can accumulate and store information that would otherwise have surely been forgotten.” 829 F.3d at 482 (quoting *Reporters Committee*, 489 U.S. at 771). The court elaborated:

Booking photos—snapped “in the vulnerable and embarrassing moments immediately after [an individual is] accused, taken into custody, and deprived of most liberties”—fit squarely within this realm of embarrassing and humiliating information. *Karantsalis*, 635 F.3d at 503. More than just “vivid symbol[s] of criminal *accusation*,” booking photos convey *guilt* to the viewer. *Id.* (emphasis in original). Indeed, viewers so uniformly associate booking photos with guilt and criminality that we strongly disfavor showing such photos to criminal juries. See *United States v. Irorere*, 69 Fed.Appx. 231, 235 (6th Cir. 2003) (“[T]he Sixth Circuit has condemned the practice of showing ‘mug shot’ evidence to a jury ‘as effectively eliminating the presumption of innocence and replacing it with an unmistakable badge of criminality.’ “ [further citation omitted]); see also *United States v. McCoy*, 848 F.2d 743, 745-46 (6th Cir. 1988) (finding the district court erred in overruling an objection to lineup photos, which “suggest that [the defendant] is a ‘bad guy’ who belongs in jail”). This alone establishes a non-trivial privacy interest in booking photos.

Id. at 482.

In light of the predictable damaging consequences that flowed from the release of the Affidavit of Probable Cause, the Statement of Probable Cause, and the mug shots, it should be concluded that a violation of Utah Code § 63G-2-302(2)(d) took place when these materials were released because whatever interest the press or public had in the release of such material, that

interest was far outweighed by the privacy and fair trial interests put at serious risk by the disclosure.

Moreover, with regard to the mugshot images, Utah Code § 63G-2-305(80) specifically provides:

The following records are protected if properly classified by a governmental entity:...

(80) an image taken of an individual during the process of booking the individual into jail, unless:

(a) the individual is convicted of a criminal offense based upon the conduct for which the individual was incarcerated at the time the image was taken;

(b) a law enforcement agency releases or disseminates the image:

(i) after determining that the individual is a fugitive or an imminent threat to an individual or to public safety and releasing or disseminating the image will assist in apprehending the individual or reducing or eliminating the threat; or

(ii) to a potential witness or other individual with direct knowledge of events relevant to a criminal investigation or criminal proceeding for the purpose of identifying or locating an individual in connection with the criminal investigation or criminal proceeding;

(c) a judge orders the release or dissemination of the image based on a finding that the release or dissemination is in furtherance of a legitimate law enforcement interest; or

(d) the image is displayed to a person who is permitted to view the image under Section 17-22-30

Here, Mr. Robinson was already in custody when his mug shots were released and none of the other exceptions apply. Release of the mug shots thus violated both Utah Code § 63G-2-302(2)(d) and Utah Code § 63G-2-305(80).

b) Utah Code § 63G-2-305(10) and Utah Code § 63G-2-201(3)

Utah Code § 63G-2-305(10) provides:

The following records are protected if properly classified by a governmental entity:

...

(10) records created or maintained for civil, criminal, or administrative enforcement purposes or audit purposes, or for discipline, licensing, certification, or registration purposes, if release of the records:

(a) reasonably could be expected to interfere with investigations undertaken for enforcement, discipline, licensing, certification, or registration purposes;

(b) reasonably could be expected to interfere with audits, disciplinary, or enforcement proceedings;

(c) would create a danger of depriving a person of a right to a fair trial or impartial hearing;

(d) reasonably could be expected to disclose the identity of a source who is not generally known outside of government and, in the case of a record compiled in the course of an investigation, disclose information furnished by a source not generally known outside of government if disclosure would compromise the source; or

(e) reasonably could be expected to disclose investigative or audit techniques, procedures, policies, or orders not generally known outside of government if disclosure would interfere with enforcement or audit efforts.

With regard to Utah Code § 63G-2-305(10)(a), the Utah Supreme Court held in *Deseret News Publishing*, that disclosure of a “report of an ongoing investigation ‘reasonably could be expected to interfere with investigations undertaken for enforcement, discipline, licensing, certification, or registration purposes’”. 2008 UT 26, ¶ 18. The Court further held that “the County was required to conduct a conscientious and neutral evaluation of the report’s GRAMA status without regard to existing designations or classifications.” *Id.* ¶ 24.

In this case, as indicated above, the speed with which the disclosures were made after creation of the documents and images suggests strongly that prior to the disclosure, no government official conducted a “a conscientious and neutral evaluation of the report’s GRAMA status without regard to existing designations or classifications.” *Id.* Instead, the September 15,

2025, media appearances by FBI Director Patel and Deputy Director Bongino cited above indicate that material was being released pursuant to their blanket policy that it was in the “public interest” to do so, without any regard for weighing the constitutional and statutory interests of Mr. Robinson, his family, or Luna. That is exactly what *Deseret News Publishing* prohibits. And unlike in *Deseret News Publishing*, where the investigation was not ongoing when the disclosures were made, here it clearly was. See, e.g., Kash Patel, *Director Patel’s Remarks at the September 12, 2025, Press Conference on the Utah Valley University Shooting*, FBI, <https://www.fbi.gov/news/speeches-and-testimony/director-patel-remarks-september-12-press-conference-utah-valley-university-shooting> (“This is very much an ongoing investigation, as the governor said, and we will continue to work with state and local authorities to develop the investigation, to provide them the evidence they need for their ongoing prosecutions. And we will be here to answer every call they absolutely have as long as it takes, for as long as we need to find and apprehend whatever suspects were involved in this crime.”).

Finally, this is not a case like *Deseret News Publishing* where competing interests fought to a draw, requiring that the documents be disclosed. See *Deseret News Publishing*, 2008 UT 26, ¶ 24 (GRAMA “mandate that when competing interests fight to a draw, disclosure wins.”). Instead, it is one involving the constitutional and statutory right to privacy of Mr. Robinson, his parents, and Luna, and Mr. Robinson’s fundamental constitutional right to a fair, impartial, and reliable guilt and penalty trial. For reasons discussed in the Introduction, Mr. Robinson’s fundamental constitutional right to a fair and impartial trial, in combination with the privacy rights and interests at stake, must prevail over any competing interest. The disclosures in this case therefore violated Utah Code § 63G-2-305(10)(a).

It must also be stressed that the disclosures also violated Utah Code § 63G-2-305(10)(c) and (10)(d). Although no Utah appellate court has construed these provisions, it is clear that the disclosure of Mr. Robinson’s name and birthdate, of his parent’s address, and of detailed accounts of statements made to law enforcement by the parents and by Luna, “reasonably could be expected to disclose the identity of a source who is not generally known outside of government and, in the case of a record compiled in the course of an investigation, disclose information furnished by a source not generally known outside of government if disclosure would compromise the source.” *Id.* Indeed, the media had discovered the identities of these sources shortly after the disclosures of the Affidavit of Probable Cause on September 12, 2025.

Lastly, and most importantly, Utah Code § 63G-2-305(10)(c), which creates a broad category requiring non-disclosure of any record if its release “would create a danger of depriving a person of a right to a fair trial or impartial hearing” seems to contemplate that the Court will utilize the categories of information set forth in Comment 5 to Prof’l Rule 3.6 to determine what information in a record would create such a danger. *See supra*, n. 4.

This interpretation is bolstered by Utah Code § 63G-2-201(3), which specifically references “court rule(s)” and “federal regulation[s]”, stating:

The following records are not public:

- (a) a record that is private, controlled, or protected under Sections 63G-2-302, 63G-2-303, 63G-2-304, and 63G-2-305; and
- (b) a record to which access is restricted pursuant to court rule, another state statute, federal statute, or federal regulation, including records for which access is governed or restricted as a condition of participation in a state or federal program or for receiving state or federal funds.

This provision incorporates into the structure of Utah Code § 63G-2-201(3) rules like Prof’l Rule 3.6 and federal regulations like 28 C.F.R. § 50.2 that if a record is protected under

either Prof'l Rule 3.6 or 28 C.F.R. § 50.2, it becomes a non-public record by virtue of Utah Code § 63G-2-201(3). Thus, both Prof'l Rule 3.6 and 28 C.F.R. § 50.2 must be taken into account in conducting a comprehensive GRAMA analysis.

As just one example, Prof'l Rule 3.6 (b)(2) permits a lawyer to state "information contained in a public record", however, 28 C.F.R. § 50.2(b)(3) contains no such exception. This means that a federal official who attends a press conference in Utah and reads the contents of an affidavit of probable cause to the media which covers subjects covered in Comment 5 of Prof'l Rule 3.6 may, for the reasons stated below, be violating Prof'l Rule 3.6, but he will most certainly be violating 28 C.F.R. § 50.2(b)(6) and therefore will also be violating Utah Code § 63G-2-201(3).

As discussed above in footnote four and further below, Comment 5 to Prof'l Rule 3.6 specifies certain categories of information that if released are deemed to be "more likely than not to have a material prejudicial effect on a proceeding." Comment 5 has been interpreted as an essential part of Prof'l Rule 3.6. *See Leavitt*, 2025 UT 46, ¶ 31 (concluding under Prof'l Rule 3.6 that there was substantial evidence in the record that the former Utah District Attorney knew or reasonably should have known that his statements had a substantial likelihood of materially prejudicing the proceedings because "[t]hese ...statements are of the type specifically identified in comment 5 to Prof'l Rule 3.6 as 'more likely than not to have a material prejudicial effect on a proceeding.'"). In light of *Leavitt*, it makes sense for the Court to take into account the categories of information set forth in Comment 5 in determining whether release of the Affidavit of Probable Cause, the Statement of Probable Cause, and the mugshots created "a danger of depriving a person of a right to a fair trial or impartial hearing." *See* Utah Code § 63G-2-305(10).

At the same time, the Court should recognize that Utah Code § 63G-2-305(10)(c) is more protective of a criminal defendant's right to a fair trial than is Prof'l Rule 3.6. For instance, Prof'l Rule 3.6(a) states:

A lawyer who is participating or has participated in the investigation or litigation of a matter shall not make an extrajudicial statement that the lawyer knows or reasonably should know will be disseminated by means of public communication and will have a substantial likelihood of materially prejudicing an adjudicative proceeding in the matter.

Utah Code § 63G-2-305(10)(c) creates a more protective standard by providing that release of a record is prohibited even if the release would only "create a danger of depriving a person of a right to a fair trial or impartial hearing."

Similarly, Prof'l Rule 3.6 (b) provides in part that "[n]otwithstanding paragraph (a), a lawyer may state: (1) the claim, offense or defense involved and, except when prohibited by law, the identity of the persons involved; (2) information contained in a public record[.]" However, Utah Code § 63G-2-305(10)(c) contains no such exceptions.

In this case, the release of the Affidavit of Probable Cause, the Statement of Probable Cause, and the mugshots clearly created "a danger of depriving a person of a right to a fair trial or impartial hearing." Both the Affidavit and the Statement contained information that allowed the media to readily determine "the identity of a witness" (Prof'l Rule 3.6, Comment 5(i)), and both contained commentary on: "the character...of a...suspect" (*id.* 5(i)); "the expected testimony of a witness" (*id.*); "the existence [and] contents of any confession, admission or statement given by a...suspect" (*id.* 5(ii)); the "performance (and) results of any examination or test" and "the identity [and] nature of physical evidence expected to be presented" (*id.* 5(iii)); "opinion[s] as to the guilt...of a ...suspect" (*id.* 5(iv)); and "information that the lawyer

knows or reasonably should know is likely to be inadmissible as evidence in a trial, and that would, if disclosed, create a substantial risk of prejudicing an impartial trial.” (*id.* 5(v)).

In regard to the release of the mugshots, there is no doubt that the release of these images “create[d] a danger of depriving a person of a right to a fair trial or impartial hearing” (Utah Code § 63G-2-305(10)(c)), because these images have long been recognized by courts as inherently prejudicial and thus any prosecutor knew or should have known that their release to and widespread dissemination by the media would have “a substantial likelihood of materially prejudicing an adjudicative proceeding in the matter.” Prof’l Rule 3.6 (a). and would be “information that the lawyer knows or reasonably should know is likely to be inadmissible as evidence in a trial, and that would, if disclosed, create a substantial risk of prejudicing an impartial trial.” Comment 5(v).

The cases on this point are numerous and in agreement. *See, e.g., Eberhardt v. Bordenkircher*, 605 F.2d 275, 280 (6th Cir. 1979) (reversing a state court conviction on Sixth and Fourteenth Amendment grounds, in part because the admission into evidence of mugshots was a “clea[r] erro[r] which touch[es] on fundamental rights and affect the overall fairness of the trial Eberhardt received.... The use of mug shots has been strongly condemned in federal trials, as effectively eliminating the presumption of innocence and replacing it with an unmistakable badge of criminality.”(collecting cases)). *See also World Publishing*, 672 F.3d at 828-29 (“A booking photograph is a vivid symbol of criminal accusation, which, when released to the public, intimates, and is often equated with, guilt. Further, a booking photograph captures the subject in the vulnerable and embarrassing moments immediately after being accused, taken into custody, and deprived of most liberties.” (quotation omitted)); *United States v. Romero-Royo*, 67 F. App’x 570, 572 (10th Cir. 2003) (unpublished) (holding that the admission of a booking photo at trial

can be unduly prejudicial under Fed. R. Evid. 404(b) because “mugshots carry a clear implication of criminal activity that breaches the rule against admitting evidence of the defendant’s bad character or previous brushes with the law.”).

In sum, release of the Affidavit of Probable Cause, the Statement of Probable Cause, and the mugshots was prohibited by Utah Code § 63G-2-305(10) and § 63G-2-201(3).

c) Utah Code § 63G-2-305(11)

Utah Code § 63G-2-305(11) provides, “The following records are protected if properly classified by a governmental entity ... (11) records the disclosure of which would jeopardize the life or safety of an individual.”

There is no caselaw on this provision. However, in the unique context of this case, the release of the Affidavit of Probable Cause, the Statement of Probable Cause, and the mugshots jeopardized the life or safety of Mr. Robinson, his parents, and Luna.

To reiterate the clear and present danger of violence which has existed since the inception of this case, on September 10, 2025, President Trump appeared on national television and announced that “[R]adical left political violence has hurt too many innocent people and taken too many lives” and that “the monster who attacked [Kirk] was attacking our whole country.” *See supra*, FOX NEWS, *BREAKING: Trump releases Oval Office statement*.

The next day, in a statement to reporters at the White House, Mr. Trump was asked what his message was to “conservative influencers, podcasters, TV hosts that ... might be targeted by some of these radical groups” and he answered, “[w]e have radical left lunatics out there, and we just have to beat the hell out of them.” *See supra*, Donald J. Trump (2nd Term), *Remarks*. This call-to-arms was widely reported in the media. *See supra*, D. Sanger. .As indicated below, from that point forward, things went downhill even further and the political and violent rhetoric dramatically escalated.

It is demonstrated above that the release of the Affidavit of Probable Cause and the mug shot on September 12, 2025 allowed the electronic media to quickly identify Mr. Robinson, his parents, and Luna and to use the hearsay statements in the affidavit to create a narrative strongly implicating Mr. Robinson. The release of the Statement of Probable Cause on September 16, 2025, for no apparent reason other than advocacy since the magistrate had already found “substantial evidence” to support the charges (Ex. 1), added further fuel to the fire of incrimination that the electronic media had already set ablaze. The predictable result was even more violent rhetoric from the President and his supporters. And as we know from the extensive record built in *United States v. Trump*, “[t]he [r]ecord ... shows that former President Trump’s words have real-world consequences. Many of those on the receiving end of his attacks ... have been subjected to a torrent of threats and intimidation from his supporters.” 88 F.4th at 1011; *see also supra* at pp. 62-66 (full summary of the record in *Trump*).

In the volatile circumstances of the present case, the Affidavit of Probable Cause, the Statement of Probable Cause, and the mugshots should have been withheld from the media under Utah Code § 63G-2-305(11).

d) Utah Code § 63G-2-305(18)

Utah Code § 63G-2-305(18) provides, “The following records are protected if properly classified by a governmental entity...(18) records prepared for or by an attorney, consultant, surety, indemnitor, insurer, employee, or agent of a governmental entity for, or in anticipation of, litigation or a judicial, quasi-judicial, or administrative proceeding.”

Only one Utah case has considered this provision, *Utah Legal Clinic v. Salt Lake City Corp.*, 2019 UT App 58, 440 P.3d 948. Challenging the denial of disclosure of records related to the criminal prosecution of one of ULC’s clients, the Utah Court of Appeals ultimately held that the public interest advanced by a legal clinic was weak, and that the city’s interest in

nondisclosure of city prosecutor records outweighed any public interest in access to the records.. *Id.* ¶¶ 21-22. The court also clarified that “when government records are properly classified into a category of record that is designated by statute as “protected,” the records ‘may be ordered to be disclosed ... only if the person or party seeking disclosure of the record has established, by a preponderance of the evidence, that the public interest favoring access is equal to or greater than the interest favoring restriction of access[.]’” *Id.* ¶ 15 (quoting § 63G-2-305(17)-(18) and Utah Code § 63G-2-406(1)) The court did not elaborate on the meaning of Utah Code § 63G-2-305(18), but its citation to Utah Code § 63G-2-305(17), which protects from disclosure “records that are subject to the attorney client privilege” is helpful in clarifying that Utah Code § 63G-2-305(18) is not aimed at attorney work-product.

On its face, Utah Code § 63G-2-305(18) is broad enough to shield from disclosure the Affidavit of Probable Cause, the Statement of Probable Cause, and the mugshots.

e) Utah Rule of Professional Conduct 3.6

Prof’l Rule 3.6(a) states the basic prohibition on the release of information by lawyers relating to criminal and civil proceedings. That provision provides:

(a) A lawyer who is participating or has participated in the investigation or litigation of a matter shall not make an extrajudicial statement that the lawyer knows or reasonably should know will be disseminated by means of public communication and will have a substantial likelihood of materially prejudicing an adjudicative proceeding in the matter.

As indicated above, Comment 5 to Prof’l Rule 3.6 lists certain subjects that are “more likely than not to have a material prejudicial effect on a proceeding, particularly when they refer to a ...a criminal matter or any other proceeding that could result in incarceration.” The listed subjects relevant to an analysis of the Affidavit of Probable Cause and the Statement of Probable Cause are set forth above. Those are the same subjects that are relevant to the analysis of the statements made by the Governor and the County Attorney with one exception. During his three

nationally televised media appearances on September 14, 2025, the Governor asserted that Mr. Robinson was not cooperating with law enforcement. Comment 5(ii) prohibits comment on “the existence or contents of any confession, admission or statement given by a defendant or suspect *or that person’s refusal or failure to make a statement.*” The Governor’s statements about Mr. Robinson’s alleged lack of cooperation with law enforcement (he did in fact turn himself in) clearly violated this prohibition because the Governor is a lawyer who in all of his media appearances has represented himself as a member of the investigative and prosecutorial team.

Similarly, the Utah County Sheriff, acting as an agent of the prosecution, held his own press conference on September 16, 2025 at which he expressed his opinion about the strength of the evidence against Mr. Robinson, and commented on his demeanor, which also violated Prof’l Rule 3.6 (a) and Comment 5.

One of the remaining issues to be addressed is whether the statements made by the County Attorney at his press conference on September 16, 2025, and the other statements made by the Governor in his “WE GOT HIM” press conference on September 12, 2025 and in his later media appearances also violated Prof’l Rule 3.6(a) and Comment 5.

It will be recalled that during his “WE GOT HIM” press conference, the Governor read verbatim most of the content of the Affidavit of Probable Cause. Similarly, at his September 16, 2025 press conference the County Attorney read verbatim the entirety of the Statement of Probable Cause attached to the Information, although he also went off-script to deliver what was essentially a penalty phase closing argument on the subject of victim impact. Similarly, in his three November 14, 2025 national media appearances, the Governor went off-script in the sense that he did not appear to be reading from either the Affidavit of Probable cause or the Statement

of Probable Cause, and he discussed several topics that were nowhere mentioned in the Affidavit or the Statement, such as:

- “WE GOT HIM”
- “We have additional forensic evidence that has been processed. We’ll be sharing that when charges are filed on Tuesday. So everything we know confirms that this is the person.”
- “the suspect has not been cooperating so far.”
- “We’re getting all this information from family members, again people around the suspect, and then forensic evidence that we have which confirms everything and more than what we were able to share in that initial press conference.”
- That there had been a “radicalization that happened in a very short period of time”
- “Clearly there was a lot of gaming going on. Friends that have confirmed that there was kind of that deep dark internet, the Reddick culture and these other dark places of the internet where this person was going deep. You saw that on the casings
- “there clearly was a leftist ideology with this assassin”
- he was “deeply indoctrinated with leftist ideology”
- “all we can confirm is that those conversations definitely were happening, and they did not believe it was actually him. It was all joking until he admitted that it actually was him.”
- “we’re collecting much more, including forensic evidence.”
- “This is a direct assault on America, a direct assault against every single one of us.”

See supra, Stelloh, et al., Suspect in Charlie Kirk’s killing.

Prof’l Rule 3.6 (b) provides in part: “[n]otwithstanding paragraph (a), a lawyer may state: ... (2) information contained in a public record[.]” Unfortunately, there are no Utah cases interpreting this provision. The fundamental issue raised with respect to this provision is whether the state may draft an affidavit or statement containing all of the subjects that are prohibited by Comment 5, file it with the Court, and then read it verbatim to the media during a press conference. Mr. Robinson urges that such an interpretation of this exception would swallow the

rule.³⁰ Such an interpretation would also conflict with the Utah Supreme Court’s holding in *Deseret News Publishing*, that the holder of a record is “ required to conduct a conscientious and neutral evaluation of the report’s GRAMA status without regard to existing designations or classifications.” 2008 UT 26, ¶ 24.

As noted previously, Utah Code § 63G-2-305(10)(c), requires the record holder to assess whether release of a record “would create a danger of depriving a person of a right to a fair trial or impartial hearing.” In this case, as demonstrated above, when that standard is applied to the Affidavit of Probable Cause and the Statement of Probable Cause in light of Comment 5, it is clear that these documents should never have been released. A prosecutor in discharge of his duty under *Deseret News Publishing* would have to come to the same conclusion with respect to these or similar documents containing Comment 5 violations, which means that a prosecutor would never be in a position to adopt a strategy of loading up a document that violated the principles of Comment 5 and thereafter use the filing of it to excuse reading it verbatim at a press conference. In other words, under *Deseret News Publishing*, a prosecutor has a duty to properly classify a document and to screen out objectionable material under Utah Code § 63G-2-305(10)(c) and other provisions of GRAMA such as Utah Code § 63G-2-302(2)(d) and Utah Code § 63G-2-305(10)(a) before a document is filed with a court as a public record.

A similar duty is imposed by the American Bar Association’s *Fair Trial and Public Discourse Standards* (Conduct by Lawyers Participating in a Criminal Matter), *available at*

³⁰ See *Att’y Grievance Comm’n of Maryland v. Gansler*, 835 A.2d 548, 569 (Md. App. Ct. 2003) (“by strictly limiting what is considered a public record, this definition enables all of the components of MRPC 3.6 to filter objectionable publicity, preventing the ‘public record’ exception from swallowing the general rule of restricting prejudicial speech.”). *Gansler* is cited several times with approval in *Leavitt*, 2025 UT 46, ¶ 60, as is *In re Brizzi*, 962 N.E.2d 1240, 1247 (Ind. 2012) (per curiam), discussed below.

https://www.americanbar.org/groups/criminal_justice/resources/standards/fair-trial-public-discourse/. Standard 8-2.1(c) provides:

This Standard should not be construed as prohibiting a lawyer participating in a criminal matter from releasing or authorizing the release of a record or document that the lawyer is required to release under state open records laws or the federal Freedom of Information Act, upon receipt of a proper request. A lawyer participating in a criminal matter should not place statements or evidence into the court record or into a document that is deemed an open record under applicable law solely for the purpose of circumventing this Standard. If the lawyer has reason to believe that the public release of a record or document would create a substantial probability of harm to the fairness of a trial or other overriding interest, the lawyer should consider seeking a sealing order[.].

The Commentary to this Standard provides in part:

[M]ost open records laws contain exemptions for material that would be prejudicial to an ongoing enforcement proceeding, to the fairness of a trial, or that would constitute an unwarranted intrusion on personal privacy. The purpose of this paragraph is to remind lawyers that they must be familiar with the open records laws in their jurisdiction, including the exceptions pertinent to these Standards. If the lawyer believes that all or part of a document falls within such an exception, the lawyer should withhold such material if its release would violate these standards. In such a situation, the lawyer should promptly provide notice to the party requesting the information so that the lawyer's decision can be subject to judicial review.

On the other side of the coin, lawyers should not insert information into a document that is deemed an open record solely to circumvent these Standards. Nor should lawyers make a statement during a judicial proceeding, or include information in a public court filing, solely to circumvent these Standards. If a lawyer is aware that certain information contained in a court filing, or that will be adduced at a hearing, poses a significant danger to the fairness of the trial or other overriding interest that would warrant sealing, the lawyer should consider applying for a sealing order for that filing or proceeding, in whole or in part.

Id. at 37.³¹

³¹ The commentary is available at chrome-extension://efaidnbmninnbpcajpcglclefindmkaj/https://www.americanbar.org/content/dam/aba/publications/criminal_justice_standards/fair_trial_commentaries.pdf/.

Public Discourse 8-2.1 Standard and the Commentary are consistent with the duty already imposed on Utah prosecutors by *Deseret News Publishing*. Where that duty was not discharged in Mr. Robinson’s case, neither the Governor nor the County Attorney may take refuge in Prof’l Rule 3.6(b)(2) as an excuse or justification for violating Prof’l Rule 3.6(a).

Nor does Prof’l Rule 3.6 (b)(2) apply to any statements that are not contained in a filed record, such as the County Attorney’s penalty phase closing argument about victim impact, or the statements of the Governor quoted above. *See Gansler*, 835 A.2d at 569 (“To receive the protection of the ‘public record’ safe harbor, the lawyer must not provide information beyond quotations from or references to public government records.... The “public record” safe harbor, whether construed narrowly or broadly, could not apply possibly to any statement that introduced information to the public for the first time.”); *In re Brizzi*, 962 N.E.2d at 1247 (“*Gansler* held...and we concur, that to receive the protection of the public record safe harbor, a lawyer may not provide information beyond quotations from or references to the contents of the public record Moreover, we hold that a prosecutor must make clear that what is being disclosed is, in fact, the contents of the probable cause affidavit or other identified public document so the statements cannot be misunderstood to be the prosecutor’s own opinion about the evidence or the suspect’s guilt.”).

The Governor’s and the County Attorney’s off-script statements, combined with the statement in the Affidavit of Probable Cause that was released to the media in which Attorney General investigator Brian Davis stated his personal opinion that “I believe there is probable cause that Tyler Robinson committed the crimes of aggravated murder by shooting Charlie Kirk in a circumstance that put many around him at grave risk of death, felony discharge of a firearm, and obstruction of justice for moving and hiding the rifle believed to be used in

the shooting” (Dkt. 2), and combined further with the Statement of Probable Cause (Dkt. 1) which was released to the media and is still on the County Attorney’s website in which Mr. Gray gives his person opinion that “[b]ased upon evidence received from Brian Davis of the Utah State Bureau of Investigations, I have reason to believe the defendant committed the offense(s) as charged herein”, have severely impaired Mr. Robinson’s constitutional right to be tried by a fair and impartial jury. *See Leavitt*, 2025 UT 46, ¶ 39 (“Leavitt’s position as the County Attorney made the potential for prejudice even higher. His statements likely carried more weight in the eyes of the public.” (citing *Gansler*, 835 A.2d at 559 (“Comments by prosecuting attorneys, in particular, have the inherent authority of the government and are more likely to influence the public.”); *In re Brizzi*, 962 N.E.2d at 1246 (“A prosecutor’s opinion of guilt is particularly likely to create prejudice, given that his or her words carry the authority of the government and are especially persuasive in the public’s eye.”))).

This reasoning applies with even greater force to statements by Presidents and Governors. And because of the prestige of all of these individuals, the prejudice is highly unlikely to diminish even after a lengthy period of time. So, we conclude that the time between these statements and the trial date did not neutralize the substantial likelihood that they would materially prejudice the trial. Moreover, these individuals are all highly invested in this case and will no doubt be offering more of the same right up to the trial. *See id.* ¶ 40 (“Leavitt contends that the potential for prejudice was lessened because Baum’s trial did not take place until much later. We agree that the statements’ proximity to trial is relevant. However, it is not dispositive.... And we conclude that the time between these statements and the trial date did not neutralize the substantial likelihood that they would materially prejudice the trial.”).

Prof'l Rule 3.6(a) was repeatedly violated in this case and Prof'l Rule 3.6(b)(2) does not provide an escape hatch from these violations.

f) 28 C.F.R. § 50.2

28 C.F.R. § 50.2(b)(1) and (2) set forth the basic ground rules applicable to the release of information by personnel of the Department of Justice relating to criminal proceedings. Those sections provide:

Guidelines to criminal actions.

(1) These guidelines shall apply to the release of information to news media from the time a person is the subject of a criminal investigation until any proceeding resulting from such an investigation has been terminated by trial or otherwise.

(2) At no time shall personnel of the Department of Justice furnish any statement or information for the purpose of influencing the outcome of a defendant's trial, nor shall personnel of the Department furnish any statement or information, which could reasonably be expected to be disseminated by means of public communication, if such a statement or information may reasonably be expected to influence the outcome of a pending or future trial.³²

28 C.F.R. § 50.2(b)(3), like Prof'l Rule 3.6(b) contains exceptions to this general rule, but unlike Prof'l Rule 3.6 (b) it does not contain a public record exception.

28 C.F.R. § 50.2(b)(6) is comparable to Comment 5 and states as follows:

The release of certain types of information generally tends to create dangers of prejudice without serving a significant law enforcement function. Therefore, personnel of the Department should refrain from making available the following:

(i) Observations about a defendant's character.

(ii) Statements, admissions, confessions, or alibis attributable to a defendant, or the refusal or failure of the accused to make a statement.

³² Available at: <https://www.ecfr.gov/current/title-28/chapter-I/part-50/section-50.2>.

(iii) Reference to investigative procedures such as fingerprints, polygraph examinations, ballistic tests, or laboratory tests, or to the refusal by the defendant to submit to such tests or examinations.

(iv) Statements concerning the identity, testimony, or credibility of prospective witnesses.

(v) Statements concerning evidence or argument in the case, whether or not it is anticipated that such evidence or argument will be used at trial.

(vi) Any opinion as to the accused's guilt, or the possibility of a plea of guilty to the offense charged, or the possibility of a plea to a lesser offense.

The statements made to the electronic media by FBI Director Patel, Deputy Director Bongino, and Attorney General Bondi are discussed above at pp. 15-17. It is clear without further discussion that all three of these officials violated 28 C.F.R. § 50.2(b)(6). Moreover, by virtue of Utah Code § 63G-2-201(3), these individuals also violated state law because that provision provides that “[t]he following records are not public:...a record to which access is restricted pursuant to ...federal regulation.”

g) Conclusion

In sum, the multiple violations discussed above underscore the need to take strong remedial action to prevent the further erosion of Mr. Robinson's right to trial by a fair and impartial jury. Mr. Robinson next turns to demonstrating that because the traditional means of controlling prejudicial pretrial publicity are not available or have not been or will not be effective in this particular case, prohibiting further electronic media live streaming and in-court photography is the only available remedy available to the Court.

D. The Traditional Means of Controlling Prejudicial Pretrial Publicity Are Not Available or Have Not Been or Will Not Be Effective in This Case

A good and fairly recent summary of the remedies traditionally available to control prejudicial pretrial publicity is provided in the ABA Public Discourse Standard 8-5.3 entitled “Mitigating the Effects of Publicity on the Fairness of a Trial.” Standard 8-5.3 provides:

If a case has been the subject of significant publicity, the court should consider the following options, to the extent available under applicable law in the jurisdiction and subject to the standards elaborated below, as means of mitigating the prejudicial effects of such publicity. The court should select the most effective option or options in light of the circumstances presented that will be the least disruptive to the proceedings and to jurors. The options include:

- (a) ordering a continuance;
- (b) conducting voir dire as to pretrial publicity;
- (c) providing clear cautionary instructions to the jury from the outset of jury selection;
- (d) providing clear cautionary instructions to court personnel, parties, lawyers, and witnesses;
- (e) providing lawyers with additional peremptory challenges;
- (f) impaneling additional alternate jurors;
- (g) importing jurors from another district or locality;
- (h) ordering a severance;
- (i) impaneling an anonymous jury;
- (j) sequestering the jury; and
- (k) ordering a change of venue.

One of these options (providing clear cautionary instructions to court personnel, parties, lawyers, and witnesses) has been tried in this case in the form of Dkt. 23, the Court's *Protection Order re: Pre-Trial and Trial Publicity* ("Pretrial Publicity Order") issued September 16, 2025. Unfortunately, the order came too late to prevent the initial prejudicial pretrial publicity which stemmed directly from the decisions by prosecutors and state law enforcement to issue detailed statements to the media and to release the Affidavit of Probable Cause (Dkt. 2) and the Statement of Probable Cause (Dkt. 1). This remedy has also been ineffective in stemming the flow of

subsequent prejudicial pretrial publicity by officials and others seeing themselves as not bound by the Pretrial Publicity Order and by such publicity stemming from the reporting of court proceedings by the electronic and internet media.

Two of these options (impaneling additional alternate jurors and sequestering the jury) are designed to protect against prejudicial publicity occurring during trial and as noted in the commentary to this Standard “sequestering the jury is considered very burdensome and today is rarely used except in the most highly publicized case because of the fiscal cost and the resentment it can engender among jurors.” *See supra*, n. 32 (Public Discourse Standards Comments, at 77).

One of these options (ordering a severance) is irrelevant to this case, one of them (importing jurors from another district or locality) is not permitted by state law per *State v. Richins*, 2025 UT 10, ¶ 72, 568 P.3d 1046 and one of them (impaneling an anonymous jury) has been overturned on appeal in *NBC v. Stewart*, 360 F.3d 90 (2d Cir, 2004) and *United States v. Quattrone*, 402 F.3d 304 (2005), as acknowledged by the Commentary to Standard 8-5.3. *See supra*, n. 32 (Public Discourse Standards Comments, at 79, n.92).

Four of these options (conducting voir dire as to pretrial publicity, providing clear cautionary instructions to the jury from the outset of jury selection, providing lawyers with additional peremptory challenges, and ordering a change of venue) are all designed to address prejudicial pretrial publicity after it has already taken place. These remedies do not address *Sheppard*’s central concern that “we must remember that reversals are but palliatives; the cure lies in those remedial measures that will prevent the prejudice *at its inception*.” *Sheppard*, 384 U.S at 363 (emphasis added).

Given the nature and extent of the pretrial publicity that has already occurred in this capital case, and that is likely to continue up to and including the yet unknown date of the trial, allowing the electronic media to continue to live stream all proceedings in this case until that date based on the unrealistic hope that the kind of indelible prejudicial pretrial publicity that the electronic media has produced and will continue to produce can be fully remedied through a combination of a change of venue, voir dire, and jury instructions is both unrealistic and untenable.

As Chief Justice Rehnquist declared for the majority of the Court in *Gentile v. State Bar of Nevada*:

Few, if any, interests under the Constitution are more fundamental than the right to a fair trial by “impartial” jurors, and an outcome affected by extrajudicial statements would violate that fundamental right. See, e.g., *Sheppard*, [384 U.S. at 350-351]; *Turner v. Louisiana*, [379 U.S. 466, 473 (1965)] (evidence in criminal trial must come solely from witness stand in public courtroom with full evidentiary protections). Even if a fair trial can ultimately be ensured through voir dire, change of venue, or some other device, these measures entail serious costs to the system. Extensive voir dire may not be able to filter out all of the effects of pretrial publicity, and with increasingly widespread media coverage of criminal trials, a change of venue may not suffice to undo the effects of statements such as those made by petitioner.

501 U.S. 1030, 1075 (1991).

The Chief Justice’s observations ring especially true in this case where the prejudicial publicity has been worldwide, and has relentlessly focused on every recognized form of prejudicial publicity, including: character assassination; alleged confessions to Mr. Robinson’s family, partner, and even his own attorney; mug shots; shackles; jail clothes; incriminating demeanor; an alleged refusal to cooperate with law enforcement; Mr. Robinson’s perceived similarity to Luigi Mangione; Mr. Robinson’s alleged romantic relationship with a transgender person; the unqualified and repeated assertion by the Governor that he has been “deeply

indoctrinated with leftist ideology”; and, perhaps most pernicious of all, the theme repeatedly stressed by President Trump and those that support him that Mr. Robinson and the “radical left” have joined together to murder Charlie Kirk.

In the indelible words of the Fifth Circuit, “if you throw a skunk into the jury box, you can’t instruct the jury not to smell it.” *Dunn v. United States*, 307 F.2d 883, 886 (5th Cir. 1962). *See also Irvin*, 366 U.S. at 727 (“With [a prejudicial pretrial] opinion permeating their minds, it would be difficult to say that each could exclude this preconception of guilt from his deliberations. The influence that lurks in an opinion once formed is so persistent that it unconsciously fights detachment from the mental processes of the average man.”); *Id.* at 728 (“No doubt each juror was sincere when he said that he would be fair and impartial to petitioner, but the psychological impact requiring such a declaration before one’s fellows is often its father.... As one of the jurors put it, ‘You can’t forget what you hear and see.’”); *Levine v. U.S. Dist. Ct. for Cent. Dist. of California*, 764 F.2d 590, 600 (9th Cir. 1985)(“We recognize...that jury instructions are often an ineffective remedy.”)); *United States v. Concepcion Cueto*, 515 F.2d 160, 164 (1st Cir. 1975) (“But a juror’s impressions [of impartiality], however honest, cannot be dispositive where the improper information is as damning and material as this.”); *Bloeth*, 313 F.2d at 372 (“[M]erely going through the form of obtaining jurors’ assurances of impartiality is insufficient” where “the extent and nature of the publicity has caused such a build-up of prejudice that excluding the preconception of guilt from the deliberations would be too difficult for the jury[.]”).

Here, as in *Delaney v. United States*, “[o]ne cannot assume that the average juror is so endowed with a sense of detachment, so clear in his introspective perception of his own mental processes, that he may confidently exclude even the unconscious influence of his preconceptions

as to probable guilt, engendered by a pervasive pre-trial publicity.” 199 F.2d 107, 112-13 (1st Cir. 1952); *accord*, *Murphy v. Florida*, 421 U.S. 794, 802 (1975) (“Even [a juror’s assurance] of impartiality might be disregarded in a case where the general atmosphere in the community or courtroom is sufficiently inflammatory.”); *State v. Lafferty*, 749 P.2d 1239, 1251 (Utah 1988) (same).

What these cases have found as a matter of common sense have been backed up by numerous social science studies. As explained by Judge Gertner in *United States v. Houlihan*:

Studies by social scientists suggest that pretrial publicity affects potential jurors in ways of which they may not be aware, which they may not be able to articulate. Publicity, even if it is not strictly speaking, inflammatory, which suggests culpability, or which links the defendant to the criminal activities of others, as here, directly affects the readers’ perception of guilt, how likely they are to give weight to negative facts about the defendant at trial, to resolve conflicts in credibility against the defendants. Publicity unrelated to the crime can even have an impact; to be sure, the more similar the publicized cases to the case on trial, as here, the greater the effect.”

926 F. Supp. 14, 16-17 (D. Mass. 1996) (citing studies). *Accord*, *United States v. Footman*, 33 F. Supp. 2d 60, 62 (D. Mass. 1998) (Gertner, J.) (barring evidence of a prior conviction because “[a]necdotal evidence and precedent, not to mention social science studies, make it quite clear that the jury cannot perform the mental acrobatics the Government would require of them, and further, that a limiting instruction would be useless”). *See also* Ex. 2, ¶¶ 33-36 (Dr. Ruva reviewing and updating social science research demonstrating that biased jurors may not recognize their biases—undermining voir dire and the effectiveness of limiting instructions).

What was said about the ability of Oklahoma prospective jurors to set aside the overwhelming prejudicial pretrial publicity in the Oklahoma City bombing trial is equally true here:

Properly motivated and carefully instructed jurors can and have exercised the discipline to disregard that kind of prior awareness. Trust in their ability to do

so diminishes when the prior exposure is such that it evokes strong emotional responses or such an identification with those directly affected by the conduct at issue that the jurors feel a personal stake in the outcome. That is also true when there is such identification with a community point of view that jurors feel a sense of obligation to reach a result which will find general acceptance in the relevant audience.

McVeigh, 918 F. Supp. at 1473.

In addition, it is not at all clear in light of *State v. Richins* whether the defense will be afforded any sort of meaningful in-person individual voir dire, even though, like *Richins*, this is a high-profile aggravated murder case involving a vast amount of prejudicial pretrial publicity. 2025 UT 10, ¶¶ 37-49. Tellingly, the reason given in *Richins* for the denial of such questioning was that it would “‘compromis[e] ‘the] privacy of the prospective jurors’” and would not be conducive to creating “ ‘the safe environment needed to answer personal questions truthfully and free from any pressure to conform to perceived judicial or community standards.’” *Id.* ¶ 47 (quoting the Presiding Judge). Televising Mr. Robinson’s proceedings certainly risks compromising the same values.

Like voir dire and jury instructions, contemplating an eventual moving of the trial to another location in Utah does nothing to stem the current flow of electronic prejudicial publicity, and in all likelihood will not be a feasible remedy in this particular high profile and emotionally charged case, especially if the Court allows that flow to continue unchecked. As Chief Justice Rehnquist stressed in *Gentile v. State Bar of Nevada*, , “with increasingly widespread media coverage of criminal trials, a change of venue may not suffice to undo the effects of [prejudicial pretrial publicity].” 501 U.S. at 1075; *see also Trump*, 88 F.4th at 1017 (“Moving the trial to a different location would also be ineffective. Mr. Trump’s rhetoric has national reach. See Special Counsel Mot. Reply 9 (noting that Mr. Trump has more than 6 million followers on the platform Truth Social.”); *Levine*, 764 F.2d at 600 (“A change of venue would be appropriate if the

publicity surrounding a trial is centered on a specific geographical location. A postponement would be appropriate if the publicity is temporary. This case presents neither situation.”).

Regarding the wishful thinking that a continuance will somehow diminish the electronic media’s thirst for the sensationalistic and biased coverage of this case, this Court has already found that “[a]s with many high-profile cases, public interest may both wax and wane, but it is likely to persist.” Dkt. 137, at 6. In any event, it cannot be denied that “[a]llowing prejudicial [electronic media coverage] to go unchecked for an even longer pre-trial period would simply compound the problem”, further, “[d]elays also ‘entail serious costs to the [judicial] system,’ and ‘frustrate the public’s interest in the swift resolution of criminal charges.’” *Trump*, 88 F.4th at 1018 (quoting *Gentile*, 501 U.S. 1075). *See also Bloeth*, 313 F.2d at 373 (“While time elapsing between the original publicity and the trial might in many cases blunt the effect of publicity and obviate the need for change of venue, it did not in this case, in view of the saturation nature of the publicity in the non-metropolitan area covered.”).

Finally, one option not listed in Public Discourse Standard 8-5.3 that has already been tried by the Court is to simply warn violators of the Court’s decorum order that violations will be taken seriously. A similar approach was tried, and failed, in *United States v. Trump*, where the court noted:

The Supreme Court has been clear that the First Amendment permits, and Article III and due process principles require, courts to do more to protect the integrity of the criminal justice process than to shake their finger at a [violator] and tell him not to do what the law already forbids. *See Sheppard*, 384 U.S. at 362-363[.]

Trump, 88 F.4th at 1008-09. *See also Wright*, 38 F.R.D. at 438-39 (“I realize, of course, that the conduct of the press in the past with reference to the protection of the rights of the accused has not been exemplary. Moreover, even after the press has erred on the side of prejudicial publicity

in landmark cases, ...its acts of contrition have consisted of little more than the utterance of pious platitudes.”).³³

E. Conclusion

For all of the reasons stated above, the Court should conclude that it has carefully considered all available options to terminating electronic media coverage and that none of the available options would remedy the compelling fair trial, security, privacy, and other factors discussed herein that singly or in combination compel the conclusion that termination of electronic media coverage is constitutionally required in this case.

III. THE TERMINATION OR RESTRICTION OF FURTHER ELECTRONIC MEDIA LIVE STREAMING AND PHOTOGRAPHIC COVERAGE OF ANY PROCEEDINGS IS ALSO WARRANTED UNDER RULE 4-401.01.

A. Introduction

Rule 4-401.01 was adopted by the Utah Supreme Court’s Rules Committee in 2013 based on the recommendation of the *Final Report of the Judicial Council Study Committee on Technology Brought into The Courtroom* (April 10, 2012) (“Final Report”).³⁴ The Final Report is a mere 18-pages in length, only 7-pages of which are devoted to the issue of cameras-in-the-courtroom. Attached to the Final Report are the following Tab numbered documents: (1) an

³³ That is certainly true in this case where media counsel’s response to the decorum order violation on December 11, 2025 was to claim, based on no presented evidence, that the violation was “inadvertent”, and that:

They understand their obligations. They take it very seriously. They’re not perfect; mistakes happen. We’re trying to correct as much as we can.

Dkt. 256, at 9. As described above, as counsel was making this argument his cameraman was violating the decorum order by filming court staff. *See supra*, p 34.

³⁴ Available at:

https://legacy.utcourts.gov/committees/Tech_in_Courtrooms/2012.03.23%20Final%20Report.pdf.

undated document entitled *Cameras In The Courtroom: A State-By State Guide*, by the Radio Television Digital News Association (RTDNA), an advocacy organization for journalists and news organizations; (2) a 1996 law review article by California media lawyer Kelli Sanger; (3) a 1994 Federal Judicial Center report entitled *Electronic Media Coverage of Federal Civil Proceedings: An Evaluation of the Pilot Program In Six District Court and Two Courts of Appeals* (“1994 Federal Report”); (4) a 2010 law review article by then Ninth Circuit Judge Alex Kozinski, *Of Cameras and Courtrooms*, 20 FORDHAM INTELL. PROP. MEDIA & ENT. L.J. 1107 (2010); (5) opinion in *Estes v. Texas*; (6) opinion in *Chandler v. Florida*; (7) proposed Rule 4-401, which is more pro-media than the version eventually adopted;³⁵ (8) existing Rule 4-401; (9) a seven page 2011 Utah State Courts Publication Entitled *Social Media Subcommittee of the Judicial Outreach Committee*, which does not address cameras-in-the-courtroom; (10) a 10-page undated report by five judges entitled *Electronic Media Report*; and (11) a two page undated document with no author listed, that does not address cameras in the courtroom.

³⁵ Jeff Hunt, one of the counsel for the media in this case was one of the authors of the Final Report. *See Journalists Now Allowed to Tweet, Live Blog from Utah Courtroom*, Rep. Committee For Freedom Press (Nov. 20, 2012) <https://www.rcfp.org/journalists-now-allowed-tweet-live-blog-utah-courtrooms/>. (“The Utah Supreme Court in February 2011 established a committee to study the impact of expanding media coverage in courtrooms. The committee was made up of judges, courtroom administrators and media attorneys, including Hunt.”). Mr. Hunt’s stance is reflected in his quote that “[t]he language in the rule defining a news reporter is quite broad, and we drafted it that way intentionally, ...It includes any person who is gathering information for dissemination to the public. You don’t have to be connected to or employed by a traditional media outlet.”) Although the Judicial Council initially accepted this broad definition, it narrowed the Rule in 2014 to its present form. *See Utah Court Rules – Published for Comment* (Posted: Feb. 24, 2015) <https://legacy.utcourts.gov/utc/rules-comment/category/cja04-0401-01/>. The Rule was narrowed again in 2015 to provide that the presumption of openness applied only “where the predominant purpose of the coverage is journalism or dissemination of news to the public.” *Id.*

Relying solely on the 1994 Federal Report, the 1996 law review article by the media lawyer, which surveyed some pre-1996 state survey data, and Judge Kozinski's 2010 law review article (which focused exclusively on his own qualified pro-camera-in-the-courtroom views and a brief summary of some of the results of the 1994 Federal Report), the authors of the Final Report opted to swing for the fence with this sweeping generalization:

The concern most often raised about electronic media coverage is that such coverage may harm the decorum of the proceedings and negatively impact trial participants. The extensive empirical research and broad-based experience of other states, however, suggest that these concerns are unfounded. For example, several states, including Arizona, California, Florida, Hawaii, Kansas, Louisiana, Maine, Massachusetts, Minnesota, New Jersey, New York, Ohio, Virginia, and Washington, have studied the impact of electronic media coverage on courtroom proceedings, focusing particularly on the effect that cameras have upon courtroom decorum and upon witnesses, jurors, attorneys, and judges. See *Kelli L. Sager & Karen N. Fredericksen, Televising the Judicial Branch: In Furtherance of the Public's First Amendment Rights*, 69 S. CAL. L. REV. 1519, 1543 (1996) ("Televising the Judicial Branch").

The results from the state studies were unanimous: electronic media coverage of courtroom proceedings—whether civil or criminal—has no detrimental impact on the parties, jurors, counsel, or courtroom decorum. *Televising the Judicial Branch*, 69 S. CAL. L. REV. at 1544, 1547. For example, the state studies revealed that fears about witness distraction, nervousness, distortion, fear of harm, and reluctance to testify were unfounded. *Id.* at 1543-44. A three-year pilot program permitting electronic media coverage of civil proceedings in six federal district courts and two federal circuit courts reported similar results, as well a favorable view of such coverage by the judges who participated in the program. See Federal Judicial Center, *ELECTRONIC MEDIA COVERAGE OF FEDERAL CIVIL PROCEEDINGS: AN EVALUATION OF THE PILOT PROGRAM IN SIX DISTRICT COURTS AND TWO COURTS OF APPEALS* (1994); see also *Televising the Judicial Branch*, 69 S. CAL. L. REV. at 1545; Alex Kozinski & Robert Johnson, *Of Cameras and Courtrooms*, 20 FORDHAM INTELL. PROP. MEDIA & ENT. L.J. 1107, 1114 (2010) (summarizing state and federal studies on electronic media coverage of judicial proceedings and concluding that the empirical research demonstrates no detrimental impact on trial participants or on courtroom decorum).

Final Report, at 8-9.

Because of the age of the Final Report and the fact that it was relying solely on pre-1996 state survey studies, Mr. Robinson retained Dr. Christine L. Ruva, PH.D., who has conducted many of the modern empirical studies on the effects of pretrial publicity, to “review, evaluate, and update the empirical research discussed in the Final Report by the Utah Judicial Council Study Committee on Technology (April 10, 2012)[.]” Ex. 2 ¶ 2. After an exhaustive review of the vast amount of relevant empirical studies that are now available, Dr. Ruva turned her attention to the 2012 Final Report and after careful review ultimately concluded that “the empirical research discussed in the 2012 Judicial Council Final Report is limited and dated and is based on unreliable survey research.” *Id.* at Conclusion. In paragraphs 39-62, Dr. Ruva explains in detail the bases for her expert opinion, carefully walking through all the available literature that was not considered in the Final Report and examining the fundamental flaws in the pre-1996 state survey data relied upon in the Final Report.

From a lawyer’s viewpoint, some of Dr. Ruva’ most striking findings relate to the Final Report’s failure to even mention *Hollingsworth v. Perry*, 558 U.S. 183 (2010), which, as explained *supra* at p. 81, establishes that two years before the Final Report at least five members of the present Court believed that Justice Harlan’s concurring opinion in *Estes* was speaking for “the Court”, and that these same five members share the view of the *Estes* majority that televising of a notorious case is improper.

Dr. Ruva’s declaration states:

50) The 2012 Final Report’s description of the outcome of the 1994 federal civil trial pilot program is as follows: “The pilot program was in effect from 1991 through 1994. Notwithstanding the Federal Judicial Center’s ultimate recommendation that federal trial courts allow cameras in civil proceedings, the federal judiciary declined to continue the program when the study period expired.” Final Report at 10. However, that description does not tell the whole story. As explained by the United States Supreme Court in *Hollingsworth v. Perry*, 558 U.S. 183, 193 (2010):

In 1996, the Judicial Conference of the United States adopted a policy opposing the public broadcast of court proceedings. This policy was adopted after a multiyear study of the issue by the Federal Judicial Center which drew on data from six district and two appellate courts, as well as state-court data. *In light of the study's findings, the Judicial Conference concluded that "the intimidating effect of cameras on some witnesses and jurors [is] cause for concern."* Administrative Office of United States Courts, Report of Proceedings of Judicial Conference of the United States 47 (Sept. 20, 1994).

In more than a decade since its adoption the Judicial Conference has continued to adhere to its position on the broadcast of court proceedings.

(emphasis added).

51) *Hollingsworth v. Perry* itself recognizes that "[t]his Court has recognized that witness testimony may be chilled if broadcast." *Id.* at 195, citing *Estes v. Texas*, 381 U.S. 532, 547 (1965); *id.*, at 591 (Harlan, J., concurring). The 2012 Final Report does not discuss *Hollingsworth*.

Several other key points made by Dr. Ruva are: (1) "the Sager and Kozinski articles cited in the report are law review articles and not empirical research articles. They cite state surveys and one federal survey regarding civil court proceedings.... Survey data cannot be used to infer causation, and this is not its only limitation - e.g., response bias, recall failure or misinformation effects (may not accurately recall past event and information after the event affects recall.)" *id.* ¶ 40; (2) "the three-year pilot federal study published in 1994 that found judges have a favorable opinion of electronic media coverage of court in civil cases tells us nothing about the possible prejudicial effect such coverage could have on courtroom proceedings, witness testimony and memory, and juror bias, behavior, and decision making." *id.* ¶ 41; (3) "survey research is widely used, but it comes with several limitations and pitfalls that researchers need to consider" *id.* ¶ 42; (4) "[i]n fact, five peer-reviewed journal articles have critiqued the survey studies relied upon in the 2012 Final Report, and three of these studies were published before the 2012 Report and are nowhere discussed in it." *id.* ¶ 43; (5) "[i]n addition to not acknowledging these critiques, the

2012 Final Report’s description of the existing studies is flawed” *id.* ¶ 49; (6) “None of these surveys assessed, or could assess, whether live streaming of all aspects of a high profile criminal case in the age of social media could cause irreparable conscious and unconscious bias and trauma to prospective jurors or caused untoward effects in other trial participants[.]” *id.* ¶ 52; (7) “[f]inally, the 2012 Final Report does not address the pre-2012 empirical research discussed above and could not have considered the substantial empirical research that has taken place since 2012.” *id.* ¶ 53.

The bottom line here is that in deciding the present motion, this Court should place little or no weight on the unsupported, dated, and slanted conclusions of the 2012 Final Report. Instead, the Court should carefully consider “the substantial empirical research that has taken place since 2012” as reviewed in Dr. Ruva’s declaration. Ex. 2, ¶ 53.

B. The “Predominant Purpose” of the Electronic Media Coverage in This Case Is Not “Journalism or Dissemination of News to the Public.”

Judge Kozinski’s law review article, indicates that while generally an advocate for court-controlled filming and later release of some portions of a *trial* (he said nothing about pretrial proceedings and also noted that “nobody seriously believes that cameras should be allowed for every moment of every trial”), he was of the view that:

Trials would be more open and transparent if they were held in Madison Square Garden, and that would certainly be technologically feasible. Yet the Supreme Court has said that a defendant “is entitled to his day in court, not in a stadium.” [*Estes*, 381 U.S. at 549 (1965)] if cameras in the courtroom rob criminal defendants and civil litigants of their dignity, and promote a public perception of trials as more about sensational entertainment than a sober search for truth, courts may be justified in parting ways with other public institutions, and public expectations, to exclude cameras in favor of forms of reporting that better advance respect for the rule of law and the guarantee of a fair trial.

Kozinski, at 1122.

Consistent with Judge Kozinski’s view, Rule 4-401.01(2)(A) since 2015 has provided that: “There is a presumption that electronic media coverage by a news reporter shall be permitted in public proceedings *where the predominant purpose of the electronic media coverage request is journalism or dissemination of news to the public.*” (emphasis added). No Utah court has construed any aspect of Rule 4-401.01, and the emphasized language is not a feature of any other state or federal court rule or statute. The Court is therefore left with little guidance as to how to apply this aspect of the Rule.³⁶

In his article, Judge Kozinski provided this example of when courts should prohibit camera coverage on the ground that such coverage “rob[s] criminal defendants and civil litigants of their dignity, and promote[s] a public perception of trials as more about sensational entertainment than a sober search for truth”:

Unlike concern with the effect of cameras inside the courtroom, this argument retains real bite after the O.J. experience. Consider footage of the verdict (available now on YouTube). It’s high drama: As the courtroom waited, the camera zoomed in for an intense close-up of O.J.’s face, and remained there for the agonizing moments before-and during-the verdict. Because the camera was positioned above the jury, O.J. appeared to gaze ominously into the camera’s eye. Ron Goldman’s sister began to cry, and the camera pivoted for a close-up of her face. From there, to the stunned faces of the prosecution. And back to Ron Goldman’s sister. As the Supreme Court has said, “[t]he television camera is a powerful weapon” and “inevitable close-ups of [the accused’s] gestures and expressions during the ordeal of his trial might well transgress his personal sensibilities [and] his dignity.” [*Estes*, 381 U.S. at 549]. That’s to say nothing of the impact on the victim’s family, or the public perception of a trial depicted in such a manner.

³⁶ *But see* United States House of Representatives, *Rules of the House of Representative*, Rule XI(4) (Jan. 10, 2023) (permitting committee hearings or committee meetings to be covered by audio and visual means “for the education, enlightenment, and information of the general public, on the basis of *accurate and impartial news coverage*”, but specifically providing that “it is the intent of this clause that audio and video recordings of any coverage...may not be used for any partisan political campaign purpose or be made available for such use” and that “[i]f audio or visual coverage of the hearing or meeting is to be presented to the public as live coverage, that coverage shall be conducted and presented without commercial sponsorship.”).

Kozinski, at 1122.

Judge Kozinski describes exactly the kind of sensationalism and dramatization that has so far characterized the prejudicial electronic pretrial publicity in this case with its almost exclusive close-up focus on Mr. Robinson's and the Court's demeanor, Mr. Robinson's alleged confessions, his mugshot and shackles, and the uninformed, speculative, and sensationalistic musings of media talking heads.

The extent to which advertising profit and sensationalism are at the root of most of the publicity in this case is underscored by the sensationalistic content of the numerous representative postings referenced above, by the fact that they all feature product advertisements, and by the further undeniable fact that “[j]ust hours after the tragic news of Charlie Kirk’s assassination was confirmed, a flurry of ads featuring memorial merchandise exploded across social media platforms like Facebook and Instagram.” *Foreign Brands Profit From Memorial Merchandise After Tragedy*, *HERE SHREVEPORT* (Sep. 26, 2025); *see also* Keenan Chen, *Merch sellers cash in on Kirk’s killing with flood of social media ads*, *THE GUARDIAN*, (Sep. 25, 2025, at 11:26 ET)

<https://www.theguardian.com/technology/2025/sep/25/charlie-kirk-merch-social-media-ads> (itself featuring advertisements). “In a viral post with more than 8,000 shares and hundreds of thousands of likes, the brand See Jesus In You promoted an ‘Echo of Freedom’ shirt with an American flag and Kirk’s signature, calling him a symbol of ‘faith, liberty, and America’. The simple shirt, which Kirk was wearing when he was assassinated, has become a hot commodity among his conservative supporters. Another clothing brand, Liberty Faith Gear, struck a much more combative tone in marketing its version of the freedom tee, as it urged ‘patriots [to] rise when freedom is attacked. We do not hide. We do not bow’”. Chen, *Merch sellers cash in*.

Some courts have attempted to prevent such dramatization and sensationalism by prohibiting the media from focusing on the defendant's demeanor, or, as Judge Kozinski suggested, by taking control of the camera away from the media and releasing a court video only after a delay to allow time for the parties to lodge objections to release. *See Kozinski*, at 1127-28 (noting that "it's no longer the case that the courtroom camera must be operated by the media, as it was during the O.J. trial" and that "[c]ombined with a delay before posting", a court-created video "can be presented in as boring and straightforward a fashion as you please: no close-ups, no moving cameras and no filming of the defense table or the gallery.").

In the highly publicized case of *State v. Bryan Kohberger*, the trial court allowed the media to retain control of all cameras, but insisted that the media stop zooming in on Kohberger's demeanor, a measure that this Court has so far not imposed. This solution, however, failed to work because the media could not control itself. The trial judge therefore ruled:

As demonstrated by some of the examples presented in the defense's Motion to Remove Cameras from Courtroom, media cameras, both still and video, have and continue to zoom in on Kohberger despite the Court's order that images should capture the courtroom in its entirety. At least some of the images are of Kohberger entering and exiting the courtroom. This is in direct violation of the Court's previous directives not to film or take photographs until the Court is on the record and to immediately stop recording and taking photographs when the hearing concludes. It is the intense focus on Kohberger and his every move, along with adverse headlines and news articles, that leads the Court to conclude that continued photograph and video coverage inside the courtroom by the media should no longer be permitted. This step should help ensure Kohberger's right to a fair trial by an impartial jury and achieve a proper administration of justice.

Additionally, defense counsel has raised continued concerns with video footage and photographs capturing private documents on counsel table. This is again in violation of the Court's directives. The State has also raised issues of vulnerable victims and witnesses being filmed during testimony. At this juncture, the Court has no confidence that directives to stop photographing or videoing during such testimony would be adhered to. Further, the duty on the bailiffs within the courtroom to ensure a safe and secure environment is being

eclipsed by the burden to monitor media and the public who may be audio recording, videoing, or photographing the proceedings.

State v. Bryan Kohberger, Case No. CR29-22-2805 (D.C. Latah County Idaho, Nov. 17, 2023)

(*Order Denying Second Motion to Intervene and Granting Defendant’s Motion to Remove Media Cameras From the Courtroom*, attached as Exhibit 5).

A majority of the justices in *Estes* unequivocally condemned the kind of sensationalistic and profit-driven electronic media coverage that has occurred in this case, where sensationalism, advertising, and zooming in on Mr. Robinson for the purpose of commenting on his demeanor, shackles, and attire is clearly the predominant purpose of the electronic coverage. Justice Clark’s lead opinion in *Estes* states:

The television camera is a powerful weapon. Intentionally or inadvertently it can destroy an accused and his case in the eyes of the public. While our telecasters are honorable men, they too are human. The necessity for sponsorship weighs heavily in favor of the televising of only notorious cases, such as this one, and invariably focuses the lens upon the unpopular or infamous accused. Such a selection is necessary in order to obtain a sponsor willing to pay a sufficient fee to cover the costs and return a profit. We have already examined the ways in which public sentiment can affect the trial participants. To the extent that television shapes that sentiment, it can strip the accused of a fair trial.

381 U.S. at 549-50.

Chief Justice Warren, CJ, joined by Justices Douglas and Goldberg, agreed with and elaborated upon Justice Clark’s analysis, writing that:

The entire hearing on September 24 was televised live by station KLTV of Tyler, Texas, and station WFAA—TV of Dallas, Texas. Commercials were inserted when there was a pause in the proceedings. On the evening of Monday, September 24, both stations ran an edited tape of the day’s proceedings and interrupted the tape to play the commercials ordinarily seen in the particular time slot.

Id. at 554; *see also id.* at 571 (“The televising of trials would cause the public to equate the trial process with the forms of entertainment regularly seen on television and with the commercial

objectives of the television industry. In the present case, tapes of the September 24 hearing were run in place of the ‘Tonight Show’ by one station and in place of the late night movie by another. Commercials for soft drinks, soups, eyedrops and seatcovers were inserted when there was a pause in the proceedings. In addition, if trials were televised there would be a natural tendency on the part of broadcasters to develop the personalities of the trial participants, so as to give the proceedings more of an element of drama. This tendency was noticeable in the present case.”).

Perhaps most significantly, Justice Harlan, who supplied the crucial fifth vote in the case, also agreed with Justice Clark’s analysis:

It is said that the pictorial broadcasting of trials will serve to educate the public as to the nature of the judicial process. Whatever force such arguments might have in run-of-the-mill cases, they carry little weight in cases of the sort before us, where the public’s interest in viewing the trial is likely to be engendered more by curiosity about the personality of the well-known figure who is the defendant (as here), or about famous witnesses or lawyers who will appear on the television screen, or about the details of the particular crime involved, than by innate curiosity to learn about the workings of the judicial process itself. Indeed it would be naive not to suppose that it would be largely such factors that would qualify a trial for commercial television ‘billing,’ and it is precisely that kind of case where the risks of permitting television coverage of the proceedings are at their greatest.

Id. at 594-95 (Harlan, J., concurring).

Consistent with the various opinions on *Estes*, the Utah Supreme Court concluded in *Sinclair v. Turner*, :

We appreciate that the facts of life must be taken into account. *The public is intrigued by the sensational, and thus by crime and the facts surrounding it. Consequently, it is but natural and perhaps necessary that the information media cater to that appetite.* Yet this should also be considered: the service they perform so vitally affects the public welfare that in consideration of the guarantees of freedom of expression the law assures to them, they should be regarded as having corresponding responsibility to perform their duties in an awareness that in our system, they and the public whom they serve, all have an essential interest in, and in a sense are all involved in law enforcement. There should be a minimizing of sensationalism by the exercise of reasonable restraint and good judgment in reporting the news in as fair and objective a

manner as possible, in an awareness of the desirability and indeed of the necessity of according those suspected or accused of crime fair treatment and a trial by an impartial court and jury.

434 P.2d at 307 (emphasis added).

In other words, according to *Estes* and *Sinclair*, the goal of televising court proceedings is to make money and to cater to the appetite of the public for the “sensational.” “Suggestions that televised trials educate the public are disingenuous. The goal is not education but sensationalism and profit. To be sure, what we must be most concerned about is the defendant’s right to a fair trial, not entertainment.” *Nevers v. Killinger*, 990 F. Supp. 844, 849, n. 2 (E.D. Mich. 1997), *rev’d on other grounds*, 169 F.3d 352 (6th Cir. 1999); *Moussaoui*, 205 F.R.D. at 188 (“contrary to what intervenors have argued, the purpose of this trial is not to provide catharsis to the victims or to educate the world about the American legal system. Instead, the purpose is to determine the innocence or guilt of this defendant for the specific crimes charged in the Indictment.”).

Given the sensationalistic and profit-driven nature and the extraordinary extent of the electronic media coverage of Mr. Robinson’s case as outlined above, and for the reasons stated by the Justices in *Estes* and by the Utah Supreme Court in *Sinclair*, it should be concluded that because the “predominant purpose” of the electronic media coverage in this case has not been and is unlikely ever to be “journalism or dissemination of news to the public[.]”, The presumption in favor of electronic media coverage does not apply to Mr. Robinson’s case under the express terms of Rule 4-401.01(2)(A).

C. Any Presumption in Favor of Electronic Media Coverage Has Been Overcome.

The 2012 Final Report expressly acknowledges that

[E]lectronic media coverage of trial court proceedings raises concerns about fair trial rights, personal privacy, safety, security interests, and other legitimate interests. Accordingly, the proposed revision of Rule 4-401 balances those interests by permitting electronic media coverage of open judicial proceedings

while allowing a judge to prohibit or restrict such coverage to protect fair trial rights, privacy, security, and other important interests.

Final Report, at 11.

Rule 4-401.01(2)(B) requires that when determining whether the presumption of electronic media coverage has been overcome and whether such coverage should be prohibited or restricted beyond the limitations in the Rule, a judge “shall” consider “some or all” of nine specific factors. In this capital case, all of these factors weigh heavily in favor of prohibiting electronic live streaming and photographic coverage, and their combined weight clearly outweighs any factor that favors a contrary result. The factors are:

- (i) whether there is a reasonable likelihood that electronic media coverage will prejudice the right of the parties to a fair proceeding;**

This is the first and clearly the weightiest factor under the Rule because it is based on Mr. Robinson’s state and federal constitutional right to fair, impartial, and reliable proceedings, as well as on the state’s independent due process right to fair proceedings. Mr. Robinson cannot speak for the State, but he does note that in a previous filing the State and the Sheriff urged the Court to “limi[t] media coverage for all in-person and remote hearings.” Dkt. 109, at 18-19 (classified as private).³⁷ What Mr. Robinson can speak to is the fact that the Supreme Court has “always held that the atmosphere essential to the preservation of a fair trial—the most fundamental of all freedoms—must be maintained at all costs.” *Estes*, 381 U.S. at 540. At the same time, the Court has consistently held that there is no First Amendment right to live stream or photograph court proceedings.

³⁷ Although in Dkt. 137, this Court granted defendant’s motion to strike this pleading, it did so with the understanding that “as agreed to by the Defendant, the court has considered the *substance* of the State and Sheriff’s opposing memorandum.” *Id.* at 3 (emphasis in original).

As also indicated above, in *State v. James*, the Utah Supreme Court applied a reasonable likelihood standard in a change of venue context, which is the same standard used in Rule 4-401.01(2)(B). 767 P.2d at 555 (Utah 1989). *James* thus provides essential guidance in applying this particular factor.

The *James* Court cited and followed the California's Supreme Court's decision in *Maine v. Superior Court*, 438 P.2d 372 (Cal. 1968), in holding that regardless of language used in a Utah statute, the constitutionally correct standard to apply when assessing the effects of pretrial publicity is the reasonable likelihood standard. *James*, 767 P.2d at 552. It also cited and followed *Frazier v. Superior Court of Santa Cruz County*, 486 P.2d 694 (Cal. 1971) in holding that "a reasonable likelihood of prejudice does not mean that the prejudice must be more probable than not." *Id.* Finally, it cited and followed *Martinez v. Superior Court of Placer County*, 629 P.2d 502 (Cal. 1981) in holding that "the factors which have been considered criteria of the potential for prejudice from pretrial publicity...include (1) the standing of the victim and the accused in the community; (2) the size of the community; (3) the nature and gravity of the offense; and (4) the nature and extent of publicity." *Id.* Each of these factors support granting the present motion.

(1) the standing of the victim and the accused in the community

Neither Mr. Kirk nor Mr. Robinson is a resident of Utah County. However, Mr. Kirk has consistently been portrayed in the electronic media as a Christian, a devoted father, a national hero, a martyr, and a potential Republican candidate for the Presidency, while Mr. Robinson has consistently been portrayed as a "monster" (President Trump), a "depraved assassin" (President Trump), a person who is "everything that the far left wants from our young men [who] rejected the conservatism and the spirituality, the values of a small-town family [and]...moved into a small apartment, he became addicted to porn, he became addicted to hate, and he ended up

sleeping with somebody who doesn't know whether they're a man or a woman" (Vice President J.D. Vance), a "horrible human being" (Attorney General Bondi), a "evil human being" (Governor Cox), a person "deeply indoctrinated by leftist ideology" (Governor Cox),); a "true sociopath" (Retired FBI Agent Parker); and a "evil, evil human being" (Megyn Kelly).

Given these starkly contrasting portrayals, which will no doubt continue in the future, this factor weighs strongly in favor of finding a reasonable likelihood that further electronic media live streaming and photographic coverage will prejudice the right of Mr. Robinson to fair proceedings. *See, e.g., Martinez*, 629 P.2d at 507-08 (this factor weighed in favor of a venue change where although "the victim was 'no public figure,' his status nonetheless appears to be significant" and where "[o]n the other hand, the press described petitioner in terms unlikely to evoke the sympathy or concern of the community.").

(2) the size of the community

In the 2024 Presidential Election, Utah County listed 368,875 registered voters. *See supra, Countywide Summary Results for Utah County, 2024 Gen. Election*. This Court has already found: that "the media interest in Mr. Robinson's trial is arguably unprecedented in the State of Utah"; that "[p]hotographs and visual recordings of Mr. Robinson in jail clothing will likely be shared and disseminated in various public platforms"; that "[t]here is a strong likelihood that a substantial number of potential jurors in Utah County will view these images and may associate Mr. Robinson's jail clothing with indicia of guilt"; that "[t]he danger of prejudice is compounded by technological advancements that allow the images to be manipulated in ways that do not accurately reflect the truth of the court proceedings"; that "[t]his case has generated an immense amount of pre-trial publicity"; that "[a]s with many high-profile cases, public interest may both wax and wane, but it is likely to persist"; that "[v]isual

recordings and photographs of Mr. Robinson shackled may give the impression that he is dangerous and may undermine his presumption of innocence”; that “[t]he potential jury pool in Utah County, based on their proximity, is likely to be even more exposed to the images of these proceedings and the messages those images send”; and that “[t]his case generates extraordinary ongoing national and international attention, some of which is threatening in nature to the parties, their representatives, and non-party participants (e.g. witnesses and court personnel).” Dkt. 137, at 5-6; Dkt. 266, at 2.

As stated in *Maine v. Superior Ct. of Mendocino Cnty.*, even “a large city may ...become so hostile to a defendant as to make a fair trial unlikely.” 438 P.2d at 380, n. 13. And relatively speaking, Utah County cannot be considered a “large” venue, especially when one contemplates how many prospective jurors would need to be removed from service because of the death penalty qualification process, and how many of the prospective pool voted for Mr. Trump in 2024 Presidential Election. *See, e.g., Casellas-Toro*, 807 F.3d at 386-87 (1st Cir. 2015) (finding a presumption of prejudice warranted even though “more than 3 million people live in [the venue]”); *Powell v. Superior Ct.*, 283 Cal. Rptr. 777, 783, 788 (Cal. Ct. App. 1991) (even though the potential jury pool in Los Angeles County was 6.526 million, a change of venue of the case involving the beating of Rodney King was required because “there is a substantial probability Los Angeles County is so saturated with knowledge of the incident, so influenced by the political controversy surrounding the matter and so permeated with preconceived opinions that potential jurors cannot try the case solely upon the evidence presented in the courtroom.”).

Given the Court’s findings, and considering the nature and extent of the prejudicial publicity in this capital case and the relatively small size of the eligible jury pool in Utah County,

this factor weighs in favor of a finding that there is a reasonable likelihood that further electronic media live streaming will prejudice the right of the parties to a fair proceeding.

(3) the nature and gravity of the offense

As indicated above, in *State v. James*, the Utah Supreme Court held that the fact that the State is seeking the death penalty is an important factor weighing in favor of a finding that there is a reasonable likelihood that media coverage will prejudice the right to a fair trial. As instructed by *James*, in a capital case, “[t]he judgment should be made in an atmosphere as free from any taint of bias or prejudice as is reasonably possible.” 767 P.2d at 555. As explained in *Martinez*, “[t]he peculiar facts or aspects of a crime which make it sensational, or otherwise bring it to the consciousness of the community, define its ‘nature’; the term ‘gravity’ of a crime refers to its seriousness in the law and to the possible consequences to an accused in the event of a guilty verdict.” 629 P.2d at 506.

Here, the peculiar facts or aspects of the crime which make it sensational are obvious. From the beginning, the crime has been characterized by the President and his supporters, including the Governor, as a cold-blooded “political assassination” that has had a profound impact on the entire nation. The electronic media has dutifully broadcast that sensational characterization across the nation on an almost daily basis. And as in *Martinez*,

The seriousness of the charged crime stands out clearly. Murder is a crime of utmost gravity; inasmuch as the state is seeking the death penalty, it is a crime of the gravest consequences to petitioner. Because it carries such grave consequences, a death penalty case inherently attracts press coverage; in such a case the factor of gravity must weigh heavily in a determination regarding [remedial measures].

Id. at 507.

(4) the nature and extent of publicity.

The sensationalistic and prejudicial nature and overwhelming extent of the prejudicial electronic and other pretrial publicity in Mr. Robinson’s case is set forth above at length. That publicity features every one of the several categories of publicity that courts and other authorities have recognized as inherently prejudicial. *See, e.g., Skilling*, 561 U.S. at 382 (a presumption of juror prejudice is warranted where the pretrial publicity references a “confession or other blatantly prejudicial information of the type readers or viewers could not reasonably be expected to shut from sight.”); *Gentile*, 501 U.S. at 1046 (noting that public statements that are “obvious bases for a finding of prejudice “ include mention of a confession or of “evidence from searches or test results.”). *See also supra*, fn. 4 (setting forth the categories of prejudicial publicity that are considered inherently prejudicial under governing standards).

In addition to featuring every category of prejudicial pretrial publicity recognized in *Skilling*, *Gentile*, and the relevant standards, the prejudicial electronic media publicity in this case has also heavily stressed several additional sensationalistic themes that courts have recognized as necessitating strong remedial measures.

For example, in *Maine*, the court stressed that “[p]olitical factors have no place in a criminal proceeding, and when they are likely to appear, as here, they constitute an independent reason for [requiring remedial action].” 438 P.2d at 380. *See also People v. Tidwell* 473 P.2d 748, 754 (Cal. 1970) (en banc) (news items indicating there was “considerable political debate concerning the fiscal impact of the trial,” was one of the factors supporting a change of venue).

Similarly, in *Powell*, political factors required a change of venue from Los Angeles County, the court concluding that “[w]hile we recognize that the incident and some of its ramifications have received widespread publicity elsewhere, the impact on residents of Los

Angeles is unquestionably much greater because of the unabated and acrimonious total involvement of city officials and local community leaders. There is no doubt that these political biases would invade the jury box if the case were tried in Los Angeles County.” 283 Cal. Rptr. at 787.

As in *Tidwell*, Mr. Robinson’s case is also one where there has been extensive debate in the electronic media about the cost of the trial.³⁸ However, the prejudicial political rhetoric here has gone far beyond a concern for the cost of the trial and has featured a relentless drumbeat of electronic media interviews of a Republican President, Vice President, Attorney General, FBI Director, White House staff, and the Governor, all pushing the narrative that Mr. Robinson is somehow part of a “radical left” conspiracy that must be stamped out to protect the republic. As in *Powell*, the impact of this inflammatory political rhetoric in the predominantly Republican Utah County is “unquestionably much greater because of the unabated and acrimonious total involvement of city officials and local [state, and federal] community leaders.” 283 Cal. Rptr. at 787.

³⁸ See, e.g., KSL NEWS UTAH, *Utah County grapples with looming legal costs of accused Charlie Kirk killer prosecution, defense*, (YouTube, Sep. 25, 2025), https://www.youtube.com/watch?v=O1ltB2zhd_U; Amelia Hobson, *Utah County Commission discuss cost of Tyler Robinson’s defense*, ABC 4 (Sep.26, 2025 at 10:18 PM MT), <https://www.abc4.com/news/charlie-kirk-shooting/tyler-robinson-defense-cost/>; Daniel Gura, *EXCLUSIVE: Charlie Kirk ‘Assassin’ Tyler Robinson’s \$750K High-Priced Public Defense Team Expected to ‘Impact’ Utah Budget as Outrage Grows over Public Footing the Bill*, AOL (Sep. 30, 2025), <https://www.aol.com/entertainment/exclusive-charlie-kirk-assassin-tyler-194500999.html>; Stephanie Price, *Taxpayer cost for suspected Charlie Kirk assassin’s death penalty case predicted by Utah commissioner*, FOX NEWS (Nov. 2, 2025, at 2:00 PM ET) <https://www.foxnews.com/us/taxpayer-cost-suspected-charlie-kirk-assassins-death-penalty-case-predicted-utah-commissioner>.

Another dominant theme in the electronic media coverage has been an almost pathological focus on Mr. Robinson's mug shots, shackles, jail clothes, alleged incriminating demeanor, body language, and lip movements, and his alleged refusal to cooperate with law enforcement. Here, as long as the cameras are allowed to remain, Mr. Robinson is in a no-win situation. If he sits in court without any facial expression or verbal communication with his attorneys he will be labelled by the media as a stone-faced, remorseless sociopath. In fact, that was exactly the commentary during the Sheriff's September 16, 2025 press conference. On the other hand, if he attempts to engage with his lawyers in a normal human interaction and happens to smile at something that has nothing to do with his case, then he will be labelled as a smirking remorseless sociopath.

This Court has correctly found that “[p]hotographs and visual recordings of Mr. Robinson in jail clothing will likely be shared and disseminated in various public platforms”, that there is “a strong likelihood that a substantial number of potential jurors in Utah County will view these images and may associate Mr. Robinson's jail clothing with indicia of guilt”, that “[t]he danger of prejudice is compounded by technological advancements that allow the images to be manipulated in ways that do not accurately reflect the truth of the court proceedings”, and that “[v]isual recordings and photographs of Mr. Robinson shackled may give the impression that he is dangerous and may undermine his presumption of innocence”, and that “the potential jury pool in Utah County, based on their proximity, is likely to be even more exposed to the images of these proceedings and the messages those images send.” These findings are consistent with the conclusions reached by the United States Supreme Court in *Deck*, 544 U.S. at 633, and should lead the Court to conclude that in light of how the electronic media has chosen to cover the

proceedings, and the likelihood that such sensationalistic coverage will continue, that the Court will not allow any further live streaming or photographing of any of the proceedings.

The electronic media, guided by commentators like the Vice President and the Governor, also seem to be unusually fixated on Mr. Robinson's alleged romantic relationship with his roommate and with the fact that the roommate is apparently transitioning from a male to a female. And this fixation has continued even though the Governor in his September 14, 2025 CNN interview could not come up with any explanation as to the legal relevance of these facts. The Governor mentioned these themes in all three of his national broadcasts on September 14, 2025, and the Vice President, against the backdrop of a large fireworks display and huge applause, announced at a recent Turning Point event on December 21, 2015 that Mr. Robinson was a person who is "everything that the far left wants from our young men [who] rejected the conservatism and the spirituality, the values of a small-town family [and]...moved into a small apartment, he became addicted to porn, he became addicted to hate, and he ended up sleeping with somebody who doesn't know whether they're a man or a woman". Faced with a similar situation, the court in *Frazier v. Superior Ct.*, concluded:

We recognize that in some criminal trials there is at least the possibility, regrettably, that the defendant may be judged on his appearance and life style rather than on his proven acts. In the circumstances here shown, however, that consequence is more probable than possible.... There may not be, as the trial court found, hostility toward this particular defendant as an individual; but so long as there is hostility towards the group or subculture with which he is identified, he runs the very real risk of being judged not for what he has done but for what he is, or what he appears to be.

486 P.2d at 699.

The community's involvement in the hunt for the killer and the electronic media's outpouring of support for Mr. Kirk and his family are also important factors to consider when assessing the nature and extent of prejudicial publicity. Here, as reported by FBI Director Kash

Patel on September 12, 2025, “[l]ast night, we had a total of approximately 7,000 interviews—excuse me, 7,000 leads. As of this morning, thanks to your great work, we have over 11,000 leads that were called in to the FBI, and we are running out every single lead that we can. Every one of those leads will be run out.” *See supra*, Kash Patel, *Director Patel’s Remarks*. Consistent with this widespread local community sentiment, the electronic media has produced lengthy tributes to Mr. Kirk and have closely followed all aspects of his family’s grieving process, where the event has been attended by thousands and online viewings of such events are in the millions. As was concluded in *Maine*, “[w]e do not hold it to be an invariable rule that sympathy for a victim demonstrates antipathy to the alleged perpetrators of an offense. But such pervasive civic involvement in the fate of a victim, particularly when the events all transpire in a relatively small community, is a strong indication that [remedial measures] should be [employed].” 438 P.2d at 379 (footnotes omitted).

A final factor to consider when assessing the nature and extent of prejudicial publicity in this case is the fact, discussed more fully below, that such publicity, especially in the electronic media, has focused on violent rhetoric, which in turn has already led to threats against and harassment of trial participants, including counsel and Mr. Robinson’s parents. *See Exs. 3, 4*. As was the case in *Powell*, “[s]uch unacceptable attempts to influence the judicial proceedings at this early stage add another impermissible factor into the boiling cauldron surrounding this case, making it imperative to take every step possible to ensure that an impartial unbiased jury be seated.” 283 Cal. Rptr. at 787.

In sum, for all of the foregoing reasons, there is clearly a reasonable likelihood that continuing to allow the electronic media to live-stream all proceedings in this case will prejudice

Mr. Robinson’s fundamental State and Federal constitutional rights to fair, impartial, and reliable proceedings.

(ii) whether there is a reasonable likelihood that electronic media coverage will jeopardize the safety or well-being of any individual;

This Court has already found that “[t]his case generates ongoing national and international attention, some of which is threatening in nature to the parties, their representatives, and non-party participants (e.g. witnesses and court personal).” Dkt. 265, at 2.

Indeed, a prominent feature of the prejudicial publicity in this case, coming from the highest sources of government, is the unfounded accusation that Mr. Robinson killed Mr. Kirk at the behest of or in direct response to the rhetoric of the “radical left”, and that such rhetoric and Mr. Robinson’s alleged actions have put the nation on the brink of a civil war that will be averted only if there is “crackdown” on Mr. Robinson and all of this alleged supporters.

As indicated above, on the evening of the killing, the President spoke to the nation in a televised statement in which he said that “Charlie was the best of America, and the monster who attacked him was attacking our whole country”, that the rhetoric of the “radical left” was “directly responsible for the terrorism that we’re seeing in our country today, and it must stop right now”, and that his administration “will find each and every one of those who contributed to this atrocity and to other political violence, including the organizations that fund it and support it, as well as those who go after our judges, law enforcement officials, and everyone else who brings order to our country.” Chad DeGuzman, “*A Dark Moment for America*”: *Trump Responds to Charlie Kirk’s Death*, TIME (Sep. 10, 2025, at 7:55 PM MT) <https://time.com/7316299/charlie-kirk-shot-death-donald-trump-speech-transcript-political-violence/> = (publicizing the full text of the President’s statement).

On the same day, the President’s supporters took to social media platforms to repeat and expand upon the President’s remarks in statements that were widely reported. *See, e.g.,* Sheera Frenkel & Stuart A. Thompson, ‘Civil War’ Mentions Surge Online After Kirk Assassination, NY TIMES, (Sep. 12, 2025), <https://www.nytimes.com/2025/09/12/technology/charlie-kirk-shooting-civil-war.html> (“Minutes after the shooting of the right-wing influencer Charlie Kirk in Utah on Wednesday, calls for civil war began appearing online. The term ‘civil war’ was mentioned on Wednesday more than 129,000 times on the social platform X, according to an analysis by The New York Times. On Thursday, it was mentioned at least 210,000 times.... Elon Musk, X’s owner and the most-followed person on the platform, had one of the most widely shared and liked posts evoking war after Mr. Kirk’s death. ‘If they won’t leave us in peace, then our choice is fight or die,’ he wrote. His post was viewed more than 1.7 million times and liked over 37,000 times.”); Chad DeGuzman, “*This Is War*” Trump and Others on Right Call for Crackdown on Left After Charlie Kirk’s Murder, TIME, (Sep. 11, 2025, at 12:15 AM MT) https://time.com/7316315/republicans-far-right-reacts-charlie-kirk-death-blame-left-crackdown/?utm_source=chatgpt.com (documenting numerous other similar statements).

Those remarks included statements such as:

- “It’s a real treat to see all these Liberals condemn political violence now. You called us Hitler. You called us Nazis. You called us Racists. You have blood on your hands.” (Katie Miller, the wife of White House deputy chief of staff Stephen Miller);
- “The Left is the party of murder” (Elon Musk);
- “The Left lectured us for the last decade about the dangers of violence from the Right ... The danger was actually on the Left” (Shaun Maguire);
- “The Left are terrorists... You could be next... We must shut these lunatic leftists down. Once and for all. The Left is a national security threat” (Laura Loomer);
- the Democratic Party is “a domestic terrorist organization whose most fanatics will not hesitate to murder their political opponents” (Sean Davis).

Id.

Some of this inflamed rhetoric expressly warns of the imminent threat of a new “civil war” and the urgent need to take action:

- “The left and their policies are leading America into a civil war. And they want it. Just like the democrat party wanted our 1st civil war. The gloves are off ...May the mighty wrath of vengeance fall upon the Brown Shirts who are responsible for this” (Republican Rep. Derrick Van Orden); “THIS IS WAR” (Chaya Raichik);
- “Civil war” (Andrew Tate);
- “This is a new civil war” (Kristan Hawkins);
- “I’m ready for civil war...You want a fight and you’re going to get it.” (Brian Eastwood);
- “Whether we want to accept it or not, they are at war with us. And what are we going to do about it? How much political violence are we going to tolerate?” (Jesse Watters);
- “I’m praying that [Kirk] survives. And I’m praying that this country rises up and ends this.” (Marjorie Taylor Greene);
- “The Left will not stop until they are forced to. The Right must gain power, keep power, and wield power righteously” (Joel Webbon);
- “It’s time to bring the hammer down on the left” (Patrick Casey);
- “It is time for a complete crackdown on the left. Every Democratic politician must be arrested and the party banned under RICO [Racketeer Influenced and Corrupt Organizations Act]. Every libtard commentator must be shut down. Stochastic terrorism. They caused this.” (Matt Forney).

Id. This call-to-arms in this and other highly publicized cases has had a definite impact on the attitudes of the public. See Shannon Bond, *Kirk shooting videos spread online, even to viewers who didn’t want to see them*, NPR, (Sep. 18, 2025, at 5:00 AM ET)

<https://www.npr.org/2025/09/18/nx-s1-5542231/kirk-shooting-violence-social-media> (reporting on recent public opinion surveys that have found that “up to 60% of Americans say violence may be justified if people from the other political party commit a violent act first.”)

Given this widespread and frightening attitude and the vehemence of the fire and brimstone rhetoric in this case, it would be naïve to think that Mr. Robinson, his attorneys, the prosecution team, the witnesses, the jurors, and the Court itself and its staff would not be at serious risk of injury if the Court were to permit their images and conduct to be broadcast to the world on a prolonged and eventually daily basis in this highly emotionally charged case.³⁹

As Judge Kozinski wrote in his article, “When the public sees a trial for itself, or through the lens of the camera, there’s always a risk of misunderstanding: The public may mistake zealous advocacy for obstruction of justice, or vice versa.” Kozinski, at 1123.

All it would take to lead to violence would be one unhinged and violent person who was influenced by the inflammatory rhetoric in this case, was offended by Mr. Robinson, or the performance of counsel on either side, or the Court, or other trial participants, and felt it was his or her patriotic duty in this new “civil war” to engage in violence against the perceived “enemy.” Indeed, one of the Court’s justification for restraining Mr. Robinson in the courtroom was for his own safety, with the Court observing that “though these proceedings will focus on legal matters, both Mr. Robinson and court patrons are likely to feel strong emotions.” Dkt. 137, at 6. But restraints on Mr. Robinson, and armed guards in combat gear in the courtroom, while they will go a long way in projecting the prejudicial image of Mr. Robinson as guilty and dangerous and therefore deserving of death, will do nothing to stop the threat of violence outside the courtroom.

³⁹ As will be demonstrated at the hearing of this motion, Ms. Nester has already received death and other threats of violence or harassment, as have Mr. Robinson’s parents. *See* Ex. 3, 4. It must also be noted that although the court’s three decorum orders all contain the provision that “[m]edia representatives shall use their best efforts to avoid visually recording or photographing court employees-except for the judge-without prior approval”, and that “[t]his includes court security staff, clerks, and judicial assistants”, this aspect of the order has already been violated. *See* NEW YORK POST, *Charlie Kirk Murder Suspect Said He Thinks About the Shooting ‘Everyday’: Lipreader* referenced above, which contains prolonged shots of the Court’s security staff.

That threat cannot be entirely eliminated even if electronic media coverage is not permitted, but the presence of electronic media will certainly put the permanent visual spotlight on all trial participants and will therefore increase the likelihood of violence to each and every one of the participants.

As stated in *Moussaoui*:

The traditional public spectator or media representative who attends a federal criminal trial leaves the courtroom with his or her memory of the proceedings and any notes he or she may have taken. These spectators do not leave with a permanent photograph. However, once a witness' testimony has been televised, the witness' face has not just been publicly observed, it has also become eligible for preservation by VCR or DVD recording, digitizing by the new generation of cameras or permanent placement on Internet web sites and chat rooms. Today, it is not so much the small, discrete cameras or microphones in the courtroom that are likely to intimidate witnesses, rather, it is the witness' knowledge that his or her face or voice may be forever publicly known and available to anyone in the world.... Even if every witness' face were obscured, the faces of the attorneys, court staff, and security officers would be exposed, subjecting them to the possibility of long-term security problems.

205 F.R.D. at 186-87. *See also Perry v. City & Cnty. of San Francisco*, No. 10-16696, 2011 WL 2419868, at *78 (9th Cir. Apr. 27, 2011) ("The presence of cameras in the courtroom is likely to heighten the level and the potential of threats to judges. The number of threats against judges has escalated over the years, and widespread media exposure could exacerbate the problem. Additionally, all witnesses, jurors, and United States Marshals Service personnel may be put at risk because they would no longer have a low public profile." (Statement of Chief Judge Becker before the United States Senate)).

There is also a legitimate concern in this case that because the threats of violence and "civil war" are originating from President Trump and his supporters, that the trial participants will be so distracted by security concerns that they will be hindered in the performance of their duties. As concluded in *United States v. Trump*,

Messages designed to generate alarm and dread, and to trigger extraordinary safety precautions, will necessarily hinder the trial process and slow the administration of justice. For example, trial personnel and participants will be distracted or delayed by objectively reasonable concerns about their safety and that of their family members, as well as by having to devote time and resources to adopting safety measures or working with investigators.

88 F.4th at 1014.

As most recently observed by the New York Times, “[t]oday’s algorithmically driven-attention hungry information ecosystem does more than distort reality. It also stokes anger that divides society along political or social lines...For those caught in the vortex of an internet storm-fairly or not- the experience can be traumatic (and dangerous).” Steven Meyers, *Top Leaders Fuel a Surge In Falsehoods: A Traditional Restraint on Rumors Fades*, at A2, A12, NY TIMES (Dec. 27, 2025). *See also*, Ex. 2, ¶ 17 (Dr. Ruva: “Conventional, and social media, and especially live stream publicity of or about traumatic events such as assassinations, terrorism, and other mass acts of violence can cause trauma and emotional responses such as anger, disgust, and fear that distort decision-making and lead to bias.”).

There is also another aspect to the issue of whether there is a reasonable likelihood that electronic media coverage will jeopardize the safety or well-being of any individual. As aptly summarized:

The tragedy also highlights risks that will shape America’s trajectory in the coming years. In the short term, there is a heightened danger of copycat actions or retaliatory violence, as ideologically motivated individuals draw inspiration from either the act itself or the reactions to it. Security requirements for public figures—already significant—will only intensify. In the medium term, the event is likely to deepen polarization, as each side interprets the killing through its own tribal lens. This will provide fertile ground for online radicalization and recruitment, further eroding social cohesion. In the long term, unless these dynamics are checked, the United States faces the prospect of democratic backsliding. Trust, empathy, and tolerance could continue to diminish, while political violence becomes normalized as a form of expression rather than condemned as an aberration.

A Nation Divided: What the Charlie Kirk Shooting Reveals About America, THE SOUFAN CENTER (Sep. 12, 2025), <https://thesoufancenter.org/intelbrief-2025-september-12>,

Many of the media outlets in this case have compared this case to the Kennedy assassination. Whether that comparison is accurate or not has itself been the subject of fierce debate.⁴⁰ But one aspect of the Kennedy assassination and its aftermath does have relevance to the issue considered here. As was found in the Warren Commission Report, the media's clamor for unrestrained access to Mr. Oswald combined with the media's overreliance on statements made by law enforcement presented serious obstacles to the obtaining of a fair trial for Oswald and contributed to his murder before he ever had the opportunity for a fair trial:

Newspaper, radio, and television reporters were allowed *uninhibited access* to the area through which Oswald had to pass when he was moved from his cell to the interrogation room and other section of the building, thereby subjecting Oswald to harassment and creating chaotic conditions which were not conducive to orderly interrogation or the protection of the rights of the prisoner.

⁴⁰ Perfectly illustrating the type of falsehoods that can get generated in today's "algorithmically driven-attention hungry information ecosystem", when ChatGPT is queried about reactions to the controversy about this case's comparison to the JFK assassination, it responds:

Before summarizing reactions, I need to **correct a key point** to avoid spreading misinformation:

Charlie Kirk has not been assassinated.

He is alive, and there has been **no real event comparable to the Kennedy assassination** involving him.

What *did* happen is that **some commentators and social-media users used exaggerated or hypothetical rhetoric**, comparing *imagined harm*, threats, or political controversy around Charlie Kirk to the **JFK assassination**. Those comparisons themselves became the subject of media criticism and debate.

With that clarified, here's how **supporters vs. critics** reacted to *the comparison itself* 🌟

Someone subscribing to the view that Mr. Kirk is alive could well take violent offense at the prosecution team's attempt to prosecute Mr. Robinson. *See Estes*, 381 U.S. at 547 ("[I]nquisitive strangers and 'cranks' might approach witnesses on the street with jibes, advice or demands for explanation of testimony. There is little wonder that the defendant cannot 'prove' the existence of such factors. Yet we all know from experience that they exist.")

The numerous statements, sometimes erroneous, made to the press by various law enforcement officials, during this period of confusion and disorder in the police station, *would have presented serious obstacles to the obtaining of a fair trial for Oswald*. To the extent that the information was erroneous or misleading, it helped to create doubts, speculations, and fears in the mind of the public which might otherwise not have arisen.

....

The Dallas Police Department's decision to transfer Oswald to the county jail in full public view was unsound. The arrangements made by the police department on Sunday morning, only a few hours before the attempted transfer, were inadequate. *Of critical importance was the fact that news media representatives and others were not excluded from the basement even after the police were notified of threats to Oswald's life. These deficiencies contributed to the death of Lee Harvey Oswald.*

Report of the President's Commission on the Assassination of President Kennedy, at 20-21, (Sep. 24, 1964) ("Warren Report"), available at <https://www.archives.gov/research/jfk/warren-commission-report/toc>.

The danger of violence in the Oswald case, created by "uninhibited access" by the media, coupled with the media's reliance on law enforcement sources to create "doubts, speculations, and fears in the mind of the public" is exponentially greater in this case where gavel to gavel electronic media coverage would inevitably get processed through today's algorithmically driven-attention hungry information ecosystem that in this case is being fueled by the President and his supporters.

As was concluded in *United States v. Trump*,

Given the record in this case, the court ha[s] a duty to act proactively to prevent the creation of an atmosphere of fear or intimidation aimed at preventing trial participants and staff from performing their functions within the trial process. Just as a court is duty-bound to prevent a trial from devolving into a carnival, see *Sheppard*, 384 U.S. at 357-358..., so too can it prevent trial participants and staff from having to operate under siege.

88 F.4th at 1014.

For this and the other reasons discussed above, this factor not only weighs heavily in favor of prohibiting further electronic media live streaming or photographing in this particular capital case, but is alone sufficient to justify termination of such coverage, which the Court can do under Rule 4-401.01(5) without making any detailed factual findings since the media has already violated the decorum order on more than one occasion in a manner that directly threatens both fair trial and security interests.

(iii) whether there is a reasonable likelihood that electronic media coverage will jeopardize the interests or well-being of a minor;

In his appearance on Meet the Press on September 14, 2025, Governor Cox stated that:

I can't emphasize enough the damage that social media and the internet is doing to all of us. Those dopamine hits. These companies, trillion-dollar market caps, the most powerful companies in the history of the world, have figured out how to hack our brains, get us addicted to outrage, which is the same type of dopamine, the same chemical that you get from taking fentanyl, get us addicted to outrage and get us to hate each other. I'm seeing it in real time since the tragic death of Charlie Kirk. I'm seeing it in every corner of our society. The conflict entrepreneurs are taking advantage of us and we are losing our agency. And we have to take that back....

I believe that social media has played a direct role in every single assassination and assassination attempt that we have seen over the last five, six years...There is no question in my mind. Cancer is probably not a strong enough word. What we have done especially to our kids. It took us a decade to realize how evil these algorithms are and we're doing everything in Utah. First state in the nation a couple of years ago to pass comprehensive reform. Sadly, these most powerful companies on earth are suing us to prevent us from implementing these things.

See supra, Stelloh, et al., *Suspect in Charlie Kirk's killing*, at 4:55. at 4:55.

As alluded to by the Governor, the federal courts have so far blocked pioneering efforts by the Utah Legislature to control the flow of harmful social media content to minors. *See* Utah Minor Protection in Social Media Act, Utah Code §§ 13-71-101 to 401. Two legislative findings in support of that legislation were that “the state has a compelling interest in safeguarding the

well-being and privacy of minors in the state”, and that “prolonged and unregulated social media use has been linked to adverse effects on the mental health of minors, including increased rates of anxiety, depression, and social isolation.” Utah Code § 13-71-102.

A federal district court has issued a preliminary injunction barring the enforcement of the Act on the ground that the plaintiff social media association was likely to succeed on the merits of its claim that the Act violated its members’ First Amendment rights. *NetChoice, LLC v. Reyes*, 748 F. Supp. 3d 1105 (D. Utah 2024). That decision is currently on appeal to the Tenth Circuit. *See NetChoice v. Brown, et al*, Case No. 24-4100 (10th Cir., Oct. 11, 2024). Because of the pendency of this appeal, there are currently in force no effective controls in Utah on the use of social media by minors. This means that in this case, unless this Court cuts off the steady stream of hateful, violent, fabricated imagery and narratives, and downright false conspiracy and political rhetoric that has flowed directly from the electronic media coverage of this case, through the amplifying and distorting filter of social media, to the eyes and ears of all Utah citizens, then all minors in Utah who use social media will be exposed to such toxic coverage.⁴¹

Even if there was a First Amendment right to record and broadcast court proceedings, which there clearly is not, the State’s “compelling interest in safeguarding the well-being ...of minors in the state” would clearly outweigh the existence of such a hypothetical right in this case, given the false and incendiary nature of the electronic media coverage that has pervaded this case. *See Globe Newspaper*, 457 U.S. at 607 (finding that “safeguarding the physical and

⁴¹ *See Social Media and Youth Mental Health: The U.S. Surgeon General’s Advisory*, at 4 (2023), available at https://www.ncbi.nlm.nih.gov/books/NBK594761/pdf/Bookshelf_NBK594761.pdf (reporting that “[u]p to 95% of youth ages 13-17 report using a social media platform, with more than a third saying they use social media ‘almost constantly.’”).

psychological well-being of a minor” in the context of a sex-crimes case was a compelling interest that can on a case-by-case-basis override any First Amendment right of access.).

(iv) whether there is a reasonable likelihood that electronic media coverage will constitute an unwarranted invasion of personal privacy of any person;

In *Lauro v. Charles*, after arresting and charging Lauro as a criminal defendant, the police handcuffed Lauro, walked him outside the station house, drove him around the block in an unmarked police car, and walked Lauro back to the police station so that a television news crew could film him in a staged “perp walk.” 219 F.3d 202, 203 (2d Cir.2000). Lauro’s civil suit against the police department and police officers asserted that the perp walk was an unreasonable seizure that violated his privacy rights under the Fourth Amendment. *Id.* at 208.

Lauro stated that Fourth Amendment privacy protection applies to a person not only during an initial search and seizure by police, but also to persons lawfully in police custody. *Id.* at 212. Lauro was lawfully under arrest. But with regard to the “perp walk” occurring after arrest, viewing that “seizure” either as (1) a separate seizure occurring when Lauro was forcibly removed from the police station, paraded before news cameras, and then returned to the station, or (2) as “a continuation and aggravation of the seizure that occurred when he was arrested,” the Fourth Amendment required that seizure to be reasonable. *Id.*; see also *Lauro v. City of New York*, 39 F. Supp. 2d 351, 363, fn. 8 (S.D.N.Y.1999), *reversed and remanded by Lauro*, 219 F.3d 202. The Second Circuit concluded that the staged perp walk was unrelated to the object of the arrest, had no legitimate law enforcement justification, and invaded Lauro’s privacy to no purpose, and therefore violated the Fourth Amendment. 219 F.3d at 213.

In a crucial passage of the opinion, the Court ruled:

Despite its adverse effects on Lauro’s dignity and privacy, the perp walk might nevertheless have been reasonable under the Fourth Amendment, had it been sufficiently closely related to a legitimate governmental objective... In

this respect, Charles argues that “the importance of the press in informing the general public about the administration of criminal justice has long been recognized by the Supreme Court,”, and that this interest suffices to justify the perp walk before us.

The Supreme Court, however, in [*Wilson v. Layne*, 526 U.S. 603 (1999)] explicitly rejected an identical argument when it was proffered in support of the media ride-along in that case. The defendants had asserted three justifications for the presence of the media: (1) that officers should have discretion to decide when it would further the mission of law enforcement to allow media presence; (2) that accurate reporting on law enforcement activities was a significant interest; and (3) that the presence of media could deter law enforcement abuses. See [*id.* at 612-13]. The Court found that none of these justifications was sufficient to overcome the Wilsons’ Fourth Amendment rights, noting, “[w]ere such generalized ‘law enforcement objectives’ themselves sufficient to trump the Fourth Amendment, the protections guaranteed by that Amendment’s text would be significantly watered down.” *Id.* at 612 Moreover, with respect to the argument that the ride-along served to inform the public about the administration of law enforcement, the Court commented:

There is certainly language in our opinions interpreting the First Amendment which points to the importance of “the press” in informing the general public about the administration of criminal justice.... But the Fourth Amendment also protects a very important right, and in the present case it is in terms of that right that the media ride-alongs must be judged...

[T]he need for accurate reporting on police issues in general bears no direct relation to the constitutional justification for the police intrusion into a home in order to execute a felony arrest warrant. *Id.* at 612-13[.].

Lauro, 219 F.3d at 212-13.

Wilson, along with *Ayeni v. Mottola*, 35 F.3d 680 (2d Cir.1994), both involved media videos of a suspect taken in the suspect’s home. But *Lauro* concluded that:

It is not the case, however, that the holdings in *Ayeni* and *Wilson* turned solely on the special status of the home, or that the Fourth Amendment’s privacy protections end at the door of one’s house. Our court recognized, rather, that the privacy interests threatened in *Ayeni* went beyond those that attach to the inviolability of the home, and concluded that *obtaining and broadcasting images of the Ayenis in a humiliating situation itself infringed on their Fourth Amendment privacy rights*.... In doing so, *Ayeni* was consistent with long-standing Fourth Amendment jurisprudence, which has declined to set spatial boundaries on the rights protected by that amendment. For, as the Supreme

Court has famously stated, “the Fourth Amendment protects people, not places.” *Katz v. United States*, 389 U.S. 347, 351 [(1967)].

Lauro, 219 F.3d at 211 (emphasis added).

In the district court, the defendant in *Lauro* argued that infringement on the plaintiff’s privacy rights was justified by the importance of the press in informing the general public about the administration of criminal justice. The district court disagreed, holding that “this Court is convinced beyond doubt that the perp walk procedure is not designed nor intended for the purpose of information dissemination, but rather for the purposes of incident dramatization and arrestee humiliation.” *Lauro v. City of New York*, 39 F. Supp. 2d at 364, n. 9.

On appeal, the defendant again raised this argument, and the Second Circuit also rejected it, but on the ground that *Wilson* established the important Fourth Amendment principle that “the reasonableness of the police’s actions in conducting a search or seizure must be judged, in part, through an assessment of the degree to which those actions further *the legitimate law enforcement purposes behind the search or seizure*.” *Lauro*, 219 F.3d at 211 (emphasis added). The capture of the suspect’s image in *Lauro* served no such interest because “in staging the perp walk, Detective Charles engaged in conduct that was unrelated to the object of the arrest, that had no legitimate law enforcement justification, and that invaded Lauro’s privacy to no purpose. By exacerbating Lauro’s seizure in an unreasonable manner, Charles violated the Fourth Amendment.” *Id.* at 213. *See also State v. Tiedemann*, 2007 UT 49, ¶ 34, 162 P.3d 1106 (“Utah’s search and seizure provisions (which are identical to those in the federal constitution) provide ‘a greater expectation of privacy than the Fourth Amendment as interpreted by the United States Supreme Court.’”) (quoting *Brigham City v. Stuart*, 2005 UT 13, ¶ 11, 122 P.3d 506 (“article I, section 14 of the Utah Constitution provides a greater expectation of privacy than the Fourth Amendment as interpreted by the United States Supreme Court.”))).

Similarly, in this case, allowing the media to film and broadcast to the world close-up images of Mr. Robinson without his consent and while he is being held without bail pursuant to his initial arrest violates his Fourth Amendment and article I, section 14 right to privacy because “obtaining and broadcasting images of [him] in a humiliating situation itself infringe[s] on [his] Fourth Amendment privacy rights” and such conduct is unrelated to the object of the arrest and served no legitimate law enforcement justification. *See also Houchins v. KQED, Inc.*, 438 U.S. 1, 5 n.2 (1978) (plurality opinion) (“Inmates in jails, prisons, or mental institutions retain certain fundamental rights of privacy; they are not like animals in a zoo to be filmed and photographed at will by the public or by media reporters, however ‘educational’ the process may be for others.”); *Demery v. Arpaio*, 378 F.3d 1020, 1028-29, 1031 (9th Cir. 2004) (holding that streaming live images of pretrial detainees to internet was not reasonably related to a non-punitive purpose, and thus, violated the Fourteenth Amendment) (“[W]e fail to see how turning pretrial detainees into the unwilling objects of the latest reality show serves any ...legitimate goals.... [T]he otherwise valid governmental interest in assuring accountability and public scrutiny cannot justify broad public exposure of pretrial detainees’ intimate circumstances, as none of the purposes justifying pretrial detention are served thereby. The Sheriff’s policy is all the more troubling because displaying images of the County’s pretrial detainees to internet users from around the world is not rationally connected to goals associated with educating the citizenry of Maricopa County.”).

In words of Justice Clark in *Estes*,

[W]e cannot ignore the impact of courtroom television on the defendant. Its presence is a form of mental—if not physical—harassment, resembling a police line-up or the third degree. The inevitable close-ups of his gestures and expressions during the ordeal of his trial might well transgress his personal sensibilities, his dignity, and his ability to concentrate on the proceedings before him—sometimes the difference between life and death—

dispassionately, freely and without the distraction of wide public surveillance. A defendant on trial for a specific crime is entitled to his day in court, not in a stadium, or a city or nationwide arena. The heightened public clamor resulting from radio and television coverage will inevitably result in prejudice.

381 U.S. at 549.

Finally, just as Mr. Robinson retains a Fourth Amendment and article I, section 14 privacy right not to be photographed or filmed without his consent so too does he and other trial participants retain such a right under the state and federal constitutional right to privacy and under general principles of law establishing the right to privacy for all persons. *See generally, Deseret News Publishing*, 2008 UT 26, ¶ 13 (“[T]he right of individual privacy concerning personal information acquired by governmental entities [is] entitled to constitutional protection.”); *Stien v. Marriott Ownership Resorts, Inc.*, 944 P.2d 374, 377-78 (Utah Ct. App. 1997) (recognizing a common law right to privacy which is violated by “(1) intrusion upon the plaintiff’s seclusion or solitude, or into plaintiff’s private affairs, (2) appropriation, for the defendant’s advantage, of the plaintiff’s name or likeness, (3) public disclosure of embarrassing private facts about the plaintiff, and (4) publicity which places the plaintiff in a false light in the public eye.”); *Shattuck-Owen v. Snowbird Corp.*, 2000 UT 94, ¶ 11, 16 P.3d 555 (“We adopt the standard set forth in *Stien*.”); *Mau v. Rio Grande Oil*, 28 F. Supp. 845, 846 (N.D. Cal. 1939) (“The right of privacy, conceding it to exist, is a purely personal one, that is, it is a right of each individual to be let alone, or not to be dragged into publicity.”(internal quotation omitted)).

In this case where the prosecution is seeking the death penalty, Mr. Robinson’s parents and many other persons, including young students, will be witnesses, either in the guilt phase of the case, or, if there is a conviction of aggravated murder, at a penalty phase. Penalty phase trials inevitably involve the disclosure of intimate and sometimes embarrassing details about the family background and history of the accused and his family, and about the victim’s family. As

indicated [REDACTED]

Doubtless many other witnesses will also object to being filmed, but unfortunately Rule 4-401.01 does not provide a notice provision or other mechanism for bringing those objections to the attention of the Court.

As a general matter, however, what United States Court of Appeal Chief Judge Edward Becker said about this issue in explaining to the Senate in September 2000 why the Judicial Conference of the United States continues to oppose cameras in the courtroom rings true:

Broadcasting of trials presents many of the same concerns about privacy as does the indiscriminate dissemination of information on the Internet that was once only available at the courthouse. Witnesses and counsel frequently discuss very sensitive information during the course of a trial. Often this information relates to individuals who are not even parties to the case, but about whom personal information may be revealed. Also, in many criminal and civil trials, which the media would most likely be interested in televising, much of the evidence introduced may be of an extremely private nature, revealing family relationships and personal facts, including medical and financial information. This type of information provided in open court, is already available to the public through the media. Televising these matters sensationalizes these details for no apparent good reason.

Involvement in a federal case can have a deep and long-lasting impact on all its participants, most of whom have neither asked for nor sought publicity. In this adversarial setting, reputations can be compromised and relationships can be damaged. In fact, according to the [1994] FJC study on live courtroom media coverage, 56% of the participating judges felt that electronic media coverage violates a witness's privacy. This is not to say that the Conference advocates closed trials; far from it. Nevertheless, there is a common-sense distinction between a public trial in a public courtroom—typically filled with individuals with a real interest in the case—and its elevation to an event that allows and encourages thousands to become involved intimately in a case that essentially concerns a small group of private people or entities.

The issue of privacy rights is one that has not been adequately considered or addressed by those who would advocate the broadcasting of trials. This heightened awareness of and concern for privacy rights is a relatively new and important development that further supports the position of the Judicial Conference to prohibit the use of cameras in the courtroom.

Statement of Judge Becker on behalf of the Judicial Conference of the United States, Hrg. 106-1029 (*Allowing Cameras And Electronic Media In The Courtroom*) (Sep. 6, 2000), reprinted in *Perry v. City & Cnty. of San Francisco*, No. 10-16696, 2011 WL 2419868, at *78-79 (9th Cir. Apr. 27, 2011).

Because Mr. Robinson and other trial participants have important privacy rights that would be violated by filming them without their consent this factor weighs heavily against permitting continued electronic media coverage in the circumstances of this case.

(v) whether electronic media coverage will create adverse effects greater than those caused by media coverage without recording or transmitting images or sound;

This issue has been empirically addressed in several studies which are reviewed in the attached declaration of Dr. Christine L. Ruva, PH.D. *See* Ex.2 ¶¶ 20-24. As she concludes in paragraph 24:

Collectively, these studies on modality effect of information presentation demonstrate that visual and multimedia evidence pose a substantially greater risk of prejudicing jurors than auditory evidence or print formats. Visual formats—especially graphic images, video re-creations, and televised coverage—amplify emotional responses, increase perceptions of guilt, and alter liability assessments, while auditory evidence exerts minimal biasing effect. Moreover, jurors often fail to recognize their susceptibility to these influences, and judicial instructions have proven largely ineffective in mitigating such biases. These findings strongly support the need for careful judicial scrutiny of highly visual or emotionally charged evidence and extensive pretrial publicity to preserve the defendant’s constitutional right to a fair trial.

Accord, Mary Angela Bock, *Framing the Accused: The Perp Walk as Media Ritual*, 22 VISUAL COMM. QUARTERLY 206, 218 (2015), <https://doi.org/10.1080/15551393.2015.1105104> (“Experimental research has shown that when in conflict, visual messages trump the linguistic, which means that when coupled with video of a perp walk, the word ‘alleged’ may be meaningless.”).

As this Court found, “[p]hotographs and visual recordings of Mr. Robinson in jail clothing will likely be shared and disseminated in various public platforms” and “there is a strong likelihood that a substantial number of potential jurors in Utah County will view these images and may associate Mr. Robinson’s jail clothing with indicia of guilt.” Dkt. 137, at 5. The Court also found that “[v]isual recordings and photographs of Mr. Robinson shackled may give the impression that he is dangerous and may undermine his presumption of innocence.” *Id.* at 6. Critically, in reference to the present factor, the Court also found that the “danger of prejudice is compounded by technological advancements that allow the images to be manipulated in ways that do not accurately reflect the truth of the court proceedings.” *Id.* at 5. Although the Court has resolved the issued of jail attire, the problem of shackles remains, and as the Court correctly perceived, if the Court allows capturing of images in the courtroom there is nothing to prevent the creation of false images such as the following:



See supra, CYPHER CRIMES, *Charlie Kirk Murder*.



🔥 Kirk Shooting: Street Clothes or Shackles? Shocking Courtroom Debate in Tyler Robinson's Case
 1.1K views · 2 months ago
 Unraveled Crime
 Tyler Robinson's courtroom outfit sparks a shocking legal battle after the Kirk shooting. | Unraveled Crime Please don't just scroll.

Unraveled Crime, Kirk Shooting: Street Clothes or Shackles? Shocking Courtroom Debate in Tyler Robinson's Case (YouTube, Oct. 28, 2025), (<https://www.youtube.com/watch?v=AL-zTcldsYQ>)

The problem is not confined to real or fake images of Mr. Robinson in shackles, but also exists with respect to phony lip reader, body language, or any other type of junk science “analysis” of Mr. Robinson’s in-court demeanor, appearance, lip movement, or gestures, and also extends to manipulation of courtroom scenes to create the impression of “court chaos”, or “shocking” developments. And as Judge Brinkema pointed out in *United States v. Moussaoui*, the worst part of the problem is that once these fake images are created, they “become eligible for preservation by ...the new generation of cameras or permanent placement on Internet web sites and chat rooms (and) may be forever publicly known and available to anyone in the world.” 205 F.R.D. at 187. This means that a prospective juror browsing the internet six months from now, or even a year from now, could easily come across the lip reader confession video which was filmed in blatant violation of the Court’s decorum order, a result that would be devastating to Mr. Robinson’s right to a fair trial. This factor, when considered in light of the extremely damaging material that the electronic media has already created in violation of the decorum order, and the greater likelihood of prejudice visual images create weighs heavily in favor of prohibiting any further live streaming or court photography.

(vi) the adequacy of the court’s physical facilities for electronic media coverage;

The court’s physical facilities do not seem to be large enough to accommodate electronic media coverage without jeopardizing other interests protected by the court’s decorum orders.

All three of the court’s decorum orders provide: “Media representatives shall use their best efforts to avoid visually recording or photographing court employees-except for the judge-without prior approval. This includes court security staff, clerks, and judicial assistants.” Dkt. 28, at 5, ¶ 40; Dkt. 138, at 5, ¶ 40; Dkt. 265, at 5, ¶ 41. They also provide that “No visual recording is permitted of a person’s lips, so as to be decipherable by a lip reader, during conferences involving counsel at counsel tables or bench conferences with the judge.” Dkt. 28, at 5, ¶ 45; Dkt. 138, at 5-6, ¶ 47; Dkt. 265, at 6, ¶ 48.

The broadcast of the court appearance on September 29, 2025, which is still online today, shows multiple clear images of court security staff, clerks, and judicial assistants. *See THE SALT LAKE TRIBUNE, Tyler Robinson, accused of killing Charlie Kirk, has second court hearing* (YouTube, Sep. 29, 2025), https://www.youtube.com/watch?v=fX5LxStO_yI (3.1 million views as of January 11, 2026).

At the appearance on December 11, 2025, the camera was originally set up in the jury box, which would of course not be feasible during the trial itself. The jury box was in close proximity to the defense table and allowed the camera to zoom in on Mr. Robinson’s face, lips, and handcuffs, and to read documents at the defense team table, resulting in the “lip reader” and “body language” broadcasts referenced above. The close proximity of the camera to the defense table also made it difficult for the lawyers to speak in confidence to Mr. Robinson. After it was discovered that the media was violating the decorum order, the camera was relocated, but as indicated above at least one person reported that Mr. Robinson’s restraints were still visible.

At both camera angles, the courtroom is small enough that the camera person could have and did pick up clear images of the court's staff, an obvious violation of the decorum order that creates an irreversible security risk once the live stream is posted on the internet.

Also, at both camera angles, and indeed at any location in the small courtroom, the camera person will still have the capability to zoom in on Mr. Robinson's face and lips, which means that if electronic media coverage is allowed to continue into the trial under the court's current decorum order, both Mr. Robinson and his lawyers will only be able to communicate orally if they cup their hands over their lips. This will create yet another prejudicial image for the media to zoom in on and broadcast during pretrial proceedings, which will no doubt be used by pundits and "experts" as further evidence of Mr. Robinson's guilt, the same conclusion that a jury will likely draw if such conversation takes place in their presence, and this inference will be all the more compelling to those who have viewed the New York Post's online video of the lip reader "confession".

Most importantly, for the defense the alternative to creating such a prejudicial image is to cease having oral conversations with Mr. Robinson in the courtroom, which is both impractical and detrimental to his Sixth Amendment right to the effective assistance of counsel.

The court could consider eliminating the problem by modifying the decorum order to prohibit zooming in on Mr. Robinson. As indicated above, this was attempted and then abandoned in the *Kohberger* case because the media continued to zoom in on the defendant even after being ordered not to do so. *See* Ex. 5. The reason that this solution did not work in *Kohberger* and will not work here lies in the competitive "ethics" practiced by media video and photo journalists. In a study of those "ethics", it was reported based on interviews with video and photo journalists engaged in covering criminal cases that there was a "make or break" pressure

on such journalists to bring back to their editors photographs or videos that could be spun as incriminating, such a photographs of “perp walks”. *See supra* Bock, at 209.

Bock notes that a guiding ethical principle “widespread among journalism scholars” is that “news *constructs* rather than records reality.” *Id.* at 206-07 (emphasis in original). Reflecting the cynicism of such “ethics”, she writes that “[s]hooting video of a perp walk is a work routine for many photo- and television journalists in the U.S.”, and that “it is important to note that the term ‘perpetrator’ automatically implies that this is the person who committed the crime; it’s not a ‘defendant walk’” or ‘alleged perpetrator walk.’ The very name implies that a subject is guilty.” *Id.* at 207. The study queried photo and video journalists about what would happen if they came to their editors without the incriminating shot, and a couple of the photographers on a court stakeout had this to say:

Q: What would happen if he went back without the shot?

His immediate response: “Aww, Christ Almighty . . . condemned to death.” Later, “N” continues about missing the shot: “They’re very condemning at our place. . . . If everybody else got it and you don’t and you were here” He doesn’t finish the thought with words, more of a head shake and sigh.

Photographer #2: “Eh, what can they do? They can be a little mad. . . . It depends on how important it is.”

Id. at 209-10.

Bock also reports that prior journalism studies on the topic had found that “[t]he pressure seems as much a matter of professional pride as externally imposed by management”, and that photo and video journalists are “so determined to do their job that they would meet the demands of a shoot even it meant contradicting their personal ethical beliefs.” *Id.* at 210.

These journalism studies help to explain why the prohibition on zooming in on the defendant did not work in *Kohberger* and why the same solution would not work here. They also

help to explain why the overwhelming thrust of the electronic media coverage in this case has been a prosecutorial-like attempt to incriminate Mr. Robinson through visual images of his restraints, clothing, gestures, and demeanor, aided and abetted by the commentary of biased lawyers, and other pundits and pseudo-experts.

In sum, even this factor weighs in favor of granting the present motion because the size of the courtroom, coupled with the electronic media's track record of violating decorum orders in this and other cases, based on a competitive "ethics" code, raises logistical and other problems that are simply unsolvable.

(vii) the public interest in and newsworthiness of the proceeding;

The public interest in the proceeding in this case is fully protected by allowing the public and all media personal to attend and report on court proceedings in any case. *See Estes*, 381 U.S. at 541 ("It is true that the public has a right to be informed as to what occurs in its courts, but reporters of all media, including television, are always present if they wish to be and are plainly free to report whatever occurs in open court through their respective media.") Discontinuing electronic media live streaming would not prevent either the electronic media or the print media from attending and reporting on the court proceedings in this case.

According to the courts, a criminal case is newsworthy if it is either "notorious" or "sensational." *Id.* at 545 ("[W]e must remember that realistically it is only the notorious trial which will be broadcast, because of the necessity for paid sponsorship."); *Sinclair* 434 P.2d at 307 ("The public is intrigued by the sensational, and thus by crime and the facts surrounding it. Consequently, it is but natural and perhaps necessary that the information media cater to that appetite."). The fallacy of the argument that sensational or notorious cases are newsworthy and

therefore should be televised was pointed out by Chief Justice Warren in his concurring opinion in *Estes*:

For the most part, however, the most important factor that would draw television to the courtroom would be the nature of the case. The alleged perpetrator of the sensational murder, the fallen idol, or some other person who, like petitioner, has attracted the public interest would find his trial turned into a vehicle for television. Yet, these are the very persons who encounter the greatest difficulty in securing an impartial trial, even without the presence of television. This Court would no longer be able to point to the dignity and calmness of the courtroom as a protection from outside influences. For the television camera penetrates this protection and brings into the courtroom tangible evidence of the widespread interest in a case—an interest which has often been fanned by exhaustive reports in the newspapers, television and radio for weeks before trial. The present case presents a clear example of this danger.

381 U.S. at 576-77 (Warren, C.J., concurring).

As demonstrated above, five members of the Court determined in *Estes* and *Hollingsworth* that televising a notorious trial such as the prevent one violates the due process clause of the Fourteenth Amendment. It would turn the logic of these cases on their head and would violate the Supremacy Clause to hold in this case that because the case is either notorious or sensational it is thus newsworthy and should therefore be televised under a state rule.

(viii) potentially beneficial effects of allowing public observation of the proceeding through electronic media coverage;

This factor is specifically addressed by five members of the Court in *Estes*. Justice Clark’s lead opinion reminds us that “[c]ourt proceedings are held for the solemn purpose of endeavoring to ascertain the truth which is the sine qua non of a fair trial.” *Estes*, 381 U.S. at 540. “As has been said, the chief function of our judicial machinery is to ascertain the truth. The use of television, however, cannot be said to contribute materially to this objective. Rather its use amounts to the injection of an irrelevant factor into court proceedings.” *Id.* at 544.

“Embarrassment may impede the search for the truth, as may a natural tendency toward

overdramatization.... Indeed, the mere fact that the trial is to be televised might render witnesses reluctant to appear and thereby impede the trial as well as the discovery of the truth.” *Id.* at 547. “The judge decided that the trial proceedings would be telecast. He announced no restrictions at the time. This emphasized the notorious nature of the coming trial, increased the intensity of the publicity on the petitioner and together with the subsequent televising of the trial beginning 30 days later inherently prevented a sober search for the truth.” *Id.* at 550-51.

Chief Justice Warren, joined by Justices Douglas and Goldberg, agreed that “the purpose of trial [is to serve] as a vehicle for discovering the truth.” They further agreed that

The present record provides ample support for scholars who have claimed that awareness that a trial is being televised to a vast, but unseen audience, is bound to increase nervousness and tension, cause an increased concern about appearances, and bring to the surface latent opportunism that the traditional dignity of the courtroom would discourage. Whether they do so consciously or subconsciously, all trial participants act differently in the presence of television cameras. And, even if all participants make a conscientious and studied effort to be unaffected by the presence of television, this effort in itself prevents them from giving their full attention to their proper functions at trial. Thus, the evil of televised trials, as demonstrated by this case, lies not in the noise and appearance of the cameras, but in the trial participants’ awareness that they are being televised. To the extent that television has such an inevitable impact it undercuts the reliability of the trial process.

Id. at 569-70 (footnote omitted).

They also agreed with Justice Clark’s basic point that far from serving some educational or other legitimate purpose, the use of television in a courtroom “amounts to the injection of an irrelevant factor into court proceedings.” Chief Justice Warren wrote:

It is argued that television not only entertains but also educates the public. But the function of a trial is not to provide an educational experience; and there is a serious danger that any attempt to use a trial as an educational tool will both divert it from its proper purpose and lead to suspicions concerning the integrity of the trial process. The Soviet Union’s trial of Francis Gary Powers provides an example in point. The integrity of the trial was suspect because it was concerned not only with determining the guilt of the individual on trial but also with providing an object lesson to the public. This divided effort undercut

confidence in the guilt-determining aspect of the procedure and by so doing rendered the educational aspect self-defeating.

Id. at 575.

In Justice Harlan's controlling concurring opinion in *Estes*, he was even more emphatic on this point:

The arguments advanced against the constitutional banning of televised trials seem to me peculiarly unpersuasive. It is said that the pictorial broadcasting of trials will serve to educate the public as to the nature of the judicial process. Whatever force such arguments might have in run-of-the-mill cases, they carry little weight in cases of the sort before us, where the public's interest in viewing the trial is likely to be engendered more by curiosity about the personality of the well-known figure who is the defendant (as here), or about famous witnesses or lawyers who will appear on the television screen, or about the details of the particular crime involved, than by innate curiosity to learn about the workings of the judicial process itself. Indeed it would be naive not to suppose that it would be largely such factors that would qualify a trial for commercial television 'billing,' and it is precisely that kind of case where the risks of permitting television coverage of the proceedings are at their greatest.

It is also asserted that televised trials will cause witnesses to be more truthful, and jurors, judges, and lawyers more diligent. To say the least this argument is sophistic, for it is impossible to believe that the reliability of a trial as a method of finding facts and determining guilt or innocence increases in relation to the size of the crowd which is watching it. Attendance by interested spectators in the courtroom will fully satisfy the safeguards of 'public trial.' Once openness is thus assured, the addition of masses of spectators would, I venture to say, detract rather than add to the reliability of the process. See *Cox v. State of Louisiana*, 379 U.S. 559, 562 [(1965)]. A trial in Yankee Stadium, even if the crowd sat in stony silence, would be a substantially different affair from a trial in a traditional courtroom under traditional conditions, and the difference would not, I think, be that the witnesses, lawyers, judges, and jurors in the stadium would be more truthful, diligent, and capable of reliably finding facts and determining guilt or innocence. There will be no disagreement, I am sure, among those competent to judge that precisely the opposite would likely be the case.

381 U.S. at 594-95 (Harlan, J., concurring).

Five members of the Supreme Court could not have been clearer that the function of a trial is to ascertain the truth, "not to provide an educational experience", and that at best

televising the proceedings introduces an “irrelevant factor” into court proceedings and at worst it impedes the search for truth, especially in a notorious case. Given the clarity and sweeping language used by the Court it is disappointing, yet perhaps understandable that a “committee ...made up of judges, courtroom administrators *and media attorneys*”⁴² would write a Final Report that contained a solitary and greatly watered-down description of the significance of *Estes*:

The United States Supreme Court weighed in on the debate in 1965 and again in 1981, ultimately recognizing the right of states to allow such coverage. In *Estes v. Texas*, 381 U.S. 532 (1965), the Supreme Court overturned the conviction of Billy Sol Estes, holding that coverage of the trial, which included some use of cameras, violated Estes’ due process rights. Four justices of the five member majority found that televising trials, at least under then-existing technology, was inherently unconstitutional. The fifth justice took a narrower view based on the specific circumstances of the *Estes* case and suggested that technological advancements might one day lead to a different result.

Final Report, at 9-10.

What about the significance of the Court’s agreement on the principles quoted above?

The Report never says. What about the significance of *Hollingsworth*? The Report never mentions it.

Instead, the Report declares as an *ipse dixit* that “[p]ermitting electronic media coverage will allow the public to actually see and hear what transpires in the courtroom, and to become better educated and informed about the work of the courts.” Final Report, at 11. However, even putting aside the fact that this statement is directly contrary to *Estes*, the premise of this assertion is that the public would actually view lengthy live stream coverage to get “better educated about the work of the courts.” Whatever the situation in the pre-social media days of 2012, the reality today is that people in every state, including Utah, get their news from social media and other

⁴² See *supra*, n. 35.

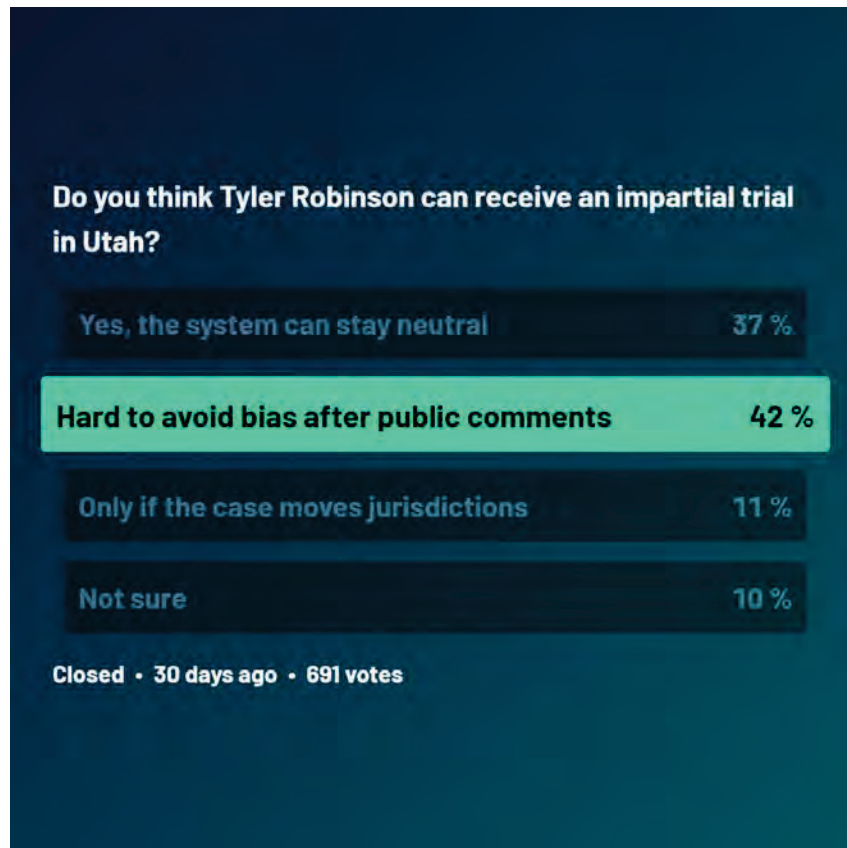
online media outlets, not by watching gavel-to-gavel coverage on television. *See, e.g.,* Art Raymond, *Here's where, and how, Utahns are getting their news*, DESERET NEWS (Dec. 13, 2022, at 7:44 PM MT), <https://www.deseret.com/utah/2022/12/13/23496469/how-do-utahns-get-news-digital-devices-trusted-sources> (statewide poll demonstrated that “[w]hen it comes to how Utahns are consuming their news, a vast majority [91 %] say digital devices are their No. 1 go-to and more than half report they rarely or never get news from television, radio or print publications.”); *2024 Policy Issues Survey February 2024 Likely Voter Poll*, SUTHERLAND INSTITUTE (2024) <https://utahnewsdispatch.com/wp-content/uploads/2024/05/Election-Trust-Forum-VBM-survey-presentation.pdf> (statewide poll of Utah voters indicating that only 19% of those polled listed television as their most preferred media type for receiving news). What these numbers mean is that most Utahns have been and will continue to be receiving their diet of “news” about this case not from television live streaming of the proceedings, but by a stew of online *interpretations* and *repackaging* of unrepresentative samples of that live streaming, mixed in with a large dose of unverified and often unreliable hearsay, served up for consumption by what the State has accurately described in its pleadings as “pundits and other attention seekers with varying levels of mental stability”(Dkt. 109, at 9 (Classified Private)) and by what the Governor has accurately described in his Meet the Press appearance as internet and social media “conflict entrepreneurs.”

That reality helps to explain the results of the study cited above that found that 100% of a sample of social media postings in this case involved conspiracy theories or political agendas. It is those false theories, not the workings of our courts, that the public is being “educated” about.

That reality also helps to explain a recent poll conducted by KUTV. *See* Wendy Hollaran, *Gov. Cox questioned on accusations of prejudicing accused assassin Tyler Robinson's case*,

KUTV (Nov. 25, 2025 at 8:27 PM), <https://kutv.com/news/2news-investigates/do-you-think-tyler-robinson-can-receive-an-impartial-trial-in-utah>.

The poll results were as follows:



Where could 42% of those polled have come up with the idea that it would be “hard to avoid bias after public comments”, and another 11% come up with the idea that Mr. Robinson could not receive a fair trial in Utah County? It could not have been through watching the few live streamed proceedings televised to date, where this Court has stressed from the outset that it is committed to assuring Mr. Robinson a fair trial. *See* Dkt. 239, at 8-9. The only explanation for such numbers is that a substantial number of the public is getting “educated” (i.e., biased) from other sources.

It is also significant that the 2012 Final Report conveniently ignored an important part of the 1994 Federal Report, although the 2012 Final Report claimed was supportive of its conclusions. The 1994 Federal Report contained a content analysis study of broadcasted stories in the pilot program that revealed that the stories did “*a poor job of providing viewers with detail about the legal process.*” 2012 Final Report, Tab 3 at 119 (emphasis added).

Chief Judge Becker, speaking on behalf of the Federal Judicial Conference, described this aspect of the study in his statement and testimony before a Senate Hearing on allowing cameras in the courtroom on September 6, 2000:

V. The Putative Educational Benefit of Cameras in the Courtroom

The proponents of cameras in the courtroom rely, of course, on the putative benefits of public education and understanding of court processes. The Judicial Conference supports that goal but does not agree that cameras in courtrooms will significantly further it. The FJC study analyzed the results achieved during the pilot project. The main approach to the issue lay in a content analysis of evening news broadcast using footage obtained during the pilot program. The content analysis is disquieting. The ninety stories analyzed presented a total of one hour and twenty-five minutes of courtroom footage, with an average of fifty-six seconds of courtroom footage per story. There is not too much educational content in 56 seconds. Moreover, most of the courtroom footage was voiced over by a reporter’s narration. On average, reporters narrated 63% of all courtroom footage. Thus, the witnesses, parties, and attorneys spoke on camera for just over one-third of the total air time. In at least one-half of the cases photographed, information on the nature of the case was provided by reporters or anchors without relying on the participants.

The FJC report also sought to determine specifically the extent to which the stories provided basic educational information about the legal system, examining whether five pieces of information were conveyed to the viewer: (1) identification of the case as a civil matter; (2) identification of the type or proceeding, such as a hearing or trial; (3) statements about whether a jury was present; (4) descriptions of the proceedings on a given day; and (5) discussion of the next step in the legal process. The report concluded as follows:

The vast majority of stories (95% of non-first day stories) did not identify the proceeding covered as a civil matter. In addition, 77% of the stories failed to identify the type of proceeding involved. Almost three-quarters (74%) of all

stories did not provide information about whether a jury was present, including half of the stories that identified the covered proceedings as a trial.

Most stories (74%) did explain what transpired in court on a particular day, such as who testified or what evidence was presented. In multiple-day cases, 90% of the stories explained the daily proceedings, compared to 63% in single-day stories. Seventy-six percent of the daily proceedings in a story were explained by a combination of reporter narration and participant discussion. Only 29% of stories mentioned the next step in the litigation process in the case.

Thus, the stories did not provide a high level of detail about the legal process in the cases covered. In addition, the analysis revealed that increasing the proportion of courtroom footage used in a story did not significantly increase the information given about the legal process.

In view of the foregoing, we suggest that the benefits of televised coverage of courtroom proceedings are overrated (and are certainly far outweighed by the detriments described above). Television news coverage oftentimes appears simply to use the courtroom for a backdrop or a visual image for the news story which, like many of such stories on television, are delivered in short sound bites and not in depth.

The FJC study also reported that Court TV covered 28 cases under the program and that C-SPAN covered 7 cases. However, it does not appear from records available to us that these proceedings were broadcast either in their entirety or continuously. The paucity of cases selected by C-SPAN—seven in two years—suggests that the tediousness, technicality, and sheer length of trials are obstacles to comprehensive media transmission, except in the sensational kinds of cases where the harms described previously are the greatest.

Perry, 2011 WL 2419868, at *82-83.⁴³

The findings of the FJC study severely undermine the “educational benefit” justification normally given for allowing such technology in courts. Additionally, the study found that

⁴³ The hearing transcript at which Chief Judge Becker and many others testified on September 6, 2000 was readily available in 2012 both through the *Perry* opinion cited above and on the internet. See *Allowing Cameras And Electronic Media In The Courtroom: Hearing on S.721 Before the S. Comm. On the Judiciary*, 106th Cong.1029 (2000), <https://www.govinfo.gov/content/pkg/CHRG-106shrg73484/html/CHRG-106shrg73484.htm>. It is curious that neither this 2000 hearing transcript nor the FJC study is mentioned anywhere in the 2012 Final Report, yet the report attaches as an exhibit a 1996 article by a media lawyer.

“plaintiffs and their attorneys received more air time than defendants and their attorneys.” 2012 Final Report, Tab 3, at 119. The lack of balance in covering the parties of litigation necessarily presented a biased, incomplete account of the trial.

It is therefore not true that “[p]ermitting electronic media coverage will allow the public to actually see and hear what transpires in the courtroom, and to become better educated and informed about the work of the courts.” *Id.* at 11. That result has no chance of happening unless the Court closes the spigot being used by pundits and the internet and social media “conflict entrepreneurs” to generate their false content. *Cf. Sheppard*, 384 U.S. at 361-62 (explaining that as a means of addressing and averting harm to the criminal justice process inflicted by prejudicial pretrial publicity, the trial court should have “proscribed extrajudicial statements by any lawyer, party, witness, or court official which divulged prejudicial matters” and that had the trial court done so, “the news media would have soon learned to be content with the task of reporting the case as it unfolded in the courtroom—not pieced together from extrajudicial statements.”).

(ix) any other factor affecting the fair administration of justice.

There are a number of considerations that the Court should consider under the fair administration of justice factor that all weigh in favor of granting the instant motion.

First, as referenced above, it appears that the State agrees with the defense that the Court should not permit further electronic media live streaming or photographic coverage. The positive or negative effects of cameras depend on the facts and circumstances of each case. The parties, who are familiar with the witnesses who will testify, the evidence that will be offered, and other facts that might indicate the potential for prejudice, are in the best position to determine the appropriateness of cameras. It is also true, as the judge stated in the *Kohberger* case, that

“[a]greement between the State and Defense on any issue in a capital case is rare, [which should] further confirm[] to the Court the legitimacy and level of concern counsel have raised.” Ex. 5 at 6 (quotation omitted).

Second, as was concluded in *United States v. Trump*,

Messages designed to generate alarm and dread, and to trigger extraordinary safety precautions, will necessarily hinder the trial process and slow the administration of justice. For example, trial personnel and participants will be distracted or delayed by objectively reasonable concerns about their safety and that of their family members, as well as by having to devote time and resources to adopting safety measures or working with investigators.

88 F.4th at 1014.

This no mere general concern in this case where the inflammatory rhetoric of the President and his supporters were specifically designed to and have had the effect of “generat[ing] alarm and dread, and [of] trigger[ing] extraordinary safety precautions.” *See also* Ex. 5, at 7 (“Further, the duty on the bailiffs within the courtroom to ensure a safe and secure environment is being eclipsed by the burden to monitor media and the public who may be audio recording, videoing, or photographing the proceedings.”).

A related concern is that the Court and both the defense and prosecution teams have already had to devote a significant amount of their time and resources to litigating issues related to the electronic media’s insistence on not only attendings court proceedings, but on live streaming them. Given the number of lawyers who have appeared in this case on behalf of the media, the constant need to be on the lookout for decorum order violations, and the reality that there will be future developments that will no doubt necessitate revisiting any order allowing electronic media coverage, there is no end in sight as to the need to pursue what is essentially collateral litigation far removed from what should be the focus of the Court and both teams in their representation of their clients in this death penalty case. *See Trump*, 88 F.4th at 1014

(“requiring a court to conduct a mini-trial on that inquiry while readying a high-profile case for trial would itself divert and delay the criminal justice process.”).

CONCLUSION

Based upon the foregoing, this Court should enter an order pursuant to Utah Rule of Judicial Administration Rule 4-401.01 and the constitutional provisions cited above that prohibits or restricts electronic media coverage in this cases because: (1) such action is necessary to preserve and protect the constitutional provisions set forth above; (2) under Rule 4-401.01, further electronic media coverage should be prohibited or restricted because (a) the electronic media coverage in this case has not been and will not in the future be for the predominant purpose of journalism or dissemination of news to the public (Rule 4-401.01(2)(A)); (b) the reasons for doing so are sufficiently compelling to outweigh any presumption that electronic media coverage by a news reporter shall be permitted (Rule 4-401.01(2)(A)); (c) a judge may terminate or suspend electronic media coverage at any time without prior notice if the judge finds that continued electronic media coverage is no longer appropriate based upon consideration of one or more of the factors in Paragraph (2)(B) (Rule 4-401.01(3)(B) ; and (d) the electronic media has violated this Court’s decorum order so prohibition or restrict of electronic media coverage is warranted under Rule 4-401.01(5).

//

//

//

//

//

RESPECTFULLY SUBMITTED this 16th day of January, 2026.

/s/ Michael N. Burt
Michael N. Burt

/s/ Kathryn N. Nester
Kathryn N. Nester

/s/ Richard G. Novak
Richard G. Novak

/s/ Staci Visser
Staci Visser

Attorneys for Defendant, Tyler James Robinson

CERTIFICATE OF SERVICE

This is to certify that a true and correct copy of the foregoing was served via the Court's electronic filing system on the 15th day of December, which served all attorneys of record.

/s/ Staci Visser

Exhibit 1

Court Order No Bail (Dkt. 4)

The Order of the Court is stated below:

Dated: September 12,
2025
08:40:00 AM

/s/ SHAWN R HOWELL

DISTRICT COURT JUDGE



**IN THE PROVO DISTRICT COURT DISTRICT COURT
FOR UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH

v.

Tyler James Robinson

Order to Hold Without Bail

Probable Cause ID : 505275

Submission ID : 3307381

Judge : SHAWN R HOWELL

Based on the affirmation of Brian Davis, the arresting officer, the undersigned magistrate finds that probable cause existed for the arrest without a warrant of Tyler James Robinson.

The current offense is a Capital Felony and the court finds substantial evidence to support the charge.

Therefore, the court orders that Tyler James Robinson is to be held without bail.

000001-00001

Exhibit 2

Declaration of C. Ruva, Ph.D

Kathryn N. Nester (UT #13967)
NESTER LEWIS PLLC
40 S 600 E
Salt Lake City, UT 84102
Telephone: (801) 535-4375
Email: kathy@nesterlewis.com

Richard G. Novak, *pro hac vice*
RICHARD G. NOVAK, APLC
65 North Raymond Avenue, Suite 320
Pasadena, CA 91103
Telephone: 626-578-1175

Michael N. Burt, *pro hac vice*
LAW OFFICE OF MICHAEL BURT PC
1000 Brannan Street Suite 400
San Francisco, California 94103
Telephone: 415-522-1508

Staci Visser (14358)
BROWN, BRADSHAW & MOFFAT
422 N 300 W
Salt Lake City, UT 84103
Telephone: (801) 532-5297

Attorneys for Tyler James Robinson

IN THE FOURTH JUDICIAL DISTRICT COURT, PROVO DEPARTMENT

IN AND FOR THE COUNTY OF UTAH, STATE OF UTAH

STATE OF UTAH, Plaintiff, vs. TYLER JAMES ROBINSON, Defendant.	DECLARATION OF CHRISTINE L. RUVA, PH.D., IN SUPPORT OF DEFENDANT'S MOTION TO EXCLUDE CAMERAS FROM THE COURTROOM Case No. 251403576 Honorable Tony F. Graf, Jr.
--	---

DECLARATION OF CHRISTINE L. RUVA, PH.D.

I, Christine L. Ruva, declare as follows:

1) I am a Professor of Psychology and Sarasota-Manatee campus chair of psychology at the University of South Florida. I earned my Ph.D. in Psychology from the University of South Florida in the area of Cognitive and Neural Sciences, where I focused on the application of cognitive psychology to the legal system. For over 25 years I have explored the effects of pre-trial publicity on jurors' perceptions, emotions, memories, interpretation of trial evidence, deliberation behavior, and verdicts. My research also explores how individual differences of jurors and defendants influence jurors' perceptions, deliberation behaviors, and verdicts. My research also explores the effectiveness of remedies available to the courts for reducing juror bias (e.g., deliberation, expert testimony, jury instructions, voir dire, and implicit bias remedies). I utilize both quantitative and qualitative (i.e., content analysis of jury deliberations) methods. My research has been published in a variety of high-impact psychology and criminology journals including the following: *Criminal Justice and Behavior*; *Journal of Experimental Psychology-Applied*; *Law and Human Behavior*; *Psychology, Crime and Law*; and *Psychology, Public Policy, and Law*. My full Curriculum Vitae is attached as Appendix 1.

2) I have been asked by counsel for Mr. Robinson to review, evaluate, and update the empirical research discussed in the Final Report by the Utah Judicial Council Study Committee on Technology (April 10, 2012),

https://legacy.utcourts.gov/committees/Tech_in_Courtrooms/2012.03.23%20Final%20Report.pdf

which recommended adoption of what is now UT R JUD ADMIN Rule 4-401.01 (Electronic Media Coverage of Court Proceedings). I have also been asked to summarize any empirical research which bears on the various factors cited in that Rule, which requires that when

determining whether the presumption of electronic media coverage has been overcome and whether such coverage should be prohibited or restricted beyond the limitations in this rule, a judge shall consider some or all of the following factors:

- (i) whether there is a reasonable likelihood that electronic media coverage will prejudice the right of the parties to a fair proceeding;
- (ii) whether there is a reasonable likelihood that electronic media coverage will jeopardize the safety or well-being of any individual;
- (iii) whether there is a reasonable likelihood that electronic media coverage will jeopardize the interests or well-being of a minor;
- (iv) whether there is a reasonable likelihood that electronic media coverage will constitute an unwarranted invasion of personal privacy of any person;
- (v) whether electronic media coverage will create adverse effects greater than those caused by media coverage without recording or transmitting images or sound;
- (vi) the adequacy of the court's physical facilities for electronic media coverage;
- (vii) the public interest in and newsworthiness of the proceeding;
- (viii) potentially beneficial effects of allowing public observation of the proceeding through electronic media coverage; and
- (ix) any other factor affecting the fair administration of justice.

(Rule 4-401.01(2)(B).)

I. SUMMARY OF RESEARCH

3) Decades of research by cognitive psychologists into the causes and impacts of bias, as well as individuals' ability to self-identify bias, establish several empirical findings that

bear on the factors listed in Rule 4-401.01(2)(B) in cases where pervasive and inflammatory pre-trial publicity (PTP) has occurred.

4) *First*, pervasive and inflammatory pre-trial publicity, especially live streaming of all proceedings, can lead to deep-seated bias. This bias is not merely an affinity for the victim or aversion to the defendant. It is cognitive, and as such, it fundamentally affects how jurors will process evidence during the trial and deliberate in the jury room.

5) *Second*, these effects are heightened in cases involving notorious crimes such as alleged assassinations, terrorism, or violence against children. And, in today's world of pervasive social media and live streaming of all proceedings, where information is ubiquitous, is pinpoint-tailored to the fears and beliefs of the reader and viewer, and may well be inaccurate, the impact of pre-trial publicity is especially acute.

6) *Third*, cognitive bias can be unconscious, making it difficult even for the most self-aware and well-intentioned potential juror to identify and self-report in response to general questions about bias. In fact, individuals with unconscious bias may be unduly confident in their ability to disregard pre-trial publicity and judge impartially. Once seated, it can be difficult or impossible for jurors to set this bias aside.

7) In short, scientific research into bias confirms what logic and good sense suggest: merely questioning potential jurors about their exposure to and unconscious bias created by pervasive and inflammatory pre-trial publicity will not be sufficient to eliminate such bias. While extended individual questioning of jurors to elicit bias in high publicity cases is certainly

preferable to group questioning, the fact remains that unconscious bias caused by such publicity remains largely intractable.¹

II. LIVE STREAMING OF ALL PROCEEDINGS IN A NOTORIOUS CRIMINAL CASE CAN CAUSE BIAS

A. Live Streaming of Notorious Crimes Can Be Pervasive, Slanted, Sensational, and Emotional—All of Which Can Lead to Bias.

8) Media coverage of notorious crimes is different. The news media, and today, social media, cover crimes every day, and a steady drumbeat of even serious crimes makes most criminal coverage routine. But some crimes receive sensational coverage because they involve public figures, are especially heinous, extraordinarily violent, or threaten the community at large. And sensational coverage, by its sheer volume and by its content, has impacts that the everyday crime beat does not, especially when it is live streamed and then filtered through social media and other internet outlets.

9) The volume of coverage in notorious cases can be overwhelming.² And studies show that the quantity of pre-trial publicity to which jurors are exposed affects their level of bias. Across studies extending back several decades, researchers have demonstrated that individuals exhibit a greater propensity to pre-judge defendants when they are exposed to more publicity—both as a general conclusion (i.e., showing a general propensity to prejudgment based on an

¹ Ruva, C. L., *Pretrial publicity's effects on jurors' and judges' decisions*, in M. K. Miller, in L. A. Yelderman, M. T. Huss, & J. A. Cantone (Eds.), *The Cambridge Handbook of Psychology and Legal Decision-Making* 110 (2024) (“[W]hile extended questioning aids the identification of jurors’ explicit biases, it is unlikely to uncover jurors’ unconscious biases or reduce juror bias.”)(discussing the empirical studies on this issue).

² Dorothy J. Imrich et al., *Measuring the Extent of Prejudicial Pretrial Publicity in Major American Newspapers: A Content Analysis*, 45 J. COMM. 94, 104 (1995), <https://doi.org/10.1111/j.1460-2466.1995.tb00745.x> (finding that, over an eight-week period, 27 percent of suspects described in crime news stories were associated with prejudicial publicity, as defined by the American Bar Association at that time).

increase in the amount of exposure³), and in response to specific thresholds (i.e., showing that prospective jurors exposed to at least three newspaper articles about a crime were more likely to believe there was ample evidence against a defendant⁴). This effect has been demonstrated in both naturally occurring and controlled settings, confirming the validity of the proposition.⁵

10) Ruva (2018) reviewed research on how the amount of pre-trial publicity influences juror bias, concluding that its effects are cumulative.⁶ DeLuca (1979) found that mock jurors exposed to three pieces of anti-defendant information were more likely to convict than those exposed to only one or two pieces.⁷ Consistent with this, Daftary-Kapur, Penrod, O'Connor, and Wallace (2014) reported that jurors who read a high amount of anti-defendant PTP (ten news stories) were significantly more likely to render guilty verdicts than those exposed

³ See, e.g., Edmond Costantini & Joel King, *The Partial Juror: Correlates and Causes of Prejudgment*, 15 LAW & SOC'Y REV. 9, 36 (1980-81) (finding a strong connection between the amount of pre-trial publicity exposure and propensity to prejudge a defendant).

⁴ Gary Moran and Brian L. Cutler, *The Prejudicial Impact of Pretrial Publicity*, 21 J. APPLIED SOC. PSYCHOL. 345, 359 (1991), <https://psycnet.apa.org/doi/10.1111/j.1559-1816.1991.tb00524.x>.

⁵ Tarika Daftary-Kapur et al., *Examining Pretrial Publicity in a Shadow Jury Paradigm: Issues of Slant, Quantity, Persistence and Generalizability*, 38 LAW & HUM. BEHAV. 462, 474 (2014) (comparing mock jurors who were naturally exposed to pre-trial publicity with mock jurors who were exposed to pre-trial publicity as part of the study, and finding that both groups were significantly influenced by the slant and quantity of the publicity to which they were exposed). See also Nancy Mehrkens Steblay et al., *The Effects of Pretrial Publicity on Juror Verdicts: A Meta-Analytic Review*, 23 LAW & HUM. BEHAV. 219, 223 (1999) (meta-analysis of 44 empirical studies representing 5,755 subjects finding that subjects exposed to negative pre-trial publicity are more likely to find a defendant guilty than subjects exposed to less or no negative pre-trial publicity).

⁶ Ruva, C. L. (2018). From the headlines to the jury room: An examination of the impact of pretrial publicity on jurors and juries. In M. K. Miller and B. H. Bornstein (Eds.). *Advances in Psychology and Law*. (Vol. 3, pp. 1-39). New York, NY: Springer. https://doi.org/10.1007/978-3-319-75859-6_1

⁷ DeLuca, A. (1979). *Tipping the scales of justice: The effects of pretrial publicity*. (Unpublished master's thesis). Iowa State University, Ames.

to a lower amount (five stories). Conversely, greater exposure to pro-defendant PTP reduced the likelihood of guilty verdicts compared to lower exposure.⁸

11) Survey research corroborates these findings: as potential jurors' reported knowledge of a case increases, so does bias against the defendant (Costantini & King, 1980/1981⁹; Moran & Cutler, 1991¹⁰). Notably, Moran and Cutler found that increased case knowledge did not reduce jurors' self-reported confidence in impartiality, suggesting bias operates outside conscious awareness. Shaffer (1986) further demonstrated that both the number of PTP articles and respondents' estimated exposure predicted attributions of guilt in murder cases.¹¹

12) Collectively, these studies indicate that greater PTP exposure amplifies juror bias, increasing the likelihood of prejudicial verdicts. This supports the Supreme Court's recognition of pre-trial publicity's biasing influence and the American Bar Association's ethical rules addressing pervasive publicity.

13) Media coverage of notorious crimes is likely to be sensational and slanted against the defendant. A 2018 content analysis of over 1,800 pre-trial newspaper articles regarding 20 California capital cases from 1979 to 2005 found that certain highly prejudicial elements recur repeatedly in the coverage. Seventy-five percent of the articles contained some form of negative

⁸ Daftary-Kapur, T., Penrod, S. D., O'Connor, M., & Wallace, B. (2014). Examining pretrial publicity in a shadow jury paradigm: Issues of slant, quantity, persistence and generalizability. *Law and Human Behavior*, 38, 462-477. <http://doi.org/10.1037/lhb0000081>

⁹ Costantini, E., & King, J. (1980/1981). The partial juror: Correlates and causes of prejudgment. *Law and Society Review*, 15, 9-40. <http://doi.org/10.2307/3053221>

¹⁰ Moran, G., & Cutler, B.L. (1991). The prejudicial impact of pretrial publicity. *Journal of Applied Social Psychology*, 21, 345-367. <http://doi.org/10.1111/j.1559-1816.1991.tb00524.x>

¹¹ Shaffer, R. A. (1986). Pretrial publicity: Media coverage and guilt attribution. *Communication Quarterly*, 34, 154-169. <http://doi.org/10.1080/01463378609369630>

information, and 50 percent included information that the study authors classified as “sensationalism,” which they defined as “any description of the crime that uses extreme, heinous, shocking, or emotional language.” Negative character statements about the suspect, such as “cop killer” or “monster,” appeared in 32 percent of the articles. By contrast, only 19 percent of the articles included positive statements about the suspect.¹² Similarly, a 1995 survey of news stories about crime across 14 different newspapers over an eight-week period found that 27 percent of the reports about a criminal suspect contained content that the ABA described in its then-most recent Model Rules as “potentially prejudicial,” including negative statements about the suspect’s character and guilt.¹³

14) The rise of social media has exponentially increased the quantity and quality of information regarding notorious crimes available to the public. And social media not only is pervasive, it also spreads misinformation. A study in the aftermath of the Boston Marathon Bombing showed that misinformation related to the bombing was rampant on Twitter, and largely went uncorrected. For example, a false rumor circulated about a young girl killed while running the marathon, accompanied by a picture of a young girl. Over 92,000 tweets about this story followed the attacks. Of those, 90,668 (or 97.7 percent) included misinformation, and only 2,046 (or 2.2 percent) included corrections.¹⁴ In addition, several major news sources—including

¹² Shirin Bakhshay & Craig Haney, *The Media’s Impact on the Right to a Fair Trial: A Content Analysis of Pretrial Publicity in Capital Cases*, 24 PSYCHOL., PUB. POL’Y, & L. 326, 333 (2018), <https://psycnet.apa.org/doiLanding?doi=10.1037%2Flaw0000174>.

¹³ Imrich et al., *supra* note 2, at 110.

¹⁴ Kate Starbird et al., *Rumors, False Flags, and Digital Vigilantes: Misinformation on Twitter after the 2013 Boston Marathon Bombing*, presented at ICONFERENCE (2014), https://faculty.washington.edu/kstarbi/Starbird_iConference2014-final.pdf.

CNN, The New York Post, and The Boston Globe—tweeted inaccurate reports after the bombing.¹⁵

15) In short, the volume and nature of traditional and social media coverage of notorious crimes greatly increases the risk that prospective jurors for these cases may already have formed beliefs about the case—which can lead to biased decision-making.¹⁶ “Predecisional distortion theory” predicts that jurors will weigh trial evidence to support their pre-existing beliefs rather than objectively;¹⁷ and studies show that jurors exposed to negative pre-trial

¹⁵ Mary Kate Brogan, *How Twitter is Changing Narrative Storytelling: A Case Study of the Boston Marathon Bombings*, 6 ELON J. UNDERGRADUATE RES. COMM. 28, 44 (2015); David Carr, *The Pressure to Be the TV News Leader Tarnishes a Big Brand*, N.Y. TIMES, Apr. 21, 2013, <https://www.nytimes.com/2013/04/22/business/media/in-boston-cnn-stumbles-in-rush-to-break-news.html>.

¹⁶ Greg Barns & Kaylene Downey, *Participation in Social Media by Potential Jurors*, 5 GRIFFITH J. OF L. & HUM. DIGNITY 88, 96 (2017) (noting the unique challenges posed by social media because unlike other forms of publication, the cumulative nature of social media commentary renders it difficult to isolate specific prejudicial material). *See also*, Katie Grace Frisbee, *Caught In The Content Tornado: How To Protect Violent-Crime Trials From The Prejudicial Effects Of Live Streaming*, 74 Duke Law Journal 1053 (2025) (“The content tornado... refers to the whirlwind of fact, fiction, and opinion that emerges when violent-crime trials are live streamed on social media. This concept describes how live streamed trials generate emotional and moralized content that gets amplified by social media algorithms. The emotional nature of violent-crime trials—fueled by anger, grief, and public passion—draws viewers in, and as they engage with the content, they become more likely to produce their own secondary content on the subject. This user-generated secondary content—in the form of videos, comments, and posts—amplifies the tornado and mixes accurate information with misinformation, exaggerations, and public biases.”)

¹⁷ *See, e.g.*, Kurt A. Carlson & J. Edward Russo, *Biased Interpretation of Evidence by Mock Jurors*, 7 J. EXPERIMENTAL PSYCHOL.: APPLIED 91, 96 (2001) (foundational study finding that potential jurors distort trial evidence in support of the side currently leading in their minds instead of weighing each piece of evidence individually for its probative value); Lorraine Hope et al., *Understanding Pretrial Publicity: Predecisional Distortion of Evidence by Mock Jurors*, 10 J. EXPERIMENTAL PSYCHOL.: APPLIED 111, 115 (2004), <https://doi.apa.org/doi/10.1037/1076-898X.10.2.111> (finding that study participants who viewed negative pre-trial publicity before a mock trial were more likely to view the prosecution as the leader during trial than a control group); Christine L. Ruva et al., *Positive and Negative Pretrial Publicity: The Roles of Impression Formation, Emotion, and Predecisional Distortion*, 38 CRIM. JUST. & BEHAV. 511, 526 (2011), <https://doi.org/10.1177/0093854811400823>.

publicity weigh the evidence to support anti-defendant out-comes. A study of 30 mock-jury deliberations found that mock jurors exposed to anti-defendant pre-trial publicity were significantly more likely than unexposed jurors to discuss ambiguous trial evidence in a manner that supported the prosecution; and the exposed jurors rarely interpreted new evidence in a manner supporting the defendant.¹⁸ Another study found that jurors exposed to pre-trial publicity distorted witness testimony in the direction consistent with their exposure—i.e., jurors exposed to anti-defendant pre-trial publicity demonstrated a pro-prosecution bias, while jurors exposed to pro-defendant pre-trial publicity exhibited a pro-defense bias.¹⁹

16) Research also shows that pre-trial publicity that generates emotions such as anger and disgust has a significant impact on judgments—more so than purely factual publicity—and notorious crimes subject to exhaustive reporting can generate substantial emotional responses.²⁰ A 2014 study asked over 300 participants to read press articles about a criminal trial in France and found that (a) the news stories aroused negative emotions, and (b) reading the stories was a predictor of adverse judgments. At the first step, the study analyzed the articles for “incriminating” versus “crime story” information, with “incriminating” information simply

¹⁸ Christine L. Ruva & Michelle A. LeVasseur, *Behind Closed Doors: The Effect of Pretrial Publicity on Jury Deliberations*, 18 PSYCHOL., CRIME & L. 431, 445 (2012).

¹⁹ Ruva et al., *supra* note 17, at 526.

²⁰ See, e.g., Rafaële Dumas et al., *Press Articles and Influence Processes: The Different Effects of Incriminating Information and Crime Story Information on Judgments of Guilt*, 20 PSYCHOL., CRIME & L. 659, 666–67 (2014), <http://dx.doi.org/10.1080/1068316X.2013.854790>; Geoffrey P. Kramer et al., *Pretrial Publicity, Judicial Remedies, and Jury Bias*, 14 LAW & HUM. BEHAV. 409, 431–32 (1990), <https://doi.org/10.1007/BF01044220>. See also, Graham Tomlin, *Charlie Kirk: the problem is not murder but anger: How to confront the rage in politics, in media, and in ourselves* (September 12, 2025), <https://www.seenandunseen.com/charlie-kirk-problem-not-murder-anger> (describing how the killing of Charlie Kirk has led not only to “the red-hot furious kind [of anger] where your blood boils and your temperature rises” but also to “a hardened, determined malice, a fixed hatred of the person who provoked your anger in the first place and a determination to get your revenge, or to silence them once and for all.”)

designating the defendants as having committed a crime and “crime-story” information presenting the story of the crime, often in graphic fashion. Study participants then were assigned to read one of the articles, rate their anger arousal, and report their judgment about the defendant. While both incriminating information and crime-story information increased juror propensity to judge the defendant as guilty, crime-story information aroused anger and corresponded with higher guilty judgment rates.²¹

17) Similarly, a 2003 study analyzed 50 mock jurors’ recall of factual versus “affective” pre-trial publicity. The 50 mock jurors were naturally exposed to “extensive and prolonged” pre-trial publicity about a fraud case and then interviewed to determine what they remembered about the case from that publicity. Their recall was coded as either factual or affective/ evaluative, with factual recall referring to neutral data points about the crime (e.g., “The defendants are accused of fraud.”) and affective recall meaning memories reported with an emotion or opinion (e.g., “They were all in on it . . . ruthless con-artists.”). The mock jurors then watched a highly realistic depiction of the actual trial and were interviewed throughout about their reasoning processes, whether they thought the defendants were guilty, and how confident they were in their verdict. The study found that those mock jurors who had affective recall of publicity were more likely to be pro-prosecution and were more confident in finding the defendant guilty after watching a mock trial.²² Mock jurors who demonstrated that they recalled purely factual information from pre-trial publicity, as opposed to more affective or emotional information, did not show the same tendencies. Therefore, the study found that “an affective

²¹ Dumas et al., *supra* note 20, at 667.

²² Terry M. Honess et al., *Factual and Affective/Evaluative Recall of Pretrial Publicity: Their Relative Influence on Juror Reasoning and Verdict in a Simulated Fraud Trial*, 33 J. APPLIED SOC. PSYCHOL. 1404, 1412–13 (2003), <https://psycnet.apa.org/doi/10.1111/j.1559-1816.2003.tb01955.x>.

response to [pre-trial publicity] appears to have greater influence on subsequent reasoning about trial evidence and verdict judgment than does purely factual recall.”²³

18) Indeed, studies consistently find that jurors who have experienced anger and disgust prior to hearing the evidence are more likely to be punitive than jurors who report less anger.²⁴ Some scholars theorize that these emotions lead to a desire to place blame, which finds an outlet in the criminal defendant.²⁵ Other researchers suggest that anger increases one’s sense of certainty, leading one to consider fewer factors when forming judgments—i.e., that individuals experiencing anger do not readily accept new information or process all information systematically.²⁶

19) Research also shows that the passage of time does not dampen the effect of emotional pre-trial publicity, especially in high profile cases.²⁷ A 1990 study found that waiting

²³ *Id.* at 1414.

²⁴ See, e.g., Narina Nunez et al., *The Impact of Emotions on Juror Judgments and Decision Making*, 2 ADVANCES IN PSYCHOL. & L. 55, 59–60 (B. H. Bornstein & M. K. Miller eds., 2016), https://doi.org/10.1007/978-3-319-43083-6_3.

²⁵ *Id.* at 60. See also Julie H. Golberg et al., *Rage and Reason: The Psychology of the Intuitive Prosecutor*, 29 EUR. J. SOC. PSYCHOL. 781, 789 (1999), [https://doi.org/10.1002/\(SICI\)1099-0992\(199908/09\)29:5/6%3C781::AID-EJSP960%3E3.0.CO;2-3](https://doi.org/10.1002/(SICI)1099-0992(199908/09)29:5/6%3C781::AID-EJSP960%3E3.0.CO;2-3) (finding participants previously primed to be angry were more punitive in later judgments when they believed the individual responsible for the first offense went unpunished versus when they believed justice had already been served).

²⁶ Neal Feigenson, *Jurors’ Emotions and Judgments of Legal Responsibility and Blame: What Does the Experimental Research Tell Us?*, 8 EMOTION REV. 26, 26 (2016), <https://doi.org/10.1177%2F1754073915601223>. See also Jessica M. Salerno & Liana C. Peter-Hagene, *The Interactive Effect of Anger and Disgust on Moral Outrage and Judgments*, 24 PSYCHOL. SCI. 2069, 2074 (2013) (measuring how anger and disgust predict moral outrage and how all three influence confidence in a guilty verdict). Salerno and Peter-Hagene found that disgust consistently produces moral outrage in mock jurors, regardless of anger levels, but that anger requires at least moderate levels of disgust to produce moral outrage. However, both anger and disgust increase the mock jurors’ confidence in a guilty verdict when combined with moral outrage. *Id.*

²⁷ Tarika Daftary-Kapur et al., *supra* note 5, at 474 (2014), <https://doi.org/10.1037/lhb0000081> (finding that even when a trial took place 14 months after a publicized crime, the impact of pre-

twelve days between exposure to emotional publicity and trial did not reduce the biasing effects of that publicity, while the wait did reduce the effect of factual publicity. Nearly 800 mock jurors were exposed to either emotional or factual publicity before watching a highly realistic mock criminal trial. The jurors were asked to report their verdict, their confidence in their verdict, and an estimate of the likelihood of defendant's guilt. Some of the mock jurors deliberated immediately after observing the trial, and others waited twelve days before deliberating. The results showed that the negative emotions of those exposed to emotional publicity remained relatively constant, meaning "subjects' memory of their emotional reactions was not diluted by the passage of several days."²⁸ In fact, for individuals suffering from acute stress and trauma, further addressed below, the correlation between trauma and anger may increase over time.²⁹

20) Finally, the modality (visual, auditory, or text) of pre-trial publicity and case information matters and has differential effects on juror bias, emotions, and memory: Ogloff and Vidmar (1994) conducted an juror-simulation experiment to compare the relative effects of television and print media on juror bias in a highly publicized child sexual abuse case.³⁰

trial publicity was not dampened). The study analyzed the persistence of the effects of pre-trial publicity by assessing participants' guilt ratings two weeks before trial, during the course of the trial, and immediately after the trial and found that pre-trial publicity effects persisted throughout the course of the trial. *See also*, Imrich et al, *supra* n.2 at 111 ("[I]t is likely that particularly sensational cases, singled out for media attention (eg, the O. J. Simpson murder case), are the ones most closely followed by the most people, particularly as such cases get closer to trial and more lurid details become available; Gunter, Furnham, and Gietson (1984) discuss increased memory for violent print news. Several experimental studies have found that when prejudicial information is presented to mock jurors just prior to trial evidence, jurors are likely to be influenced.")

²⁸ Kramer et al., *supra* note 20, at 421, 431–32.

²⁹ Ulrich Orth & Elias Wieland, *Anger, Hostility, and Posttraumatic Stress Disorder in Trauma-Exposed Adults: A Meta-Analysis*, 74 J. CONSULTING & CLINICAL PSYCHOL. 698, 703 (2006), <https://doi.apa.org/doi/10.1037/0022-006X.74.4.698>.

³⁰ Ogloff, J. R. P., & Vidmar, N. (1994). The impact of pretrial publicity on jurors: A study to compare the relative effects of television and print media in a child sex abuse case. *Law and Human Behavior*, 18(5), 507–525. <https://doi.org/10.1007/BF01499171>

Participants were randomly assigned to receive pre-trial publicity through newspaper articles, televised excerpts of testimony, both media types, or control condition. The study found that exposure to television coverage produced significantly stronger emotional reactions, greater belief in the credibility of victims' testimony, higher perceptions of the defendant's guilt, and harsher sentencing recommendations than exposure to print media alone. Combined exposure to both television and print media had the most pronounced biasing effect. Importantly, despite these differences, participants across all conditions reported similar confidence in their ability to remain impartial, indicating that jurors may be unaware of their own bias. These findings underscore that vivid, visual television coverage exerts a more powerful prejudicial influence than print media, and that cumulative exposure amplifies this effect. The authors note that such bias likely stems from emotional arousal rather than factual differences, raising concerns about the fairness of trials in cases involving extensive televised coverage (Ogloff & Vidmar, 1994).

21) Edwards and Mottarella (2014) examined the prejudicial impact of visual versus auditory evidence on mock-juror emotion and verdict decisions in a murder case.³¹ Visual evidence conditions included graphic images, neutral images, or no images; auditory evidence consisted of a 911 call recording; and jury instructions were either standard or revised to warn against emotional bias. Results indicated that graphic visual evidence significantly increased conviction rates (31.3%) compared to neutral (26.3%) or no images (19.8%), whereas auditory evidence had no significant effect on verdicts or emotional responses. Emotional state changes were modest and did not mediate the relationship between evidence type and verdict, suggesting visual evidence influences decisions independently of emotional arousal. Revised jury

³¹ Edwards, E. R., & Mottarella, K. E. (2014). Preserving the right to a fair trial: An examination of prejudicial value of visual and auditory evidence. *North American Journal of Psychology*, 16(2), 397–414.

instructions aimed at reducing emotional bias were ineffective and, in fact, increased conviction rates. According to Edwards and Mottarella (2014), and consistent with Ogloff and Vidmar (1994), this research suggests that when case-related photos circulate before trial (e.g., in news sites or social feeds), the same mechanism can prime community members toward guilt judgments, with this bias persisting independent of their conscious emotional reports. Applied to trial recordings: when courts permit video that includes still frames or inserts of graphic visuals (crime-scene images displayed during recorded proceedings or streamed hearings), those visuals can create distinctive, durable memory traces that affect perceived credibility and culpability, thereby biasing adjudicative assessments even if jurors believe they can remain impartial (Edwards & Mottarella, 2014).

22) Fishfader and colleagues (1996) examined whether the mode of evidence presentation (print transcripts, videotaped testimony, or videotaped testimony plus a video re-creation) affects juror retention, emotional state, liability assessments, and damage awards in a wrongful death case.³² Videotaped formats significantly increased emotional reactions versus print. Changes in mood were inversely correlated with liability assigned to the plaintiff (i.e., heightened emotion reduced perceived plaintiff responsibility), particularly in the video re-creation condition. Yet retention scores and damage awards did not significantly differ by format (Fishfader, Howells, Katz, & Teresi, 1996).

23) Basic research in psychology has explored why visual stimuli are more memorable and impactful than auditory or text-based stimuli. A recent experiment by Ensor, Bancroft, and Hockley (2019) investigated whether the picture-superiority effect—the robust

³² Fishfader, V. L., Howells, G. N., Katz, R. C., & Teresi, P. S. (1996). Evidential and extralegal factors in juror decisions: Presentation mode, retention, and level of emotionality. *Law and Human Behavior*, 20(5), 565–572.

finding that pictures are better remembered than words—extends to auditory stimuli and whether this effect is driven by dual coding, physical distinctiveness, or conceptual distinctiveness.³³

Across four experiments using recognition tasks, participants studied lists of sounds and words under various conditions, including directed-forgetting cues, cue-duration manipulations, and labelability variations. Results consistently showed no auditory analog of the picture-superiority effect in recognition: sounds were not better recognized than words, even when sounds were easy to label or when additional encoding time was provided. While free-recall studies have demonstrated an auditory picture-superiority effect, these findings suggest that recognition memory benefits for pictures arise from conceptual distinctiveness—the deeper processing required to identify diagnostic visual features—rather than dual coding or physical variability. The authors conclude that conceptual distinctiveness explains the picture-superiority effect in recognition, as auditory stimuli lack the feature-rich processing demands of pictures. These findings imply that visual evidence may exert a stronger biasing influence on jurors than auditory evidence because of its inherent conceptual distinctiveness (Ensor, Bancroft, & Hockley, 2019). Applied to trial recordings or live streaming: audio-only recordings of hearings or trials should, on average, exert less prejudicial influence on community listeners than video streams, because they lack the diagnostic visual features that create stronger, biasing memory traces (Ensor et al., 2019; Edwards & Mottarella, 2014).

24) Collectively, these studies on modality effect of information presentation demonstrate that visual and multimedia evidence pose a substantially greater risk of prejudicing jurors than auditory evidence or print formats. Visual formats—especially graphic images, video

³³ Ensor, T. M., Bancroft, T. D., & Hockley, W. E. (2019). Listening to the picture-superiority effect: Evidence for the conceptual-distinctiveness account of picture superiority in recognition. *Experimental Psychology*. <https://doi.org/10.1027/1618-3169/a000437>.

re-creations, and televised coverage—amplify emotional responses, increase perceptions of guilt, and alter liability assessments, while auditory evidence exerts minimal biasing effect. Moreover, jurors often fail to recognize their susceptibility to these influences, and judicial instructions have proven largely ineffective in mitigating such biases. These findings strongly support the need for careful judicial scrutiny of highly visual or emotionally charged evidence and extensive pretrial publicity to preserve the defendant’s constitutional right to a fair trial.

B. Publicity of Alleged Assassinations, Terrorist Attacks, or Other Mass Acts of Violence May Cause Trauma and Significant Anger, Disgust, Fear, and Related Bias.

25) Conventional, social media, and especially live stream publicity of or about traumatic events such as assassinations, terrorism, and other mass acts of violence can cause trauma and emotional responses such as anger, disgust, and fear that distort decision-making and lead to bias. Frequent viewers of stories relating to such acts risk the “abnormal consolidation of fear conditioning that is associated with development of acute and [post-traumatic stress] responses” and can contribute to trauma-related disorders.³⁴ Psychological effects in the aftermath of such attack are “virtually certain” even if individuals are not aware they are experiencing them.³⁵

26) This effect has been documented with respect to acts such as the Boston Marathon Bombing. A nationwide study found that media exposure and graphic images of the bombing affected the cognitive function of exposed individuals. One survey even showed that event-

³⁴E. Alison Holman et al., *Media’s Role in Broadcasting Acute Stress Following the Boston Marathon Bombings*, 111 PROC. NAT’L ACAD. SCI. U.S. 93, 93 (2014), www.pnas.org/cgi/doi/10.1073/pnas.1316265110.

³⁵ U.S. INSTITUTE OF MEDICINE COMMITTEE ON RESPONDING TO THE PSYCHOLOGICAL CONSEQUENCES OF TERRORISM, PREPARING FOR THE PSYCHOLOGICAL CONSEQUENCES OF TERRORISM 34, 62 (Adrienne Stith Butler et al. eds., 2003), <https://www.ncbi.nlm.nih.gov/books/NBK221638/>.

related media exposure was associated with a higher likelihood of acute stress than direct exposure to the bombing.³⁶

27) Furthermore, exposure to traumatic evidence through electronic media can trigger unexpected, negative reactions from prospective jurors suffering from trauma-related disorders, affecting their decision-making. Triggers vary depending on the type of trauma experienced and may be directly or indirectly related to the origin event itself. For example, people could be triggered by sounds, smells, tastes, colors, places and specific objects, as well as evidence related to the traumatic event. In this mental state, individuals may be unable to precisely articulate what they are thinking and feeling, and, of particular significance here, may even be unaware that the traumatic event is the source of their anxiety.³⁷ Of significance to prospective jurors, traumatized individuals may have a cognitive bias toward emotionally charged memories; and exposure to evidence may cause flashbacks, trigger overwhelming feelings, and cause threat arousal—all of which can impact cognition and information processing.³⁸ These studies bear directly on three of the factors the Court is called upon to address under Rule: whether there is a reasonable likelihood that electronic media coverage will jeopardize the safety or well-being of any individual; whether there is a reasonable likelihood that electronic media coverage will jeopardize the interests or well-being of a minor; and whether electronic media coverage will

³⁶ Holman et al., *supra* note 34, at 94–95.

³⁷ Bessel A. Van Der Kolk, *Trauma and Memory*, 52 J. PSYCHIATRY & CLINICAL NEUROSCI. S52, S60 (2002), <https://doi.org/10.1046/j.1440-1819.1998.0520s5S97.x>.

³⁸ Jasmeet P. Hayes et al., *Emotion and Cognition Interactions in PTSD: A Review of Neurocognitive and Neuroimaging Studies*, 6 FRONTIERS INTEGRATED NEUROSCI., October 2012, at 1, 4, <https://doi.org/10.3389/fnint.2012.00089>; see also Yael Danieli, *Massive Trauma and the Healing Role of Reparative Justice: An Update*, in REPARATIONS FOR VICTIMS OF GENOCIDE, WAR CRIMES AND CRIMES AGAINST HUMANITY 38, 54 (Carla Ferstman & Mariana Goetz eds., 2020).

create adverse effects greater than those caused by media coverage without recording or transmitting images or sound.

III. PRE-TRIAL PUBLICITY BIAS IS DIFFICULT TO RECOGNIZE AND SET ASIDE AND CAN DISTORT JURY DELIBERATIONS

A. Biased Jurors Interpret Information Differently Than Unbiased Jurors.

28) The impact of bias on juror decision-making is immense and difficult to overcome. This is because jurors exposed to pre-trial publicity interpret new evidence at trial in a different way than jurors who have not been exposed. In fact, bias from pre-trial publicity may persist even when squarely contradicted by trial evidence.³⁹

29) Research into the “story model theory” and the “primacy effect” help explain why pre-trial publicity bias is “sticky” and difficult to overcome. The story model theory posits that the “central cognitive process in juror decision-making is story construction.” This means that jurors turn information gleaned at trial into a narrative, and “the story the juror constructs determines the juror’s decision.”⁴⁰

30) To test this theory, its originators showed study participants a mock trial and asked them to reach a verdict while discussing their rationale out loud. Each participant’s reasoning was mapped to determine whether the jurors processed the evidence presented chronologically, in the structure of the legal argument, in terms of character sketches, or in a story narrative. The results demonstrated that jurors analyze evidence in the structure of a story,

³⁹ Daftary-Kapur et al., *supra* note 5, at 474.

⁴⁰ Nancy Pennington and Reid Hastie, *The Story Model for Juror Decision Making*, in *INSIDE THE JUROR: THE PSYCHOLOGY OF JUROR DECISION MAKING* 193, 193 (Reid Hastie ed., 1993), <https://doi.org/10.1017/CBO9780511752896.010>.

not in terms of legal arguments or any other alternative, and—significantly—that jurors fill in gaps in the story with information not presented at trial.⁴¹

31) Research into the primacy effect demonstrates that it is difficult for individuals to overcome their first impressions once they form initial opinions, and they therefore interpret later information to be consistent with those first opinions.⁴² Individuals remember early information better than later information, and thus, early information holds a bigger influence on decision-making and impressions.⁴³ When the primacy effect is combined with the story-model understanding of juror decision-making, the juror who has a media-formed narrative of events due to pre-trial publicity is at risk of prioritizing this narrative over subsequent, contradictory evidence presented at trial, even when the juror endeavors to consider only the evidence from trial.

32) Media-exposed jurors also may discount information presented at trial due to “belief persistence,” which is the tendency to maintain a belief even after subsequent facts show it to be incorrect,⁴⁴ or “confirmation bias,” which is the tendency to form a belief early in the decision-making process and then evaluate new information in a manner favorable to that

⁴¹ *Id.* at 204–06.

⁴² Daftary-Kapur et al., *supra* note 5, at 464; Mark J. Hurlstone et al., *Memory for Serial Order Across Domains: An Overview of the Literature and Directions for Future Research*, 140 PSYCH. BULLETIN 339, 356–57, 373 (2014), <https://doi.org/10.1037/a0034221>.

⁴³ Daftary-Kapur et al., *supra* note 5, at 464.

⁴⁴ Hope et al., *supra* note 17, at 112; *see also* Ramon J. Rhine & Laurence J. Severance, *Ego-Involvement, Discrepancy, Source Credibility, and Attitude Change*, 16 J. PERSONALITY & SOC. PSYCHOL. 175, 186–87 (1970), <https://doi.org/10.1037/h0029832>; Lee Ross et al., *Perseverance in Self-Perception and Social Perception: Biased Attributional Processes in the Debriefing Paradigm*, 32 J. PERSONALITY & SOC. PSYCHOL. 880, 889 (1975), <https://doi.org/10.1037/0022-3514.32.5.880>.

belief.⁴⁵ In all, potential jurors tainted by pre-trial publicity face substantial hurdles in overcoming those biases.⁴⁶

B. Biased Jurors May Not Recognize Their Biases—Undermining Voir Dire and the Effectiveness of Limiting Instructions.

33) Prospective jurors may find it particularly difficult to recognize their own biases, or may overestimate their capacity to set biases aside, in cases involving traumatic events.⁴⁷

Moreover, decades of studies have shown that neither jury instructions nor deliberation reduce the impact of factual and emotional publicity.⁴⁸

⁴⁵ *Id.* See also Barns & Downey, *supra* note 16, at 91.

⁴⁶ Pennington & Hastie, *supra* note 40, at 193–99.

⁴⁷ See generally David Suggs & Bruce D. Sales, *Juror Self-Disclosure in the Voir Dire: A Social Science Analysis*, 56 IND. L. J. 245, 246 (1980), <https://www.repository.law.indiana.edu/ilj/vol56/iss2/2>; Norbert L. Kerr et al., *On the Effectiveness of Voir Dire in Criminal Cases with Prejudicial Pretrial Publicity: An Empirical Study*, 40 AM. U. L. REV. 665, 669–70 (1991), <https://www.wcl.american.edu/journal/lawrev/40/kerr.pdf>; see also Nancy Steblay et al., *The Impact on Juror Verdicts of Judicial Instruction to Disregard Admissible Evidence: A Meta-Analysis*, 30 LAW & HUM. BEHAV. 469, 486 (2006), <https://doi.org/10.1007/s10979-006-9039-7> (finding that when inadmissible evidence significantly influences jurors, judicial instruction to disregard the evidence does not completely eliminate the impact of the evidence; despite judicial instruction, inadmissible evidence had a significant impact on verdicts); Joel D. Lieberman & Jamie Arndt, *Understanding the Limits of Limiting Instructions: Social Psychological Explanations for the Failures of Instructions to Disregard Pretrial Publicity and Other Inadmissible Evidence*, 6 PSYCHOL., PUB. POL’Y, & L. 677, 685 (2000), <https://doi.org/10.1037/1076-8971.6.3.677> (summarizing literature regarding jury responses to inadmissible information and the limits of judicial instruction). Lieberman and Arndt found that once jurors are exposed to pre-trial publicity, it may not be possible to eliminate the biasing effect, and judicial instructions to disregard pre-trial publicity or other inadmissible evidence are relatively ineffective. As was accurately summarized in *United States v. Houlihan*, 926 F. Supp. 14 (D. Mass. 1996): “Studies by social scientists suggest that pretrial publicity affects potential jurors in ways of which they may not be aware, which they may not be able to articulate. Publicity, even if it is not strictly speaking, inflammatory, which suggests culpability, or which links the defendant to the criminal activities of others, as here, directly affects the readers’ perception of guilt, how likely they are to give weight to negative facts about the defendant at trial, to resolve conflicts in credibility against the defendants.” *Id.* at 16-17, citing Kerr et. al, *supra* and Kerr, *The effects of pretrial publicity on jurors*, 78 Judicature 120 (1994).

⁴⁸ Kramer et al., *supra* note 20, at 434–35; Christine L. Ruva & Anthony E. Coy, *Your Bias Is Rubbing Off on Me: The Impact of Pretrial Publicity and Jury Type on Guilt Decisions*, Trial

34) Biased jurors may not answer voir dire questions accurately because their bias is subconscious and they do not know or understand the impact that pre-trial publicity has had. In a quintessential study, researchers exposed approximately 150 mock jurors to either neutral or negative pre-trial publicity, asked them to complete typical voir dire questionnaires, excused those jurors who said they could not be impartial, and then asked the remaining jurors for their verdict.⁴⁹ Among those jurors—all of whom reported that they could be impartial—those who were exposed to negative pre-trial publicity returned guilty verdicts at more than twice the rate of those who had been exposed to neutral pre-trial publicity.⁵⁰

35) Even if jurors are given instructions not to use information learned outside of trial in making their decisions, they may be unable to comply, despite best efforts. Source memory errors occur when jurors misattribute the source of information, mistaking information learned from pre-trial publicity with information presented at trial.⁵¹ Studies have found that even when

Evidence Interpretation, and Impression Formation, 26 PSYCH., PUB. POL'Y, & L. 22, 29–32 (2020), <https://doi.org/10.1037/law0000220>.

⁴⁹ Stanley Sue et al., *Authoritarianism, Pretrial Publicity, and Awareness of Bias in Simulated Jurors*, 37 PSYCH. REP. 1299, 1299–1302 (1975), <https://doi.org/10.2466/pr0.1975.37.3f.1299>.

⁵⁰ *Id.* at 1301 (53 percent versus 23 percent guilty). The Supreme Court has recognized that self-reporting of impartiality during *voir dire* may be unreliable—including due to unconscious pressure. *See also Irvin v. Dowd*, 366 U.S. 717, 728 (1961) (“No doubt each juror was sincere when he said that he would be fair and impartial to petitioner, but psychological impact requiring such a declaration before one’s fellows is often its father.”).

⁵¹ Christine L. Ruva & Christina C. Guenther, *From the Shadows Into the Light: How Pretrial Publicity and Deliberation Affect Mock Jurors’ Decisions, Impressions, and Memory*, 39 LAW & HUM. BEHAV. 294, 300 (2015), <https://doi.org/10.1037/lhb0000117>; Ruva & LeVasseur, *supra* note 18, at 445; Christine L. Ruva & Cathy McEvoy, *Negative and Positive Pretrial Publicity Affect Juror Memory and Decision Making*, 14 J. EXPERIMENTAL PSYCHOL.: APPLIED 226, 233–34 (2008), <https://doi.org/10.1037/1076-898X.14.3.226>; *see also* Beaton C. Thorley et al., *Misinformation Encountered During a Simulated Jury Deliberation Can Distort Jurors’ Memory of a Trial and Bias Their Verdicts*, 25 LEGAL & CRIMINOLOGICAL PSYCHOL. 150, 158–61 (2020), <https://doi.org/10.1111/lcrp.12174>. The Thorley study tested 124 participant jurors by showing them a murder trial. Half of the participants were allowed to take notes, and after the trial, part of the group was given a jury

jurors remember information learned from both pre-trial publicity and trial well, they mistakenly believe—with a high degree of confidence—that information learned from pre-trial publicity is learned at trial.⁵²

36) Death-qualified jurors may present an additional challenge. According to another study, death-qualified jurors were more likely than excludable jurors to answer negatively the question whether pre-trial publicity could impact a defendant's due process rights.⁵³ A potential juror who does not recognize the impact of pre-trial publicity may be more confident in his or her own lack of bias, and may be more likely to be mistaken in affirming his or her ability to set bias aside in response to standard voir dire questioning. Supporting this conclusion, death-qualified jurors who showed pre-trial publicity bias in their verdicts overwhelmingly self-reported an ability to be impartial.⁵⁴

deliberation transcript which contained six pieces of pro-prosecution misinformation. The researchers found that jurors exposed to the misinformation inaccurately recalled 31 percent of it as having been from the trial, and those who misremembered at the highest rates were also the participants most likely to find the defendant guilty. The failure of jurors to recollect accurately the source of their memories could lead to biased jurors distorting other jurors' recollection of trial events during deliberation, resulting in biased verdicts. *Id.* at 150.

⁵² Ruva & McEvoy, *supra* note 51, at 223. See also Christine L. Ruva et al., *Effects of Pre-trial Publicity and Jury Deliberation on Juror Bias and Source Memory Errors*, 21 APPLIED COGNITIVE PSYCHOL. 45, 60 (2007), <https://doi.org/10.1002/acp.1254>; Ruva & Guenther, *supra* note 51, at 300; Christine L. Ruva & Elizabeth M. Hudak, *Pretrial Publicity and Juror Age Affect Mock-Juror Decision Making*, 19 PSYCHOL., CRIME & L. 179, 192–93 (2013) (finding that mock jurors exposed to pre-trial publicity are significantly less accurate in recalling where they learned information).

⁵³ Brooke Butler, *The Role of Death Qualification in Jurors' Susceptibility to Pretrial Publicity*, 37 J. APPLIED SOC. PSYCHOL. 115, 120 (2007), <https://doi.org/10.1111/j.0021-9029.2007.00150.x>.

⁵⁴ See *id.* (finding that death-qualified participants are not only more likely to find the defendant guilty but also to believe that pre-trial publicity will have a “minimal impact” on the defendant's due process rights); see also David V. Yokum et al., *The Inability to Self-Diagnose Bias*, 96 Denv. L. Rev. 869, 886–87 (2019), <https://dx.doi.org/10.2139/ssrn.2109894> (finding that juror self-diagnosis of bias was not correlated with actual bias). Yokum tested a group of mock jurors, exposing them to prejudicial news articles in one condition and irrelevant articles in the other.

C. Biased Jurors Distort Jury Deliberations.

37) The adverse effects of pre-trial publicity do not stop with the biased juror. Studies show that pre-trial publicity bias can spread among the jury and even increase through a process called “group polarization,” which occurs when group decision-making leads to a more extreme result than the original views of the group’s members. Through this process, pre-trial publicity bias can spread to others not originally affected.⁵⁵

38) A 2022 study analyzing mock jury deliberations involving some mock jurors who had been exposed to slanted pre-trial publicity and others who had not found that (a) when mock jurors exposed to slanted pre-trial publicity introduced facts into the deliberation which came from pre-trial publicity but were not in the trial record, they were corrected less than 50 percent of the time; (b) mock juries that included some members exposed to pre-trial publicity slanted against the defendant and others exposed to no pre-trial publicity were more likely to find the defendant guilty than juries with no exposed members; and (c) juries comprising some members exposed to pre-trial publicity slanted against the victim and others who had been exposed to no pre-trial publicity were more likely to find the defendant not guilty than juries with no exposed

Excluding those who self-identified bias or were unsure about their level of bias, the study found the mock jurors exposed to prejudicial pre-trial publicity significantly more likely to find the defendant guilty than those exposed to irrelevant articles.

⁵⁵ Ruva, C. L., Diaz Ortega, S.E., & O’Grady, K.A. (2022). What drives a Jury’s Deliberations? The influence of pretrial publicity and jury composition on deliberation slant and content. *Psychology, Public Policy, & Law*, 28(1), 32-52. <https://doi.org/10.1037/law0000310>; Ruva & Coy, *supra* note 48, at 32–33, <https://doi.org/10.1037/law0000220> (finding that in a criminal case simulation split among anti-prosecution pre-trial publicity, anti-defense pre-trial publicity, and one control group, mixed-jury deliberations do not correct juror-level errors and control biases for anti-prosecution pre-trial publicity); *cf.* Ruva & Guenther, *supra* note 51, at 295; Kerr et al., *supra* note 47, at 75 (finding that for moderate cases, jury deliberations accentuated pre-trial publicity bias, but for extreme cases with more certain conviction or acquittal rates, jury deliberation attenuated pre-trial publicity bias); Kramer et al., *supra* note 20, at 14.

members. Together, these findings suggest that rather than correcting for the bias introduced by pre-trial publicity, jury deliberations in fact spread individual jurors' biases to others.⁵⁶

IV. The Empirical Research Discussed in the 2012 Judicial Council Final Report Is Limited and Dated and Is Based on Unreliable Survey Research.

39) The Final Report by the Utah Judicial Council Study Committee on Technology (April 10, 2012) states in part as follows:

The concern most often raised about electronic media coverage is that such coverage may harm the decorum of the proceedings and negatively impact trial participants. The extensive empirical research and broad-based experience of other states, however, suggest that these concerns are unfounded. For example, several states, including Arizona, California, Florida, Hawaii, Kansas, Louisiana, Maine, Massachusetts, Minnesota, New Jersey, New York, Ohio, Virginia, and Washington, have studied the impact of electronic media coverage on courtroom proceedings, focusing particularly on the effect that cameras have upon courtroom decorum and upon witnesses, jurors, attorneys, and judges. See Kelli L. Sager & Karen N. Fredericksen, *Televising the Judicial Branch: In Furtherance of the Public's First Amendment Rights*, 69 S. CAL. L. REV. 1519, 1543 (1996) ("Televising the Judicial Branch").

The results from the state studies were unanimous: electronic media coverage of courtroom proceedings—whether civil or criminal—has no detrimental impact on the parties, jurors, counsel, or courtroom decorum. *Televising the Judicial Branch*, 69 S. CAL. L. REV. at 1544, 1547. For example, the state studies revealed that fears about witness distraction, nervousness, distortion, fear of harm, and reluctance to testify were unfounded. *Id.* at 1543-44. A three-year pilot program permitting electronic media coverage of civil proceedings in six federal district courts and two federal circuit courts reported similar results, as well a favorable view of such coverage by the judges who participated in the program. See Federal Judicial Center, *ELECTRONIC MEDIA COVERAGE OF FEDERAL CIVIL PROCEEDINGS: AN EVALUATION OF THE PILOT PROGRAM IN SIX DISTRICT COURTS AND TWO COURTS OF APPEALS* (1994); see also *Televising the Judicial Branch*, 69 S. CAL. L. REV. at 1545; Alex Kozinski & Robert Johnson, *Of Cameras and Courtrooms*, 20 FORDHAM INTELL. PROP. MEDIA & ENT. L.J. 1107, 1114 (2010) (summarizing state and federal studies on electronic media coverage of judicial proceedings and concluding that the empirical research demonstrates no detrimental impact on trial participants or on courtroom decorum).

(Report at pp. 8-9).

⁵⁶ Ruva et al. (2022), *supra* note 55.

40) Several observations can be made about this aspect of the report. First, the Sager and Kozinski articles cited in the report are law review articles and not empirical research articles. They cite state surveys and one federal survey regarding civil court proceedings. The state surveys asked for the opinions of witnesses, jurors, attorneys, and judges after a trial is completed or after the witness testifies. Survey data cannot be used to infer causation, and this is not its only limitation – e.g., response bias, recall failure or misinformation effects (may not accurately recall past event and information after the event affects recall). The one state that used additional methodology was California which also used interviews and systematic observation. Although this does improve upon survey data alone it does not allow one to infer causation. Each trial, witness, set of jurors, judges, attorneys are different. There is no control over any variable and hence there is no way to conclude that cameras do or do not affect trial players' behaviors, memory, or decision-making.

41) Also, the three-year pilot federal study published in 1994 that found judges have a favorable opinion of electronic media coverage of court in civil cases tells us nothing about the possible prejudicial effect such coverage could have on courtroom proceedings, witness testimony and memory, and juror bias, behavior, and decision making. The study itself noted its inherent limitations, stating:

Several potentially relevant issues were not examined in the evaluation and therefore cannot be addressed in this report. First, the evaluation design as approved by the Ad Hoc Committee on Cameras in the Courtroom did not include a measure of the *actual* (as opposed to *perceived*) effects of electronic media on jurors, witnesses, counsel, and judges. The only way to measure objectively the actual effects of electronic media on jurors and witnesses would be to compare the behavior and perceptions of jurors and witnesses in two different groups of cases: those covered by electronic media and those not covered. The Federal Judicial Center suggested—and the Ad Hoc Committee on Cameras in the Courtroom concurred—that this approach was not feasible because, among other reasons, there would be too few cases in the pilot courts with high media interest to support such an evaluation.

Second, we did not directly measure the attitudes of jurors, witnesses, and parties because most have had little courtroom experience and could not, we believed, make judgments (as judges and attorneys could) about the effects of electronic media on themselves. (A witness who has never been in a court room might be nervous for many reasons but might attribute that state—in appropriately—to the presence of cameras.) We did obtain some information on these issues through other methods, such as judge and attorney questionnaires. Also, we reviewed results from state court studies exploring these questions.

Finally, because the pilot program limited coverage to civil proceedings, the impact of electronic media coverage on federal criminal proceedings was not addressable in this evaluation. Opinions on the issue of criminal coverage were obtained through questionnaires and interviews.

Another consideration relevant to interpreting the findings in this report is that the pilot courts were chosen from among courts that had volunteered to participate, and most of the analyses in our study focused on judges who actually had experience with electronic media coverage. Thus, it could be expected that judges whose responses we report would on average be more favorable toward electronic media coverage than would a randomly-selected sample of judges throughout the country.

2012 Study at 8.

42) As this passage suggests, survey research is widely used, but it comes with several limitations and pitfalls that researchers need to consider:

- a. Sampling Bias
 - If the sample isn't representative of the population, results can be skewed.
 - Common issues include nonresponse bias and convenience sampling.
- b. Response Bias
 - Participants may give socially desirable answers rather than truthful ones.
 - Wording of questions can lead to leading or loaded responses.
- c. Low Response Rates
 - Declining participation rates can reduce reliability and increase bias.
- d. Limited Depth
 - Surveys often capture surface-level attitudes or behaviors without exploring underlying reasons.
 - Complex topics may require qualitative methods for deeper insights.
- e. Measurement Error
 - Poorly designed questions can lead to misinterpretation.
 - Ambiguous or double-barreled questions confuse respondents.
- f. Recall Issues
 - Respondents may not accurately remember past behaviors or experiences.
- g. Mode Effects

- Online, phone, and face-to-face surveys can produce different results due to context and interviewer presence.
- h. Difficulty in Establishing Causality
 - Surveys are typically correlational; they rarely prove cause-and-effect relationships.
- i. Data Quality Concerns
 - Inattentive respondents or straight-lining can compromise validity.
- j. Cultural and Language Barriers
 - Misinterpretation of questions across different cultural contexts can distort findings.

43) In fact, five peer-reviewed journal articles have critiqued the survey studies relied upon in the 2012 Final Report, and three of these studies were published before the 2012 Report and are nowhere discussed in it. See Borgida, E., DeBono, K. G., & Buckman, L. A., *Cameras in the courtroom: The effects of media coverage on witness testimony and juror perceptions*, 14 *Law and Human Behavior* 489–509 (1990), <https://doi.org/10.1007/BF01044224>; Slater, D., & Hans, V. P., Methodological issues in the evaluation of experiments with cameras in the courts, 30 *Communication Quarterly* 346-380 (1982); Christo Lassiter, *TV or not TV—That is the Question*, 86 J. CRIM. L. & CRIMINOLOGY 928, 966–67 (1996) (explaining that surveys are flawed because respondents are inherently biased in favor of believing that they participated objectively in a trial, and because of the small sample size involved in most such studies); Cristina Carmody Tilley, *I Am A Camera: Scrutinizing The Assumption That Cameras In The Courtroom Furnish Public Value By Operating As A Proxy For The Public*, 16 *Journal of Constitutional Law* 719 n. 122 (2013) (explaining that “[m]ost of the studies involved were ex post surveys of parties who had participated in televised trials asking their self-assessment of the camera’s effect on their behavior.”); Kaufman, A.R., Williams, L. and Thorley, D., *Performative Judging: Measuring the Effect of Video Recording on Judicial Behavior in Circuit Court Oral Arguments* (2025)(same), https://papers.ssrn.com/sol3/papers.cfm?abstract_id=5283589 .⁵⁷ Both

⁵⁷ The Tillery article also addresses the reliance in Judge Kozinski’s article and in other sources on the broadcast-press-as-proxy conceit. She correctly points out that “[a]dvocates have been

Slater and Hans (1982) and Borgida et al. (1990) identify significant methodological flaws in research evaluating cameras in the courtroom. Examples of these limitations are summarized below.

44) The Slater and Hans study notes that most state-level evaluations were not true experiments. They relied on post-hoc surveys and interviews rather than controlled experimental designs, lacking randomization, control groups, and systematic manipulation of variables (Slater & Hans, 1982). Nearly all research commissioned by states considering cameras in courtrooms consisted of nonrepresentative surveys and anecdotal evidence (Arkansas Supreme Court Committee, 1979; Cameras-in-the-Courtroom Test Committee, 1974; Hawaii State Bar Association, 1982; Humphries, 1978; Supreme Court of Florida, 1978; Supreme Court of Wisconsin, 1979). Chief Justice Burger in *Chandler v. Florida*, 449 U.S. 560, 576 n. 11 (1981) noted that the available data were “ ‘limited and non-scientific’ , quoting *In re Petition of Post-Newsweek Stations, Florida, Inc.*, 370 So. 2d 764, 781, 768 (1979).

45) The Slater and Hans article also notes that this reliance on survey research is problematic because surveys capture perceptions but cannot isolate causal effects of cameras versus conventional media coverage (Craig, 1979; Judicial Planning Coordination Unit, 1978). Many studies were conducted only at the appellate level, where there are no jurors or witnesses—the groups most likely to be affected. For example, Delaware’s one-year test excluded trial courts, limiting its relevance for concerns about juror and witness impact (Slater & Hans, 1982). Additionally, trials were often selected based on media interest rather than

implying for some time that cameras are inherently likely to realize public values in the same way that actual public attendance or camera-free media would.¹⁵⁹ But this implication wilts under empirical scrutiny.” Tillery, *supra*, at 727.

randomly assigned to coverage conditions. Without randomization, differences may reflect trial characteristics rather than the presence of cameras.

46) Borgida et al. (1990) highlight further issues in state surveys, such as the 1978 Florida study (Supreme Court of Florida, 1978). Participants were asked to recall experiences from televised trials over the prior year, without accounting for elapsed time or the date questionnaires were completed. The unreliability of self-report data over such intervals was compounded by asking witnesses to reconstruct their prior attitudes toward cameras. Two-thirds of those contacted refused to participate. Despite these problems, the committee concluded cameras had few adverse effects (Borgida et al., 1990, p. 491).

47) Borgida et al. further notes that California courts employed a multimethod approach, collecting surveys, interviews, and observational data (Short, 1981). Although this evaluation attempted to compare trials with extended coverage versus conventional coverage, contamination occurred when trials switched coverage conditions midstream or were retried under different conditions. Five trials allowed direct comparisons between media types while controlling for case type, but the sample was too small for reliable conclusions. These design flaws reduced internal validity and made causal inference unreliable.

48) Borgida et al. further notes that early laboratory studies also suffered from methodological shortcomings. Hoyt (1977) and Kassin (1983) used small samples (12 and 25 participants per condition, respectively), likely resulting in underpowered analyses. These studies also failed to include a conventional media condition (e.g., journalist or sketch artist), an essential comparison group. Without this comparison, no valid statement can be made about the effects of cameras relative to conventional media coverage (Borgida et al., 1990).

49) In addition to not acknowledging these critiques, the 2012 Final Report's description of the existing studies is flawed. As indicated above, the Final Report claims that the Kozinski law review article at page 1114 "summarize[ed] state and federal studies on electronic media coverage of judicial proceedings and conclud[ed] that the empirical research demonstrates no detrimental impact on trial participants or on courtroom decorum." The only study discussed in any detail in the Kozinski article at pp. 1112-1114 is the 1994 federal civil trial pilot program, and regarding that program Judge Kozinski acknowledged that "[t]he program didn't directly survey witnesses and jurors, as they lack the experience needed to meaningfully compare their experiences to a courtroom without cameras..." *Id.* at 1113 n. 26.

50) The 2012 Final Report's description of the outcome of the 1994 federal civil trial pilot program is as follows: "The pilot program was in effect from 1991 through 1994. Notwithstanding the Federal Judicial Center's ultimate recommendation that federal trial courts allow cameras in civil proceedings, the federal judiciary declined to continue the program when the study period expired." Final Report at 10. However, that description does not tell the whole story. As explained by the United States Supreme Court in *Hollingsworth v. Perry*, 558 U.S. 183, 193 (2010):

In 1996, the Judicial Conference of the United States adopted a policy opposing the public broadcast of court proceedings. This policy was adopted after a multiyear study of the issue by the Federal Judicial Center which drew on data from six district and two appellate courts, as well as state-court data. In light of the study's findings, *the Judicial Conference concluded that "the intimidating effect of cameras on some witnesses and jurors [is] cause for concern."* Administrative Office of United States Courts, Report of Proceedings of Judicial Conference of the United States 47 (Sept. 20, 1994).

In more than a decade since its adoption the Judicial Conference has continued to adhere to its position on the broadcast of court proceedings.

(emphasis added)

51) *Hollingsworth v. Perry* itself recognizes that “[t]his Court has recognized that witness testimony may be chilled if broadcast.” *Id.* at 195, citing *Estes v. Texas*, 381 U.S. 532, 547 (1965); *id.*, at 591 (Harlan, J., concurring). The 2012 Final Report does not discuss *Hollingsworth*.

52) It should also be noted that the state surveys and the one federal survey discussed in the 2012 Final Report attempted to measure, quite imperfectly, whether having cameras in the courtroom during a civil trial caused jurors to be distracted, to be influenced in their deliberations by the mere presence of the cameras during trial, to feel that the presence of cameras highlighted the importance of the trial or a particular witness, or to be reluctant to serve as jurors. 2012 Study at 124-125. None of these surveys assessed, or could assess, whether live streaming of all aspects of a high profile criminal case in the age of social media could cause irreparable conscious and unconscious bias and trauma to prospective jurors or caused untoward effects in other trial participants

53) Finally, the 2012 Final Report does not address the pre-2012 empirical research discussed above and could not have considered the substantial empirical research that has taken place since 2012, also discussed above. In addition, and especially relevant in this case, although early PTP research focused primarily on factual, incriminating information about the defendant, more recent work has expanded the conceptualization of PTP to include emotional, community based, victim focused content, and attire of the defendant. This broader approach has revealed that PTP effects are not limited to cognitive contamination from inadmissible facts but also arise from social, emotional, and narrative mechanisms that shape jurors’ pretrial schemas and subsequent decision making. This research too is not addressed in the 2012 report. I briefly review that literature here.

54) **Community Outrage and Emotional PTP:** Zimmerman et al. (2016) addressed a longstanding gap between legal concerns and empirical research by isolating the effects of community outrage—a form of PTP frequently cited by courts but rarely studied independently.⁵⁸ Using a factorial design that separated factual PTP from community sentiment PTP, the authors found that exposure to community outrage and victim hardship increased mock jurors' perceptions of the defendant's guilt, even in the absence of incriminating facts. Notably, neither factual PTP nor anticipated social interaction with community members influenced guilt judgments. These findings suggest that emotional and community based narratives may exert a unique influence on jurors by activating moral intuitions, empathic responses, or perceived social norms, rather than by supplying case relevant information. Zimmerman et al.'s work highlights the need to conceptualize PTP not merely as a source of factual contamination but as a vehicle for communicating collective sentiment that may implicitly pressure jurors toward conviction or death verdicts.

55) **Victim Pretrial Publicity:** Research demonstrates that exposure to victim-focused pretrial publicity (victim-PTP) significantly influences juror decision-making, perceptions, and cognitive processes. The more recent research on this issue includes only negative-victim PTP (painting the victim in a negative light) exposure, while older studies explored positive-victim attributes directly conveyed to mock juries in trial simulations.

56) Jurors exposed to negative-victim PTP consistently exhibit a pro-defense bias, making them less likely to render guilty verdicts and more likely to interpret trial evidence in a manner favorable to the defense, regardless of the actual probative value of that evidence (Ruva

⁵⁸ Zimmerman, D., Rodriguez, D., Bergold, A., & Penrod, S. (2016). The influence of pretrial exposure to community outrage and victim hardship on guilt judgments. *Psychology, Crime & Law*, 22(5), 435–454. <https://doi.org/10.1080/1068316X.2015.1120870>

& Guenther, 2017; Ruva et al., 2022). This bias is explained by predecisional distortion theory, which posits that jurors distort trial evidence to align with their favored side, and by the story model, which suggests that jurors incorporate PTP into mental schemas that guide interpretation of trial evidence (Hope et al., 2004; Ruva et al., 2011; Ruva & Guenther, 2017).

57) Negative-victim PTP also affects perceptions of the defendant, with jurors exposed to such publicity rating the defendant as more credible than jurors exposed to negative-defendant PTP or irrelevant PTP (Ruva & Guenther, 2017). These credibility assessments mediate the effect of PTP on guilt ratings, pushing verdict preferences toward acquittal when negative-victim PTP is present (Ruva & Guenther, 2017).

58) Regarding memory, negative-victim PTP exposure leads to source monitoring errors, where jurors misattribute PTP information to the trial. Although negative-victim PTP jurors initially demonstrate somewhat better recall of trial facts than no-PTP jurors—likely due to multiple exposures to case-related information—they also make more critical source memory errors, incorporating PTP details into their recollection of trial evidence (Ruva & Guenther, 2017). Deliberations do not reliably correct these errors and may even facilitate social contagion, spreading misinformation among jurors (Ruva & Guenther, 2017; Ruva et al., 2022).

59) These findings collectively indicate that victim-PTP can significantly distort jurors' verdicts, perceptions of credibility, interpretation of evidence, and memory accuracy, and that deliberations are not a reliable corrective mechanism. Instead, deliberations may perpetuate or spread bias, undermining the fairness of trial outcomes.

60) Supporting these studies are older studies in which the effect of positive-victim attributes are directly conveyed to mock juries in trial simulations. Greene, E., Koehring, H., & Quiat, M., *Victim impact evidence in capital cases: Does the victim's character matter?* 28

Journal of Applied Social Psychology (1998) 145. doi:10.1111/j.1559-1816.1998.tb01697.x, mock jurors watched a reenactment of the penalty phase in the case of *Booth v. Maryland*. The authors manipulated the respectability of the victim described in the victim impact evidence and found that jurors' judgments of the victims, victims' survivors, and severity of the crime were all affected by this description. The authors also found that jurors disregarded the defendant's mitigating circumstances (being brought up in a bad neighborhood) if the defendant was on trial for killing a highly respectable victim. The authors noted that their finding that information on the character of the victims influenced mock jurors' willingness to consider mitigating evidence replicated the same finding made in Burkhead, M., Luginbuhl, J., & Wrenn, S, Victim impact evidence in capital trials: What are its effects?, Poster presented at the meetings of the American Psychology-Law Association, Santa Fe, NM.,

61) **Defendant's Attire:** Street, Kylene L., et al. *The Cloak of Innocence: Perception of Attire in the Courtroom*, 40 J. of Police & Criminal Psychology 732 (2025), <https://link.springer.com/article/10.1007/s11896-024-09710-w> was a mock jury study that found that a defendant dressed in a prison jumpsuit versus a dress suit was seen as "more aggressive", and that this perceived aggressiveness resulted in defendants being found 5.27 times more likely than mock jurors in the formal attire condition to render a guilty verdict than a not guilty verdict.

62) In an earlier study, Barnett, *Guilty and Threatening: Visual Bias in Television News Crime Stories*, 5 Journalism and Communication Monographs 104 (2003), <https://doi.org/10.1177/152263790300500301>, forty subjects watched television crime news stories, which contained either visual (dressed in an orange suit, wearing handcuffs and being restrained by a police officer) or aural (mention of a prior record) bias. Results showed that subjects who saw the visual bias evaluated the accused as more threatening, dangerous and guilty

than those who did not see the bias. Those who heard about a prior record evaluated the accused as more threatening and guilty, but not as more dangerous than those who did not hear about the record. These impressions of guilt remained after a two-week delay. “Findings illustrate how common TV news portrayals of a person accused of a crime can prejudice the general public. Also, accidental viewing of a criminal defendant in prison clothes or being restrained can affect snap judgments about that person during the trial.” *Id.* at 105.

CONCLUSION

Substantial empirical evidence exists demonstrating that live streaming of all proceedings in a notorious criminal case can cause bias because (a) live streaming of notorious crimes can be pervasive, slanted, sensational, and emotional—all of which can lead to bias.; and (b) publicity of alleged assassinations, terrorist attacks, or other mass acts of violence may cause trauma and significant anger, disgust, fear, and related bias. Substantial empirical evidence also exists demonstrating that pre-trial publicity bias is difficult to recognize and set aside and can distort jury deliberations because (a) biased jurors interpret information differently than unbiased juror; (b) biased jurors may not recognize their biases—undermining voir dire and the effectiveness of limiting instructions; and (c) biased jurors distort jury deliberations. Finally, the empirical research discussed in the 2012 Judicial Council final report is limited and dated and is based on unreliable survey research.

I DECLARE under penalty of perjury that the foregoing is true and correct to the best of my knowledge.

Signed and dated this 2nd day of January, 2026, in Sarasota, Florida.

/s/Christine L. Ruva

Christine L. Ruva, Ph.D.

APPENDIX 1

CHRISTINE L. RUVA, PH.D.

Department of Psychology
The University of South Florida Sarasota-Manatee
8350 N. Tamiami Trail, SMC, Room B322
Sarasota, Florida 34243
E-mail: ruva@usf.edu

Office Phone: (941) 359-4629

Website: <https://www.usf.edu/arts-sciences/departments/psychology/people/cruva.aspx>

EDUCATION & PROFESSIONAL TRAINING

- 2001 ***University Of South Florida.*** Tampa, FL
Degree: Ph.D.
Major: Cognitive Psychology
Minor: Law and Communication
Dissertation: “Effects of Collaboration and Pretrial Publicity on Juror Bias and Source Monitoring Errors” (Co-chairs: Judith B. Bryant, Ph.D. & Cathy McEvoy, Ph.D.)
- 1997 ***University Of South Florida.*** Tampa, FL
Degree: M.A.
Major: Cognitive Psychology
Thesis: “The Impact of Age, Speech Style, and Question Form on Perceptions of Witness Credibility and Trial Outcome” (Chair: Judith B. Bryant, Ph.D.)
- 1990 ***University of Tampa,*** Tampa, FL
Degree: B.A.
Major: Psychology
- 1991 ***State of Florida Department of Corrections,*** Basic Recruit Certificate:
Correction/Probation Officer - 395 hours July - September 1991

ACADEMIC & PROFESSIONAL POSITIONS

- 2020-present ***Professor and Campus Chair,*** Psychology, University of South Florida Sarasota-Manatee
- 2019-2020 ***Professor and Chair,*** Psychology, University of South Florida Sarasota-Manatee
- 2011-2019 ***Associate Professor and Chair,*** Psychology, University of South Florida Sarasota-Manatee
- 2004-2011 ***Assistant Professor,*** Psychology, University of South Florida Sarasota-Manatee
- 2003-2004 ***Visiting Assistant Professor,*** Psychology, University of South Florida Sarasota-Manatee
- 8/01 – 5/03 ***Visiting Assistant Professor,*** Psychology, University of South Florida Tampa
- 5/91– 8/93 ***Correctional/Probation Officer,*** State of Florida Department of Corrections.
Duties: Managing a caseload of approximately 100 felony offenders and subsequently supervising a sex-offender caseload.

PUBLICATIONS (Bold indicates student author)

- Ruva, C.L., **Sykes, E. C., Smith, K. D., Deaton, L. R., & Erdem, S.,** & Jones, A. M. (2024). Battling bias: Can two implicit bias remedies reduce juror racial bias? *Psychology, Crime & Law*, 30 (7), 730-757. <https://doi.org/10.1080/1068316X.2022.2115494>
- Ruva, C.L. (2024). Pre-trial publicity's effects on jurors' and judges' decisions. In M. K. Miller, L. A. Yelderman, J. A. Cantone, & M. Huss (Eds.), *Cambridge handbook of the psychology of legal decision-making*. (pp. 103-116). Cambridge University Press. <https://doi.org/10.1017/9781009119375>
- Ruva, C. L., **Smith, K. D., & Sykes, E. C.** (2023). Gender, generations, and guilt: Defendant gender and age affect jurors' decisions and perceptions in an intimate partner homicide trial. *Journal of Interpersonal Violence*, 38 (23-24), 1289-1212. <https://doi.org/10.1177/08862605231191227>
- Jones, A. M. & Ruva, C. L. (2023). Implicit and ingrained: Reducing unconscious bias among jurors. In E. Verona & B. Fox (Eds.), *Routledge handbook of evidence-based criminal justice practices*. Routledge. <https://doi.org/10.4324/9781003219286>
- Ruva, C. L. & **Sykes, E. C.** (2023). With theater, you have to be ready for anything: University response, expert testimony, and sample influence jurors' decisions and counterfactual endorsement in a crime control theater case. *Psychology, Crime & Law*, 29 (5), 488-513. <https://doi.org/10.1080/1068316X.2022.2027947>
- Ruva, C. L., **Diaz Ortega, S.E., & O'Grady, K.A.** (2022). What drives a Jury's Deliberations? The influence of pretrial publicity and jury composition on deliberation slant and content. *Psychology, Public Policy, & Law*, 28(1), 32-52. <https://doi.org/10.1037/law0000310>
- Jones, A.M., **Wong, K., Meyers, C.N.,** & Ruva, C.L. (2022). Trial by tabloid: Can implicit bias education reduce pretrial publicity bias? *Criminal Justice and Behavior*, 49(2), 259-278. <https://doi.org/10.1177/00938548211026956>
- Ruva C. L., & Coy, A. (2020). Your bias is rubbing off on me: The impact of pretrial publicity and jury composition on guilt decisions, trial evidence interpretation, and impression formation. *Psychology, Public Policy, and Law*, 26 (1), 22-35. <https://dx.doi.org/10.1037/law0000220>
- Hudak, E. M.,** Edwards, J. D., Andel, R., Lister, J. J., McEvoy, C. L., Ruva, C. L., & **Peronto, C. L.** (2019). The comparative effects of two cognitive interventions among older adults residing in retirement communities. *Journal of Cognitive Enhancement*, 3 (4), 349-358. <https://doi.org/10.1007/s41465-019-00125-8>
- Ruva, C. L. (2018). From the headlines to the jury room: An examination of the impact of pretrial publicity on jurors and juries. In M. K. Miller and B. H. Bornstein (Eds.). *Advances in Psychology and Law*. (Vol. 3, pp. 1-39). New York, NY: Springer. https://doi.org/10.1007/978-3-319-75859-6_1
- Ruva, C. L., & **Guenther, C. C.** (2017). Keep your bias to yourself: How deliberating with differently biased others affects mock-jurors' guilt decisions, perceptions of the defendant, memories, and evidence interpretation. *Law and Human Behavior*, 41(5), 478-493. <https://doi.org/10.1037/lhb0000256>

PUBLICATIONS (Continued; **Bold** indicates student author)

- Ruva, C. L. (2016). The impact of pretrial publicity and need for cognition on mock-jurors' decisions and deliberation behavior. *International Journal of Psychology and Behavioral Sciences*, 6(1): 20-31 <https://10.5923/j.ijpbs.20160601.04>
- Ruva, C. L., & **Guenther, C. C.** (2015). From the shadows into the light: How pretrial publicity and deliberation affect mock jurors' decisions, impressions, and memory. *Law and Human Behavior*, 39(3), 294-310. <https://doi.org/10.1037/lhb0000117>
- Otto, A.L., Penrod, S., Dexter, H., Ruva, C.L., Guenther, C.C., Yarbrough, A., Steblay, N.M., Fulero, S.M., & Jimenez-Lorente, B. (2014). Preliminary hearing. *Psychology*, 21(1), 45-67.
- Ruva, C. L., **Dickman, M. C., & Mayes, J. L.** (2014). Exposure to both positive and negative pretrial publicity reduces or eliminates mock-juror bias. *International Journal of Psychology and Behavioral Sciences*, 4 (1). 30-40. <https://10.5923/j.ijpbs.20140401.05>
- Edwards, J. D., Ruva, C. L., O'Brien, J. L., Haley, C. B., Lister, J. J. (2013). An examination of mediators of the transfer of cognition speed of processing training to everyday functional performance. *Psychology and Aging*, 28, 314-321. <https://10.1037/a0030474>
- Ruva, C. L. & **Hudak, E.** (2013). Pretrial publicity and juror age affect juror decision making. *Psychology, Crime, & Law*. 19, 179-202. <https://10.1080/1068316X.2011.616509>
- Ruva, C. L., **Mayes, J. L., Dickman, M.C., & McEvoy, C.** (2012). Timing and type of pretrial publicity affect jurors' decisions, predecisional distortion, and emotion. *International Journal of Psychology and Behavioral Sciences*, 2, 108-119. <https://10.5923/j.ijpbs.20140401.05>
- Ruva, C. L. & **LeVasseur, M. A.** (2012). Behind closed doors: The effect of pretrial publicity on jury deliberations. *Psychology, Crime and Law*, 18, 431-452. <https://10.1080/1068316X.2010.502120>
- Ruva, C.L. (2011). Pretrial publicity affects jury decision making. In Carla E. Wilhelm (Ed.) *Encyclopedia of Cognitive Psychology*. Nova Science Publishers: Hauppauge, NY.
- Ruva, C. L., **Guenther, C. C., & Yarbrough, A.** (2011). Deciphering the effects of positive and negative PTP: Examining the roles of impression formation, emotion and predecisional distortion. *Criminal Justice and Behavior*, 38, 511-534. <https://10.1177/0093854811400823>
- Ruva, C.L. (2010). *How Pretrial publicity affects jury decision making*. Nova Science Publishers: Hauppauge, NY.
- Ruva, C.L. (2010). Pretrial publicity affects jury decision making. In F. Columbus (Ed.) *Perspectives on cognitive psychology*. Nova Science Publishers: Hauppauge, NY.
- Ruva, C. L. & McEvoy, C. (2008). Negative and positive pretrial publicity affect juror memory and decision making. *Journal of Experimental Psychology: Applied*, 14, 226-235. <https://10.1037/1076-898X.14.3.226>

PUBLICATIONS (Continued; **Bold** indicates student author)

- Ruva, C. L., McEvoy, C., & Bryant, J. B. (2007). Effects of pretrial publicity and collaboration on juror bias and source monitoring errors. *Applied Cognitive Psychology*, 21, 45-67.
<https://10.1002/acp.1254>
- Ruva, C. L. & Bryant, J. B. (2004). The impact of age, speech style, and question form on perceptions of witness credibility and trial outcome. *Journal of Applied Social Psychology*, 34, 1919-1944.
<https://10.1111/j.1559-1816.2004.tb02593.x>

TECHNICAL REPORTS, PSYCHOLOGICAL TESTS & MEDIA PUBLICATIONS

- Brief for Supreme Court of the United States, as Amici Curiae Supporting Respondents, *United States of America v. Dzhokhar A. Tsarnaev*, (2021) (no. 20-443).
https://www.supremecourt.gov/DocketPDF/20/20-443/188719/20210827141929242_20-443bsacShirinBakhshayTarikaDaftaryKapurYaelDanieliAngelaJonesMargaretBullKoveraStevenDPenrodChristineLRuva.pdf.pdf
- Ruva, C.L. & Michaels, J. L. (2018). Course sharing: Professional Seminar and Research Methods – Mock IRB Committee Assignment. *Society for the Teaching of Psychology* (APA, Div. 2): e-Book Series. <https://teachpsych.org/ebooks/index.php>.
- Ruva, C.L. (2018). Bias, pretrial publicity, and deliberation. *Excited Utterance – Evidence and Proof Podcast*. The host of this program is Edward Cheng, Professor of Law at Vanderbilt Law School:
<https://excitedutterance.com/listen?offset=153051480028>
- Kays, J. (2018). Bias by Design: A psychology researcher seeks to tease out how pretrial publicity impacts jurors. *USFSM Research Magazine*. <https://issuu.com/usfsarasota-manatee/docs/issuu2>
- Ruva, C.L. (2017, August). The question of a fair trial vs. a free press. *Sarasota Herald-Tribune*.
<http://www.heraldtribune.com/news/20170831/question-of-fair-trial-vs-free-press>
- Ruva, C. L. (2015). Source Monitoring Test. *APA Psyc Tests Database*
- Stammers et al. (2015). POSTnote: Cognitive biases in court. House of Parliament: Parliamentary Office of Science & Technology. *Contributor to this brief.
<http://researchbriefings.parliament.uk/ResearchBriefing/Summary/POST-PN-0512>

PRESENTATIONS AT NATIONAL AND INTERNATIONAL CONFERENCES

(**Bold** indicates student)

Ruva, C. L., **Underwood, K., & Smith, K. D.** (March 2025). Bias by Background: Impact of Defendant Age, Gender, and Race on Mock-Juror Decisions in an Intimate Partner Homicide Trial. Paper presented at the *American Psychology-Law Society Conference* (APA Div. 41) in San Juan, Puerto Rico. (**Refereed**).

Smith, K. D., Underwood, K., & Ruva, C. L. (March 2025). Race, Age, and Outrage: The Impact of Defendant Age, Race, and Mediating Role of Juror Emotions in Tampering Verdicts & Sentencing Decisions. Paper presented at the *American Psychology-Law Society Conference* (APA Div. 41) in San Juan, Puerto Rico. (**Refereed**).

Sykes, E. C. & Ruva, C. L. (May 2025). Older Adults on Trial: Victim Age but Not Defendant Age Affects Verdict. Poster presented at the *Association for Psychological Science Conference* in Washington, DC. (**Refereed**).

Sykes, E. C., Ruva, C. L., & Mami, M. (March 2025). Generational Perspectives: The Role of Age in a Murder Trial with Black Male Defendants and Victims. Paper submitted Paper presented at the *American Psychology-Law Society Conference* (APA Div. 41) in San Juan, Puerto Rico. (**Refereed**).

Underwood, K., Smith, K. D., Heffner, A., & Ruva, C. L. (March 2025). Recognizing Race: Examining Suspicion and Salience Across Defendant and Mock-Juror. Poster presented at the *American Psychology-Law Society Conference* (APA Div. 41) in San Juan, Puerto Rico. (**Refereed**).

Ruva, C.L., **Sykes, E.C., & Smith, K.D.** (March 2024). Pretrial Publicity is Persuasive: Effects of Victim Race, Juror Race, and Pretrial Publicity on Mock-Jurors' Decision, Evidence Interpretation, and Emotions. Paper presented at the *American Psychology-Law Conference* (APA Div. 41), LA, CA. (**Refereed**).

Sykes, E.C., Underwood, K. & Ruva, C.L. (March 2024). Beyond the Defendant: Victim and Juror Race Affect Verdicts and Reported Anger. Paper submitted to be presented at the *American Psychology-Law Conference* (APA Div. 41), LA, CA. (**Refereed**).

Smith, K.D., Masiero de Barros, B., & Ruva, C.L. (March 2024). Examining Vicarious Trauma in Mock-Jurors: Media Exposure Predict Emotionality and Guilt Ratings. Poster presented at the *American Psychology-Law Conference* (APA Div. 41), LA, CA. (**Refereed**).

Sykes, E.C., & Ruva, C.L. (August 2023). The age of guilt: The effects of defendant age, victim age and stereotype on juror decisions. Poster presented at the *American Psychological Association Conference* (APA), Washington, DC. (**Refereed**).

Ruva, C.L., **Sykes, E.C., & Smith, K.D.** (March 2023). Victim race and victim-juror race congruence affect jurors' decisions and perceptions. Poster to be presented at the *International Conference for Psychological Science* (APS), Brussels, Belgium. (**Refereed**)

Smith, K.D., Aguilera Paez, M., Sykes, E., Ruva, C. L. (March 2023). Vicarious violence: Effects of media exposure to violence against people of color on emotionality. Data Blitz to be presented at the *American Psychology-Law Conference* (APA Div. 41), Philadelphia, PA. (**Refereed**)

PRESENTATIONS AT NATIONAL AND INTERNATIONAL CONFERENCES (Continued)

Sykes, E., Smith, K.D., Ruva, C. L. (March 2023). Is congruence key? The effects of victim race and victim-juror race congruence in a spousal murder trial. Paper presented at the *American Psychology-Law Conference* (APA Div. 41), Philadelphia, PA. **(Refereed)**

Ruva, C.L., **Sykes, E.C., & Smith, K.D.** (March 2022). Gender, generations, and guilt: Defendant age & gender affect juror verdicts, impressions, and emotion. Poster presented at the *American Psychology-Law Conference* (APA Div. 41), Denver, Co. **(Refereed)**

Ruva, C. L., **Diaz Ortega, S. E., & O’Grady, K. A.** (March 2020). The Influence of Pretrial Publicity and Jury Composition on the Slant and Content of Deliberations. Paper presented at the *American Psychology-Law Conference* (APA Div. 41), New Orleans, LA. **(Refereed)**

O’Grady, K. A., Ruva, C. L., & **Diaz Ortega, S. E.** (March 2020). Are Your Discussions Unbiased? The Effects Of Pretrial Publicity, Jury Type, and NFC on Jurors’ Discussion Slant During Deliberations. Poster presented at the *American Psychology-Law Conference* (APA Div. 41), New Orleans, LA. **(Refereed)**

Diaz-Ortega, S., DeWeerd, L. J., Zabell, S. A., & Ruva, C. L. (March 2019). Freedom of the press or fair trial? Pretrial publicity’s influence on jury deliberation content. Paper presented at the *American Psychology-Law Conference* (APA Div. 41), Portland, Oregon. **(Refereed)**

Diaz-Ortega, S. E., Ruva, C. L., **DeWeerd, L. J., & Zabell, S. A.,** (March 2019). Jury decision making: Pretrial publicity influences jury decisions and the content of jury deliberations. *Poster presented at the International Convention of Psychological Science (ICPS)*, Paris, France. **(Refereed)**

Ruva, C. L. (March 2019). Juror decision making: Effects of defendant age and sex on jurors’ verdicts, culpability judgements, and impressions of defendants and attorneys. Poster presented at the *International Convention of Psychological Science (ICPS)*, Paris, France. **(Refereed)**

Ruva, C. L. (2018, March,). Your bias is rubbing off on me: How deliberating with differently biased others influence jurors’ guilt decisions, interpretation of trial evidence, and impressions of defendants and victims. *Paper accepted to be presented at the American Psychology-Law Conference* (APA Div. 41), Memphis, TN. **(Refereed)**

Ruva, C.L. & Michaels, J. L. (2018, January). Course sharing: Professional Seminar and Research Methods – Mock IRB Committee Assignment. Poster presented at the *National Institute on the Teaching of Psychology (NITOP)* in St. Petersburg Florida.

Ruva, C. L. & **Roberts, H.** (2018, March). What’s driving the decision? The effect of pretrial publicity and jury composition on the content of jury deliberations. Paper presented at the *American Psychology-Law Conference* (APA Div. 41), Memphis, TN. **(Refereed)**

Diaz-Ortega, S., & Ruva, C.L. (2017, November) Our Right to Bias? How Exposure to Pretrial Publicity Influences Gender Biases in Deliberations, Discussion of Trial Evidence and Judicial Instructions, and Verdicts. Poster presented at the *Meeting of the Society for Southeastern Social Psychologists (SSSP)*, Atlantic Beach, FL. **(Refereed)**

PRESENTATIONS AT NATIONAL AND INTERNATIONAL CONFERENCES (Continued)

- Ruva, C. L., (2016, March). Keep Your Bias to Yourself: How Does Deliberating with Differently Biased Others Affect Jurors' Decisions, Memories, and Evidence Interpretation? Paper presented at the *American Psychology & Law Society Conference* (APA Div. 41), Atlanta, GA. **(Refereed)**
- Ruva, C. L., (2016, March). What Roles do Pretrial Publicity, Jury Composition, and Individual Characteristics Play in Jurors' Behavior and Decisions? Poster presented at the *American Psychology & Law Society Conference* (APA Div. 41), Atlanta, GA. **(Refereed)**
- Ruva, C. L., **Cimaszewski, F. A., & Adekanye, O.** (2015, March). Exploring the roles pretrial publicity, jury composition, and individual characteristics on juror deliberation behavior and decisions. Paper presented at the *American Psychology & Law Society Conference* (APA Div. 41), San Diego, CA. **(Refereed)**
- Ruva, C. L. (2014, July). How Do Jury Deliberations Affect Pretrial Publicity Bias? Symposium paper presented at the International Congress of Applied Psychology (Conference for the International Association of Applied Psychology), Paris, France. *Symposium title: Media, Crime Perception and Judgment. **(Refereed)**
- Ruva, C. L., **Cimaszewski, F. A., & Cunningham, T.** (2014, March)). Exploring the roles of pretrial publicity and emotion on juror judgments in a criminal trial. Paper presented at the *American Psychology & Law Society Conference* (APA Div. 41), New Orleans, Louisiana. **(Refereed)**
- Ruva, C. L., **Cunningham, T. & Cimaszewski, F. A.** (2014, March). Deliberating with similarly versus dissimilarly biased individuals: Influence on jurors' decisions and impressions. Paper presented at the *American Psychology & Law Society Conference* (APA Div. 41), New Orleans, Louisiana. **(Refereed)**
- Ruva, C. L. (2013, October). Exploring What Goes on Behind Closed Doors: Pretrial Publicity and Jury Deliberations. Invited speaker/delegate paper presentation at the *International Conference on Forensic Research and Technology*, Las Vegas, NV. **(Refereed)**
- Porter, A., Cruz, J. P., & Ruva, C. L.** (2013, October). The CSI Effect: Expectation of Forensic Evidence and its Effects on Juror Verdicts. Poster presentation and published abstract at the *International Conference on Forensic Research and Technology*, Las Vegas, NV. **(Refereed)**
- Alvarez-Ruiz, L. & Ruva, C. L.** (2013, October). Effects of Pretrial Publicity on Eyewitness Memory. Poster presentation at the *International Conference on Forensic Research and Technology*, Las Vegas, NV. **(Refereed)**
- Ruva, C. L. (2013, March). The Influence of Different Types of Pretrial Publicity on Mock-Jurors' Decisions, Evidence Interpretation, and Emotions. Paper presented at the *American Psychology & Law Society Conference*, Portland (APA Div. 41), Portland, Oregon. **(Refereed)**
- Ruva, C.L., **Worley, J. C., & Nieliwocki, M.** (2012, August). Pretrial publicity affects emotion, trial evidence interpretation, decisions, and victim credibility. Paper accepted and will be presented at the *American Psychological Association Conference*, Orlando, FL. **(Refereed)**

PRESENTATIONS AT NATIONAL AND INTERNATIONAL CONFERENCES (Continued)

- Edwards, J. D., Ruva, C. L., Haley, C. B., & O'Brien, J. L., **Hudak, E. M.**, Lister, J. L. (April 2012). Divided attention gains mediate transfer of speed of processing training to everyday functioning. Paper submitted to be presented at the *Cognitive Aging Conference*, Atlanta, GA. **(Refereed)**
- Ruva, C.L., **Mayes, J. L., Dickman, M. C., & Worley, J. C.** (2012, March). Exposure to both positive and negative PTP can reduce or eliminate PTP bias and source memory errors. Symposium paper presented at the *American Psychology & Law Society Conference*, San Juan, Puerto Rico. **(Refereed)**
- Edwards, J. D., Ruva, C. L., Haley, C. B., & **Hudak, E. M.** (2011, September). Divided attention gains mediate transfer of speed of processing training to everyday functioning. Paper presented at the *Entertainment Software and Cognitive Neurotherapeutics Society Conference*, San Francisco, CA. **(Refereed)**
- Ruva, C.L., **McGowan, A. M., Cirks, C. K., & Guenther, C. C.** (2011, March). The Impact of Pretrial Publicity and need for cognition on juror's decisions and deliberation behavior. *American Psychology & Law Society International Conference*, Miami, FL. **(Refereed)**
- Ruva, C.L., **Mayes, J. L., Dickman, M. C., & Guenther, C. C.** (2011, March). Timing and type of pretrial publicity affect jurors' decisions and predecisional distortion. Paper presented at the *American Psychology & Law Society International Conference*, Miami, FL **(Refereed)**
- Ruva, C.L. & **Hudak, E.M.** (2010, April). Pretrial publicity and juror age affect juror decision making. Paper presented at the *Cognitive Aging Conference*, Atlanta, GA. **(Refereed)**
- Ruva, C.L. & **Hudak, E.M.** (2010, March). Pretrial publicity and juror age affect juror decision making. Paper presented at the *American Psychology & Law Society Conference*, Vancouver, BC. **(Refereed)**
- Ruva, C. L., **Guenther, C. C., & Yarbrough, A.** (2010, March). The emotional decision maker: Jurors' emotional responses to pretrial publicity mediate their decisions. Paper presented at the *American Psychology & Law Society Conference*, Vancouver, BC. **(Refereed)**
- Ruva, C.L. & **Donaldson-Guenther, C.C.** (2009, March). Coding the effect of pretrial publicity on jury deliberations. Invited symposium paper presented at the *American Psychology & Law Society Conference*, San Antonio, TX. **(Refereed)**
- Ruva, C.L., **LeVasseur, M.A., & Frei, A.M.** (2009, March). Behind closed doors: Pretrial publicity affects the nature and quality of mock-jury deliberations. Paper presented at the *American Psychology & Law Society Conference*, San Antonio, TX. **(Refereed)**
- Donaldson-Guenther, C.C.** & Ruva, C.L. (2009, March). The effects of pretrial publicity on evidence evaluation: A story model framework. Paper presented at the *American Psychology & Law Society Conference*, San Antonio, TX. **(Refereed)**
- Ruva, C. L. & **LeVasseur, M.A.** (2008, May). Behind closed doors: A content analysis of the mock-jury deliberation process. Paper presented at the *Association for Psychological Science Annual Convention*, Chicago, IL. **(Refereed)**

PRESENTATIONS AT NATIONAL AND INTERNATIONAL CONFERENCES (Continued)

- Ruva, C. L. & **LeVasseur, M.A.** (2008, March). Observing jury interaction: pretrial publicity affects the qualitative nature of mock-jury deliberations. Paper presented at the *American Psychology & Law Society Conference*, Jacksonville, FL. **(Refereed)**
- Ruva, C. L. (2007, May). Pretrial publicity affects memory for and interpretation of trial evidence. Paper presented at *Association for Psychological Science Annual Convention*, Washington, DC. **(Refereed)**
- Loftus, H.** & Ruva, C.L. (2007, March). Individual differences and their association with suggestibility and source monitoring errors. Paper presented at *Off the Witness Stand: Using Psychology in the Practice of Justice*, John Jay College, New York, NY. **(Refereed)**
- Ruva, C.L. (2006, November). Pretrial publicity and collaboration affect juror memory and decision making. Paper presented at the *Psychonomic Society Annual Meeting*, Houston, TX. **(Refereed)**
- Ruva, C.L. (2005, May). Pretrial publicity and length of delay effect juror memory and decision making. Paper presented at the *American Psychological Society Annual Convention*, Los Angeles, CA. **(Refereed)**
- Ruva, C. L. (2004, March). Leveling the playing field? The effect of positive versus negative PTP on trial outcome and source monitoring errors. Paper presented at the *American Psychology-Law Society Annual Conference*, Scottsdale, AZ. **(Refereed)**
- Ruva, C. L. (2003, May). Does exposure to pretrial publicity affect juror's memory for trial facts? Paper presented at the *American Psychological Society Annual Convention*, Atlanta, GA. **(Refereed)**
- Ruva, C. L., McEvoy, C. & Bryant, J. B. (2002, June). Effects of collaboration and pretrial publicity on juror bias and source monitoring errors. Paper presented at the *Annual Meeting of the American Psychological Society*, New Orleans, Louisiana. **(Refereed)**
- Gonzalez, L. P.,** Bryant, J. B. & Ruva, C. L. (1999, April). Perceptions of witness credibility as a function of witness age and language translation. Paper presented at the *Biennial Meeting of the Society for Research in Child Development*, Albuquerque, NM. **(Refereed)**
- Ruva, C., & Bryant, J. B. (1998, July). Perceptions of witness credibility as a function of witness age, speech style, and question form. Paper presented at the XVth Meetings of the *International Society for the Study of Behavioral Development*, Bern, Switzerland. **(Refereed)**
- Ruva, C., & Bryant, J. B. (1998, March). The impact of age, speech style, and question form on perceptions of witness credibility and trial outcome. Paper presented at the *American Psychology-Law Society Biennial Conference*, Redondo Beach, CA. **(Refereed)**
- Ruva, C., Bryant, J. B. & Brannick, M. (1996, March). Development of the Adults' General Beliefs about Children Scale for research on witness credibility. Paper presented at the *Conference on Human Development*, Birmingham, AL. **(Refereed)**
- Ruva, C. (1995, December). How does attorney questioning techniques and witness speech affect both perceived credibility of child witnesses and trial outcomes? Poster presented at the *National Science Foundation Conference (Women and Science)*, Washington, DC. **(Refereed)**

SELECTED PRESENTATIONS AT BAR/LEGAL ASSOCIATIONS

Wild West Bench and Bar-B-Que Panel Presentation (November 17, 2023). Presentation entitled "In the Court of Public Opinion: Pretrial Publicity and Juror Bias". Stetson University College of Law, Gulfport Florida.

Pinellas County Trial Lawyers Association/Pinellas Bar Association Presentation (October 25, 2023). Presentation entitled "*Trial by Tabloid: Media's Impact on a Defendant's Right to a Fair Trial*".

Clearwater Bar Association Civil/Trial Section Presentation (April 25, 2023) for CLE credits: Presentation entitled "*Jury Psychology and Techniques for Voir Dire*"

SERVICE ACTIVITIES

Conference & Symposium Reviewer

1. Reviewer for AP-LS conference submissions
2. Reviewer for APA conference for Div. 41 conference submissions

Journal & Grant Reviewer (Ad Hoc)

1. Applied Cognitive Psychology
2. Behavioral Sciences
3. Behavioral Sciences and the Law
4. Communication Quarterly
5. Cambridge University Press
6. Communication Studies
7. Crime, Law, and Social Change
8. Criminal Justice & Behavior
9. Criminology & Public Policy
10. Journal of Applied Social Psychology
11. Journal of Experimental Psychology - Applied
12. Journal of Forensic Psychiatry and Psychology
13. Justice Quarterly
14. Law and Human Behavior
15. Law & Social Inquiry
16. Legal and Criminological Psychology
17. NSF: Law & Social Science Program
18. Psychology, Crime, & Law
19. Psychology of Popular Media
20. Psychiatry, Psychology, & Law

Jury Consulting and Expert Testimony

- This work includes consulting on high-profile cases, writing reports for the court, and testifying in court as an expert witness regarding the impact of pretrial publicity on defendants' right to a fair trial guaranteed under the Sixth Amendment of the US Constitution. I have also consulted other jury consultants in high-profile cases.

Service to University, College, and Department

1. Campus Chair of Psychology (2020 – present)
2. Center for Justice Research & Policy - Leadership Team Member (2020-present):
<https://www.usf.edu/arts-sciences/centers/cjrp/>
3. Psychology Executive Committee Member (2020 – present)
4. Annual Evaluation Committee Member (2020 – present)
5. Sabbatical Committee Member (2024 - present)
6. CDP Graduate Program Task Force (2021)
7. USFSM Chair of Psychology (2008 - 2020)
8. Chair of the USFSM Tenure & Promotion Committee (2017-2018 & 2019-2020)
9. Member of the USFSM Tenure & Promotion Committee (2018-2019)
10. Chair of the College of Science & Mathematics Tenure & Promotion Committee (2016 – 2020)
11. Chair of the College of Science & Mathematics Annual Review Committee (2016-2020)
12. Chair Psychology Assessment Committee (2007 – 2019)
13. Member of Awards & Rewards Committee (2017 – 2019)

RESEARCH SUPERVISION

Thesis and Dissertation Committees

1. Rebecca Upton: CNS Dissertation, University of South Florida
 - Dates of Service: August 2025 to present.
 - Joe Vandello is the Chair of thesis committee.
 - Title: TBD
2. Ivy (Haomin) Chen: Clinical Psychology Dissertation, University of South Florida
 - Dates of Service: April 2025 to present.
 - Edelyn Verona is the Chair of thesis committee.
 - Title: Testing the Utility of Latent Risk/Needs Factors for Prediction of Risk and Treatment Responsivity
3. Meaghan Brown: Clinical Psychology Dissertation, University of South Florida
 - Dates of Service: September 2024 to present.
 - Edelyn Verona is the Chair of thesis committee.
 - Title: Implementing a brief dialectical behavior therapy-informed skills group in a county jail: a mixed methods approach to testing feasibility and acceptability

Thesis and Dissertation Committees (Continued)

4. Bailey Hall: Clinical Psychology Dissertations, University of South Florida
 - Dates of Service: January 2024 to June 2025.
 - Edelyn Verona is the Chair of thesis committee.
 - Title: “Psychopathy, Emotion, and Mock Juror Decision-Making”
5. Elizabeth Sykes: Psychology Master’s Thesis (Chair), University of South Florida
 - Dates of Service: May 2023 to Fall 2024.
 - Title: “The Impact of Age on Mock-Jurors’ Verdicts and Ratings in Cases Involving Black, Male Defendants and Victims”
6. Bailey Hall: Clinical Psychology Master’s Thesis, University of South Florida
 - Dates of Service: February 2022 to November 2023.
 - Edelyn Verona is the Chair of thesis committee.
 - Title: “The Effects of Psychopathy Trait Descriptions on Mock Juror Decision Making”
7. Natalie Gordon: Psychology Ph.D. candidate Psychology and Law at John Jay College of Criminal Justice.
 - Date of Service: April 2019 – May 2021
 - Margaret Kovera is Chair of this doctoral committee.
 - Title: “Increasing the Accuracy of Jurors’ Self Reports of PTP Bias During *Voir Dire*”
8. Andrea Ranieri: Psychology (Cognitive, Neuro, & Social area) USF Tampa
 - Date of Service: April 2016 – May 2019 (successfully defended)
 - Sandy Schneider Chaired this doctoral committee
 - Dissertation Title: “Can too much (descriptive) information be a bad thing? The effects of a priori outcome information on choice preference”
9. Lindsey Rhead: Psychology and Law Experimental Track Doctoral Student at John Jay College of Criminal Justice (CUNY)
 - Date of Service: November 2012 to July 2015
 - Margaret Kovera Chaired this doctoral committee
 - Dissertation Title: Juror Target Monitoring Errors in Multiple Defendant Trials
10. Stephanie Smith: Clinical Forensic Psychology, The Chicago School of Professional Psychology
 - Date of Service: May 2010 to June 2014 (successfully defended)
 - Jim Iaccino Chaired this doctoral committee
 - Dissertation Title: Moral Disengagement and Jury Decision Making
11. Elizabeth Gagnon: Aging Studies, University of South Florida Tampa
 - Date of Service: September 2010 to July 2012 (successfully defended)
 - Jerri Edwards Chaired doctoral committee
 - Dissertation Title: The Effects of Cognitive Stimulation and Computerized Memory Training among Older Adults

RESEARCH SUPERVISION**Undergraduate: Honors Thesis & Senior Research Projects Chaired**

1. Laura Enciso (April 2022 – April 2023) – *Committee Chair*. Title “How do Individual Differences Influence Juror Decision Making? A Review on the Impact of Juror Bias on Cases of Domestic and Sexual Violence”
2. Alana Fleischer (October 2018 – December 2019) – *Committee Chair*. Title “Juror Decision Making Regarding Intellectual Disability”
3. Alexis Mansfield (Fall 2018 – December 2019) – *Committee Chair*. Title “Counterfactual Thinking About Crime Control Theater: Jurors’ Decision Making in a Registered”
4. Stephanie Diaz-Ortega (January 2017 – April 2019) – *Faculty Mentor* of Senior Research Project. Title "Our Right to Bias? How Exposure to Pretrial Publicity Influences Gender Biases in Deliberations, Discussion of Trial Evidence and Judicial Instructions, and Verdicts"
5. Priscilla Augustine (January 2015 – May 2017) – *Committee Chair*. Title “What are the Causes of Wrongful Convictions? The Relative Impact of Different Types of Forensic Evidence.”
6. Taylor Hill (January 2015 – December 2016) – *Committee Chair*. Title “Gender Bias in Jury Decisions: A Review of Current Literature.”
7. Roberts, Haley (June 2014 – Present) – *Committee Chair*. Title “Who’s making the decision? Effects of Pretrial Publicity on Jury Deliberations.”
8. Oluwatosin S. Adekanye, Psychology Honors (January 2014 – May 2015) – *Committee Member*. Title “A Re-visitation of Stanovich and West’s Cars Paradigm Study of Myside Bias.”
9. Ashley Porter and Justo Cruz (spring and fall 2013) – *Committee Chair*. Title “The CSI Effect: Expectation of Forensic Evidence and its Effects on Juror Verdicts.”
10. Lorena Alvarez-Ruiz, Psychology Honors (fall 2012 - fall 2013) – *Committee Chair*. Title “Effects of Pretrial Publicity on Eyewitness Memory.”
11. Jami Worley, Senior Research Project (2010-2011) – *Committee Chair*. Title “The Importance of Trial Ambiguity: Understanding the Influence of Pretrial Publicity on Jurors’ Decisions and Emotions”
12. Mary Dickman, Psychology Honors (2010-2011) – *Committee Member*. Title “Attitudes toward Sexist Language and Epicene Reference”
13. Christina Donaldson-Guenther, Psychology Honors (2007-2008) – *Committee Chair*. Title “The Effects of Pretrial Publicity on Evidence Evaluation: A Story Model Framework”
14. Vivian Lotts, Psychology Honors (2006-2007). Differences Matter? The Effects of Misinformation and Delay on Eyewitness Performance”
15. Shermel Ward, Psychology Honors (2006-2007) – *Committee Chair*. Title “Improving Healthy Families America’s Ability to Prevent Child Abuse in More Families throughout the United States”
16. Holly Carvalho-Loftus, Senior Thesis (2005-2006) – *Committee Chair*. Title “Individual Differences and Their Association with Suggestibility and Source Memory Errors”

COURSES TAUGHT

1. Applied Cognitive Psychology
2. Cognitive Psychology
3. Child Psychology
4. Developmental Psychology
5. Directed Study/Research (Undergraduate & Graduate)
6. Learning
7. Psychology Honors & Thesis Supervision
8. Psychology Applied to Law
9. Psychology of Language
10. Perception
11. Professional-Seminar: Applying Psychology to the Legal System (Capstone Course)
12. Research Methods
13. Thesis and Dissertation Supervision

PROFESSIONAL ASSOCIATIONS & AWARDS

- 2022 USF Faculty Outstanding Research Achievement Award: <https://www.usf.edu/research-innovation/news/2022/outstanding-research-achievement-awards.aspx>
- 2023-2024: Awarded a one-semester sabbatical
- Excellence in Service Award, USF Sarasota-Manatee, 2017
- American Psychological Association
- American Psychology – Law Society (Div. 41 APA)
- Association for Psychological Science
- Psychonomic Society

Exhibit 3

(Removed as part of redactions)

Exhibit 4

(Removed as part of redactions)

Exhibit 5

Order in *State of Idaho v. Bryan Kohberger*
(11.17.2023)

CASE NO. CR 29-22-2805
2023 November 17 5:00 P.M.
COURT
BY EM DEPUTY

IN THE DISTRICT COURT OF THE SECOND JUDICIAL DISTRICT OF
THE STATE OF IDAHO, IN AND FOR THE COUNTY OF LATAH

STATE OF IDAHO,

Plaintiff,

vs.

BRYAN C. KOHBERGER,

Defendant.

Case No. CR29-22-2805

**ORDER DENYING SECOND
MOTION TO INTERVENE AND
GRANTING DEFENDANT'S
MOTION TO REMOVE MEDIA
CAMERAS FROM THE
COURTROOM**

I. INTRODUCTION

This Order addresses the Motion to Remove Cameras from Courtroom filed by Defendant Bryan C. Kohberger ("Kohberger") on August 24, 2023. On September 6, 2023, the State responded to Kohberger's Motion requesting that the Court "prohibit cameras in the courtroom, both still and video, at a minimum during trial and during any other court proceedings at which victims . . . might be called to testify." State's Resp. to Def.'s Mot. to Remove Cameras from the Courtroom at 3.

The On August 30, 2023, a coalition of 14 media outlets,¹ that will be collectively referred to as the "Associated Press," filed a second Motion to Intervene in the case. Mot. to Intervene at fn.

¹ The Associated Press; Radio Television Digital News Association; Tegna Inc./KREM (Spokane); The Lewiston Tribune; Washington State Association of Broadcasters; Idaho Press Club; KXLY-TV/4 News Now and KAPP/KVEW-TV-Morgan Murphy Media KXLY-TV/4 News Now; Scripps Media, Inc., dba KIVI-TV, a Delaware corporation; The Spokesman Review/Cowles Company; LawNewz, Inc.; ABC, Inc.; Society of Professional Journalists; The McClatchy Company, LLC; and CNN.

1. On September 8, 2023, the Associated Press filed an Opposition to Motion to Remove Cameras from the Courtroom. The Associated Press argues that “continuing to allow audio/visual coverage of the proceedings is the only way to ensure that the many community members affected by these crimes throughout the University of Idaho, Moscow, the State of Idaho, and the cities in which the victims’ family members reside have an opportunity to see and hear the proceedings for themselves.” Intervenor’s Opposition to Mot. to Remove Cameras from the Courtroom at 2.

For the reasons stated below, the Court grants Kohberger’s Motion to Remove Cameras from Courtroom as it pertains to cameras, both still and video, operated by the media. However, the Court will continue to allow the proceedings to be videoed by a Court operated camera system. This will help to alleviate the concerns raised by both the defense and the State, but at the same time will ensure the public still has access to see the proceedings for themselves if they cannot attend hearings in-person.

II. BACKGROUND

On November 13, 2022, four University of Idaho students, Kaylee Goncalves, Madison Mogen, Xana Kernodle, and Ethan Chapin, were found deceased in Goncalves, Mogen, and Kernodle’s off-campus home in Moscow, Idaho. The cause of death for each was ruled a homicide. As news of the tragedy broke, media outlets from around the country descended upon Moscow. As law enforcement investigated, news stations, newspapers, and social media were flooded with stories and speculation about the homicides.

On December 30, 2022, Kohberger was arrested and charged with four counts of Murder in the First Degree and one count of Burglary. Again, media outlets descended upon Moscow and the news coverage quickly focused on Kohberger.

Given the high-profile nature of the case and concerns surrounding Kohberger's fundamental right to a fair trial by an impartial jury, the parties stipulated to entry of a Nondissemination Order. On May 1, 2023, a coalition of 20 media outlets, which encompasses the 14 media outlets now at issue, filed a Motion to Intervene and a Motion to Vacate the Amended Nondissemination Order. At a scheduling conference conducted on May 22, 2023, the Court asked the parties and the Associated Press to brief the issue of whether cameras should continue to be allowed in the courtroom during proceedings in this case.

Oral argument on the issue was heard on June 9, 2023. The State was represented by William W. Thompson, Jr., and Bradley J. Rudley, Latah County Prosecutor's Office. Defendant Bryan C. Kohberger ("Kohberger") was represented by Anne C. Taylor and Jay W. Logsdon, Kootenai County Public Defender's Office. The Associated Press was represented by Wendy Olson and Cory Carone. At that time, both the defense and the prosecution were opposed to cameras in the courtroom, especially at trial. Nevertheless, the Court reserved its ruling on the issue and has continued to allow cameras operated by the media at all public hearings.

As the case has progressed, media coverage, both by legitimate media outlets and journalists and by individuals on social media platforms, continues to be significant nationwide. On August 24, 2023, the defense filed a Motion to Remove Cameras from Courtroom. On August 30, 2023, the Associated Press filed a second Motion to Intervene in the case, and on September 8, 2023, filed an opposition to Kohberger's motion. On September 6, 2023, the State filed a response to Kohberger's motion arguing that cameras should at least be banned during any hearings, including trial, where vulnerable witnesses and/or victims are called to testify.

On September 13, 2023, a hearing on Kohberger's motion was held. The State was represented by William W. Thompson, Jr., Bradley J. Rudley, Jeff Nye, and Ingrid Batey.

ORDER DENYING SECOND MOTION TO INTERVENE
AND GRANTING DEFENDANT'S
MOTION TO REMOVE MEDIA CAMERAS
FROM THE COURTROOM - 3

Kohberger was represented by Anne C. Taylor, Jay W. Logsdon, and Elisa Massoth. The Associated Press was represented by Wendy Olson and Cory Carone.

III. ISSUES PRESENTED

The first issue pending before this Court is whether the Associated Press has a right to intervene in the case to challenge Kohberger's motion. For the reasons stated below and articulated on the record at the hearing on September 13, 2023, the Court holds that the Associated Press does not have standing to intervene in the case at this juncture. Nevertheless, the Court will allow the Associated Press to participate as an Interested Media Coalition.

The next issue is whether the Court should exercise its discretion and remove cameras from the courtroom to protect Kohberger's right to a fair trial and to protect vulnerable witnesses and victims who may be called to testify at trial and other hearings. For the reasons stated below, the Court will prohibit still, video, and audio coverage by journalists and the public. However, a Court operated video and audio system will be used to record and stream the proceedings allowing the media and the public access to view and hear for themselves what is taking place in the courtroom. This will alleviate some of the concerns raised by the parties while addressing the media's concerns with removing cameras from the courtroom.

IV. ANALYSIS

1) Intervention

There is not a "widespread right of the press – or anyone else – to routinely intervene in Idaho's criminal proceedings." *In re Petition for Writ of Mandamus or Writ of Prohibition*, No. 50482, 2023 WL 3050829 (Idaho Apr. 24, 2023). Instead, the Idaho Supreme Court has endorsed "a limited right, applicable when a trial court's responsibility to balance the Sixth Amendment right of the accused with the First Amendment interests of the media becomes an issue." *Id.*

There is no First Amendment or other constitutional right to record, either by audio or visual transmission, any court proceedings in Idaho. I.C.A.R. 45. As noted by the 9th Circuit in *Radio & Television News Ass'n of S. California v. U.S. Dist. Ct. for Cent. Dist. of California*, 781 F.2d 1443, 1444 (9th Cir. 1986), while “[t]he press does enjoy a constitutional interest in access to our criminal courts and criminal justice process. . . the [U.S. Supreme] Court described that right only as a right to *sit, listen, watch, and report*.” (emphasis added) (citing *Richmond Newspapers*, 448 U.S. 555, 576, 100 S.Ct. 2814, 2827, 65 L.Ed.2d 973 (1980) (plurality)).

Because the Associated Press does not have a constitutional right at stake when it comes to cameras in the courtroom, intervention is not appropriate. Thus, the Associated Press’s second Motion to Intervene is denied. However, the Court will treat the Associated Press like *amicus curiae*. *Amicus Curiae* is “someone who is not a party to a lawsuit but who petitions the court or is requested by the court to file a brief in the action because that person has a strong interest in the subject matter.” *AMICUS CURIAE*, Black's Law Dictionary (11th ed. 2019).

2) Cameras in the Courtroom

In Idaho, the decision to “limit, restrict, or prohibit audio/visual coverage at any proceeding” is left to the discretion of the judge presiding over the case. I.C.A.R. 45(b). Such decisions are not subject to appellate review. *Id.*

The presiding judge maintains the right to limit audio/visual coverage of any public hearing when the interests of the administration of justice requires. Authorization may be revoked at any time, without prior notice, when in the discretion of the court it appears that audio/visual coverage is interfering in any way with the proper administration of justice.

I.C.A.R. 45(a).

“Few, if any, interests under the Constitution are more fundamental than the right to a fair trial by ‘impartial’ jurors.” *Gentile v. State Bar of Nevada*, 501 U.S. 1030, 1075, 111 S. Ct. 2720,

ORDER DENYING SECOND MOTION TO INTERVENE
AND GRANTING DEFENDANT’S
MOTION TO REMOVE MEDIA CAMERAS
FROM THE COURTROOM - 5

2745, 115 L.Ed.2d 888 (1991). The U.S. Supreme Court has recognized a defendant's right to "a trial by an impartial jury free from outside influences" in the face of "massive, pervasive and prejudicial publicity." *Sheppard v. Maxwell*, 384 U.S. 333, 335, 362, 86 S. Ct. 1507, 1508, 1522, 16 L. Ed. 2d 600 (1966). While acknowledging that "[a] responsible press has always been regarded as the handmaiden of effective judicial administration, especially in the criminal field," *id.* at 350, 86 S. Ct. at 1515, the Court chastised the trial judge for not taking "strong measures" to ensure Sheppard's right to a fair trial. *Id.* at 362, 86 S. Ct. at 1522. While "pretrial publicity even pervasive, adverse publicity does not inevitably lead to an unfair trial," "[t]he capacity of the jury eventually impaneled to decide the case fairly is influenced by the *tone and extent* of the publicity." *Nebraska Press Ass'n v. Stuart*, 427 U.S. 539, 554-55, 96 S.Ct. 2791, 2800-01, 49 L.Ed.2d 683 (1976) (emphasis added).

While "[o]nly the occasional case presents a danger of prejudice from pretrial publicity," *Gentile*, 501 U.S. at 1054, 111 S. Ct. at 2734, this case, as recognized by the Idaho Supreme Court, "has drawn widespread publicity, garnering worldwide media attention and much speculation" and, therefore, pretrial publicity does present a real danger of prejudice. *In re Petition for Writ of Mandamus or Writ of Prohibition*, No. 50482, 2023 WL 3050829, at *1 (Idaho Apr. 24, 2023). "Recognizing the high-profile nature of the case and the extensive coverage it has received, along with the need to minimize possible pretrial prejudice," the parties agree that cameras should be prohibited from the courtroom, especially at trial and any other hearings where vulnerable victims and witnesses may be called to testify. *Id.* As was noted by District Judge Steven W. Boyce in his Memorandum Decision and Order Prohibiting Video and Photographic Coverage in the case of *State of Idaho v. Lori Norene Vallow aka Lori Norene Vallow Daybell*, CR22-21-1624,

“[a]greement between the State and Defense on any issue in a capital case is rare, further confirming to the Court the legitimacy and level of concern counsel have raised.” The same is true in this case.

As demonstrated by some of the examples presented in the defense’s Motion to Remove Cameras from Courtroom, media cameras, both still and video, have and continue to zoom in on Kohberger despite the Court’s order that images should capture the courtroom in its entirety. At least some of the images are of Kohberger entering and exiting the courtroom. This is in direct violation of the Court’s previous directives not to film or take photographs until the Court is on the record and to immediately stop recording and taking photographs when the hearing concludes. It is the intense focus on Kohberger and his every move, along with adverse headlines and news articles, that leads the Court to conclude that continued photograph and video coverage inside the courtroom by the media should no longer be permitted. This step should help ensure Kohberger’s right to a fair trial by an impartial jury and achieve a proper administration of justice.

Additionally, defense counsel has raised continued concerns with video footage and photographs capturing private documents on counsel table. This is again in violation of the Court’s directives. The State has also raised issues of vulnerable victims and witnesses being filmed during testimony. At this juncture, the Court has no confidence that directives to stop photographing or videoing during such testimony would be adhered to. Further, the duty on the bailiffs within the courtroom to ensure a safe and secure environment is being eclipsed by the burden to monitor media and the public who may be audio recording, videoing, or photographing the proceedings.

To be clear, the Court is not accusing all journalists and media outlets of violating the Court’s orders. However, a Court operated video system will give the Court greater control over what is being videoed, will lessen the burden on the bailiffs, will help to alleviate counsels’

concerns, and will allow the media and the public access to the video footage of the proceedings.

ORDER DENYING SECOND MOTION TO INTERVENE
AND GRANTING DEFENDANT’S
MOTION TO REMOVE MEDIA CAMERAS
FROM THE COURTROOM - 7

V. CONCLUSION

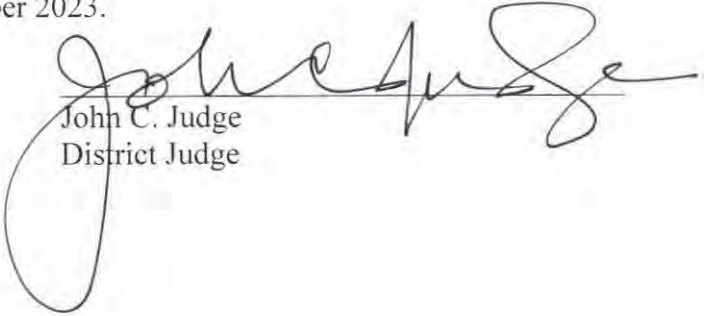
For the reasons set forth above, audio/visual coverage of any proceedings in this case will be exclusively done by the Court. Media and the public are not allowed to video, photograph, audio record, or otherwise transmit during the proceedings.

Future public hearings in this case will be video recorded and that live video stream will be available for the public and media to view at the Court's YouTube channel:

<https://www.youtube.com/channel/UCAOFrQpvtre9HRSzhY-zhCA>

The Court reserves the right to amend or prohibit audio/visual coverage in the future if it is determined that videoing the proceedings is interfering in any way with the proper administration of justice.

SO ORDERED this 17th day of November 2023.



John C. Judge
District Judge

CERTIFICATE OF SERVICE

I certify that copies of the ORDER DENYING SECOND MOTION TO INTERVENE AND GRANTING DEFENDANT'S MOTION TO REMOVE MEDIA CAMERAS FROM THE COURTROOM were delivered by email to the following:

William W. Thompson, Jr., and Bradley Rudley
Latah County Prosecuting Attorney
Paservice@latah.id.us

Jeffery Nye
Deputy Attorney General
Jeff.nye@ag.idaho.gov

Ingrid Batey
Deputy Attorney General
Ingrid.batey@ag.idaho.gov

Anne C. Taylor and Jay Logsdon
Attorney for Defendant
pdfax@kcgov.us

Elisa C. Massoth
Attorney for Defendant
emassoth@kmrs.net

Wendy J. Olson
Attorney for the Associated Press
Wendy.olson@stoel.com

Cory M. Carone
Attorney for the Associated Press
Cory.carone@stoel.com

on this 17th day of November 2023.

CLERK OF THE COURT

By: 
Deputy Clerk